Legislative models of prosecuting child sexual abuse in India: a review and critical analysis

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STATEMENT OF ORIGINAL AUTHORSHIP

The work contained in this thesis has not been previously submitted to meet requirements for an award at this or any other higher education institution. To the best of my knowledge and belief, the thesis contains no material previously published or written by another person except where due reference is made.

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ABSTRACT

This thesis examines social science evidence on the nature, prevalence and effects of child sexual abuse, as well as the Indian legislative framework and case law regarding child sexual abuse. This thesis conducts a synthesis of social science evidence, synthesis of Indian statutes and case law regarding child sexual abuse (with special emphasis on the law in the states of Goa and Kerala), analysis of the law, and theoretical analysis of principles from the *United Nations Convention on Child Rights 1989*.

This thesis presents the law current to 30 January 2017.

Key Words

Nature of child sexual abuse, India, definitions, social science evidence, health effects, United Nations Convention on the Rights of the Child, criminal law, sexual offences, age of consent, child marriage, statutes, general legislation, *Indian Penal Code 1860*, special legislation, *Protection of Children Against Sexual Offences Act 2012*, case laws, Supreme Court of India, High Courts, national, Goa, Kerala, synthesis, legal analysis, Bingham, theoretical analysis

CHAPTER 1. INTRODUCTION

This thesis is a study of the Indian legislative framework for the criminal prosecution of child sexual abuse. This thesis focuses on the impact of substantive provisions of criminal law which define and punish offences of child sexual abuse upon the legal framework. This thesis uses the national and regional[1] laws prosecuting child sexual abuse before and after the enactment of the *Protection of Children against Sexual Offences Act 2012* and examines the problems solved and created by these enactments. This thesis looks into trends in reported decisions on child sexual abuse in India from a synthesis of cases decided by the Supreme Court of India, along with case law from the High Courts of Goa and Kerala.

The term 'legislative models' used in the title refers to statutes and reported case law decisions of the Union of India, which includes the decisions of the Supreme Court of India and relevant decisions from the High Courts of various states, as well as specific statutes and/or reported case law decisions within the jurisdictions of the states of Goa and Kerala.

1.1. CONTEXT: NATIONAL AND STATE LAWS

In India, child sexual abuse laws were largely archaic, even after two decades of acceptance of the *United Nations Convention on the Rights of a Child 1989* (referred to as *UNCRC*). Punishments for sexual abuse of children were under the general criminal law of the *Indian Penal Code 1860* (referred to as *IPC*).The sensitivity of the issue of child sexual abuse and the hesitation of victims to report incidents were the reasons for a glaring deficiency of reported cases and legislation in India. The absence of national mandatory reporting procedures ensured there was no legal obligation to report incidents to the law enforcement agencies.

The late 1990s heralded the computer revolution in India. In the early 2000s, police operations in the USA and the UK found evidence of uploading of child pornography from India. Also, the American media widely reported shameful incidents of various Indian professionals being party to sexual abuse of children through electronic means. There was a blatant absence of statistics in India regarding the problem of child sexual abuse. It is a social

[1] In India, the word 'state' is used to denote provincial or regional legislation, as opposed to national or central or Union legislation.

reality that, unless public-spirited organisations and the media step in, the victim and his/her family do not receive support from the community and hence fail to press charges. Such absence of strong community support serves to hinder criminal proceedings to prosecute the offender at the initial stage itself, as the criminal justice machinery in India does not, by itself, play a pro-active role.

It ought to have been the existence of these undocumented factors that propelled social activists and non-governmental organisations working in the field of children's rights to exert pressure upon the national government to collect of statistics regarding the extent of abuse, as well as for the enactment of stronger laws.

A National Commission for Protection of Child Rights came into existence in 2007, after the passing of the *Commissions for Protection of Child Rights Act, 2005*. Thereafter, various states established their State Commissions for Protection of Child Rights.

The first official prevalence study and the enactment of national special legislation in 2012

The Ministry of Women and Child Development of the Government of India conducted an official study on abuse of children in 2007 encompassing 13 states in India. This study entitled "*A Study on Child Abuse: India 2007*" found the prevalence of child sexual abuse to be high: 53.22% of children have faced one or more forms of sexual abuse and 21.90% of child respondents have faced severe forms of sexual abuse. Three evidence groups comprising of children on the street, children at work and children in institutional care reported the highest incidence of sexual assault. Fifty per cent of abusers were persons known to the child or in a position of trust and responsibility. Most children did not report the matter to anyone.

After the publication of this study, the government enacted an exclusive law dealing with various types of child sexual abuse. This law, entitled "*The Protection of Children against Sexual Offences Act 2012*" (referred to as *POCSO*), came into force on 14 November 2012.This law is a landmark in the history of child rights in India because various sexual offences against children which previously did not exist in Indian criminal law were defined and criminalised for the first time.

The passing of the Criminal Law (Amendment) Act 2013

In December 2012, the brutal gang rape of a female student in the Indian capital of Delhi and her subsequent death led to mass protests against the Indian government for failing to provide adequate security for women. On 22 December 2012, a judicial committee headed by J. S. Verma, a former Chief Justice of India, suggested various amendments to the criminal law to deal with sexual assault cases. The committee's report indicated that failures on the part of the government and police were the root cause behind crimes against women. Soon after, the *Criminal Law (Amendment) Act 2013* came into force, amending the *IPC*, *Indian Evidence Act 1872*, the *Code of Criminal Procedure 1973* on laws related to sexual offences, as well as the *POCSO*. This amendment gave a new definition of the offence of "rape", as well as inserted new sexual offences like harassment and voyeurism. It also inserted a provision into the *POCSO* clarifying which provisions were to prevail in the case of conflict between the *IPC* and *POCSO*. Currently, statutes prosecuting child sexual abuse in India are the *IPC* and the *POCSO*.

Analysis of state legislative frameworks: Goa and Kerala

This thesis examines legislation and reported judicial decisions in states of Kerala and Goa: the former being representative of all other states in the Indian Union, and the latter being unique in having a pre-existing regional legislation for offences against children.

Goa is India's richest state and ranks on top for the best quality of life.[2] Goa is situated on the western coast of India. The scenic beauty of its beaches has made it a world-famous tourist destination. Goa differs from most of the Indian states due to its historical and cultural significance as having existed as a former colony of the Portuguese Empire for 450 years amidst the British Colony in the peninsula, until India annexed it in 1961. In the early 2000s, controversies regarding child sexual abuse racked the state of Goa, which is unique due to its peculiar cultural and geographical significance. Goa's heavy dependence on tourism to sustain its economy, coupled with the evidence that foreigners sexually abuse local children employed in tourism-based activities, caused the enactment of special legislation called the *Goa Children's Act 2003*.[3] This enactment provided a comprehensive definition of various offences against children, as well as laying down the procedure for the enforcement of

[2] Finance Commission (2005). Reports of the Finance Commissions of India: First Finance Commission to the Twelfth Finance Commission: the complete report. New Delhi, Academic Foundation.
[3] Nair, P.M.,& Sen, S. (2005).*Trafficking in Women and Children in India.* New Delhi, Orient Longman, pp. 153-154.

children's rights. This legislation was not confined to protecting children from sexual abuse, but included punishment for offences of child labour, corporal punishment, and other offences against children. For the first time in India, the 2003 enactment put into operation a special Children's Court for the trial of adult offenders of children.

The state of Kerala has the highest literacy rate and best primary health services in India. It has the highest human development index in India as per the India Human Development Report (2011).[4] There exists a high civic sense in the state, with the presence of a large number of women in various categories of work and government. However, patriarchal customs still exist and, despite its high female literacy rate, the rate of domestic violence is high. Incidents of child sexual abuse are rampant, but are still largely undocumented. This is my home state, and I have selected it based on my ease to access data and knowledge of the social situation.

I commenced my research for this thesis in 2011. At this time, the *Goa Children's Act 2003* was the only legislation in India which had specific provisions addressing sexual abuse against children. NGOs and governmental authorities in the state of Kerala were collaborating to bring out a separate regional statute to prosecute offences against children in Kerala. However, these efforts in Kerala were scrapped when the *POCSO* became binding upon all states, including Kerala and Goa. As at 2017, no distinction lies in the legal machinery existing in the regional and national models. However, as Goa has the earliest Children's Court, and ought to have many reported cases on child sexual abuse before the High Court of Bombay (Goa Bench), the experience of the Goa model is highly relevant. This study examines reported case law on child sexual abuse from the High Courts of Goa and Kerala.

Child marriage in India

The *IPC* does not prohibit the cultural practice of child marriage. Specific exemption is given to rape by a husband of his wife, including a child wife, by section 375 *IPC*. In 1929, a specific enactment called the *Child Marriages Restraint Act 1929* took measures to restrain child marriage by providing for mild punishments against the adult male marrying the child, the parent/guardian of the child whose marriage was performed, and the person who

[4] Planning Commission (2011). *India Human Development Report, 2011: Towards Social Inclusion.* New Delhi: Institute of Applied Manpower Research ,Government of India, OUP.

performed or directed the ceremony. It was silent about the validity of a child marriage. It took another 77 years for the Indian government to prohibit child marriage through a national law entitled the *Prohibition of Child Marriages Act 2006*. Yet, a child marriage is not void under this enactment. Such a marriage is voidable, and can be nullified upon attainment of the age of majority. The practice of child marriage continues to prevail in certain regions and communities in India. Even the *Criminal Law (Amendment) Act 2013* did not remove the exemption for rape of a child wife in section 375 *IPC*.

1.2. PURPOSE, RESEARCH QUESTIONS, AND METHODOLOGY

1.2.1.Purpose

The purpose of this thesis is to explore the nature and adequacy of Indian laws on child sexual abuse. The provisions of the *IPC*, which was the sole law prosecuting incidents of child sexual abuse until November 2012, was highly inadequate in addressing child sexual abuse. In 2013, soon after the *POCSO* came into force, nation-wide protests against the rape of a woman in Delhi in December 2012 forced the Government of India to bring about amendments to the *IPC*. The Parliament brought about many changes to the general criminal law on sexual offences. Amendment was made to the *POCSO* in order to clarify which law would prevail in cases of conflict between the *IPC* and the *POCSO*. Hence, it is necessary to study the current law on child sexual abuse in order to find out how adequate it is in defining offences and punishments.

1.2.2. Research questions

My research questions are:

1. What is the social science evidence about the nature, prevalence and sequelae of child sexual abuse generally and in the Indian context?
2.What are the legislative models for prosecuting child sexual abuse offences in India nationally and in the states of Kerala and Goa?
3. What does a legal analysis of these frameworks reveal about advances and remaining problems in these models?
4. What does a theoretical critique informed by the social science evidence and the *UNCRC* reveal about the adequacy of the law?

1.2.3. Methodologies

a. Research Question 1 is social science research and synthesis. It reviews national and international literature on the subject, and comments on information gleaned from these reviews.
b. Research Question 2 is doctrinal legal synthesis. It reviews substantive legal provisions and case law from reported Supreme Court and High Court decisions. It focuses on decisions from the High Courts of Goa and Kerala. Relevant case law on sexual abuse of children has been obtained by utilising the search engine of manupatra.com. Pertinent articles from the *UNCRC* have been used in order to lay down the framework for Research Question 4.
c. Research Question 3 is conventional legal analysis. It analyses six key issues formed from the synthesis of provisions and case law on child sexual abuse in India.
d. Research Question 4 is theoretical analysis informed by the evaluative perspective/analytical tools of the social science evidence and relevant articles of the United Nations Convention on the Rights of the Child.

This thesis comprises of legal doctrinal synthesis and analysis, and social science synthesis and theoretical analysis. It does not conduct empirical research. The findings of this thesis are important in themselves and indicate the need for further research into other questions, including the use of multiple methodologies.

Conventional citation styles have been used. In the social science and health evidence chapters (Chapters 2 and 5), APA style of in-text citations have been followed, while conventional legal citation styles have been adopted for legal synthesis and analysis in Chapters 3 and 4.

1.2.4. Scope of this thesis

This research is confined to non-commercial child sexual abuse by adult offenders. Hence child prostitution and child sex trafficking are outside the scope of this thesis.

This thesis is about criminal law, not civil law or family law. It is about substantive criminal offences alone, not procedural matters. Hence matters relating to the law of evidence including types of evidence and child witnesses are outside the scope of this thesis. Other procedural matters like the detailed working of special courts dealing with offences

regarding children, the qualifications of counsels for prosecution and defence, sentencing procedure, the appropriateness of the quantum of punishment awarded in a judicial decision, rates of conviction, the treatment of sex offenders and sex offender registration procedure are also outside the scope of this thesis.

This thesis discusses the substantive aspect of the offences of penetrative sexual abuse of children, such as rape and carnal intercourse; non-penetrative sexual abuse, such as sexual assault, sexual harassment, voyeurism; as well as case law by the Supreme Courts and High Courts, especially that of Goa and Kerala. The age for sexual consent is discussed in the context of the exemption given for rape of a child wife in section 375 *IPC*. Most studies on sexual offences in India are from a women's rights perspective, and not from a child's rights perspective. This thesis has been written based on a child's rights perspective, similar to that of the *UNCRC*.

This thesis does not conduct an in-depth study of the sentencing trends in reported case laws. It does not examine reported case law on women above the age of 18 years. It confines itself to case law regarding children below the age of 18.The words "woman" and "female" are used in this thesis to include a "girl" who is a female child, and the words "man" and "male" include a "boy" who is a male child.[5]

In various sexual crimes against children, the *IPC* and the *POCSO* overlap. The *Criminal Law (Amendment) Act 2013* clarified such overlap through amendment of sections 42 and insertion of section 42A of the *POCSO*. This thesis analyses conflicting situations in provisions of Indian laws on child sexual abuse, which arise as a result of this amendment.

Despite staggering data about the incidence and prevalence of child sexual abuse in India, major studies on its effects have not been carried out. This thesis draws data from various studies around the world, as well as the few small studies that have been done in India.

This study is the first of its type in India, and the findings from its comprehensive legal synthesis and analysis will make a substantial contribution to knowledge and understanding in this complex, sensitive and fast-developing topic.

[5] Section 10, *IPC*. "Man", "Woman".—The word "man" denotes a male human being of any age; the word "woman" denotes a female human being of any age.

1.3. LITERATURE REVIEW, GAPS IN SCIENTIFIC KNOWLEDGE AND ORIGINAL CONTRIBUTIONS TO KNOWLEDGE

1.3.1. Literature Review

This review of literature sets the context for this study. It situates this thesis in several relevant bodies of literature: (a) social science evidence about the nature and prevalence of child sexual abuse and health evidence about the effects of child sexual abuse; (b) Indian criminal law for child sexual abuse; (c) the Kerala and Goa models of legislation and case law regarding prosecution of adult sexual offenders of children; and (d) relevant provisions of the *UNCRC*.

(A) Social science evidence: The nature, prevalence and effects of child sexual abuse

Nature of child sexual abuse

This thesis refers to the World Health Organization and Council of Europe definitions of child sexual abuse, along with the definition put forth by India's official report on child sexual abuse entitled "A Study on Child Abuse: India 2007". Systemic reviews of literature and meta-analyses of statistics of child sexual abuse are referred to firstly based on gender. Studies by Cawson, Wattam, & Kelly (2000);Dinwiddie, Andrews, Gould,& Corry (2000);Andrews, Gould, & Corry(2002); Dunne, Purdie, Cook, Boyle, & Najman (2003); Putnam (2003); May-Chahall & Cawson (2005); Najman, Dunne, Purdie, Boyle, & Coxeter (2005); Davidson (2008); Pereda, Guilera, Forns, & Gomez-Benito (2009); Lalor & McElvaney (2010);Radford, Corral, Bradley, Fisher, Bassett, Howat, & Collishaw (2011); Stoltenborgh, van IJzendoorn, Euser, & Bakermans-Kranenburg (2011); Barth, Bermetz, Heim, Trelle, & Tonia (2013); Finkelhor (2014); and Mills, Kisely, Alati, Strathearn, & Najman (2016) have been cited. Secondly, these studies are referred to depending on the effect of economic development of a country; namely, high income, middle income and low income countries based upon prevalence statistics. Studies by Stoltenborgh, van IJzendoorn, Euser, & Bakermans-Kranenburg (2011); Barth, Bermetz, Heim, Trelle, & Tonia (2013); and Veenema, Thornton, & Corley (2015) have been cited. Thirdly, studies on India by RAHI (1998), Tulir (2006),Deb & Walsh (2012), the Ministry of Women and Child Development report titled "A Study on Child Abuse: India 2007"(2007), and published yearly records of the National Crime Records Bureau (NCRB) have been referred to.

Difficulties exist with definitions of what would constitute “sexually abusive activities” due to differences in the age gap of offender and victim. Social scientists like Finkelhor (2009), Haugaard (2000), and Lalor & McElvaney (2010) have classified these definitional difficulties as arising within the following domains: (1) lack of uniformity regarding age of the end of childhood; (2) lack of whether non-contact experiences can be included or excluded from the definition of child sexual abuse; (3) age differences regarding consensual sexual relationships between minors; and (4) contextual considerations to decide whether a certain behaviour is abusive. There is a vacuum in definitional discussions on the developmental perspective of children and their sexuality, with considerable confusion about what constitutes “normal” sexual behaviour in children and adolescents. This is partly because of rapidly changing societal norms about children and sex and partly because of the ethical constraints of undertaking empirical research into childhood sexuality (Vizard, 2006). This insight is important in dealing with a comprehensive definition of child sexual abuse in India.

Vagueness exists regarding the line to be drawn between abuse and “experimentation” in sexual activity between children and young people (Cashmore & Shackel, 2014). The effect of such vagueness while formulating child sexual abuse legislation leads to difficulties in prosecution of offenders, as the active participation of victims is clear from the fact of the case. This is particularly relevant in India, as the vagueness of the *POCSO* lies in the lack of contextual considerations in deciding whether a particular behaviour is sexually abusive or not. Presently the legislation criminalises consensual sexual relationships between minors and between minors and adults without a significant age difference, even in the absence of the element of coercion.

Health effects

Effects of abuse have been classified as short term and long term (Wyatt & Powell, 1988). Short-term effects include depression, suicide, sexual promiscuity, sexual perpetration, and academic underachievement (Paolucci, Genuis, & Violato, 2001). The long-term impact of child sexual abuse may involve depression, low self-esteem, anger, anxiety, obsessions and compulsions, sexual dysfunctions, self-mutilation, suicidality, dissociation, substance abuse problems, relationship problems, multiple psychiatric disorders, etc (Chen, Murad, Paras, Colbenson, Sattler, Goranson, Elamin, Deime, Shinozaki, Prokop, & Zirakzadeh, 2010). More serious consequences are caused by certain aspects of the abuse (sexual abuse within

the family, ongoing and multiple episodes, the use of force, methods used to gain child secrecy, and multiple perpetrators), legal system involvement (a case that results in acquittal), and lack of maternal support and maternal use of avoidant coping mechanisms (Corcoran & Pillai, 2008). Adverse physical and mental health effects often continue through adult life (Spataro, Mullen, Burgess, Wells, & Moss, 2004) and some victims become offenders (Salter McMillan, Richards, Talbot, Hodges, Bentovim, Hastings, Stevenson, Skuse, 2003).

Views of children are largely excluded from the experiences of victims in developing countries. Lack of funding is partly to blame (Dunne, Purdie, Cook, Boyle, & Najman, 2006), and there exists an unwillingness on the part of governments to formally record and document the incidence and nature of child abuse (Davidson, 2008). Studies conducted by Pagare (2003), Deb & Sen ((2005), Chatterjee, Chakraborty, Srivastava,& Deb (2006), Priyabadini (2007), Deb & Walsh (2012), Sahay (2010), Krishnakumar, Satheesan, Geeta, & Sureshkumar (2014), Carson, Foster & Tripathi (2013),and Carson, Foster & Chowdhury (2014) in India indicate high levels of trauma and post-traumatic stress among sexually abused children.

Lack of support or condemnation and/or alienation of the victim by community service providers is a result of negative, judgmental attitudes directed towards the victim. This secondary victimization or re-traumatization is usually experienced by victims of sexual assault, abuse, or rape. The types of secondary victimization include victim blaming and inappropriate behaviour or language by police, prosecutors, judges and doctors with access to the victim post-assault (Williams, 1984; Campbell & Raja, 1999).Exposure to the legal system also causes numerous mental health conflicts in child victims, as shown in studies by Connon, Crooks, Carr, Dooley, & Guerin (2011) and Mudaly & Goddard (2006). A common occurrence in an Indian courtroom is the scenario where lawyers repeatedly interrogate a child to narrate violent instances such as sexual assault, not realising the damaging effect such a legal methodology would have on a child (Sharma, 2005).Such factors aid non-disclosure of sexual crimes. The literature on social science and health evidence are detailed in Chapter 2.

(B) Indian substantive criminal law for child sexual abuse

Generally, while there is a large body of criminal law about child sexual abuse, there is little discussion of it in research. Some authors have analysed several aspects of the law.

Adenwalla (2000) stated that the legal system and procedure in India allow child sexual abusers to escape on technical grounds, leaving the child victim to believe that he/she is at fault. Provisions in the *IPC* regarding rape, statutory rape, sexual abuse of a boy child, attempt to rape and other provisions of the *IPC* on child sexual abuse/exploitation were mentioned, along with judicial decisions, regarding the Indian law on child sexual abuse. Adenwalla (2000) comments that despite the Supreme Court's of India's recommendation to the Law Commission to make comprehensive recommendations regarding amending the law and procedure to cover child sexual abuse cases, the Law Commission has not risen to the task. Law ought to encourage transparency and accountability in order to bring to light child abuse within the family and institutions, and also act as a deterrent.[6]

Jaising (2005) described the law on sexual violence in order to outline the legal responses to non-consensual sexual experiences of young persons in India. Jaising described the various types of violence, and states that the main limitation of existing laws on rape under section 375 *IPC* and "unnatural offences" under section 377 *IPC* are that they are confined to penetrative abuse of penile-vaginal nature.[7] The courts hesitate to adopt any interpretation of the word "penetration" which does not involve penile-vaginal intercourse. Other forms of sexual violence are outraging the modesty of women, incest, exploitation in custody homes etc. Male children are excluded from its purview. The *IPC* does not define and punish the crime of incest. Even though India has signed and ratified the *Convention on the Elimination of all Forms of Discrimination Against Women 1979* which makes registration of marriages compulsory, the Indian government has declared its inability to comply with this requirement. The *Child Marriage Restraint Act 1929* is unable to redress the problem of child marriage. Jaising (2005) identified the problem of conviction of a minor for rape even if he has consensual sex with a girl below the age of 16. This is stated to be a particular area of concern, especially when teenage consensual sex is increasing.

Jaising (2005) commented on the rules of procedure for dealing with such cases. She stated that Indian law does not adequately recognise the issue of non-consensual sexual experiences of young persons or the special vulnerability that adolescents face by virtue of their age in situations of sexual coercion. It suggests that a simultaneous process of legislative and

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[6] Adenwalla, M. (2000). *Child Sexual Abuse and the Law.* India Centre for Human Rights and the Law, Mumbai.

[7] These provisions shall be discussed in detail in Chapter 3.

judicial reform is necessary in order to incorporate this recognition in the laws and judicial processes in India. Jaising (2005) suggested the adoption of a comprehensive definition and understanding of both "sexual violence" and "coercion" based on the particular experiences of adolescent communities and on developments in international and national law, while taking into consideration the different fiduciary and non-fiduciary relationships that adolescents experience which involve coercion. Jaising (2005) stated that any process of reform must emphasize sensitive and effective procedures that recognise the reality of adolescents' vulnerability. It must be ensured that this vulnerability is not aggravated in courts of law.[8]

Kannabiran (2009) analysed the law on sexual assault in the *IPC* from a woman's context through case studies. It takes a closer look at the language that the courts have adopted in speaking about rape. She stated that throughout the 1870s there were sporadic reports about the battery and deaths of resistant child-wives by irate adult husbands who got handed light sentences, if they were incarcerated at all. She cited the historical case of Phulmoni, an 11-year-old girl who had not yet come of age, who died in 1890 after her 35-year-old husband raped her.[9] Kannabiran (2009) concluded that the language used by courts in India depicts the shocking proximity that these discursive frameworks have with the patriarchal informal justice systems that construct women as property to be possessed or commoditised.[10]

Raha & Giliyal (2013) studied the implication of the *POCSO* upon the problem of child marriages, against the backdrop of the *IPC* (as amended by the *Criminal Law (Amendment) Act 2016*) and the *Prohibition of Child Marriages Act 2005*. They concluded that the only legal recourse for children below the age of 18, who enter into consensual sexual relations, in order to evade a minimum term of 10 years rigorous imprisonment under the 2012 legislation, is to get married.[11]

Bajpai (2006) examined constitutional provisions, statutory provisions and case law regarding child rights in India, as well as international and regional conventions and standards. Here, the right to protection against sexual abuse and exploitation was examined in

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[8] Jaising I. (2005). The vulnerability of adolescence: Legal responses to non-consensual sexual experiences of young persons in India. Jeejeebhoy S.J., Shah I., & Thapa S. (Eds.). Young People in Developing Countries. London: Zed Books Ltd, pp.215-226.

[9] *Queen-Empress v. Hurree Mohun Mythee* (1891) ILR 18 Cal 49

[10] Kannabiran, K. (2009). Sexual assault and the Law. K. Kannabiran, & R. Singh, (Eds.), *Challenging the Rule(s) of Law: Colonialism, Criminology and Human Rights in India.*, New Delhi: SAGE, pp. 78-118.

[11] Raha, S., Giliyal, A. (2013). Child Marriage and the Protection of Children from Sexual Offences Act, 2012. *CCL-NLSIU*. https://www.nls.ac.in/ccl/justicetochildren/poscoact.pdf.

detail in the context of the National Crime Records Bureau statistics and other social science evidence studies. The Juvenile Justice Act, the *IPC*, the Child Marriage Restraint Act, the age of marriage under Hindu, Muslim, Christian and Parsi personal laws, as well as civil marriage statutes, the validity of child marriages under personal and civil laws, laws regarding child trafficking and pornography case law, reforms to the *IPC*, the *Code of Criminal Procedure 1973* and the *Indian Evidence Act 1872* were commented on. Importantly, Bajpai (2006) stated that child marriage is void under the civil statutes and Parsi civil law, but valid under Hindu, Muslim and Christian personal laws. Even though the facilitators of the child marriage can be punished under the law, the marriage itself remains valid. If the law were to render child marriages as void, the sufferer would be the bride, as the stigma of already having been married would pursue her and she would not receive maintenance, due to the illegality of the marriage. Bajpai (2006) noted that women are not punished under the *Child Marriage Restraint Act 1929*, perhaps because society presumes that the woman has little say in finalising and performing marriages, and also because the main objective of the Act was preventive rather than punitive. Bajpai (2006) made the following statement:

> Under the current laws, if a child is sexually abused, a case can be filed for statutory rape or 'outraging the modesty of the woman' in the case of girls and for 'unnatural sexual offence' in the case of boys. The ordinary criminal laws are totally inadequate to protect the children who are victims of sexual abuse. These legislations do not include the common forms of child sexual abuse, nor their impact on the children.[12]

Agnes (2013), in her article against raising the age of consent from 16 to 18 years, highlighted the sociological trend that the age of marriage for females increases only when the standard of living is raised, and when public spaces are safe for them to pursue their education.[13] Agnes (2013) pointed out that though there has been a consistent demand from urban, middle-class legal scholars and social activists to declare child marriages void, there is a legislative reluctance to give in to this even after the *Prohibition of Child Marriage Act, 2006.* This is because of the plurality of cultures and socio-economic backgrounds in the Indian population. The contemporary concern over child marriage needs to be located within socio-economic factors such as extreme poverty among the urban and rural poor, lack of access to education for girls, and fear of rape and sexual abuse. Much more than the elite and

[12]Bajpai, A. (2006). Right to Protection Against Sexual Abuse and Exploitation. *Child Rights in India: Law, Policy, and Practice*. Delhi: OUP, pp. 208-278 at p. 225.

[13] Agnes (2013) cited the instance of how a girl child being raped when returning from school in rural Karnataka in January 2013 led to around 400 girls being denied access to education because their parents were fearful of their security. She stated that such girls will soon be married off, despite a law in place that stipulates the minimum age for marriage is 18.

middle classes, it is the backward castes, the *Dalits* and Muslims who are burdened with these concerns. Agnes (2013) pointed to the inability of the law in facilitating interventions at the community level to curb child marriages arranged by natal families. There is a need for community-level sensitisation, greater security for girls in public spaces, and better resources for education of girls in poverty-stricken villages and urban slums. Agnes (2013) underlined that the campaign for stringent laws has only strengthened patriarchal power and weakened the negotiating power of young girls contracting marriages of choice.[14]

Moirangthem, Kumar & Math (2015) identify challenges in the law regarding consented sexual activity between adolescents and an adult, child marriage, consent for medical examination, medical examination when a female doctor is absent, treatment cost, training of medical personnel, the role of a mental health professional, and mandatory reporting. They proposed that any consensual sexual act that may constitute penetrative sexual assault should not be an offence when it is between two consenting adolescents, otherwise both the adolescents will be charged under the *POCSO*. Also, child marriage is illegal under the *POCSO* . In India, even though secular law prohibits child marriage, certain personal laws continue to sanction it, thus complicating matters.[15]

Bajpai (2015) examined child rights law from various perspectives: the definition of a child, children in the juvenile system, children in conflict with law, child victims of abuse and crime, physical abuse of children, sexual abuse of children, child pornography, economic exploitation of children, etc. The history of the law is traced: until 2012, there was no comprehensive law on child sexual abuse. The *IPC* does not recognize child abuse. Only rape and sodomy could lead to criminal conviction. Anything other than rape as defined by the law amounts to “outraging the modesty”. After several years of campaigning for a separate law on child sexual abuse, the *POCSO* Bill was passed in 2012. Bajpai (2015) stated five “important” aspects of the new law: (1) it defines child sexual abuse as a gender-neutral crime; (2) it defines acts that constitute child sexual abuse comprehensively by including penetrative, non-penetrative, and non-touch forms of abuse; (3) it grades the quantum of punishment on the basis of regular and aggravated offences that take into account custodial forms of child sexual abuse; (4) it sets up a detailed procedural mechanism, including the establishment of special courts with child-friendly methods of recording evidence and

[14] Agnes, F. (2013). Controversy over Age of Consent. *Economic and Political Weekly, 48*(29), 10-13. http://www.epw.in/journal/2013/29/commentary/controversy-over-age-consent.html.

[15]Moirangthem, S., Kumar, N.C., Math, S.B. (2015). Child sexual abuse: Issues & concerns. *Indian J Med Res 142*(July) pp.1-3.

conducting trials; (5) it has provisions enabling reporting of cases by a child and squarely imposes burden of proof on the accused. Bajpai (2015) made two recommendations regarding reforms to *POCSO*. Firstly, the law must include support services to child victims, since many child sexual abuse cases are not reported to the police. Secondly, the fact that the age of sexual consent is raised to 18 years is a matter of concern, as this provision of criminalizing consensual sexual behaviour may be misused by the police or even parents in some cases. Bajpai (2015) quoted the statement of Kamini Lau, Additional Sessions Judge, Delhi in April 2015, that when the age gap between youngsters in love who are on the verge of attaining majority is within acceptable limits and does not reflect an exploitative coercive situation, then the legal system cannot be used to punish them and courts cannot ruin their lives by taking a hyper-technical view.[16]

A study by Raha (2016) examined 667 judgments passed by 20 judges from 1 January 2013 to 30 September 2015 from the Delhi District Courts. It found that the number of cases involving boys is negligible, compared to girls. Most cases involved victims between the age of 12 to 18 years, and children below 5years of age constituted only 7% of the total victims. Interestingly, in none of the cases in which the prosecutrix admitted to a romantic relationship was the voluntary nature of the relationship or the age gap between them scrutinized by the court.

Pathak (2016) critiqued the idea of gender-specificity in Indian rape law on the grounds that it reinforces a binary notion of gender, and results in gross under-inclusion. Hence he advocated a human-rights based approach in defining the offence of rape, and negates the role of gender in identifying the victims and perpetrators of an act of rape. He developed an argument regarding the state's obligation of non-discrimination on the basis of sex, the recognition of transgender rights, and examines the argument against gender-neutrality.[17]

Satish (2017) studied all rape cases decided by the High Courts and the Supreme Court of India between 1984 and 2009 in order to analyse the rape sentencing regime. Myths and stereotypes on rape that influence sentencing were identified as follows:

(1) rape of a virgin is considered to be more serious than rape of a woman with previous sexual experience

[16]Bajpai, A. (2015). Achievements and Challenges in Legal Protection for Child Rights. In Shiva Kumar, A. K., Rustagi, P. & Subrahmanian, R. *India's Children: Essays on Social Policy.*, Delhi: OUP, pp. 136-167.

[17]Pathak, H. (2016).Beyond the Binary: rethinking Gender Neutrality in Indian Rape Law. *Asian Journal of Comparative Law, 11*:367-397.

(2) the young age of the accused is relevant in reduction of sentence
(3) the absence of injuries on the body of the victim is a mitigating factor
(4) the demeanour of the victim as a mitigating factor-reduced sentence for the defendant on the ground that the rape was not brutal
(5) past sexual history influence sentencing
(6) rape by an acquaintance is less traumatic than rape by a stranger, with lesser punishment given to the acquaintance rapist
(7) prior sexual relationship between the defendant and victim lessened the average sentence.

The study by Satish (2017) showed that despite law reform, myths and stereotypes about rapists and rape victims that used to be embedded in rape law have merely shifted from the charging and trial stages to the sentencing stage, leading to unwarranted disparity.[18] This study is inclusive of rape of women of all ages, and is not confined to rape of female children.

It is clear from this review of existing literature that while these authors have explored some aspects of the law, there are numerous and substantial gaps in research that this thesis will help to address.

Coverage of Indian law

Chapter 3 details the comprehensive literature review and analysis of the *IPC*, the *POCSO*, and the *Goa Children's Act 2003*. The following provisions of these laws are explained in Chapter 3:

1. The following sections of the *IPC* are detailed in this chapter: Sections 354 (assault or criminal force to woman with intent to outrage her modesty), 354A (sexual harassment and punishment for sexual harassment), 354B (assault or use of criminal force to a woman with intent to disrobe), 354C (voyeurism), 354D (stalking), 375 (rape), 376 (punishment for rape), 376A **(**punishment for causing death or resulting in persistent vegetative state of victim**),** 376B (sexual intercourse by husband upon his wife during separation), 376C (punishment for sexual intercourse by person in authority), 376D (punishment for gang rape), 376E (punishment for repeat offenders), 377 (unnatural offences), 509 (word, gesture or act intended to insult the modesty of a woman) and 511 (punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment). These offences, along

[18]Satish, M. (2017). *Discretion, Discrimination and the Rule of Law- Reforming Rape Sentencing in India.* Delhi: Cambridge University Press.

with corresponding judicial decisions both before and after the *Criminal Law (Amendment) Act of 2013*, are important to the law on child sexual abuse. Law Commission reports as well as committee reports recommending changes in these provisions are referred to here.

2. The following sections of the *POCSO* are cited: sections 3and 4 (penetrative sexual assault and punishment), sections 5 and 6 (aggravated penetrative sexual assault and punishment), sections 7 and 8 (sexual assault and punishment), sections 9 and 10 (aggravated sexual assault and punishment), sections 11 and 12 (sexual harassment and punishment), sections 13 and 14 (using a child for pornographic purposes and punishment), section 5 (punishment for storage of pornographic material involving child), sections 16 and 17(abetment of an offence and punishment), section 18 (punishment for attempt to commit an offence), section 42 (alternate punishment), section 42A (act not in derogation of any other law).

3. The *Goa Children's Act 2003* are detailed in Chapter 3: section 2(x) (definition of the term "sexual offence"), Section 2(y) (definition of the term "sexual offences" comprising of (i) grave sexual assault (ii) sexual assault (iii) incest),and section 8(2) (punishment for sexual offences). Case law decided by the High Courts of Goa and Kerala are compiled here. Comparisons are drawn in the form of a chart to examine the differences and similarities between the *IPC*, the *POCSO*, the *Goa Children's Act 2003* and the Kerala situation with regard to the *IPC* and *POCSO* .

Six key issues are identified from this detailed review of the law:

a) Has the nature and scope of the sexual offences in the *POCSO* made positive advances in responding to child sexual abuse?

b) Has the nature and scope of the amended offence of rape in the *IPC* made positive advances in responding to child sexual abuse?

c) Does the current interpretation of the offence of carnal intercourse in the *IPC* offer sufficient protection against child sexual abuse?

d) Is the current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 a positive advance in responding to child sexual abuse?

e) Does the present law on sexual assault in the *IPC* make positive advances in responding to child sexual abuse?

f) Does the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC* construe a positive advance in responding to child sexual abuse?

These issues are analysed further from legal, social science and theoretical perspectives. In Chapter 4, the *POCSO* is compared with the *IPC*.

4. Articles 1, 12, 19 and 34 of the *UNCRC* are discussed in Chapter 3. As stated earlier, six problematic areas are identified from the legal synthesis of case law and legislation on child sexual, which are analysed using legal analysis tools in Chapter 4. From these six issues, four issues are further distilled to be theoretically analysed in Chapter 5, using the social science and health evidence discussed in Chapter 2, as well as the five relevant provisions of the *UNCRC* in Chapter 3.

The four key issues for theoretical analysis are:
a) The nature and scope of the provisions on sexual offences in the *POCSO* from a child rights' perspective
b) The gap in the *IPC* regarding sexual offences against children created by the nature and scope of the amended offence of rape in sections 375 and 376 *IPC* and the present interpretation of the offence of carnal intercourse in section 377 *IPC*
c) The current criminalisation of all sexual activity (both abusive and non-abusive) of children below the age of 18
d) The statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC*.

1.3.2. Gaps in scientific knowledge

There have been very few socio-legal studies about the nature and sequelae of child sexual abuse in the Indian context. Prevalence studies on a national level have not been conducted since the first official study report on child abuse was published in 2007. While certain small sample studies exist, there is a glaring deficit regarding major studies on a scale which could clearly depict the connection between sexual abuse of a child and its ill effects on the physical and mental health of a child victim.

Even more significantly for the purpose of this thesis, there is an absence of substantive analysis of the law before and after the recent major changes brought about by the *POCSO*. There is resultant absence of research analysing Indian laws on child sexual abuse using the context of social science evidence from India. The *Criminal Law (Amendment) Act 2013*, which amended sections 42 and 42A of the *POCSO*, has created confusion regarding which

law prevails for *POCSO* offences that overlap with the *IPC*. There has not been sufficient clarification from the courts regarding overlapping provisions. This is a major gap in the existing level of knowledge regarding the applicability of *POCSO* over the *IPC*, especially in the context of prosecution of the offence of sexual intercourse with a female below the age of 18 with her husband in the context of the validity of child marriages under the *Prohibition of Child Marriages Act 2006* and the corresponding absence of the offence of marital rape in the *IPC*.

In addition to this, most existing literature in India analyses rape and other sexual offences from a women's rights perspective. Analysis of such legal provisions from a child rights' perspective has not been given due consideration. No meaningful studies have been published regarding cases of child sexual abuse in Goa or Kerala, despite the fact that Goa has the oldest Children's Court in India. Bajpai (2006, 2015) examines child rights laws from various perspectives; however, the overlap between the *IPC* and *POCSO* has not been clearly specified. Pathak (2016) examines the issue of gender-neutrality within the definition of rape in section 375 *IPC*. This thesis examines six problematic issues within the laws on child sexual abuse, which is inclusive of the definition of rape in section 375 *IPC*. Critiques of problematic areas in the Indian law on child sexual offences using the theoretical framework of social science evidence and *UNCRC* provisions are also absent.

Empirical analysis of the nature and effects of child sexual abuse from reported case law in India and empirical studies of sentencing trends in child sexual abuse cases are further gaps in scientific knowledge that can be examined, but are outside the scope of this thesis.

1.3.3. Original contributions to knowledge

Informed by the gaps in the research and guided by my four research questions, this thesis makes four major contributions to knowledge.

1. It synthesises social science evidence about the nature, prevalence and sequelae of child sexual abuse generally and in the Indian context.

This thesis examines the social science evidence about child sexual abuse, and its nature and effects upon the health of victims. Small-sample prevalence studies on child sexual abuse in India point to the fact that sexual abuse of children occurs irrespective of differences in sexual abuse on the basis of gender and race, religion, caste and class. Studies on the effects

of child sexual abuse on physical and mental health, as well as lack of support from the legal system have been cited in this thesis. This thesis makes an original contribution to knowledge by synthesising Indian and international literature on the topic, which is used as a contextual base for the entire thesis, and provides a thorough exposition of evidence of child sexual abuse in the Indian context. Such socio-legal synthesis aims to foster future outcomes of legislative policy changes by developing new methodologies for health and legal support in India.

2. It synthesises the legislative models of statutory provisions and case law, both before and after the *Criminal Law (Amendment) Act 2013*, regarding prosecuting child sexual abuse offences in India nationally, and in the states of Kerala and Goa.

This thesis has been written from a child rights' perspective, as embodied in the *UNCRC*. Existing literature on sexual offences is largely based upon a women's rights perspective. This is a novel contribution to existing literature on sexual offences in India.

The legal synthesis in Chapter 3 is a novel and comprehensive coverage of the development of legislative models from pre-2012 to post-2012 *POCSO* and pre-2013 to post-2013 *Criminal Law (Amendment) Act 2013*. Chapter 3 compares the various legislations on child sexual abuse in India, and how these laws would impact the states of Kerala and Goa; the former state representing all other states in the Indian Union, and the latter state being unique in having a pre-existing special regional legislation for offences against children. Such comparison is an original contribution to knowledge, especially after the *Criminal Law (Amendment) Act 2013*. This thesis also examines case law on child sexual abuse decided by the High Courts of Kerala and Goa, which is also original contribution to knowledge.

The present law on child sexual abuse comprises of the *POCSO* and the *IPC*, as amended by the *Criminal Law (Amendment) Act 2013*. This thesis identifies six issues from an analytical perspective as a result of the synthesis of these laws in Chapter 3.

3. It performs a legal analysis of legal frameworks, both before and after the *Criminal Law (Amendment Act) 2013*, in order to reveal advances and remaining problems in these models.

These six issues are analysed in Chapter 4, using statutory and case analysis for consistency, coherence and correctness with policy and fundamental legislative principles. Lord Bingham's principles regarding the rule of law framework are used as a reference to determine how closely the statutes on child sexual abuse comply with the rule of law principles enshrined in the constitutions of modern governments. Lord Bingham (2007) stated that the core of the existing principle of rule of law is that all persons and authorities within the state, whether public or private, should be bound by and entitled to the benefit of laws publicly and prospectively promulgated and publicly administered in the courts.[19] He broke down the scope of the existing principle by identifying eight sub-rules. Of these eight sub-rules, six have been identified as relevant to the analysis of this thesis in Chapter 4. These six sub-rules are as follows:

First, the law must be accessible and, so far as possible, intelligible, clear and predictable.[20] Secondly, questions of legal right and liability should ordinarily be resolved by application of the law and not the exercise of discretion.[21] Thirdly, the laws of the land should apply equally to all, save to the extent that objective differences justify differentiation.[22] Fourthly, the law must afford adequate protection of fundamental human rights.[23]Fifthly, adjudicative procedures provided by the state should be fair.[24]Sixthly, the existing principle of the rule of law requires compliance by the state with its obligations in international law.[25]

These six issues are legally analysed using conventional doctrinal methods, which include:

(i) a comparison of substantive provisions of the *POCSO* against the amended sections 42 and 42A in order to find out whether the *IPC* would prevail

(ii) examination of the consistency, coherence and correctness of statutory provisions and case law from a framework of governmental policy guidelines as well as fundamental legislative principles characteristic of a rule of law society, such as whether the provisions offer adequate protection of a class of persons, or whether undue judicial discretion is conferred by statute etc.

These are original contributions to the knowledge of child sexual abuse law in India.

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[19] Bingham, Lord (2007). The Rule of Law. *The Cambridge Law Journal*, *66*(1), 67–85 at 69
[20]*Ibid*.
[21]*Id* at 72.
[22]*Id* at 73.
[23]*Id* at 75.
[24]*Id* at 80.
[25]*Id* at 81.

4. It performs a theoretical critique informed by social science evidence and the *UNCRC* about the adequacy of the law.

Of the six issues identified for conventional legal analysis, four issues are taken for further theoretical analysis, informed by

(i) the evaluative perspective and analytical tools of the social science evidence
(ii) provisions of the *UNCRC* which have been identified as relevant to this thesis.

This theoretical analysis is a novel contribution to knowledge in this area.

1.4. Sequencing of Chapters

Chapter 1 introduces the thesis, outlining the research questions and original contributions to knowledge. Chapter 2 describes the social science evidence on the nature and effects of child sexual abuse from international studies as well as from studies in India. Chapter 3 synthesises national legislation and Supreme Court case law on child sexual abuse along with reported case law from the High Court of Kerala, as well as the *Goa Children's Act 2003* and reported case law from the High Court of Goa. This chapter concludes by identifying six key issues for conventional legal analysis in Chapter 4. Chapter 5 is a theoretical analysis of four key issues from the perspectives of social science evidence and child rights under the *UNCRC*. Chapter 6 concludes the thesis.

CHAPTER 2: SYNTHESIS OF SOCIAL SCIENCE EVIDENCE OF THE NATURE, PREVALENCE AND EFFECTS OF CHILD SEXUAL ABUSE

This chapter is divided into three major parts. The first part discusses the nature of child sexual abuse: its definitions, risk factors, and socio-cultural contexts, with emphasis on Indian studies on the same. The second part discusses prevalence issues: problems faced by researchers in accessing data, reasons for non-reporting, structural barriers to disclosure, and prevalence studies based on gender statistics and economic development statistics. Incidence and prevalence data on India have been compiled here. The third part discusses the effects of child sexual abuse and the Indian legal system on the health of the victim.

The Report by the Ministry of Women and Child Development in 2007 on Child Abuse (referred to as the 2007 MWCD Report) will be examined in detail to provide the Indian context. The examination of the socio-psychological context that accompanies child sexual abuse provides scientific evidence of the reasons why it is important there be a strong legal framework to punish, respond to and prevent child sexual abuse. The dearth of scientific studies in this area in India calls for an examination of studies conducted in other countries. For this purpose, this chapter contains a review of international social science literature about the nature, prevalence and effects of child sexual abuse. This sets an overall context for the legal synthesis and analysis in Chapters 2 and 3, and provides the basis for the theoretical analysis conducted in Chapter 4.

2.A. THE NATURE OF CHILD SEXUAL ABUSE

In India, child sexual abuse has been an age-old problem. Female child prostitution in the name of customary religious practices has existed from historical times (Ditmore, 2006). Child marriages still exist under the protection of ethnic customs (UNICEF, 2009). UNICEF has stated that child marriage "represents perhaps the most prevalent form of sexual abuse and exploitation of girls"(UNICEF, 2006). The subject of child sexual abuse is still taboo in India. Sex and sexuality are not regarded as matters for discussion with young people by the largely traditional conservative family and community structure in most parts of the country.

Hence, children do not even realise they are being abused. A deep-seated fear has always moved Indian families to keep their girls and their virginity safe and many kinds of social and cultural practices have been built ensuring this. It is said that there is a "conspiracy of silence" around child sexual abuse. However, this fear does not generally extend to boys (Kakkar, L., Varadan, S., & Kumar, P., 2007). The resultant effect is that the various forms of sexual abuse do not get reported.

Reflecting the nascent state of public and official awareness of child sexual abuse, an official study on child abuse was first conducted on the national level by the Ministry of Women and Child Development (MWCD) in 2007, "*A Study on Child Abuse: India 2007*". [26] This Report defined the term "sexual abuse" with reference to children and explained nine types of sexual abuse: four severe forms and five other forms of sexual abuse (MWCD, 2007).

The first part of Chapter 2 discusses the nature of child sexual abuse – its definitions, risk factors, and socio-cultural contexts – with emphasis on Indian studies on the same.

2.A.1. Definitions of child sexual abuse

Child sexual abuse has been identified as a global phenomenon with grave life-long outcomes. These estimates vary widely depending on the country under study, the definitions used, the type of child sexual abuse studied, the extent of coverage, and quality of data (Singh, Parsekar, & Nair, 2014). This section outlines the popular definitions of child sexual abuse, set against the background of the definition of the term as used in India.

Many international bodies have developed different definitions of child sexual abuse. While they are similar, there are also some light differences, and it is instructive to refer to several leading definitions.

2.A.1.i. The WHO definition

The World Health Organization Report on the Consultation on Child Abuse Prevention (1999) defines child sexual abuse as the involvement of a child in sexual activity that he or she does not fully comprehend, is unable to give informed consent to, or that violates the laws

[26] Kakkar, L., Varadan, S., & Kumar, P. (2007). *A Study on Child Abuse: India 2007*. Ministry of Women and Child Development, Government of India. http://www.childlineindia.org.in/pdf/MWCD-Child-Abuse-Report.pdf

or social taboos of society. Child sexual abuse is evidenced by this activity between a child and an adult or another child who by age or development is in a relationship of responsibility, trust or power, the activity being intended to gratify or satisfy the needs of the other person. This may include but is not limited to the inducement or coercion of a child to engage in any unlawful activity, the exploitative use of a child in prostitution or other unlawful sexual practices, and the exploitative use of children in pornographic performances and material.[27]

2.A.1.ii. The Council of Europe definition

Sexual abuse is: a) engaging in sexual activities with a child who, according to the relevant provisions of national law, has not reached the legal age for sexual activities (this does not apply to consensual sexual activities between minors); and b) engaging in sexual activities with a child where use is made of coercion, force or threats; or abuse is made of a recognised position of trust, authority or influence over the child, including within the family; or abuse is made of a particularly vulnerable situation of the child, notably because of a mental or physical disability or a situation of dependence.[28]

2.A.1.iii. The definition in the Ministry of Women and Child Development Report 2007:

The 2007 MWCD Report defined sexual abuse as inappropriate sexual behaviour with a child. It includes fondling a child's genitals, making the child fondle an adult's genitals, sexual assault (intercourse, incest, rape, sodomy), exhibitionism and pornography. To be considered child abuse, these acts have to be committed by a person responsible for the care of a child or related to the child (for example, a babysitter, parent, neighbour, relatives, extended family member, peer, older child, friend, stranger, or a day-care provider).[29]

The 2007 MWCD Report classified sexual abuse into two types: severe forms and other forms.

1. Severe forms of sexual abuse:

a) assault, including rape and sodomy;

b) touching or fondling a child;

[27] World Health Organization. (1999). Report of the Consultation on Child Abuse Prevention. Geneva, 29–31 March. Document WHO/HSC/PVI/99.1 at p. 62.

[28] Article 18, Council of Europe Convention on the Protection of Children against Sexual Exploitation and Sexual Abuse, CETS No. 201.

[29] *Supra* n. 26 at p. 13.

c) exhibitionism: forcing a child to exhibit his/her private body parts; and

d) photographing a child in nude.

2. Other forms of sexual abuse:

a) forcible kissing;

b) sexual advances towards a child during travel;

c) sexual advances towards a child during marriage situations;

d) exhibitionism: exhibiting before a child; and

e) exposing a child to pornographic materials[30]

2.A.1.iv. Difficulties within definitions of "sexually abusive activities" with regard to age gap of offender and victim

Various studies have documented different kinds of activities as being considered child sexual abuse. Within the use of broad definitions, difficulties exist in deciding whether a particular behaviour is sexually abusive or not.

An important aspect of the relationship between the victim and perpetrator concerns the age gap. It is debatable whether exposure of children above a particular age to pornographic materials, by peer group members, can be classified as "other forms" of child sexual abuse as used in the 2007 MWCD Report. Social scientists have classified these definitional difficulties as arising within various domains: (1) lack of uniformity regarding age of the end of childhood (Finkelhor, 1994)' (2) lack of whether non-contact experiences can be included or excluded from the definition of child sexual abuse; (3) age differences regarding consensual sexual relationships between minors (Lalor & McElvaney, 2010);(4) contextual considerations to decide whether a certain behaviour is abusive (Haugaard, 2000). There is a vacuum in definitional discussions on the developmental perspective of children and their sexuality, with considerable confusion about what constitutes "normal" sexual behaviour in children and adolescents. This is partly because of rapidly changing societal norms about children and sex and partly because of the ethical constraints of undertaking empirical research into childhood sexuality (Vizard, 2006). This insight is important in dealing with a comprehensive definition of child sexual abuse in India.

A number of studies have reported that boys are more often sexually abused by their peers or others closer in age to them, including their siblings, cousins and other relatives. Prevalence

[30] *Id* at p. 73.

figures that rely on a five-year age gap between the victim and perpetrator are likely to underestimate the abuse of boys by peers and age-mates. Vagueness exists regarding the line to be drawn between abuse and experimentation in sexual activity between children and young people (Cashmore & Shackel, 2014). The effect of such vagueness while formulating child sexual abuse legislation leads to difficulties in prosecution of such offenders/abusers, as the active participation of victims is clear from the fact of the case. This is dealt with in greater detail in Chapter 3.[31]

The next sub-section outlines various factors that increase the risk of child sexual abuse, and draws conclusions based on scientific research as to whether these factors actually increase risk of child sexual abuse. This sub-section examines whether the low socio-economic development of a country poses a risk on its child sexual abuse rate. The next sub-section addresses how society and culture influence the incidence rate of child sexual abuse being reported in India.

2.A.2. Risk factors for children becoming victims of child sexual abuse

The extent of violence against children is difficult to measure because much occurs in the privacy of family homes and is never reported or investigated. In addition to this, in some nations, data collection mechanisms do not exist (UNICEF, 2009; Pinheiro, 2006; Deb & Walsh, 2012). Hence it is a challenge to determine factors that pose a risk for children being victims of sexual abuse. The following studies by Finkelhor (1994), Putnam (2003) and Ronan, Canoy & Burke (2009) identified certain risks:

2.A.2.a. Finkelhor (1994): parental inadequacy, unavailability, conflict, harsh punishment, emotional deprivation

Community studies showed several factors as being consistently associated with higher risk for abuse: parental inadequacy, unavailability, conflict, harsh punishment, emotional deprivation. Race and socio-economic factors are not relevant risk factors.

[31] Even though the *Protection of Children Against Sexual Offences Act 2012* has narrowed down the definitions of the six types of sexual abuse offences stated in the legislation, and has included non-contact crimes of sexual nature, its vagueness lies in the lack of contextual considerations in deciding whether a particular behaviour is sexually abusive or not. Presently the legislation criminalises consensual sexual relationships between minors and between minors and adults without a significant age difference, in the absence of the elements of coercion or dependence.

2.A.2.b. Putnam (2003): gender, age, physical disabilities, family constellation

This study identifying a number of factors that increase risk for child sexual abuse:

a) Gender: Girls are 2.5 to 3 times higher risk than boys, although approximately 22% to 29% of all child sexual abuse victims are male. Boys are underrepresented in psychiatric samples, especially older boys who may be reluctant to disclose or who may be shunted into the criminal justice or substance abuse treatment systems.

b) Age: Risk for child sexual abuse rises with age. As a risk factor, age is believed to operate differentially for girls and boys, with high risk starting earlier and lasting longer for girls.

c) Physical disabilities: These lead to increased risk, especially those that impair a child's perceived credibility such as blindness, deafness and mental retardation. The three factors of dependency, institutional care and communication difficulties seem to contribute to this increased vulnerability.

d) Low socioeconomic status: This has much less impact on child sexual abuse. Community survey studies find almost no socioeconomic effects, but a disproportionate number of child sexual abuse cases reported to Child Protective Services come from lower socioeconomic classes.

e) Race and ethnicity: These do not seem to be risk factors for child sexual abuse, although they may influence the effects exhibited by the child. Studies found out that Latina girls have worse emotional problems than Afro-American or white girls.

f) Family constellation: The absence of one or both parents is a significant risk factor. The presence of a stepfather in the home doubles the risk for girls, not only for being abused by the stepfather but also for being abused by other men prior to the arrival of the stepfather in the home. Parental impairments, particularly maternal illness, maternal alcoholism, extended maternal absences, serious marital conflicts, parental substance abuse, social isolation and punitive parenting have all been associated with increased risk in some studies.

2.A.2.c. Ronan, Canoy and Burke (2009): gender, family issues

Similarly, this study states that child sexual abuse has a different aetiology than other forms of child maltreatment, with the risk factors common to most child maltreatment (like substance abuse, domestic violence, mental illness, lower socioeconomic status, poor parental

skills etc) significantly less common in cases of child sexual abuse. Child sexual abuse is more likely to occur in situations where the child is female, and where there is marital conflict, low parental attachment, overprotective parenting, and parental alcohol abuse. Further, low socioeconomic status does not appear to be a risk factor.

It can be seen that a common finding in these studies is that race and socioeconomic status are not considered as risk factors for child sexual abuse.

2.A.3. India: The socio-cultural context of child sexual abuse: risk factors

In India, child sexual abuse occurs both within and beyond the family system. The problem of child sexual abuse extends into India's early history and is considered a deep-rooted societal concern. Although child sexual abuse is a major concern in India, there is an inadequate amount of research that has specially examined child sexual abuse in Indian children and the relevant cultural factors. A significant number of India's children are at-risk for sexual trauma or already suffering the negative ramifications of abuse (Carson, Foster, & Chowdhury, 2014).

A review of Indian publications by Carson et al. (2014) on the factors which help perpetrate child sexual abuse show eight results. First, sexual abuse does not always occur in isolation and may include other forms of child maltreatment. Second, although girls have higher prevalence rates of sexual abuse and may be unprotected by their family members, boys are also victims of sexual abuse and may experience significant difficulty disclosing their experiences due to feelings of shame. Third, some studies have noted the correlation between sexual abuse and poverty, yet child sexual abuse occurs in families of all socio-economic levels, and social isolation may be an even greater risk factor. Fourth, studies indicate that many victims of child sexual abuse are traumatized by their experiences and may suffer both short and long-term ramifications of their abuse. Fifth, counselling is usually effective in helping children reduce their trauma-related symptoms and improve their well-being. Sixth, adults must be mandated to properly report sexual abuse, as family secrecy about child sexual abuse is harmful to victims. Seventh, the rights of children should be made a priority by the government and individual citizens, so prevention initiatives that include education about child maltreatment must occur on multiple levels (family, community, state, and national). Seventh, laws need to be improved to protect children and hold offenders accountable.

Eighth, government organizations and non-governmental organisations must make both intervention and prevention services a priority.

The 2007 MWCD Report states that harmful traditional practices like child marriage, the caste system, discrimination against the female child, child labour and the *Devadasi* tradition[32] increase the vulnerability of Indian children to abuse and neglect. Beinart (2011) reviews publications that state different cultural practices have been developed to protect a girl's virginity because female virginity before marriage is prized in India. These cultural practices include child marriage, segregating the sexes except in situations that can be observed by elders, and opposing marriage with a non-virgin female. Most Indians believe that families and communities – as opposed to the government – are responsible for the care and protection of children (Beinart, 2011).

A review of 44 publications, including publications on India, regarding the incidence and characteristics of all forms of child sexual assault in 32 low and middle income countries since 1980 identified child sexual abuse at all levels of society in nearly every region and continent of the world. The difficulty in researching and discussing child sexual abuse were due to the sensitive and taboo nature of the topic, difficulty of accurate measurement, barriers to reporting, barriers to justice, and the false perception of child sexual abuse as a new phenomenon. Early marriage, human trafficking, sexual coercion, forced first sex, and males as victims were identified as characteristics and topics placing individuals at risk for child sexual abuse, with poverty and its resultant social or family strain as exacerbating factors (Veenema, Thornton & Corley, 2015).

The existing studies indicate crimes against children in India, as in other parts of the world, are vastly underreported. Current estimates assert that between 18% and 50% of India's children have experienced some form of child sexual abuse, with girls reporting higher incidence than boys. The statistics are conservative as many children do not disclose their abuse, and those who do may not be protected or believed. Thus, there is general agreement that child maltreatment, including sexual abuse, is much more widespread than what is commonly reported or recognized (Deb, 2002, 2009; Chawla, 2004; Deb & Mukherjee, 2009; Iravani, 2011; Carson, Foster & Chowdhury, 2014).

[32] *Devadasi* system in India is a religious practice in the states of Maharashtra, Karnataka, Andhra Pradesh, Orissa and Tamil Nadu, whereby parents dedicate a daughter to worship and service of a Hindu deity for the rest of her life. The marriage usually occurs before the girl reaches puberty and requires the girl to become a prostitute for upper-caste community members. They are forbidden to enter into a real marriage.

2.A.4. The 2007 MWCD Report on Child Abuse in India: a socio-cultural context

The first government effort to identify child abuse statistics nationally was the National Study on Child Abuse conducted in 2007 by the Ministry of Women and Child Development, with the support of UNICEF, Save the Children, and Prayas. This study covered 13 states in India and a sample size of 12,447 children, and is considered to be one of the largest empirical in-country studies of its kind in the world. The study aimed at developing a dependable and comprehensive understanding of the phenomenon of child abuse, in order to facilitate forming appropriate policies and programmes for curbing and controlling of the problem. This report was able to garner strong public opinion which helped to propel the enactment of special legislation pertaining to sexual offences against children in India in 2012. The key findings of the 2007 MWCD Report are as follows:

1. 53.22% children reported having faced one or more forms of sexual abuse that included both "severe" and "other forms".
2. Statistics on the gender percentage of children reporting sexual abuse show that 52.94% were boys and 47.06% girls. Nine out of 13 states reported higher percentage of sexual abuse among boys as compared to girls, with Delhi reporting 65.64% boys to 34.36% girls. Kerala had statistics of 55.04% boys to 44.96% girls, while Goa had statistics of 52.27% boys to 47.73% girls.
3. The age distribution of children reporting sexual abuse showed that although the abuse started at the age of 5 years, it gained momentum 10 years onward, peaking at 12 to 15 years and then starting to decline.
4. 21.90% of children faced severe forms of sexual abuse and 50.76% faced other forms of sexual abuse.
5. 5.69% of children reported being sexually assaulted.
6. Children on the street, children at work and children in institutional care reported the highest incidence of sexual assault.
7. 50% abuses are persons known to the child or in a position of trust and responsibility.
8. Most children did not report the matter to anyone. [33]

The MWCD Report identified children between the ages of 5–18 on the basis of five categories of children: children in family environment, not attending school; children in

[33] *Supra* n. 26 at pp.vi-vii and 73-74.

schools; children in institutional care; working children; and street children.[34] Chapter IV of the MWCD Report deals with the profile of the respondents and their socio-demographic background. It extensively provides for gender and age distribution of data. But examination of the nature of child sexual abuse in the socio-cultural context of class and religion is difficult, as adequate data regarding these is unavailable in this Report or elsewhere.

2.A.4.a. Gender and age

The study sample of 12,447 children was almost equally divided between boys and girls: 51.9% were boys and 48.1% were girls. The Report provides clear data regarding child abuse from a gender and age perspective with regard to the five categories identified: children in family environment, not attending school,[35] children in schools,[36] children in institutional care, [37] children at work[38] and children on the streets.[39] Interestingly, the MWCD Report

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[34] *Id* at p. 15.

[35] Out of the total sample, 18.04% of children were in this evidence group. 52.38% of these children were boys and the remaining girls. 50.59% children in this evidence group were in the age group of 5–12 years; 2.54% in the age group of 13–14; and 26.77% in the age group of 15–18 years. In the age group of 5–12 years, 53.95% of these children were boys, while 54.15% of children in the age group of 13–14 years and 47.92% children in the age group of 15–18 years were boys.

[36] Out of the total child respondents, 25.41% were children in schools, of which 49.76% were boys and 50.24% were girls. Across the states, the sample size of boys and girls was approximately 50:50 with a 10% variance. 41.54% of children in this evidence group were in the age group of 5–12 years, while 32.98% of children were in the age group of 13–14 years and 25.48% of children were in the age group of 15–18 years. In the age group of 5–12 years, 50.61% children were girls, while 55.80% of children in the age group of 13–14 years and 42.43% of children in the age group of 15–18 years were girls.

[37] Out of the total sample, 18.04% of children were in this evidence group. Among the child respondents in institutions, 29.54% were from children's homes (46.33% boys, 53.67% girls) followed by 25.97% from shelter homes (57.04% boys, 42.96% girls), 24.89% from other homes (50.09% boys, 49.91% girls), 10.75% special homes (52.52% boys, 47.48% girls) and 8.85% (72.45% boys, 27.55% girls) were from observation homes. 45.48% of children in this evidence group were in the age group of 5–12 years, while 29.84% of children were in the age group of 13–14 years and 24.68% of children were in the age group of 15–18 years. In the age group of 5–12 years, 54.16% of children were boys, while 50.45% of children in the age group of 13–14 years and 53.61% of children in the age group of 15–18 years were boys. From the sample size, the gender and age-wise break-up of the number of children in need of care and protection in institutions (children's homes, shelter homes and other homes) showed that children as young as 5, 6, 7 and 8 years old were languishing in institutions. The number of girls in institution rose in the early teenage years. The Report attributes this fact to girls in this age group being more vulnerable and also trafficked for commercial sexual exploitation and child domestic work. Analysis shows that, barring the ages of 11 and 12 years, the number of boys in conflict with the law was much higher than that of girls.

[38] Out of the total sample, 19.90% of children were in this evidence group. 50.30% of these children were boys and the remaining girls. 34.68% of children in this evidence group were in the age group of 5–12 years, while 2.85% of children were in the age group of 13–14 years and 42.47% of children were in the age group of 15–18 years. In the age group of 5 to 12 years, 51.92% of children were girls, while 52.30% of children in the age group of 13–14 years and 46.48% of children in the age group of 15–18 years were girls. Among all the children in this evidence group, 23.16% were child domestic workers, 11.21% were working in tea kiosks and restaurants, 7.83% were engaged in bidi rolling and the remaining were working in 'other' occupations such as lock making, carpet weaving, construction, shops, artisans, etc.

[39] Out of the total sample size of child respondents, 18.6% were street children of which 55.33% boys and 44.67% were girls. The study revealed that 65.9% of the street children lived with their families on the streets.

states that the gender and age distribution of children on the street indicated two significant findings: first, that girls of all age groups are also living on the streets rendering them vulnerable to abuse and exploitation; second, the number of boys living on the streets is larger than that of girls.[40]As discussed earlier, the Report shows that boys had a higher rate of sexual abuse than girls.

2.A.4.b. Religion and caste

Of these child respondents, 71.4% were Hindus, 14.2% Muslims, 12.7% Christians and 1.7% from other religious backgrounds. Among Hindus, 25.4% children were from Scheduled Castes (SCs), 15.1% from the Scheduled Tribes (STs) and 29.2% from the Other Backward Classes (OBCs).[41]

The MWCD Report does not provide data regarding its respondents on the basis of caste and religion. Hence no analysis about the nature of child sexual abuse based on religion is possible.

2.A.4.c. Class

The MWCD Report does not make any reference to the economic background of the identified child respondents based on the five identified categories mentioned previously. The Report does not give any sociological data on non-school going children who live within a family environment. Hence it is impossible to determine their socio-economic background. With regard to children who go to schools, the total percentage of children going to government schools was 55.54%, private schools was 26.29%, NGO-run schools 14.91%, and 3.26% in other schools (namely, schools run by charitable organizations and religious bodies).It is clear from the data provided by this Report that demarcation of the respondents based on socio-economic class is not possible here, either. [42]

Out of these children, 51.84% slept on the footpaths, 17.48% slept in the night shelters and 30.67% slept in other places including under flyovers and bridges, railway platforms, bus stops, parks, market places, etc.

[40] 60.94% of children in the evidence group were in the age group of 5–12 years, while 19.90% children were in the age group of 13–14 years and 19.16% children were in the age group of 15–18 years. In the age group of 5–12 years, 53.97% of children were boys, while 55.31% of children were in the age group of 13–14 years and 59.68% of children in the age group of 15–18 years were boys.

[41] *Supra* n.26 at p. 35.

[42] *Id* at p.15.

The same applies to data regarding children in institutional care. However, this researcher would categorise this group of child respondents to belonging to the lower economic strata of society. It is usually neglected children from poverty stricken backgrounds with no protective familial network who end up being in conflict with law. Children from middle class and upper middle class families in India are never allowed by the protective social network to face the criminal justice system. The institutions for children in conflict with law are the observation homes and special homes. The institutions for children in need of care and protection are called shelter homes and children's homes, which house children who are rescued from child trafficking for prostitution or domestic work. These children are generally trafficked with the active consent of their family members, who belong to impoverished backgrounds, and sell their offspring for economic enrichment. The MWCD Report fleetingly refers to this aspect.[43] Children at work[44] as well as children who live in streets[45] are the last two categories mentioned in the Report. Thus a perusal of data provided from the Report leads to the inference that these respondents belong to the lowest economic strata of society.

2.A.5. Statistics on Kerala

A recent study in Kerala by Krishnakumar, Satheesan, Geeta, & Sureshkumar (2014) of 1,614 respondents (688 boys and 926 girls) in the age group of 15–19 years of age spread across 12 of the 14 districts in Kerala found that 36 % of boys and 35% of girls had experienced sexual abuse at some point during their lifetime. The overall prevalence of sexual abuse varied from district to district with the lowest (13%) in Thiruvananthapuram district and the highest (50%) in Kannur district. Most instances were sexual advances while using public transport. Feelings of insecurity and isolation at home, of being disliked by parents, and of being depressed were significantly higher in adolescents who had experienced sexual abuse. Interestingly, a significantly larger percentage of adolescents with history of sexual abuse suffered physical punishment at home compared to those who had no history of sexual abuse.

Krishnakumar et al. (2014) compared their findings on prevalence with prevalence data from the 2007 MWCD Report. It found out that the prevalence of sexual abuse among the sample of children from Kerala in the 15–18 year age group in the 2007 MWCD study is much

[43] *Id* at p. 36.
[44] *Id* at p.36, 37.
[45] *Id* at p.37.

higher than the prevalence rate observed in the present study. There are also significant differences between the prevalence rates of individual types of sexual abuse as observed in the 2007 study and in the Kerala study, which could be because of the difference in the method of data collection. In the 2007 MWCD Report, information was collected using focus group discussions and one-to-one interaction, with higher chances of revealing abuse; in contrast, the 2014 Kerala study was a self-report survey. Krishnakumar et al. (2014) reason that it is unlikely for all affected children to reveal complete details of a private and confidential issue like sexual abuse in a self-report survey. Also, the 2007 Report included only two districts from Kerala, while the 2014 Kerala study included all districts in Kerala.

2.A.6. Conclusion

The 2007 MWCD Report, which defined the nature of sexual abuse of children and explored its prevalence, is the first of its kind in India. This Report has integrated international perspectives on child sexual abuse, as well as perspectives on India, as seen in indices which include sexual abuse of children during travel and marriage.

Global research establishes that difficulties exist in defining whether a particular behaviour is sexually abusive or not. One important aspect of this definition issue is the relationship between the victim and perpetrator and the age gap. Difficulties exist when the so-called child victim and the perpetrator belong to age groups within a five–year gap. It is debatable whether exposure of children above a particular age to pornographic materials by peer group members can be classified as "other forms" of child sexual abuse, as was done in the 2007 MWCD Report.[46]This difficulty is manifested when protective legislation against child sexual abuse does not provide relief for cases of "experimentation" by children of the same age. This issue is further examined in Chapter 3 regarding the *POCSO*.

Among the various risk factors, global research establishes that low socio-economic background is not a sufficient risk factor for child sexual abuse. The 2007 MWCD Report does not specifically focus on children from lower socio-economic backgrounds. Despite the lack of this specific index, the majority of the evidence groups consist of children from poorer economic backgrounds, because children from affluent families are generally found to be attending school and are not found in homes of institutional care, nor do they work nor live on the streets. Hence, this Report focuses on children from poorer economic

[46] Adolescents who had no experience of sexual abuse other than exposure to ugly pictures were omitted in calculating the total prevalence of sexual abuse.

backgrounds. Statistics regarding prevalence of sexual abuse among children from middle class economic backgrounds, versus prevalence of children from lower economic backgrounds, cannot be obtained from this Report.

This section examined the nature of child sexual abuse from international and Indian literature. Indian studies on social science evidence of child sexual abuse are limited. Studies into definitions of sexual abuse in India are almost non-existent. Socio-cultural contexts play a great role in disclosing child sexual abuse. When gender and age contexts are taken, studies show that boys and girls are equally vulnerable to abuse, especially during teenage ages. Social class does not show any significant impact upon child sexual abuse; however, children on the street, children at work and children in institutional care are especially vulnerable.

Examination of literature in this section shows that the MWCD Report portrays higher prevalence of abuse of boys than girls. Also, most sexual abuse occurs between 10-15 years of age. Data showing religion and class statistics were not available from this Report.

There is reason to believe that statistics regarding boys showing a higher rate of sexual abuse than girls may be because one of the “other forms” of sexual abuse investigated in this Report was “exposure to dirty pictures”, of which the percentage of boys reporting this exposure was higher compared to girls in all 13 sample states. The Report stated that an overwhelming majority of child respondents (66.1%) were shown dirty pictures by their friends or classmates, with uncles or neighbours the second highest in this category at 13.1%. It is important to understand that the process of discovering sexuality is different from being abused, so viewing pornographic images with peer group members may not classify as abuse. It may not be correct to classify the data of children being shown pornographic pictures on the same level as children in abusive situations. Hence the statistics on boys having a higher rate of abuse in the MWCD Report (2007) might be exaggerated.

2.B. PREVALENCE OF CHILD SEXUAL ABUSE

This section discusses various prevalence studies in the area of child sexual abuse. Prevalence is defined as the proportion of the adult population that have been victims of sexual abuse at some time in their childhood. Sources of data regarding “prevalence” include surveys of adult

members of the public that ask about their childhood experiences (Finkelhor, 1994).[47] In contrast to prevalence, "incidence" is defined as the number of cases of sexual abuse during a year that come to the attention of professionals. Sources of data regarding incidence include child protection agencies and law enforcement and medical or mental health professionals.[48] Incidence studies may underestimate the occurrence of child sexual abuse because only a small proportion of abuse cases may be reported to authorities. Moreover, incidence studies capture fewer child sexual abuse experiences than prevalence studies because the timeframe of incidence studies is more limited than the lifetime reports in prevalence studies (Stoltenborgh, van IJzendoorn, Euser, & Bakermans-Kranenburg, 2011).

Prevalence rates vary according to when the research was conducted, how sexual abuse is defined, who is targeted, what type of survey method is used, and the way the questions are worded (Cashmore & Shackel, 2014). This section outlines the barriers in formulating statistics regarding prevalence rates, due to lack of adequate data caused by non-disclosure of child sexual abuse. This section also examines whether gender and the degree of socio-economic development of a country influences reporting of child sexual abuse.

Important global and Indian studies on prevalence rates have been cited in this section. Various meta-analyses of the international literature found that approximately 20% of women and 8% of men experience sexual abuse as children. However, studies point out that actual prevalence of male child sexual abuse is higher, but is under-reported. Prevalence studies of child sexual abuse show greater prevalence rates for females over males.

Also, analysis of the effect of the level of economic development of a country on child sexual abuse statistics shows that child sexual abuse occurs irrespective of the economic status of a country across all socio-economic classes. Hence this problem requires carefully planned mechanisms by both national governments and civil society in order to combat these crimes.

2. B.1. Problems faced by researchers

Various problems are faced by researchers in the area of child sexual abuse, which act as barriers in formulating global trends. These are the lack of adequate data, which may be

[47]Prevalence statistics include events that meet the criteria for incidence reports, and events that were never disclosed to a professional, were never disclosed by professionals to child protective services and were outside the definitions used by child protective services, such as date rape.

[48]Incidence statistics include statistics on events that are disclosed to child protective services and to other authorities like the police, and not disclosed to child protective services or the police.

aggravated due to perpetuation of myths that contribute in adding to already existing difficulties in disclosure and non- reporting of child sexual abuse.

1. Lack of adequate data about child sexual abuse: There has been a preponderance of results from Caucasian, Western, and Christian countries and a relative lack of data from middle-Eastern, African or Far-Eastern countries (Finkelhor, 1994). The absence of research on child abuse in Africa is because it is "overshadowed by political and economic problems, lack of resources, the enormity of the phenomenon, and the lack of a research culture and research experience" (Lachman, 1996; Finkelhor, 1994; Lalor & McElvaney, 2010).[49]

2. Prevalence of myths about child sexual abuse: Lack of adequate data allows for perpetuation of various myths on sexual abuse; namely, that most Indians believe that child sexual abuse is largely a Western problem and that it does not occur in India. This belief can be partially explained by India's conservative family and community structure that does not allow discussion of sex and/or sexuality. Another myth is that it is girls, rather than boys, who need to be kept safe. India has developed a culture that prizes virginity in female children. Many different cultural and social practices have developed in order to safeguard a female child's sexual purity prior to marriage. These practices include child marriage, segregating the sexes except in situations that can be observed by elders, and prohibiting marriage with a non-virgin female (Beinart, 2011).

Such myths diminish awareness and prevent allocation of adequate resources to prevent abuse and assist victims, as well as dissuade victims from disclosing abuse due to the negative outcomes that occur when abuse is disclosed, but not believed. It is relevant to note that such myths also affect legal processes and decisions, as they impact professionals and care providers (who are mandated reporters), influence juror attitudes and trial outcomes, and impact on judicial decisions. For these reasons, identifying these myths is an important step in disseminating accurate information, providing appropriate support to victims following disclosure, and informing prevention and intervention efforts (Cromer & Goldsmith, 2010).

3. Non- reporting of child sexual abuse: Disclosure of experiences of child sexual abuse by the victims is rare, and usually happens after a considerable amount of time has passed (Paine

[49] Recently, effort has been made to review literature on child sexual abuse in Middle Eastern countries and North Africa by Polonko, Adam, Naeem and Adinolfi (2011). The authors note that there was resistance in these societies to acknowledge CSA and the subject is taboo. The authors point out that child sexual abuse in the Middle East for boys is not only higher than that of boys in western countries, the rates are higher for girls than for boys in the Middle East and North African countries.

& Hansen, 2002). Such non-disclosure happens when the child is either (or both) preverbal or too young to understand the nature of the acts (Berliner & Conte, 1990). The child usually develops coping mechanisms. An Australian study found that 48% of the women who had suffered sexual abuse as children never disclosed it. Among those who did, almost half disclosed at least 10 years after the first event (Fleming, 1997). A national study in the USA found that of 416 women and 169 men who suffered child sexual abuse, 33% and 42% respectively had never disclosed it before the study, and a further 24% and 14% only disclosed at least one year after the event (Finkelhor, Hotaling, Lewis, & Smith, 1990). The available statistics are likely to be underestimated because of frequent underreporting of sexual abuse (Kogan, 2004; Priebe & Svedin, 2008; Chen et al., 2010). Difference in prevalence rates between males and females can be due to differences in definitions of child sexual abuse, the methods by which abuse has been assessed, and the characteristics of research samples (Spataro, Moss, & Wells, 2001).

Reasons for non-reporting

1. Safety concerns: The reason for such non-reporting of child sexual abuse is the loss of control in sexually abusive relationships with adults and the fear of being harmed by the perpetrator. The fear for personal safety and the fear of upsetting adults frequently prevent children from responding to the abuse and reporting it. This is reinforced by victim statements where victims appear to be submissive during the perpetration of the acts. This finding is increasingly supported by victim surveys (Cawson, Wattam, & Kelly, 2000; Davidson, 2008). In some cultures, victims of sexual assault may be murdered if the event becomes known or even suspected ("honor killings"), which indicate that victim blame and assumptions are likely to influence beliefs and actions related to child sexual abuse (Cromer & Goldsmith, 2010).

2. Gender variations: Reasons for delaying disclosure also varies across the genders, as seen in the different prevalence rates between males and females. Males reported difficulty disclosing because they feared being viewed as homosexual and as victims. Women's difficulties centred on feeling conflicted about responsibility, and they more strongly anticipated being blamed or not believed (Alaggia, 2005). In a study involving 145 men and 151 women who were asked about disclosure at the time of the abuse and the length of time it took for them to discuss the experience, it was found that men were significantly less likely than women to disclose the abuse at the time it occurred and also took significantly longer to

discuss their childhood experiences later in life (O'Leary & Barber, 2008). Factors that perpetuate non-disclosure by males are the socialisation of males within a culture where independence, sexual prowess and self-reliance are valued, whilst vulnerability, fear, dependency and homosexuality are considered as weaknesses and likely to lead to rejection and denigration (Spataro, Moss, & Wells, 2001).

3. Cultural concerns: Collectivist cultures, such as many found in Asia, consider the needs of a group above those of an individual, which might result in ignoring the abuse experiences of an individual family member in order to protect the family from the shame associated with a reported case of abuse. Also, cultural differences with regard to sexuality and to sexual restraint, as well as cultural myths, might influence the prevalence of sexual abuse and/or the willingness of sexual abuse victims to disclose their experiences. The taboo around girls losing their virginity before marriage and the taboo on boys' homosexual experiences are examples found within Hispanic cultures (Stoltenborgh, van IJzendoorn, Euser, & Bakermans-Kranenburg, 2011). These reasons are also valid in the Indian context.

"Structural barriers" to disclosure

Structural barriers include linguistic competence during investigations and interventions, lack of documents in families' native languages, unfair immigration laws, racism and other forms of discrimination, economic barriers that interfere with investigations and interventions, lack of adequate health insurance, and overcrowded schools where teachers do not know their students well enough to detect abuse. Structural changes are essential to help children from all cultures disclose when they are abused and to persist with disclosure in the face of pressures to recant.

Thus, these barriers not only constrain victims, but also inhibit others; hence, the importance of using a broad framework to understand the factors that inhibit disclosure. Three broad categories of barriers to disclosure of child sexual abuse were identified by Collin-Vézina, De La Sablonniere-Griffin, Palmer, & Milne (2015), each containing several sub-themes:

1. Barriers from within: internalized victim-blaming, mechanisms to protect oneself, and immature development at time of abuse.

2 Barriers in relation to others: violence and dysfunction in the family, power dynamics, awareness of the impact of telling, and fragile social network.

3. Barriers in relation to the social world: labelling, taboo of sexuality, lack of services available, and culture or time period.

These studies showcase the need to devise new methods to ensure disclosure of incidence of abuse. The following sections deal with certain meta-analyses on the global prevalence of child sexual abuse, developing and middle income countries, as well as systemic reviews on prevalence.

2.B.2. Prevalence studies: Systemic reviews and meta-analyses

This section discusses systemic reviews of literature and meta-analyses of statistics of child sexual abuse, firstly based on gender, then on the effect of economic development of a country – namely, high income, middle income and low income countries – upon prevalence statistics. It then proceeds to examine studies on the Indian situation.

2.B.2.a. Gender-based statistics:

Here are the important systemic reviews of prevalence statistics on the basis of gender in the USA, UK and Australia, followed by prevalence statistics of meta-analyses from a global perspective.

2.B.2.a.i. Systemic reviews on country basis

2.B.2.a.i.(i) USA

A study by Gorey & Leslie (1997) in the USA calculated the prevalence for women as 16.8% and 7.9 % for men. Another meta-analysis by Bolen & Scannapieco (1999) calculated prevalence at 20% for girls and 7% for boys.

Putnam (2003) outlines the epidemiology of child sexual abuse. In the USA, before the late 1970s, child sexual abuse was regarded as rare. In the following decades, the incidence based on official statistics increased dramatically by 67% in all forms of child abuse from 1986 to 1993. Officially reported cases of child sexual abuse, however, declined during this same period. In 2000, child sexual abuse constituted approximately 10% of all officially reported child abuse cases and numbered approximately 88,000 substantiated or indicated cases, a 41% decrease from the peak estimate of 149,800 cases in 1992. Statistics on the prevalence of child sexual abuse are derived primarily from retrospect accounts by adults and can be

divided into studies using clinical versus non-clinical samples. Prevalence figures vary widely as a function of the selection and response rate, the definition used, and the method (namely, self-reported versus structured interview) by which an abuse history is obtained. Community samples typically range from 12 % to 35 % of women and 4 % to 9 % of men reporting an unwanted sexual experience prior to the age of 18 years.

A review of six studies in the USA by Townsend & Rheingold (2013) regarding contact sexual abuse of children estimated the prevalence rate for girls at 10.7% to 17.4% and the rate for boys at 3.8% to 4.6%.

Finkelhor, Shattuck, Turner, & Hamby (2014) took a sample of three similarly designed national telephone surveys of youths in 2003, 2008, and 2011. This study found that the lifetime experience of 17-year-olds with sexual abuse and sexual assault was 26.6% for girls and 5.1% for boys. The lifetime experience with sexual abuse and sexual assault at the hands of adult perpetrators exclusively was 11.2% for females and 1.9% for males. For females, considerable risk for sexual abuse and assault was concentrated in late adolescents, as the rate rose from 16.8% for 15-year-old females to 26.6% for 17-year-old females. For males, it rose from 4.3% at 15 years to 5.1% at 17 years. This study found that self-report surveys in late adolescents reveal high rates of lifetime experience with sexual abuse and sexual assault at the hands of both adults and peers. Because of high continuing victimization during the late teen years, this study pointed out that assessments are most complete when conducted among the oldest youths.

2.B.2.a.i.(ii) UK

Research studies in the UK by Cawson, Wattam, & Kelly (2000) suggested that the problem is more prevalent than official statistics indicate. It was suggested that 16% of children and young people under 16 years experienced sexual abuse as a child.

A national study by May-Chahal & Cawson (2005) found that 10% of respondents reported sexually abuse as a child involving sexual contact, with a further 6% reporting experience of non-contact abuse.

Davidson (2008), while commenting on the British situation, says that it is difficult to know whether the incidence of sexual offences against children under the age of 16 years has increased, as such children are excluded from the random sample conducted by the Annual

British Crime Survey undertaken by the British Home Office. Official criminal statistics in the UK clearly show that the rate of reporting has increased substantially since the early 1980s.

A report by Radford, Corral, Bradley, Fisher, Bassett, Howat, & Collishaw (2011) on child maltreatment and victimisation in the UK found that16.5% of young people aged 11 to 17 years reported experiences of contact and non-contact sexual abuse in their lifetime, and 9.4% in the past year. Almost 5% (4.8%) of young people aged 11 to 17 years had experienced sexual abuse involving physical contact during childhood.

2.B.2.a.i.(iii) Australia

Dinwiddie, Heath, Dunne, Bucholz, Madden, Slutske, Bierut, Statham, & Martin (2000) conducted a study using structured telephone interviews with 5,995 Australian twins. It was found that 5.9% of women and 2.5% of men had been sexually abused before 18 years of age.

Andrews, Gould, & Corry (2002) studied the overall findings of seven studies done on child sexual abuse in Australia. They found that the adjusted prevalence estimates were 5.1% for males and 27.5% for females. The onset of abuse occurred at a mean age of 10 years, with most cases starting before the age of 12 years. In the vast majority of cases the offender was known to the child (75%), with 40% of cases involving an offender who was a family member.

In a study conducted by Dunne, Purdie, Cook, Boyle, & Najman (2003) through a telephone-based survey of randomly selected males and females, the researchers found that for non-penetrative child sexual abuse, 15.9% were males and 33.6%females. With regard to penetrative child sexual abuse, 4% of males were abused, compared to 12% of females.

In a sample of 1,793 persons aged 18–59 years, randomly selected from the electoral roll for Australian states and territories in April 2000, it was found that more than one-third of women and approximately one-sixth of men reported a history of child sexual abuse before the age of 16 years. Women were more likely than men to report both non-penetrative and penetrative experiences of child sexual abuse. An exception was attempted anal intercourse, with men more likely to report this experience (Najman, Dunne, Purdie, Boyle, & Coxeter, 2005).

Mills, Kisely, Alati, Strathearn, & Najman (2016) stated that since most Australian studies relied on retrospective self-reporting, their study investigated the incidence of child sexual abuse in the same birth cohort using both retrospective self-reporting and prospective government agency notification, and examined the psychological outcomes in young adulthood. Twenty-one retrospective child sexual abuse questions were completed by 3,739 participants. Child sexual abuse was self-reported by 19.3% of males and 30.6% of females. Irrespective of method of reporting, adverse psychiatric outcomes were seen when child sexual abuse is defined using either method.

2.B.2.a.ii. Meta-analyses studies

A number of meta-analyses have been able to discern rates of child sexual abuse stratified by gender. While there are several of these studies, using slightly different methodologies (for example, definitions of child sexual abuse), all have produced similar overall findings, with some making even more nuanced findings applying to geographical locations.

The meta-analysis of the international literature by Pereda, Guilera, Forns, & Gomez-Benito (2009) found that approximately 20% of women and 8% of men experienced sexual abuse as children. Similarly, a global metal-analytic review of population-based studies of childhood sexual abuse has estimated cumulative prevalence rates for sexual abuse prior to age 18 as 18.0% for girls and 7.6 % for boys (Stoltenborgh et al. 2011). This comprehensive meta-analysis combined prevalence figures of childhood sexual abuse reported in 217 publications published between 1980 and 2008, through self-reported as well as informant studies. Self-reported childhood sexual abuse was more common among female (180/1000) than among male participants (76/1000). The lowest rates of self-reported child sexual abuse for both girls (113/1000) and boys (41/1000) were found in Asia, and highest rates were found for girls in Australia (215/1000) and for boys in Africa (193/1000).

Lalor & McElvaney (2010) listed studies in 11countries, and concluded that the rates for penetrative child sexual abuse are higher for girls than for boys. For female children, rates for penetrative abuse range from 0.3% to a high of 18%. Data on perpetrators are not always reported, but the studies above show that for all types of child sexual abuse “strangers” make up only a minority of perpetrators and a high proportions of perpetrators were well known to the child (such as family members, boyfriends, neighbours, relatives or teachers).

Barth, Bermetz, Heim, Trelle, & Tonia (2013) conducted a meta-analysis of systematic reviews of prevalence studies published between 2002 and 2009 that reported child sexual abuse worldwide in children below 18years. Fifty-five studies from 24 countries were included. Prevalence estimates ranged from 8% to 31 % for girls and 3% to 17 % for boys. This study found that 9 girls and 3 boys out of 100 are victims of forced intercourse.

Najman, Dunne, Purdie, Boyle, & Coxeter (2005) commented that despite indications that 25% to 33% of those experiencing child sexual abuse are men, the literature has only recently begun to reflect this. The sexual abuse of boys appears to be common and clinically underreported, under-recognised and undertreated (Spataro, Moss, & Wells, 2001).

2.B.2.b. Statistics based on economic development

Studies on the influence of economic development of a country upon child sexual abuse incidence and prevalence rates have shown that development does influence prevalence statistics. This part discusses certain meta-analyses that have dealt with the effect of economic prosperity on prevalence statistics, and compares it with analyses about how low socio-economic class increases the risk of abuse.

Analysis of the effect of economic development on child sexual abuse prevalence by Stoltenborgh et al (2011) found that, for boys, prevalence was higher in low-resource countries than in high-resource countries, whereas no significant effects of economic development level emerged for girls.

Barth et al. (2013) conducted a meta-analysis of systematic reviews of prevalence studies published between 2002 and 2009 that reported child sexual abuse worldwide in children below 18 years. It found that where 55 studies from 24 countries were included, inconsistent findings emerged regarding the effect of Human Development Index[50] in female child sexual abuse. Countries with a moderate Human Development Index showed lower prevalence of child sexual abuse. Countries with high and low Human Development Indexes showed the highest prevalence for child sexual abuse. The Human Development Index did not affect prevalence rates in males.

[50] This is a composite statistic of life expectancy, education, and per capita income indicators, which are used to rank countries into four tiers of human development.

Veenema, Thornton, & Corley (2015) reviewed 44 publications regarding the incidence and characteristics of all forms of child sexual assault in 32 low and middle income countries since 1980. This review indicated that sexual abuse of children is an endemic problem that exists in low and middle income countries and affects female and male children from all social classes. This review found that child sexual abuse of males has received little attention in the literature. Children usually do not tell anyone that they have been sexually abused without being prompted to do so. Even when children are questioned about acts of sexual abuse, the phenomenon is grossly under-reported. Many cultures believe that problems concerning child abuse are to be traditionally handled within families, thus nullifying community support for legal interventions. The falsely-perceived low incidence of child sexual abuse in some countries seems to be related to an inability to recognize and report cases of abuse.

Earlier, it was pointed out by Putnam (2003) and Ronan, Canoy, & Burke (2009), that that low socio-economic status of the victim has little impact on child sexual abuse. While lower socio-economic status is a significant risk factor for child maltreatment, in contrast, low socio-economic status does not appear to be a risk factor for child sexual abuse. Hence, a conclusion can be reached that the economic status of a victim and economic development index of a country do not play significant roles in incidence of child sexual abuse, as this problem is widespread and affects all economic classes.

2.B.3. Prevalence studies in India

There are few studies conducted in India in the area of child sexual abuse. Only one official study has been conducted in 2007. The following sections discuss each study in detail:

2.B.3.a. Samvada (1996)

The NGO called Samvada's 1996 study on students in Bangalore states that 47% of the respondents had been sexually abused and 15% of them were less than 10 years old. Of these, 62% had been raped once and 38% had suffered repeated violations. 83% of the respondents had experienced physical eve teasing, 13% when they were less than 10 years old. Disclosures had been made by 86% of those eve teased, 67% of those molested and 61% of those seriously abused.15% of respondents were used for masturbation mostly by male relatives when they were less than 10 years old. 75% of the abusers were adult family members.

2.B.3.b. Sakshi (1997)

In a survey with 350 school girls in New Delhi by the NGO called Sakshi in 1997, 63% had experienced child sexual abuse at the hands of family members and 25% of the girls had either been raped, made to masturbate the perpetrator, or engage in oral sex.

2.B.3.c. RAHI (1998)

The NGO called Recovery and Healing from Incest(RAHI) is attributed to having conducted India's first study of child sexual abuse in 1998 called "Recovery and Healing from Incest, Voices from the Silent Zone" (New Delhi, 1998). The study interviewed 600 English-speaking middle and upper class women, out of whom 76% said they had been abused in their childhood or adolescence. 40% of the respondents said they had been abused by a family member, mostly an uncle or a cousin.

2.B.3.d. Tulir (2006)

A study on child sexual abuse carried out by NGOs Save the Children and Tulir in 2006 looked at the prevalence and dynamics of child sexual abuse among school-going children in Chennai, India. 2,211 respondents were examined. This study found that 42% of children had faced at least one form of sexual abuse, of which 48% were boys and 39% were girls. The prevalence of sexual abuse in upper and middle class was found to be proportionately higher than in lower or lower middle class.[51]The majority of the abusers were people known to the child.[52]

Both the TULIR study and the RAHI study showed higher prevalence rates of child sexual abuse in higher income families, which helps to combat the myth that child sexual abuse is more rampant among the lower socio-economic classes. Also, many abusers were people known to the child.

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[51] The results contradict various other myths and popularly perceptions about child sexual abuse in India: that it happens only in poor and illiterate families. The study included children from various socio-economic strata of society. The prevalence of sexual abuse in upper and middle class was found to be proportionately higher than in lower and lower middle class (the criteria used for stratification: family income less than Rs.6,000 per month = lower and lower-middle class; between Rs.6,000 and Rs.12,000 per month = middle class; higher than Rs.12,000 per month = upper class). See Tulir (2006). Research on Prevalence & Dynamics of Child Sexual Abuse Among School Going Children in Chennai. *TULIR – CPHCSA and Save the Children Sweden* at p. 10.

[52]Those close to the child use tactics like trickery and making the children feel special in order to abuse them and intimidate them to keep that abuse a secret. These tactics indicate the carefully thought-out path that an abuser often takes in order to first prepare a child for abuse and later to maintain the abuse. This context usually makes it difficult for the child to say "no" to acts of abuse, and the abuser is also often successful in giving the child the impression that s/he is a participant in those activities, and/or that these activities must be kept a secret. See *Id* at pp. 19-20.

2.B.3.e. Ministry of Women and Child Development, Government of India (2007) Report

The report of this Ministry in 2007 is briefly explained in order to lay down the socio-economic context that facilitates child sexual abuse in India.

2.B.3.e.i. Background:

There is a substantial child population in India which is largely vulnerable to abuse, exploitation and neglect. The only information available annually regarding crimes against children has been the consolidated crime data maintained by National Crime Records Bureau, which was woefully inadequate. Only a few sporadic studies, with limited scope, existed. The increasing incidence of child abuse showed that the problem was bigger than what was either understood or acknowledged. This prompted the government under the Ministry of Women and Child Development to initiate the National Study on Child Abuse, as it was evident that India needs both legislation as well as large scale interventions to deal with the increasing incidence of child abuse.

In this context, the Ministry of Women and Child Development of the Government of India conducted the first official national survey of child abuse, published through its report titled *'A Study on Child Abuse: India 2007'*. It was one of the largest studies of its kind undertaken in India, and provided information about the nature and extent of child abuse in different settings and recommend immediate and appropriate responsive actions to be undertaken by families, community, government and civil society organisations for the care and protection of children. It strengthened grounds for separate legislation on child abuse, facilitating formulation of appropriate polices, strategies and schemes, and contributed to evolving guidelines for the prevention and control of child abuse.[53]

2.B.3.e.ii. Categorisation of sexual abuse of children

As stated in **2.A.1.iii.**, the MWCD Report categorised sexual abuse into four severe forms and five other forms of sexual abuse.

(i)Severe forms of sexual abuse include:

1. sexual assault: defined as penetration of the anus, vagina or oral sex
2. making the child touch or fondle private parts
3. making the child exhibit private body parts

[53]*Supra* n. 26 at pp. 8-9.

4. being photographed in the nude

(ii)Other forms of sexual abuse include:

1. forcible kissing

2. sexual advances made during travel: a stranger takes advantage of a crowded situation and the instinctive fear of the child to carry on this abuse in a fairly anonymous fashion

3. sexual advances during marriage functions: kissing, touching and fondling of private body parts of children by someone in marriage functions and other ceremonies.[54]

4. exhibition: children forced to view private body parts

5. exposure to pornographic materials: limited only to "dirty pictures" and excluded "exposure to other pornographic materials".[55]

2.B.3.e.iii. Findings:

This Report brings out the following facts:

1. Out of the total child respondents, 53.22 % reported having faced one or more forms of sexual abuse that included severe and other forms.

2. The states of Andhra Pradesh, Assam, Bihar and Delhi reported the highest percentage of sexual abuse among both boys and girls.

3. 21.90 % of child respondents reported facing severe forms of sexual abuse and 50.76 % other forms of sexual abuse.

4. Out of the child respondents, 5.69 % reported being sexually assaulted.

5. Children on the street, children at work and children in institutional care reported the highest incidence of sexual assault.

6. 50% of the abusers were persons known to the child or in a position of trust and responsibility.

7. Most children did not report the matter to anyone.

2.B.3.e.iv. Contexts of sexual abuse

The 2007 MWCD Report used three contexts to explain the nature of the phenomena: gender, age, and the five evidence groups. Data on rates of occurrence of sexual abuse in each state was also provided. The prevalence data with regard to Kerala and Goa, which are of special importance to this thesis, are cited accordingly.

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[54]The hustle and bustle, the crowd and the busy nature of Indian marriages make it easy for abusers to target young children. The festive and teasing environment helps the perpetrator to take advantage of an innocent child and the whole situation is not taken seriously by anyone. *Id* at p. 91.

[55] *Id* at p. 73.

The first part deals with consolidated data on sexual abuse. Table A depicts the main findings as laid down in the MWCD Report. The second part deals with the consolidated data on the severe forms of sexual abuse. The data distribution on the prevalence of severe forms of sexual abuse is given as a sub-section. Table B assimilates these findings. The third part deals with the consolidated data on the other forms of sexual abuse. The data breakup on prevalence of other forms of sexual abuse is given. Table C assimilates these findings.

1. Consolidated data on sexual abuse

This is the consolidated prevalence data regarding severe forms of sexual abuse and other forms of sexual abuse. Findings on the basis of age, gender and class have been synthesised from the findings laid down in the MWCD Report (2007).

Table A Consolidated data on sexual abuse

TYPE OF ABUSE	***Sexual Abuse***
Age data	The age distribution of children reporting sexual abuse in one or more forms showed that though the abuse started at the age of 5years, it gained momentum at 10 years onward, peaking at 12–15 years and then starting to decline. The Report analysed that children in the pre-adolescent to adolescent years are the most vulnerable.
Age data (per state)	No data given
Gender data	The Report looked at gender breakup of children who were subjected to one or more forms of sexual abuse in the sample states. It found out that the overall percentage of boys was much higher than that of girls: 52.94 % were boys and 47.06% girls. In fact, 9 out of 13 states reported higher percentage of sexual abuse among boys as compared to girls, with states like Delhi reporting a figure of 65.64%.
Gender data (per state)	No data given
Class or evidence group data	Among the five different evidence groups, the highest percentage of children who faced sexual abuse were those at work (61.61%), followed by children on the streets at 54.51% and children in family environment not going to school at 53.18%. Children in schools reported 49.92% sexual abuse and children in institutional care reported 47.08%.
State data	No data given

2. Consolidated data on the severe forms of sexual abuse

Out of the total respondents, 20.90 % were subjected to severe forms of sexual abuse.

2.1. Data breakup on prevalence of severe forms of sexual abuse

a. Sexual assault:

Out of the child respondents 5.69% reported being sexually assaulted. 72.1% of children did not report the matter to anyone. 50% of the abusers were cousins, uncles, friends and classmates.

b. Forced to touch private body parts of the body:

14.5% reported prevalence of this form of sexual abuse. 77 % of children did not report the matter to anyone.

c. Exhibition: Children forced to exhibit private body parts:

12.6 % of child respondents reported that someone forced them to show or exhibit their private body parts. 80% chose to keep quiet. The highest percentage of children stated that the offenders were friends and classmates followed by uncles and neighbours. An overwhelming majority of children (82.2%) chose to keep quiet. As in other categories, the majority of those children reported to their parents (8.4%), 5.1% of children preferred to report to their siblings and only 0.7% children reported the matter to the police.

d. Being photographed in the nude:

4.46% reported being photographed in the nude. 71.4% of the respondents did not report the matter to anyone. The friend or classmates and the uncle or neighbour emerged as the main abusers. The Report observes that brothers and cousins as abusers together amount to 21%.

Table B Consolidated data on the severe forms of sexual abuse

TYPE OF ABUSE	Severe forms of sexual abuse- consolidated data	*Sexual assault*	*Forced to touch private body parts of the body*	*Exhibition: Children forced to exhibit private body parts*	*Being photographed in the nude*
Age data	Over one-fifth of these children faced more than three forms of sexual abuse. Among these, 39.58% were in the age group of 5–12years, 35.59 % in the age group of 15–18 years and 24.83% in the age group of 13–15 years. From the data available, analysis revealed that severe forms of sexual abuse crossed the 5% mark from the age of 10years, peaked at 15years and by the time the child reached 18years, went below the 5% mark. 73% of the total prevalence of child sexual abuse was reported among children between 11–18 years of age. Therefore the pre-adolescent to the adolescent child seems to be the most at risk. The Report noted the disturbing data that children between 6–10 years also face severe forms of sexual abuse.	Children in Assam, Andhra Pradesh, Bihar and Delhi reported the highest prevalence of sexual assault in the categories of children of ages 15–18, 13–14 and 5–12. Regarding Kerala, children within category of ages 13–14 reported the second highest prevalence in India, 63.33% (topped by the Mizoram at 69.23%,), within the category of ages 15–18 at 13.33% and within the category of ages 5–12 at 23.33%. Regarding Goa, children within the category of ages 15–18 reported a prevalence of 50% and children within the category of ages 5–12 reported a prevalence of 50%.	38.50% of these children were in the age group of 15–18 years while 36.87 % were in the age group of 5–12 years and remaining 24.62% in the age group of 13–14 years. If compared with the prevalence of sexual assault, the percentage of children forced to fondle or touch private body parts continued to be high amongst children in the age groups of 5–12 years and 15–18 years. Further in-depth analysis of data on children forced to touch or fondle private body parts revealed that one-quarter of child respondents (25.41%) were in the age group of 5-10 years, which meant that every fourth child facing this form of abuse was in the age group of 5–10 years.	No data given	The majority of cases (48.17%) were among children in the category of ages 5–12 years. This was followed by 28.02% among adolescents in the age group 15–18 years and remaining 23.81% in the age group of 13–14 years.
Age-wise data on State basis	No data given	No data given	No data given	No data given	No data given

Gender-wise data	20.90% of children who were subjected to severe forms of sexual abuse, 57.30% were boys and 42.70 % were girls.	54.4% were boys and 45.6% were girls.	No data given	60.25% were boys and 39.75% were girls.	52.01% were boys and 47.99% were girls.
Gender-wise data on State basis	No data given	No data given	No data given	No data given	No data given
Class-wise or Evidence group-wise data	No data given	Children on the streets, children at work and children in institutional care reported the highest prevalence.	Children on the streets, children at work and children in institutional care reported the highest prevalence.	Working children reported the highest percentage (16.35%) of those being forced to exhibit private parts of the body followed by 15.10% by street children and 12.14% by children in institutional care. Interestingly, when examined within the total cases of children being forced to exhibit private body parts, about 25.86% were working children. The other evidence groups reporting high percentage of sexual assault were street children (22.32%) followed by children in school (18.89%). Among children in institutional care the percentage was 17.40% and children in family environment not going to schoolwas reported at 15.52%.	Children on the streets reported the highest prevalence rate at 5.39 %, followed by children in family environment not going to school at 5.27%, children at work (shop, factory or other places) at 4.75%, andchildren in institutional care at 4.68%. Children in school reported a low percentage of 2.80%.
State-Wise data	Assam reported the highest prevalence of sexual abuse of boys (62.55%) and girls (51.19%), followed by the Delhi with 54.66% boys	No data given	The highest prevalence was reported from Assam at 43%, and the lowest prevalence from Goa (1.61%). The statistics of	The highest percentage of prevalence was reported from Assam at 46%.The lowest percentage was from Goa (0.80%). Kerala	The Report states that children in Andhra Pradesh, Assam, Bihar and Delhi reported the highest prevalence. However, the consolidated prevalence

	and 22.54 % girls, and Bihar with 35.89% boys and 30.40% girls. Goa reported the lowest prevalence of sexual abuse in both boys (2.55%) and girls (2.17%), which is not in line with the general perception. Kerala reported severe forms of sexual abuse as 21.22% for boys and 13.84% for girls.		Kerala were not shown in the Report.	reported a prevalence of 16.28% in the category of ages 5–12, 18.60 % in the category of ages 13–14 and 65.12 % in the category of 15–18.	figures were not given. Kerala reported a prevalence of 25.81% for children in the category of ages 5–12, 22.58% for children in the category of 13–14 and 51.61 % regarding children in the category of 15–18.

3. Consolidated data on the other forms of sexual abuse:

50.76% of the respondents were subjected to other forms of sexual abuse. Over 50% of children faced more than two other forms of sexual abuse.

3.1. Data breakup on the prevalence of other forms of sexual abuse

The other forms of sexual abuse included forcible kissing, sexual advances made during travel and marriages and exposure to pornographic materials:

a. Forcible kissing:

21.06% of the respondents reported being forcibly kissed. Friends, classmates, uncles or neighbours were the main abusers. The majority of children (73.0%) did not report the matter. Out of those who reported the matter, the highest percentage (14.8%) told their parents about the incident, while 6.7% of them felt comfortable in sharing the incident with their brother or sisters.

b. Sexual advances during travel:

The Report cited the example of a crowded situation on a bus which creates an excuse for the abuser to get away. The Report stated that it is not surprising that children from all evidence groups had faced this situation: 27.9% of the respondents reported prevalence. Reporting continued to be low, as 64% children kept quiet or ignored the incident. Out of those reporting the matter, 13.1% reported to the bus conductor, 9.6% told their parents, 6.1% shared the incident with their brothers or sister.

c. Sexual advances during marriage situations:

11.32% of the respondents reported sexual advances during a marriage situation. When asked whether the child reported the incident, the majority of children responded that they either kept quiet or ignored or avoided the person. The Report reiterates here that in a marriage situation where there is general bonhomie, teasing and jokes all around, the chances of someone taking the child's reporting seriously are low. In many situations it is also difficult for the child to distinguish whether the abusive situation was meant to be a joke or was intended to take advantage of the child.

d. Exhibition: children forced to view private body parts:

16.97 % of the respondents admitted to being forced to view private body parts of abusers. Almost 79% of children chose to keep quiet when forced to do so. The abusers were friends, classmates, uncles and neighbours.

e. Exposing children to pornographic materials:

30.22% of the respondents reported prevalence.80% responded that they did not report the matter.

Table C Consolidated data on the other forms of sexual abuse

TYPE OF ABUSE	*Consolidated data on other forms of sexual abuse*	*Forcible kissing*	*Sexual advances during travel situation*	*Exhibition: children forced to view private body parts*	*Exposing children to pornographic materials*
Age-wise data	38.24% were in the age group of 5–12 years, 34.82 % in the age group of 15–18 years and 26.94% in the age group of 13–14 years. The study found that 63.64% of respondents in the age group of 15–18 years, 52.43% in the age group of 13–14 years and 42.06% in the age group of 5–12 years were subjected to other forms of sexual abuse. The age chart depicts that while the other forms of sexual abuse began at the age of 5 years, it rose sharply from 10 years, peaked at 14 years and by the time the child reached 18 years, it went below the 5% mark. 81.53% of the total prevalence of child sexual abuse was reported amongst children between 11–18 years of age. The Report noted that the pre-adolescent to the adolescent child seemed to be the most at risk.	41.17% were in the age group of 5–12 years, 25.73% in the age group of 13–14 years and 33.10% in the age group of 15–18 years. One in four girls reported being forcibly kissed.	InKerala and Goa, children in age group of 5–12 years reported prevalence of 20.89% and 40.87% respectively, prevalence of 24.89% and 34.78% respectively in the category of ages 13–14, and prevalence of 54.22% and 24.35% respectively in the category of ages 15–18.	38.67% were in the age group of 15–18 years, followed by 36.13% in the age group of 5–12 years and the remaining 25.20 % in the age group of 13–14 years. Assam (62.24%) reported the highest percentage of prevalence. The highest percentage of such cases in children in the age group of 15–18 years were reported from Mizoram (60.85%) followed by Kerala (52.23%) and the lowest in Uttar Pradesh (23.91%). The percentage of children in the age group of 13–14 years was highest in Goa (35.71%) and lowest in Andhra Pradesh (21.69%).	34.86% were in the age group of 5–12 years, 26.12% in the age group of 13–14 years and 39.02% in the age group of 15–18 years. The highest prevalence rate was reported from Assam (64.72%).The highest percentage of boys (86.70%) was from Kerala followed by Goa (80.70%). 66.1 % were shown dirty pictures by their friends and classmates, followed by uncles and neighbours (13.1%).

TYPE OF ABUSE	*Consolidated data on other forms of Sexual Abuse*	*Forcible kissing*	*Sexual advances during travel situation*	*Exhibition- children forced to view private body parts*	*Exposing children to pornographic materials*
Age-wise data on State basis			The Report found that the highest percentage of cases of children in the age group of 5–12 was reported from Goa at 56%, and the highest percentage of cases of children in the age group of 15–18 years was reported from Kerala (52.22%), Assam (48.37%) and Mizoram (45%).Regarding Kerala and Goa, prevalence in the category of children in the age group of 5–12 was 15.56% and 56% respectively, prevalence in the age group of 13–15 was 32.22% and 12% respectively and prevalence in the age group of 15–18 is 52.22% and 32% respectively.	Regarding the prevalence in the various categories for the Kerala and Goa, children in the 5–12 age category had a prevalence of 14.65% and 21.43% respectively, 33.12% and 35.71% respectively for the category of 13–14 and 52.23% and 42.86% respectively for the category of 15–18 age group.	
Gender-wise data	53.07% were boys and 46.93 % were girls.	44.98 % were boys and 55.02% were girls.	39.11% were boys and 60.89% were girls. Of these, 37.25% were in the age group of 5–12 years, 27.61% in the age group of 13–14 years and 35.14 % in the age group of 15–18 years. The Report found that more girls faced sexual abuse of the form of rubbing private body parts against the shoulder of the child during travel as compared to boys.	55.58 % were boys and 44.42 % were girls.	67.03% were boys and 32.97% were girls.

TYPE OF ABUSE	*Consolidated data on other forms of Sexual Abuse*	*Forcible kissing*	*Sexual advances during travel situation*	*Exhibition- children forced to view private body parts*	*Exposing children to pornographic materials*
Gender-wise data on State basis	No data given	No data given	The highest percentage of 89.36% of girls was from Madhya Pradesh. The Report cites Kerala to be on the higher mark with 57.18% of girls reporting prevalence. The highest percentage of prevalence sexual advances in marriage functions upon boys was from Delhi at 75.14%.	No data given	No data given
Class-wise or Evidence group-wise data	No data given	Children at work and street continued to report higher percentage, 25.68% and 21.99%, respectively. The Report observed that the high percentage (21.04%) of children in family environment reporting forcible kissing is a cause of concern. Children in institutional care reported 18.64%, followed by children in schools at 18.50%.	No data given	The highest prevalence pertained to children at work (shop, factory or other places) at 21.24%,children on the streets at 20.32%,children in family environment not going to school at 16.21%, children in institutional care at 14.12% and children in schools at 13.74 %.	While the percentages of working children (37.84%) and children on the streets (31.06%) reported higher prevalence rates of being shown dirty pictures as compared with the other three evidence groups, it is clear all children faced such abuse, with children in family environment not going to school at 28.62%, children in schools at 27.51% and children in institutional care at 26.34%.

TYPE OF ABUSE	*Consolidated data on other forms of Sexual Abuse*	*Forcible kissing*	*Sexual advances during travel situation*	*Exhibition- children forced to view private body parts*	*Exposing children to pornographic materials*
State-Wise data	Assam reported the highest percentage of sexual abuse (86.26%) of those children who faced one or more other forms of sexual abuse, followed by Andhra Pradesh (72.83%), Delhi (72.26%) and Bihar (67.64%). Kerala reported a percentage of 44.80% while Goa reported 34.06%. The lowest percentage was found in Rajasthan at 29.36%.	Among children in the category of 13–14 years, Mizoram (57.89%) and Kerala (54.13 %) had the highest incidence. The percentage of children in the 15–18 age group was constantly high in Kerala in all severe forms of sexual abuse and the same trend continues even in the other forms of sexual abuse. Regarding Kerala and Goa, the prevalence of forcible kissing among children in the category of ages 5–12 is 15% and 44% respectively, that of children in the category of ages 13–14 is 30.71% and 28.00 % respectively, and that of children in the category of ages 15–18 is 54.29% and 28% respectively.	No data given	No data given	No data given

2.B.3.f. Deb & Walsh (2012)

In a study by Deb & Walsh in 2012 regarding the pervasiveness and impact of physical, psychological, and sexual violence on the social adjustment of Grades 8 and 9 school children in the state of Tripura, findings revealed that 18.1% of students experienced sexual violence at home, of which girls were more often victims.

2.B.3.g. Krishnakumar, Satheesan, Geeta, & Sureshkumar (2014)

This study included 1,614 adolescents in Grades 11 and 12 of 17 randomly selected schools in 12 of the 14 districts of Kerala. Among the adolescents, 1,610 were in the 15–18 age group and 4 of them were 19 years of age. They included 688 (43%) boys and 926 (57%) girls. Overall, 570 (35.3%) reported experiencing one or more forms of sexual abuse. Among the girls, 324 (35%) and among the boys 246 (36 %) reported lifetime experience of sexual abuse. Most instances were sexual advances which occurred during travel in a bus or train. Forcible kissing, forcing to touch private parts, taking nude photographs and exhibiting pornographic pictures were the most common experiences mentioned. Adolescents who had no experience of sexual abuse other than exposure to pornographic pictures were not included in calculating the total prevalence of sexual abuse.

2.B.4. Incidence of reported child sexual abuse to the police: The NCRB reports

The National Crime Records Bureau (NCRB) is the governmental agency which is responsible for maintaining the statistics of incidence of crime. In the absence of any other governmental agency recording child sexual abuse statistics, as well as the absence of any reporting agency other than police stations – which continues to be the official crime-reporting machinery in India under the *POCSO* – it is the NCRB reports that have traditionally been used to find out the incidence of reported crimes.

From 2001 to 2013, excluding rape of girl children, all other crimes affecting children under sections 354, 377 and 509 of the *IPC* were clubbed along with other crimes. Hence it is not possible to get specific data on the incidence of child sexual abuse against boy children in India in the NCRB Reports until 2013. The 2014 NCRB Report has provided clear statistics regarding the status of crime in India, including the disposal of cases as well as persons arrested for various crimes by the police and the courts, which is discussed in the next sub-section.

The data presented in the next sub-section demonstrates that true prevalence data contrasts significantly with the recorded crime data. The 2007 MWCD Report, as well as other smaller studies, has clearly demonstrated greater prevalence of various kinds of sexual abuse of children.

2.B.4.a. The 2014 and 2015 NCRB statistics

This discusses the data regarding incidence of crimes against children during 2014 and 2015 as registered in police stations in India. From 2014, data demonstrates a patent departure from earlier precedents, which shows that the government is finally taking crimes against children seriously.

(1) Sections 375 and 376 *IPC*:

In 2014, the rate of rape of girl children was at 3.1 % per lakh of population. Kerala had a rate of 8.1%, Goa at 11%. The highest rate of incidence was in Mizoram at 24.5%.[56] In 2015, the rate of rape of girl children was at 2.4%. Kerala and Goa had rates at 7.7% and 9.6% respectively. The Andaman and Nicobar Islands had the highest rate at 19.1%, followed by Delhi at 16.6%.[57]

(2) Section 354 *IPC*:

Section 354 *IPC* comprises of offences pertaining to assault on women (girl children) with intent to outrage their modesty (sexual harassment, assault or use of criminal force to girl children with intent to disrobe, voyeurism, stalking, others).The incidence rate in 2014 was 2.5% per lakh of population. Kerala had a rate of 2.1% while Goa was at 7.7%. The highest incidence was found in Delhi at 19.1%, followed by Mizoram at 8.6%, Madhya Pradesh at 8.1% and Tripura at 7.4%. In 2015, the rate was 1.9%, with Kerala at 2.6% and Goa at 5.4%. The highest incidence is seen in Delhi at 15.6%, followed by the Andaman and Nicobar Islands at 8.8%.

(3) Section 377 *IPC*:

The total incidence of unnatural offences against children for 2014 was at a rate of 0.2%. Kerala registered a rate of 1.1%, Goa had 0% incidence. Mizoram registered a rate of 1.1 %. Haryana had the highest rate at 1.2 %.For 2015, the rate of incidence was at 0.1%, with

[56] Chapter 6, Crime in India, 2014
[57] Chapter 6, Crime in India, 2015

Kerala at 0.4% and Goa at 0.1%. Haryana also registered an incidence rate of 0.4%, with Punjab at 3%.

(4) Section 509 *IPC*:

For 2014, the offence of insulting the modesty of women (girl children) attracted a rate of 0.1% per lakh of population in India, with Kerala at 0%. Goa had the highest rate of 1.2 %, followed by Delhi at 1%. For 2015, the rate was 0.8 %, with Kerala at 0.1% and Goa at 0.2%. The highest rate was recorded in Delhi at 0.9%, followed by Telangana at 0.5%.

(5) Offences under the *POCSO* :

For 2014, specific data was available regarding the offences under five heads: section 6 (punishment for aggravated penetrative sexual assault), section 8 (punishment for sexual assault), section 10 (punishment for aggravated sexual assault), section 14 (punishment for using a child for pornographic purposes), section 15 (punishment for storage of pornographic material involving child), as well as 'Others'. The rate of crime was 2.0% per lakh of population. In Kerala the rate was 4.7%. In Goa the rate was 0.8%. Mizoram and Sikkim had the highest rates of 11.3% and 11.4 % respectively. In 2015, the rate was 3.3%, with Kerala at 5.5 % and Goa at 0%. The highest incidence rate was recorded at Mizoram with 30.7%, followed by Sikkim at 26.6%.

The NCRB Reports in 2014 and 2015 demonstrate that clear statistics regarding crimes of sexual abuse against children are being gathered, which will help collate authentic data on the incidence rates of child sexual abuse. However, there is no clear data collection mechanisms for monitoring prevalence trends. This confirms the connection to disclosure/ non-disclosure, social taboos, family inhibitions and the other impediments – but it also links with problems in the justice system.

The following is a comparative table of statistics for 2014 and 2015 based on the NCRB reports regarding sexual offences against children:

Table D -Comparison of NCRB statistics for 2014 and 2015.

	2014	**2015**
Sections 375,376 *IPC*	3.1 %	2.4%
Section 354*IPC*	2.5%	1.9%
Section 377*IPC*	0.2 %	0.1%
Section 509*IPC*	0.1%	0.8 %

Offences under *POCSO*	2.0%	3.3%

Is there a higher prevalence of child sexual abuse of boys in India?

Prevalence rates of child sexual abuse from a gender perspective differs from global prevalence which records higher rates for girl children. According to the MWCD Report of 2007, the prevalence rate of all types of sexual abuse of boys in India is higher than that of girls. The overall percentage of boys being abused was 52.94%, which is higher than that of girls at 47.06%, even though the statistics may have differed if boys viewing "dirty pictures" is not taken as an index belonging to the "other forms of sexual abuse". Among the 20.90% of children who were subjected to severe forms of sexual abuse, 57.30% were boys and 42.70% were girls. The TULIR report (2006) also recorded higher prevalence of sexual abuse of boys in a sample in Chennai. The Krishnakumar, Satheesan, Geeta and Sureshkumar (2014) study found that boys and girls are at equal risk in Kerala. These findings are contrary to meta-analyses of the international literature which estimate a higher incidence of sexual abuse among girls than boys – almost double the rate. However, the study by Deb & Walsh (2012) recorded higher prevalence rates for girl children in a small sample in the state of Tripura, which is in accordance with global prevalence trends. This study produced statistics consistent with international studies regarding gender (25% girls against 11.3% boys). It may be pertinent to note that this state was not included among the sample of states examined in the 2007 MWCD Report.

One reason for a higher incidence of sexual abuse being recorded for boys in the 2007 MWCD Report could be the taking of the indicia "Exposing children to pornographic materials". The Report states:: "It would be important to note that the question was only limited to dirty pictures and it did not cover exposure to other pornographic materials."[58] What exactly was meant by the term "dirty pictures" has not been defined. The Report goes on to state that 30.22% of the respondents reported incidence, of which 67.03% were boys and 32.97% were girls. 34.86% were in the age group of 5–12 years, 26.12 % in the age group of 13–14 years and 39.02% in the age group of 15–18 years. 66.1% were shown "dirty pictures" by their friends and classmates, followed by uncles and neighbours (13.1%). The highest group reporting incidence of this kind of abuse was among boys in the 15–18 age group. Whether consensual exposure of children in this age group to pornographic material by children of their own age group can be classified as sexual abuse reflects the difficulty in

[58]*Supra* n. 26 at 93.

formulation of the definition of child sexual abuse when the abuser and victim belong to the same peer group. Interestingly, the study by Krishnakumar et al. (2014), which omitted adolescents in Kerala who had no experience of sexual abuse other than exposure to "ugly pictures" in calculating the total prevalence of sexual abuse, puts equal prevalence of sexual abuse among both boys and girls.

2.B.5. Conclusion

The 2007 MWCD Report shows that children in the pre-adolescent to adolescent ages are the most vulnerable. There seems to be a higher prevalence of sexual abuse of boys. However, effective policy changes have not been made to create awareness, nor have structural changes in the criminal justice machinery been made to address the issue and punish offenders. The issue of female sex offenders has not been sufficiently studied so as to bring about scientific analysis of data and subsequent law reform.

While analysis of global data shows that low socio-economic status does not play a relevant role in causing risk of child sexual abuse, the MWCD Report shows larger prevalence of child sexual abuse among children at work, children on the streets and children in institutional care. As the majority of respondents in the five evidence groups were comprised of children from the lower economic strata, a broad presumption cannot be made that children from economically disadvantaged groups run greater risk of sexual abuse. The RAHI (1998) and TULIR (2006) studies, which were conducted with respondents belonging to middle and upper classes, have also shown high prevalence rates. A comparison of these three studies may lead to the conclusion that socio-economic status does not play a relevant role in child sexual abuse.

2.C. EFFECTS OF CHILD SEXUAL ABUSE

Child sexual abuse results in various adverse effects on the victim. Studies on the psychopathological effects of child sexual abuse have been conducted, some of which are discussed in this section. Some studies have been conducted regarding the effects of the legal system upon a victim of child sexual abuse. The aim of this research is to formulate mechanisms for better protection of the victim from the distressing consequences emanating from submitting to the criminal justice system, leading to protection from subsequent re-

victimisation. The following sections explain various studies into the psychopathological effects of child sexual abuse.

2.C.1. Studies on the psychopathological effects of child sexual abuse

Children who experience sexual abuse often suffer numerous adverse consequences, although the nature, severity and extent vary for each individual. Effects of abuse have been classified as short term and long term (Wyatt & Powell, 1988). Short-term effects include depression, suicide, sexual promiscuity, victim-perpetrator cycle, and academic underachievement (Paolucci, Genuis, & Violato, 2001). The long-term impact of child sexual abuse in adulthood may involve depression, low self-esteem, anger, anxiety, obsessions and compulsions, sexual dysfunctions, self-mutilation, suicidal tendencies, dissociation, substance abuse problems, relationship problems and multiple psychiatric disorders (Chen et al., 2010). Externalizing problems like sexual behaviour problems, hyperactivity, aggression, Attention Deficit/Hyperactivity Disorder, higher levels of hyperactivity and aggression and high prevalence of conduct disorder in sexually abused children are commonly reported among children with a history of child sexual abuse. Internalising disorders are depression and anxiety, like phobias, separation anxiety disorder and obsessive –compulsive disorder (Trask, Walsh, & Delillo, 2011). More serious consequences are caused by certain aspects of the abuse (sexual abuse within the family, ongoing and multiple episodes, the use of force, methods used to gain child secrecy, and multiple perpetrators), legal system involvement (a case that results in acquittal), and lack of maternal support and maternal use of avoidant coping mechanisms (Corcoran & Pillai, 2008). Debilities like deafness, blindness, and mental retardation have found to be associated with increased risk of being sexually abused. Adverse physical and mental health effects often continue through adult life (Spataro, Moss, & Wells, 2004) and some victims become offenders (Salter et al., 2003).

Use of rigorous definitions to explore health sequelae, isolating the exact acts experienced, the identity of the abuser, the duration and frequency of the acts, use of force or threats, and age of onset to inform conclusions about the association between specific manifestations of child sexual abuse and health sequelae have contributed to better understanding of the effects of child sexual abuse.

This section discusses systemic reviews of literature and meta-analyses of statistics of the effects of child sexual abuse. The results of such reviews highlight the urgency of the need to

prevent such abuse from happening, as well as the need for policy to enable multiple health services to combat the various psychopathological effects of sexual abuse upon children.

2.C.1.a. Systemic reviews on the psychopathological effects of child sexual abuse

Many studies have been conducted on the effects of sexual abuse.

Tricket, Noll, & Putnam (2011) conducted a 23-year longitudinal study of the impact of intra-familial sexual abuse on female development. The conceptual framework integrated concepts of psychological adjustment with theory regarding how psychobiological factors might impact development. Results indicated that sexually abused females showed earlier onsets of puberty, cognitive deficits, depression, dissociative symptoms, maladaptive sexual development, hypothalamic-pituitary-adrenal attenuation, asymmetrical stress responses, high rates of obesity, more major illnesses and healthcare utilization, persistent PTSD, self-mutilation, physical and sexual re-victimization, being involved with an abusive partner, becoming a teen mother, having a premature baby, risky sexual activity, abuse of drugs and alcohol, experiencing more lifetime traumas, and failing to complete high school. As parents, they place their children at increased risk for abuse and neglect and overall mal-development as they repeat generational patterns of abuse, neglect, and family dysfunction.

Mills, Kisely, Alati, Strathearn, & Najman (2016) recently found that both self-reported and agency-notified child sexual abuse were associated with increased odds of lifetime major depressive disorder (MDD), anxiety disorders, and post-traumatic stress disorder (PTSD). Adverse psychiatric outcomes are seen when child sexual abuse is defined using either self-report or agency-notified method.

Negriff, Schneiderman, Smith, Schreyer, & Trickett (2014) cautioned against combining all of the sexually abused youth into one group, as this would discount the nuances of their experiences and the impact these different characteristics may have on the development of subsequent problems. Without first examining and describing the characteristics of the sexual abuse that these youth experienced, certain sub-groups of youth who may exhibit resilience to these adverse early life experiences may be excluded. Information gleaned from these analyses should be used to examine the mental health, physical heath, and behavioural functioning of the sexually abused youth in this sample.

Trickett, Noll, & Putnam (2001) in a homogenous group of maltreated children (all females, all intrafamilial sexual abuse involving genital contact or penetration) found that differences

in the abuse experience are important to understanding both acute and long-term behaviour problems and adjustments.

Trickett & Putnam (1993) stated that the experience of sexual abuse can be expected to result in low self-esteem, an impaired sense of control and competence, and increased negative effect. Two reasons were given: first, the fact that the traumatic events are brought about by outside forces, which causes feelings of loss of control, which grow into feelings of incompetence. Second, the trauma of sexual abuse disrupts several of the intra-psychic conditions that promote cognitive development, like a loss in achievement levels due to decreased motivation to please others, and attention problems and memory lapse caused by increased dissociation. The stress produced by the trauma of child sexual abuse will have physiological effects on the developing child, which include patterns of hormonal levels that are associated with high levels of sexual and aggressive behaviour. These same physiological mechanisms may affect the timing of puberty in sexually abused girls, like early onset of puberty.

2.C.1.b. Meta-analyses

The following are meta-analyses which have studied the psychopathological effects of child sexual abuse.

2.C.1.b.i. Paolucci, Genuis, &Violato (2001)

Paolucci, Genuis, & Violato (2001) conducted a meta-analysis of 37 published research studies from 1981 to 1995 on the effects of child sexual abuse for six outcomes: PTSD, depression, suicide, sexual promiscuity, victim-perpetrator cycle and poor academic performance. Many of these studies were published in 1994 and most were done in the United States. The analyses provided clear evidence confirming the link between child sexual abuse and subsequent negative short- and long-term effects on development. There were no statistically significant differences when various potentially mediating variables such as gender, socio-economic status, type of abuse, age when abused, relationship to perpetrator, and number of abuse incidents were assessed. It was stated by Paolucci, Genuis, & Violato (2001) that the results of their meta-analysis supported the multifaceted model of traumatization rather than a specific sexual abuse syndrome of child sexual abuse.

Paolucci, Genuis, & Violato (2001) detailed the effects of child sexual abuse. They referred to material where, despite a lack of theoretical and empirical support, proponents of child and adult sexual relationships have argued that sexual interests and behaviors of adults with children should be considered acceptable, normal and healthy expressions that affirm a child's sense of personal worth, independence and sexual power. There is also opinion that these "diverse" experiences are believed to enable children to construct their own sexuality from greater possibilities and thereby foster healthy child development. However, Paolucci, Genuis, & Violato (2001) pointed to numerous empirical studies investigating the developmental impact of sexual abuse on children and adolescents which indicate that many symptoms of maladjustment and maladaptation are associated with the experience of sexual abuse. Most frequently reported are problems of depression, anxiety and other internalising disorders,as well as externalising problems such as dissociation, conduct disorders, aggressiveness and inapproporiate or early sexual behaviour and activity. Some of the difficulties reported by child sexual abuse victims are sexual maladjustment, interpersonal problems, educational difficulties, acute anxiety neuroses, self-destructive acts, somatic symptoms, and loss of self-esteem. PTSD symptoms and sexualised behaviours are among the most frequently reported effects.

The meta-analysis by Paolucci, Genuis, & Violato (2001) provides compelling eidence of the negtive impact of child sexual abuse on human development, as it is associated with the development of sexual prosmiscuity, victim perpetrator cycle and poor academic performance regardless of victim age, gender or socio-economic status. This study classifies child sexual abuse as an important social, politial and mental health problem which requires urgent action.

2.C.1.b.ii. Nelson, Heath, Madden, Cooper, Dinwiddie, Bucholz, Glowinski, McLaughlin, Dunne, Statham, & Martin (2002)

Nelson, Heath, Madden, Cooper, Dinwiddie, Bucholz, Glowinski, McLaughlin, Dunne, Statham, & Martin (2002) conducted a twin study involving a large sample of young adult Australian same-sex twins (1,159 female and 832 male) and found that 16.7 % of the women and 5.4% of the men reported parental alcohol-related problems. Significantly increased risk was observed in women reporting a history of child sexual abuse for eight adverse outcomes, namely major depression, suicide attempt, conduct disorder, alcohol dependence, nicotine dependence, social anxiety, rape after the age of 18 years and divorce; most similar risks

reached statistical significance in men. The greatest risks were associated with child sexual abuse involving intercourse. Childhood sexual abuse-negative twins from childhood sexual abuse-discordant pairs compared with other child sexual abuse–negative individuals had increased risk for many adverse outcomes suggesting correlated family background risk factors. Childhood sexual abuse-positive members of child sex abuse-discordant pairs had significantly greater risk for all eight examined adverse outcomes than their co-twins. Nelson et al. (2002) concluded that self-reported childhood sexual abuse was associated with increased risk for adverse outcomes, controlling for family background. Family background risk factors were associated with adverse outcome risk.

2.C.1.c.iii. Tyler (2002):

Tyler (2002) reviewed 41 articles examining the social and emotional outcomes of childhood sexual abuse. The outcomes examined included suicide and substance use, gang involvment, pregnancy, running away, PTSD, risky sexual behaviour and behavioural problems. The results for each of these outcomes tended to vary by developmental period. However, problems of internalizing and externalizing behaviour appeared to be specific to sexually abused children of all age groups. Tyler stated that some studies found differences in outcome according to gender, race and age. Although findings related to abuse characterisitics varied from study to study, the severity of the abuse, use of force and victim's relationship to the perpetrator were found to be especially important. Other factors, such as family support and parental monitoring, were found to mitigate a negative outcome. Tyler summarised the effects by developmental period through the following chart:

Table E: Effects of child sexual abuse based on Developmental Period of children: Tyler (2002)

Developmental period	**Domain**	**Findings**
Early childhood	Social and emotional development	Inappropriate sexual behaviour, internalizing, externalizing
Middle childhood	Social and emotional development	Depression, suicidal ideation, PTSD, sexual anxiety, inappropriate sexual behaviour, internalizing, externalizing
Adolescence	Social and emotional development	Risky sexual behaviour, depression, suicidal thoughts, suicide, internalizing(e.g., low self-esteem), PTSD externalizing (e.g., anti-social behaviour), substance use, gang involvement, pregnancy, running away

2.C.1.d.iv. Chen, Murad, Paras, Colbenson, Sattler, Goranson, Elamin, Seime, Shinozaki, Prokop, & Zirakzadeh (2010):

A comprehensive search (from January 1980–December 2008, all age groups, any language, any population) of 9 databases: MEDLNE, EMBASE, CINAHL, Current Contents, PsycINFO, ACP Journal Club, CCTR, CDSR, and DARE was conducted in this study. This search yielded 37 eligible studies, 17 case-control and 20 cohort, with 3,162,318 participants. There was a statistically significant association between sexual abuse and a lifetime diagnosis of anxiety disorder, depression, eating disorders, post-traumatic stress disorder, sleep disorders, and suicide attempts. Associations persisted regardless of the victim's sex or the age at which abuse occurred. Associations between sexual abuse and depression, eating disorders, and PTSD were strengthened by a history of rape. A history of sexual abuse is associated with an increased risk of a lifetime diagnosis of multiple psychiatric disorders.

2.C.2. The Indian situation: Studies about the psychopathological effects of child sexual abuse in victims

The number of studies on prevalence and effects of child sexual abuse are few. The MWCD Report in 2007 did not study the effects of abuse upon children. Large-scale data on the subject is therefore absent. The limited studies in India have found adverse effects on child victims of sexual abuse. This section deals with the effects which have been documented by researchers. Some researchers offer suggestions regarding how these effects can be minimised.

With regard to the effects of sexual abuse in India, a study conducted by Pagare (2003) investigated the maltreatment histories of 72 boys in an observation home in Delhi. In the study, 38.1% disclosed a history of sexual abuse, with most perpetrators unknown to the victims. Signs of physical abuse were observed in 23.8% of the sample, and behavioural and emotional challenges were evident in 16.3%. The relatively few symptoms noted might be explained by the boys' efforts to conceal their symptoms to avoid the stigma and social ostracism that can be experienced by male victims.

A study conducted by Deb & Sen ((2005) in India points to high levels of trauma and post-traumatic stress among trafficked children. This study documented that due to the lack of adequate medical and mental-health care, many children do not receive treatment and thus experience the long-term ramifications of severe psychological trauma.

A study in Kolkata, West Bengal conducted by Chatterjee, Chakraborty, Srivastava, & Deb (2006) examined characteristics of sexually trafficked children. Many mental, physical, and social challenges were noted, specifically depression, loss of interest in daily living, and loneliness. Furthermore, 14.6% of the children in the study had HIV/AIDS. Many children faced rejection by their family members and communities.

A study conducted in Kolkata, West Bengal by Deb & Mukherjee (2011) examined the psychological, social and emotional adjustment of 120 sexually abused girls (ages 13-18) who were living in either observation or rehabilitation homes. The majority of the girls, who lived in rural environments, left their homes believing they were going to be married or provided with a job, only to be sold as child sex workers, prostitutes, bar girls, dancers. The experience of abuse correlated with violence in the home, substance abuse, and maternal unemployment status. Over half of the girls no longer had communication with their families. Many of the girls' families wanted them to return home upon finding them, yet the majority of girls stated that they did not want to return home. Mental health inventories indicated high levels of depression and anxiety as well as low self-esteem in the sample. Many of the girls believed that counselling was helpful.

Another study was conducted by Deb & Walsh (2012) among school children in Tripura regarding the impact of physical, psychological and sexual violence on social adjustment. The social adjustment scores of school children who experienced violence, regardless of the nature of the violence, was significantly lower when compared with scores of those who had not experienced violence. Social adjustment was poorer for girls than boys.

A study in Western Madhya Pradesh by Sahay (2010) investigated the experiences of sexually abused girls and their families. The reactions of the girls' families to the discovery of child sexual abuse often caused re-traumatisation and hindered their healing process. Many families, wanting to avoid the stigma of sexual abuse, forced the girls to remain silent about their experiences. Furthermore, girls were expected to deny their need for medical or mental health services. Even if legal action was taken against the perpetrators, families still expected their daughters to forgive the offender and "forget" the abuse. Yet, according to Sahay, the girls in the study felt it was impossible to "forgive and forget". This study highlighted the complex familial and social factors that influence the well-being and healing process of female victims of child sexual abuse.

The Krishnakumar et al. (2014) study which was conducted on sexual abuse of adolescents between the ages of 15–19 in Kerala found that feelings of insecurity and isolation at home, of being disliked by parents, and of being depressed were significantly more in adolescents who had experienced sexual abuse, compared to those who had not.

Priyabadini (2007), Carson, Foster, & Tripathi (2013) and Carson, Foster, & Chowdhury (2014) point out that failure of parents or caregivers to believe and act to protect children exacerbates their level of distress (namely, betrayal trauma) and prevents children from receiving the mental health treatment they may desperately need.

Children in India share the effects of physical and mental trauma with similarly situated children in other parts of the world where larger studies have been conducted. Yet, it can be seen that in sexually abused Indian children the physical and mental torture is multiplied, as such children are prevented from disclosing abuse due to heavy social ostracism, which compounds the problem.

2.C.3. Effects of the legal system upon children

With regard to studies on rape victims, Campbell (1998) found that even for survivors who had the assistance of a rape victim advocate, 67% had their legal cases dismissed, and 80% of the time this decision was made by legal personnel and contradicted the victim's wishes to prosecute the assault. Most rape victims whose cases were prosecuted were more distressed than those whose cases were not prosecuted (Cluss, Boughton, Frank, Stewart, &West, 1983). Survivors held positive attitudes toward investigating officers, but were frustrated by the overall response of the criminal justice system (Frazier & Haney, 1996).Studies on rape victims show that such victims may turn to the legal, medical, and mental health systems for assistance, but there is a growing body of literature indicating that many survivors are denied help by these agencies. What help victims do receive often leaves them feeling re-victimized. These negative experiences have been termed "the second rape" or "secondary victimization" (Campbell & Raja, 1999).The same findings seem applicable to children too.

A common occurrence in an Indian courtroom is the scenario where lawyers repeatedly interrogate a child to narrate violent instances such as sexual assault, not realising the damaging effect such a legal methodology would have on a child (Sharma, 2005).Children have reported that the experience of being "protected" by services was, at times, more traumatic than the alleged abuse (Mudaly & Goddard, 2006).

Studies on children reveal those aspects of the criminal justice system that children found most distressing, which include their contact with the defense counsel, the experience of attending court and testifying, the perceived fairness of court procedures and outcomes, and the impact of court delays on their emotional state and personal safety. Methods to contain such distress include the need to address systemic delays for court procedures and the environment to be child-friendly, for systems to be established which will protect children from contact with the abuser, psychological support for children and their families, and specialist training in child sexual abuse for police and lawyers (Connon et al., 2011).

2.C.3.1. Access to mental health support systems

The introduction of adequate mental health support systems is necessary in the Indian context in order to prevent re-victimisation of the child by the criminal justice system. Studies have pointed out the dire need for removal of "structural barriers" with regard to the lack of access to adequate physical and mental health support systems. Access to mental health support for both the child and the non-offending family members makes the passage through disclosure, evaluation and examination and often involvement with social workers and the police less onerous and has been shown to positively impact long-term emotional outcomes (Heger, 2014).

Moirangthem, Kumar, & Math (2015) point out that the role of mental health professional is crucial in interviewing the child when in court. As the definitive signs of genital trauma are seldom seen in cases of child sexual abuse, the evaluation of child sexual abuse victim requires special skills and techniques in history taking, forensic interviewing and medical examination. Since child sexual abuse can result in both short-term and long-term harmful mental health consequences, mental health professionals need to be involved in follow-up care of the victim with regard to emergence of psychiatric disorders by providing individual counselling, family therapy and rehabilitation.

In India, adverse effects of child abuse can be combated by making available counsellors with specialized training in childhood trauma, including sexual abuse. Vocational and social skills training skills training is also essential (Deb & Mukherjee, 2011). In India, a policy of employment of trained psychologists in schools is still in its infancy. It is not mandatory to have a trained counsellor in school. A statement by the Indian School Psychology Association in 2010 aspires to appoint at least one trained school psychologist in each school.

Deb & Walsh (2012) comment that meeting this goal will require enormous professional effort and political will.[59]

In cases of legislations concerning children and their rights, mental health considerations must become an inextricable component of law, and therapists must be included in the legal framework for the future benefit of the child as a long-term remedy. Such an inclusion and institutionalisation would distant the risks attached to the common blunders committed by lawyers dealing with child victims in trauma (Sharma, 2005). Bajpai (2015) comments on the importance of therapeutic jurisprudence in Indian legislation on children and their rights. The psychological conditions of rescued and victimized children are not considered in Indian laws and in judgments. Mental health considerations must be an important component of law, and therapists must be included in the legal framework. The lawmakers, medical doctors, and judges must take the mental health concerns of the child into consideration.

2.C.4. Conclusion

The 2007 MWCD Report found that 53.22% of children have faced one of more forms of sexual abuse that included both “severe” and “other forms”. Prevalence of boys at 52.94% was much higher than that of girls at 47.06%. Multiple negative outcomes occur, with differences in outcome according to gender, race and age, along with the severity of the abuse, use of force and victim’s relationship to the perpetrator. Important mitigating factors included family support and parental monitoring.

There have been no official studies from a national perspective regarding the effects of child sexual abuse. The 2007MWCD Report recorded data regarding the incidence and prevalence of various forms of child abuse, but did not record the effects of these. The print media in Kerala, after sensationalising cases of child sexual abuse, makes little attempt to explore further information regarding the sociological and psychological aspects of the offenders and the impact of such cases on society (Raj & Manikandan, 2013).[60] This is true for the rest of

[59]Counselling services were available in only 9% of schools in India (Bhatnagar, 1997). The number of school psychologists in India was unknown. The world’s most child-populous countries (China, India, and Indonesia) have 379 million children with no access to school psychology services (Jimerson et al., 2009; Ying, Wu, & Lin, 2012).

[60] Raj & Manikandan (2013) attempted to analyze the prevalence of girl-child abuse in Kerala, a state which is often considered to be unique in India, having achieved a quality of life which is much higher than the rest of India and perhaps some industrialized countries. The frequent reporting of crimes against children made it significant to the prevalence of girl-child. Data was collected from the reports of two regional language daily newspapers – *Mathrubhumi*, *Malayala Manorama*– as well as from an English language newspaper- *The Hindu*.

India. Mere sensationalising by the media is not enough. Pressure must be put upon the government to undertake further research on the prevalence and effects of child sexual abuse as a policy matter, so as to facilitate the development of better preventive and curative mechanisms.

Better physical and mental health outcomes through active involvement of multiple health care providers with the involvement of social workers and the police would make the passage of the child through the Indian legal system less traumatic. A synthesis of these studies show evidence of a dire need for access to mental health support for both the child and the non-offending family members in order to make disclosure, evaluation and examination by the criminal justice system easier.

Further information regarding the crime statistics was collected from National Crime Records Bureau and Kerala State Crime Records Bureau. The study showed that the incidence of girl-child abuse is greater than that being reported by media. In the majority of cases, the abuser/offender was an immediate family member (nearly 36% of the time was the father). The ages of victims generally vary from 4 to 16 years. Out of 14 cases reported during the time period of six months (August 2012–January 2013), 5 victims were abused by their father. From the available information about the socio-economic status of the victims, the majority were from lower class families. The age of the abusers varies from 22 to 49 years. Based on the available information the majority of the abusers were from middle class families and upper class families. Some of them were reported to have severe alcohol consumption and one with mental disturbance. No other details regarding the abusers are given in any of the newspapers.

CHAPTER 3. SYNTHESIS OF LAWS OF THE INDIAN UNION AND GOA AND KERALA ON SEXUAL OFFENCES AGAINST CHILDREN

3. I. Aims and objectives of this chapter

Chapter 1 has dealt with the social science background regarding child sexual abuse. Chapter 3 conducts a detailed synthesis of the Indian legislative and case law framework at a national level, and in Goa and Kerala, and compares these frameworks. It is this synthesis that helps draw out key issues for analysis in Chapter 4.

This chapter discusses the existing legislation, case law and the Law Commission reports on child sexual abuse. It refers to constitutional law, substantive criminal law, procedural criminal law and the special law on sexual offences against children. The chapter traces the legal frameworks as they have developed. A key focus is on the nature of the 2013 amendments to the *Indian Penal Code 1860 (IPC)*, the *Indian Evidence Act 1872*, and *Code of Criminal Procedure 1973* and their impact on laws related to sexual offences against children.

Case law on the subject, both with regard to substantive as well as procedural aspects, is examined. Despite the slow evolution of a legal framework for protection of children's rights against sexual abuse through case law, it is the positive contribution of new legislative models and case law to the child rights discourse that has helped in evolving mechanisms for protection against sexual abuse. Authoritative case law will be synthesised, especially where relevant to key legislative offences, to show problems in how the law does or does not enable prosecution of a range of sexual offences in national jurisdiction as well as in the jurisdiction of Goa, which possesses a separate legislation for prosecution of offences against children.

There are a range of criminal offences that will be focussed on in this chapter: namely, sections 354, 375-377, and 509 *IPC*, as well as the six offences in sections 3-15 *POCSO*. The synthesis of the law will clarify that the *POCSO* created offences against children which are absent from the *IPC*. In fact, the offence of rape in the newly amended *IPC* is modelled on the provision punishing penetrative sexual assault in the *POCSO*. The *POCSO* also creates offences whereby sexual abuse of male children can be punished, unlike the *IPC* which continues to be absent provisions protecting boys from sexual abuse. Thus, the presence of

the *POCSO* extends the criminal law in many ways. Six key issues are identified as a result of this legal synthesis, which will be analysed at length in Chapter 4.

3.II. The applicability of national laws, state laws, Supreme Court decisions and High Court decisions

India is a federal state. It is divided into 28 states[61] and 7 union territories[62]. Under the Government of India Act 1935 – a pre-Independence document enacted during the British rule – the word "Provinces" was used instead of States. However, the *Constitution of India*, which came into force in 1950, uses the word "States" to denote the provincial demarcation of territories within the Union of India. Having adopted the parliamentary form of government, the constitutional structure at the centre and in the states is the same.[63] In India, the terms "federal law" and "provincial law" are not used. Instead, the terms "national/central/union law" are used to denote "federal law" and the terms "state law" or "regional law" is used to denote "provincial law".

The Union Parliament may make laws for the whole or any part of the territory of India (Art. 245 of the Constitution of India). Though India is understood to be a federal state, the balance between the legislative powers of the Union Parliament and state legislatures tilts in favour of the Parliament.[64] A law passed by Parliament applies to all states and union territories unless expressly stated in the jurisdiction clause. A law passed by a state legislature applies only to that state. In case of conflict between national law and state law, it is the national law which prevails, unless specific amendments are made to such national law by the state legislature, and such specific amendment would apply only to that state.

India follows the common law system of adherence to precedents. The Indian Constitution is the supreme legal document, from which all statutory laws draw their authority. In all

[61] All States have the same status under the *Constitution of India*.
[62] The Union Territories are areas which are centrally administered areas to be governed by the President acting through an Administrator.
[63]Just like the Centre, each State has an executive, legislature and judiciary. The Executive Head of the Centre is the President assisted by the Prime Minister and his Council of Ministers. The legislative power is vested with Parliament. At the state level, the executive head is the Governor aided and assisted by the Chief Minister and the Council of Minister. Each state has a Legislature, of which some are bi-cameral and others unicameral. However, India has only one stream of judiciary headed by the Supreme Court of India. There are High Courts in each state, under which come the subordinate judiciary of the respective states. The Chief Justice of India is the head of the Indian judiciary, while each High Court is headed by a Chief Justice.
[64] The legislative powers of the Parliament and state legislatures are subject to the provisions of the *Constitution of India viz*: (1) the scheme of the distribution of powers; (2) the Fundamental Rights under Part III of the *Constitution of India*; (3) other provisions of the *Constitution of India*.

relevant situations, the statute will prevail, unless struck down by the Supreme Court or High Courts as violating the Constitution, through the constitutional power of judicial review of legislative and executive action. The Court can declare a central or state statute as unconstitutional on the ground of violation of fundamental rights or if it is against the scheme of distribution of powers under the Constitution or the ground of violation of other constitutional provisions. While the decision of the High Court would have state-wide operation, that of the Supreme Court would be operative nationally.

All decisions of the Supreme Court of India are considered to be binding upon all lower courts in India. A judicial decision of a High Court of a state has only persuasive effect upon the high courts and lower courts of other states in India over which it has no jurisdiction. Nevertheless, the lower courts of all the states usually take as binding the decisions given by any High Court in the absence of a contrary decision of the respective High Court which has jurisdiction over it. However, the judicial decision of a High Court of a particular state is an authoritative precedent upon all lower courts over which it has jurisdiction. It is in the context of their authoritative or persuasive power on all other High Courts within the Union of India that case law has been explained in this thesis.

3.III. The Law Commission of India and other committees appointed by the executive

The work done by the Law Commission of India in the area of rape and other sexual offences against women and children is relevant, as the Law Commission is an executive body established by an order of the Government of India. Its major function is to work for legal reform. Its membership primarily comprises legal experts, who are entrusted a mandate by the government. The Chairman of the Law Commission is generally a retired judge of the Supreme Court. The Commission is established for a fixed tenure and works as an advisory body to the Ministry of Law and Justice. State Law Commissions can also be appointed by the Indian states individually. There is no binding value of the recommendations of the Commission. The Law Commission of India, though an ad hoc body, has been a key instrumentality in the process of law reform. Its role has not only been advisory but also critical of the government policies and has been recognized by the Supreme Court and academia as pioneering and prospective. In a number of decisions, the Supreme Court has referred to the work done by the Law Commission and followed its recommendations. It is of relevance to this thesis that the 42nd Law Commission Report (1971), the 84th Law Commission Report (1980), the 156th Law Commission Report (1997) as well as the 172nd

Law Commission Report (2000) have recommended, time and time again, that the law on sexual offences against women and children needs to be revisited.

The *Commissions of Inquiry Act 1952* provides for appointment of Commissions of Inquiry either by Central Government or State Government for making an inquiry into any definite matter of public importance in order for the government to decide the course of action to be followed. The initiative in the appointment of such a commission rests entirely with the executive, and the executive defines the terms of reference of this commission. The commission shall have the powers of a civil court, while trying a suit under the Code of Civil Procedure 1908, with regard to summoning and enforcing the attendance of any person from any part of India and examining him on oath; requiring the discovery and production of any document; receiving evidence on affidavits; requisitioning any public record or copy thereof from any court of office; and issuing commissions for the examination of witnesses or documents. It is a fact-finding body and is not required to adjudicate upon the rights of the parties and has no adjudicatory power. The mere fact that the procedure adopted by it is akin to a procedure at a civil trial and that it has the power to administer oath does not impart the commission with the status of a court. The government is not bound to accept its recommendations or act upon its findings. The executive's response may vary from outright rejection of an inquiry report to slack corrective action, taking advantage of the shortness of public memory.[65]

Additionally, the Ministry of Home Affairs handles legislative aspects of the *IPC*, *Code of Criminal Procedure 1973* and also the *Commission of Inquiry Act 1952*. Various committees were appointed by this Ministry via Gazette Notification to study the need for reforms in problematic areas.[66]

3.A. Synthesis of union legislation and case law

3.A.1. The national context and background

In India, at the time this research commenced in 2011, there was no union or national legislation on offences specifically related to non-commercial child sexual abuse. There were

[65]*Ram Jethmalani* v. *Subramaniam Swamy* AIR 2006 Delhi 300; Monteiro, J.B. (1964). Commissions of Inquiry Their Limitations. *The Economic Weekly*, pp. 1137-1142. http://www.epw.in/system/files/pdf/1964_16/28/commissions_of_inquirytheir_limitations.pdf.
[66]*Commissions and Committees*, Ministry of Home Affairs, Government of India http://mha.nic.in/cc.

various national statutes which had general application to children, but no law existed which was designed to accommodate the particular context of child sexual offences. The substantive general criminal law of India, the *IPC*, defined various sexual offences. The *IPC* applied to cases of sexual abuse of children; however, only sexual offences which came under the category of insulting the modesty of a woman, outraging the modesty of a woman, rape of a woman and unnatural sexual offences were criminalised. Even then, the adequacy of punishment under these provisions in cases of sexual abuse of children was questionable. Hence these laws were found insufficient in the context of punishment of sexual crimes against children.

The UNICEF appointed a commission under the chairmanship of the eminent jurist Justice V.R. Krishna Iyer, which submitted a report to the Government of India in 2000. This report put forth a new idea of having a Children's Code for guaranteeing various rights to children. This Code outlined the functions of a National Commission and State Commissions for Children, as well as a system of Special Courts for children.

In 2003, Goa was the only state which boasted a provincial or regional statute covering both commercial and non-commercial offences against children. In 2009, Kerala contemplated a regional statute titled *Kerala Sexual Offences Against Children Act 2009*, but the need for this was obliterated after national legislation on the subject was mooted. Initially, from 2005, national legislation on all offences of any type against children were deliberated, but these deliberations stalled when the more pressing need for national legislation on sexual offences against children came to the forefront.

In 2012, various sexual offences against children were defined for the first time in the *Protection of Children Against Sexual Offences Act 2012* (*POCSO*). Penalties for these offences were prescribed. This legislation was entered into force on 14 November 2012. Concurrently, in 2012, a general legislation was drafted, amending various provisions of the *IPC*, the *Code of Criminal Procedure 1973* (also referred to as *CrPC*) and the *Indian Evidence Act 1872*, and redefining various sexual offences. Thereafter, the Criminal Law (Amendment) Bill 2012 was introduced in the *Rajya Sabha* (Upper House of Parliament) on 4 December 2012.

Within a month, the notorious "Delhi Rape Case" occurred in December 2012. A gang rape of a 21-year old female physiotherapy student in Delhi led to her eventual death.[67] The ensuing uproar and nation-wide protest, engineered by social media, put the government in a political crisis.

3.A.1.a. The J.S. Verma Committee

The mass upheaval led to the speedy appointment of the three member committee on 22 December 2012, headed by a former Chief Justice of India, with two Members – Justice Leila Seth, former Chief Justice of the High Court of Himachal Pradesh, and Gopal Subramanium, former Solicitor General of India –to recommend amendments to the Criminal Law to provide for quicker trial and enhanced punishment for criminals accused of committing sexual assault against women.[68]

The report of the J.S. Verma Committee was submitted within a month, recommending various amendments to the *IPC* regarding various provisions on women's safety. To meet the needs of the Delhi Rape Case, the punishment of the death penalty was added for the offence of rape when it caused the victim to die or to be placed in a permanent vegetative state. Importantly, there were recommendations regarding witness protection for complainants of sexual violence, that the previous sexual experience of the victim should not be decisive for determination of consent or quality of consent given by the victim, and that the two-finger medical test, which is conducted to determine the laxity of the vaginal muscles, must be discontinued.

The Report devoted a chapter to the issue of child sexual abuse. The failure of the state to prevent and prosecute cases of child abuse in institutions of care and custody patronized by the state, was pointed out by the Committee. It stated that sexual assault upon women and children in situations of communal violence, regional conflicts and armed conflicts on

[67]A woman named Jyoti Singh Pandey and her male friend were returning home at 9:30 p.m. They got into an off-duty charter bus which contained six people, including the driver. After the bus started the men on board taunted the couple, asking them what they were doing alone at such a late hour. She was brutally raped, and suffered serious injuries to her abdomen, intestines and genitals. Both Pandey and her friend were pushed out of the bus onto the road naked, where passers-by refused to help. At the hospital, there was lapse in emergency treatment. She was placed in mechanical ventilation. A series of surgeries were performed on Pandey, but by 25 December she had a fever of around 103 °F and internal bleeding due to sepsis. On 26 December, the Indian Government, flew her to a multi-organ transplant hospital in Singapore. She had a cardiac arrest during the six hour flight to Singapore. The hospital authorities at Singapore stated that she had suffered brain damage, pneumonia and abdominal injury. She died in Singapore on 29 December 2013. Her body was cremated on 30 December 2013 under high police security.

[68]Government of India Ministry of Home Affairs Notification No. S.O.(3003)E, dated 23 December 2012. http://mha.nic.in/sites/upload_files/mha/files/JS-VermaCommittee-2013.pdf .

account of their identity deserve to be treated as aggravated sexual offence at law. In a chapter on education and perception reform, the Report dealt with the psycho-social effects of child sexual abuse. The detailed comments of this Committee regarding sexual assault and rape have been dealt within this chapter.

The J.S. Verma Committee Report also recommended the promulgation of a presidential ordinance to incorporate amendments to the Criminal Law Amendment Bill 2012.[69]A Presidential Ordinance was promulgated on 3 February 2013. The Criminal Law (Amendment) Bill 2013 was placed before the *Lok Sabha* (Lower House of Parliament). A Parliamentary Standing Committee Report on the Criminal Law (Amendment) Bill 2012 was laid before the *Rajya Sabha* on 1 March 2013 and before the *Lok Sabha* on 4 March 2013. The *Criminal Law (Amendment) Act 2013* was finally passed by the *Lok Sabha* on 19 March 2013 and by the *Rajya Sabha* on 21 March 2013. This Act produced changes to the *IPC*, the *Indian Evidence Act 1872*, and the *Code of Criminal Procedure 1973* on laws related to sexual offences.

3.A.1.b. The *Constitution of India 1950*: fundamental rights protecting children

The *Constitution of India 1950* is the document which gives validity to the constitution of the Union of India. The Preamble of the *Constitution of India 1950* declares the fact that the Indian Constitution has derived its authority from the people of India. It proclaims the keystone principles of Justice, Liberty, Equality and Fraternity as the basis upon which the governance of the country lies.

When India becomes signatory to any international convention, the Indian Union considers it a binding duty for the Indian state to enact laws for enforcing the convention in municipal law. In case such enactment of new laws do not take place, there are many examples in Indian judicial history where citizens have been granted relief when approaching the High Court or the Supreme Court under writ jurisdiction conferred by Article 32 and 226 of the *Constitution of India 1950* in asking for judicial directives to the Indian executive and legislature in order to enforce international conventions by enactment of law. This is discussed in greater detail in Section 3.D.2 of this chapter.

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[69] Chapter 3, Para 71. Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India at p. 113.

The welfare and well-being of children in India has been guaranteed through certain provisions in the *Constitution of India 1950*. These are:

(i) Article 15(3): The State can make special provision for children. This is part of the fundamental rights and is a justiciable right under the Constitution. It is a derivative right, flowing from the right to equality under Article 14. Article 14 states that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India

(ii) Article 21: No person shall be deprived of his right to life and personal liberty except according to procedure established by law. This is a justiciable right. The concept of procedural due process of law has been incorporated into the Indian Constitution by case law, so that the words "procedure established by law" in Article 21 should mean "fair, just and reasonable procedure" in accordance with the principles of natural justice; namely, the right to fair hearing and the rule against bias.[70]

(iii) Article 21A: The State shall provide free and compulsory education to all children of the age of six to fourteen years in a manner determined by law. This is a justiciable right, inserted by a constitutional amendment in 2005. Thereafter the *Right of Children to Free and Compulsory Education Act 2009* was enacted.

(iv) Article 39(e): The State shall direct its policy towards securing that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength. This is a Directive Principle of State Policy and is categorised as a non-justiciable right.

3.A.1.c. National laws and state laws

3.A.1.c.i. National general substantive criminal law

The general substantive criminal law comprises of the *Indian Penal Code 1860(IPC)*. This has been amended many times, with the latest amendment in 2013, as per the *Criminal Law (Amendment) Act 2013*.

3.A.1.c.ii. National general procedural criminal law

The general procedural criminal law comprises of the *Code of Criminal Procedure 1973*, and the *Indian Evidence Act 1872*.

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[70] *Maneka Gandhi v Union of India* AIR 1978 SC 597.

The *CrPC* lays down the general procedure for the prosecution of offenders with a specific hierarchy which applies uniformly across every state.[71] The pattern of trying cases involving sexual offences against children was as per the 1st Schedule of the *CrPC*.[72] The *Indian Evidence Act 1872* lays down the general evidentiary principles to be adopted in a court of law including cases of child sexual abuse.[73]

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[71] At the lowest level is the First Class Magistrate's Court which is competent to try offences punishable for a period not exceeding three years or with fine not exceeding Rs. 10,000. Next is the Chief Judicial Magistrate Court which is competent to impose any fine and award any punishment up to a period of seven years. Above that is the Assistant Sessions Court with power to award punishment up to ten years and any fine. Of the lower judicial courts, the Sessions Court can award any punishment prescribed by law. However, the death sentence needs the confirmation of the High Court. The High Court is the highest appellate court within the state. It has supervisory powers over all lower judicial courts within its territorial jurisdiction. The Supreme Court is the highest appellate court in the Union of India for both civil and criminal matters. The Supreme Court and the High Courts also have original jurisdiction in select matters like union and state disputes or interstate disputes, and for writ petitions in the nature of habeas corpus, mandamus, quo warranto, certiorari and prohibition regarding matters violating the fundamental rights of persons guaranteed under the *Constitution of India*.

[72]This states which courts had the jurisdiction to try the following offences:

Section 354-Assault or use of criminal force to a woman with intent to outrage her modesty- Triable by any Magistrate

Section 375 –Rape- Triable by the Court of Session

Intercourse by a man with his wife not being under twelve years of age- Triable by the Court of Session

Section 376-A- Intercourse by a man with his wife during separation- Triable by the Court of Session

Section 376-B- Intercourse by public servant with woman in his custody-Triable by the Court of Session

Section 376-C-Intercourse by superintendent of jail, remand home etc- Triable by the Court of Session

Section 376-D-Intercourse by manager etc of a hospital with any woman in that hospital- Triable by the Court of Session

Section 377- Unnatural offences- Triable by the Magistrate of the first class

Section 509- Uttering any word or making an gesture intended to insult the modesty of a woman etc- Any Magistrate.

[73]Section 118 lays down who may testify before the Court. All competent persons shall testify, unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind. In cases of absence of direct evidence, circumstantial evidence can be taken. It is an established rule of evidence that circumstantial evidence can be depended up where there are no pieces of direct evidence. Illustration (j) of Section 157 states: *'The question is whether A was ravished. The facts that shortly after the alleged rape, she made a complaint relating to the crime, the circumstances under which, and the terms in which, the complaint was made are relevant'.* The legal admissibility and relevancy of such evidence as to conduct is also admissible for the purpose of corroboration. This can be found in section 157. The Act also provides for delayed complaints and the factors to be taken into consideration. This has implications with regard to filing of cases relating to child sexual abuse. Section 53 states that in criminal cases, the previous good character of an accused is relevant. After the *Criminal Law (Amendment) Act 2013*, various new sections haves been inserted which redefine the jurisprudence regarding consent of a woman to sexual activity. Section 53A lays down that evidence of character or previous sexual experience is not relevant in certain cases involving a prosecution for an offence under sections 354, 354A, 354B, 354C, 354D, 376, 376A, 376B, 376C, 376D or 376E of the *IPC* or for attempt to commit any such offence. Here, where the question of consent is in issue, evidence of the character of the victim or of such person's previous sexual experience with any person shall not be relevant on the issue of such consent or the quality of consent. Section 114A lays down a presumption as to absence of consent in certain prosecutions for rape. In a prosecution for rape under clauses (a) to (n) of sub-section (2) of section 376 of the *IPC*, where sexual intercourse by the accused is proved and the question is whether it was without the consent of the woman alleged to have been raped and such woman states in her evidence before the court that she did not consent, the court shall presume that she did not consent. An explanation of "sexual intercourse" is given to mean any of the acts mentioned in clauses (a) to (d) of section 375 of the *IPC*. A new proviso has been inserted to section 146 of the *Indian Evidence Act 1872* which bars the

3.A.1.c.iii. National Special Legislation

A few special enactments of relevance to the topic of child sexual abuse have been enacted by the Parliament, such as the *Information Technology Act 2000*[74], the *Juvenile Justice (Care and Protection of Children) Act 2000*,[75] the *Commissions of Protection of Child Rights Act 2005*,[76]the *Protection of Women Against Domestic Violence Act 2005*,[77]the *Prohibition of Child Marriage Act 2006*,[78]and the *POCSO*.

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adducing of evidence or putting questions in the cross-examination of the victim as to the general immoral character, or previous sexual experience, of such victim with any person for proving consent or the quality of consent. However, consent of a girl-child below the age of 18is now not considered to be valid consent after the *Criminal Law (Amendment) Act 2013*.

[74]The *Information Technology Act 2000* is an enactment aimed to regulate e-governance and facilitate e-commerce by providing infrastructural facilities for creation, promotion and use of digital signatures and to provide for reliable electronic records. It lays down offences committed in electronic form and their punishments. Of importance to child rights, section 67B gives a substantial punishment for child sexual abuse in electronic form, *viz*, imprisonment of either description for a term which may extend to five years and with a fine which may extend to 10 lakh rupees and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to seven years and also with fine which may extend to 10 lakh rupees. The *Protection of Children against Sexual Offences Act 2012*, in section 28(3) specifically refers to section 67B of the *ITA*, and transfers the prosecution and punishment of sexual abuse offences against children in electronic form from the ambit of ordinary courts to the ambit of the Special Courts contemplated under the Act.

[75] The *Juvenile Justice (Care and Protection of Children) Act 2000* defines a child as a person below the age of 18. However, in 2016, the *JJA* was amended to provide for trial in the Children's Court along with adult offenders, in case it is assessed that the child needs to be tried as an adult for the commission of a heinous crime. The *JJA* consolidates two issues: namely, the law relating to children in conflict with law, and children in need of care and protection. It stresses a child-friendly approach with a focus on the best interests of children. The *JJA* lays down the legal procedure for protecting a child delinquents as well as child victims of crimes. The Juvenile Justice Board consisting of a magistrate and two social workers shall decide cases involving children accused of crimes. The maximum punishment that can be awarded is three years confinement in a rehabilitative home. There shall be a Special Juvenile Police Unit in each police station to assist such children involved with the law. The *JJA* provides for the formation of a Child Welfare Committee in each district for rendering assistance to child victims of crimes. Such Child Welfare Committees consist of five members, none of whom are part of the Indian judiciary, unlike the Juvenile Justice Board which consists of one judicial member. The members of the Child Welfare Committee are selected from people who have interest in social work. Such Committee has certain magisterial powers, hence its orders have legal sanctity. It can pass certain orders for the welfare and protection of the child. Each District shall have a District Child Protection Unit consisting of the District Child Protection Officer and various people of eminence who are committed to the cause of children. It has supervisory powers over the working of the Juvenile Justice Board and Child Welfare Committee in the district. The State Child Protection Unit coordinates the District Child Protection Units.

[76]This enactment is the only statute that refers to the *International Convention on Child Rights* and India's obligation under the Convention in its preamble. The definition of "Child Rights" is to include the rights defined under the *UNCRC*.[76] The *CPRCA* provides for the constitution of a National Commission and State Commission for Protection of Child Rights, as well as Children's Courts for providing speedy trial of offences against children or of violation of child rights. The National Commission of Child Rights comprises of a chairperson who has done outstanding work for promoting the welfare of children and six members drawn from the field of education, child health care or child development, or who have worked in juvenile justice or the care of neglected or marginalised children or children with disabilities, elimination towards labour, expert in child psychology or sociology or laws relating to children. The functions of the National Commission include examining and reviewing the safeguards provided in law for the protection of child rights and recommending measures for their effective implementation, inquiring into violations, inspecting homes and institutions meant for children etc. The State Commissions have similar functions to be carried out in their respective states.Here the State Government may, with the concurrence of the Chief Justice of the High Court by notification, under section 25, specify at least a court in the state or for each district, a Court of Session to be a Children's Court to try the said offences. For every Children's Court, the State Government shall specify a public prosecutor.

3.A.1.c.iv. State laws

States are permitted to enact their own laws with regard to subjects mentioned in the State List, or in the Concurrent List of the Constitution. Such laws apply only within the territorial jurisdiction of that state. Goa is the only state which enacted a law dealing with offences against children, including sexual abuse of children, through the *Goa Children's Act 2003*.

3.A.1.c.v. In case of conflict between national and state law, which prevails?

In any Indian state, the national law prevails, followed by state law. Only in the absence of national law will a state law prevail. In cases where there is a gap in the national law it will be the state law which prevails. For example, with regard to rape of a girl child in Kerala, a

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[77]The law criminalizes and punishes all kinds of abuse against women and children within the precincts of a domestic relationship which can be treated as domestic violence. Domestic violence is defined in section 3(a) to include conduct causing sexual abuse to the aggrieved person, who is a woman in a domestic relationship with the abuser. "Sexual abuse" is also explained to include any conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of woman (Explanation I (ii) of Section 3). The Rules refer to child sexual abuse in Form IV of the *Protection of Women from Domestic Violence Rules 2006*, which provides Information on Rights of Aggrieved. 2.2.(iv) states that a person can receive protection and assistance under this statute if the persons with whom such person is/was residing in the same house, commits any acts of violence against her or a child in her care and custody including physical violence, sexual violence, verbal and emotional violence and economic violence. Sexual violence includes acts of child sexual abuse. This would mean that sexual abuse of a person below the age of 18 years within the precincts of a domestic relationship would classify as domestic violence, and such a person can resort to the legal machinery envisaged under this statute for redressal. The Act introduces the machinery of "protection officers" to assist aggrieved persons, judicial officers and police in justice delivery, as well as registered "service providers" to provide legal aid, medical, financial or other assistance to aggrieved persons. According to section 5, any police officer, protection officer, service provider or magistrate who has received a complaint of domestic violence or is otherwise present at the place of an incident of domestic violence or when the incident of domestic violence is reported to him, shall inform the aggrieved person (a) of her right to make an application for obtaining a relief by way of a protection order, an order for monetary relief, a custody order, a residence order, a compensation order or more than one such order under this Act; (b) of the availability of services of service providers; (c) of the availability of services of the Protection Officers; (d) of her right to free legal services under the Legal Services Authorities Act 1987; (e) of her right to file a complaint under section 498A *IPC*. Protection orders, residence orders, monetary relief, custody orders, compensation orders, interim and ex parte orders may be made by the Magistrate (sections 18-22).

[78]This law replaces the previous *Child Marriage Restraint Act 1929*, reflecting the stronger intention of the state not simply to restrain but prohibit child marriage. As in the previous Act, the definition of child remains the same in the new law" a child is a male under 21 years of age and a female under 18 years of age (section 2(a)). Under the new Act, child marriages are voidable at the option of the contracting party who was a child at the time of the marriage (section 3(1)). The petition to declare the marriage void has to be filed within two years of the child attaining majority (section 3(3)). The Act provides for punishment for any male over 18 years of age who marries a minor: rigorous imprisonment of up to 2 years or with a fine upto 1 lakh rupees or both (section (9)). Similar punishment is prescribed for anyone who performs, conducts, directs or abets or negligently fails to prevent any child marriage. However, no woman can be punished with imprisonment (section 11 proviso, section 13(10) proviso). All offences are cognizable and non-bailable (section 15). The Act declares that in certain circumstances the marriage of a minor will be declared null and void. These situations include a minor a) enticed out of the keeping of the lawful guardian; or (b) by force compelled, or by any deceitful means induced to go from any place; or (c) is sold for the purpose of marriage; and made to go through a form of marriage or if the minor is married after which the minor is sold or trafficked or used for immoral purposes (section 12). Also, any child marriage solemnised in contravention of an injunction order issued by a magistrate, whether interim or final, shall be void *ab initio* (section 14).

charge would be framed under the *POCSO*, read along with sections 375 and 376 *IPC*. If a boy child were molested, a charge would be framed under the *POCSO*, read along with section 377 *IPC*. If the same offences were committed in Goa, which has a special state legislation, a charge would be framed under the *POCSO*, read along with the relevant section of the *IPC* and the corresponding section of the *Goa Children's Act 2003*. Before the *POCSO* came into force on November 14, 2012, sexual offences against children committed in any state other than Goa could be registered only under the relevant section of the *IPC* which contained grossly inadequate punishments. From 2003 onwards, Goa was the only Indian state where various offences against children, including sexual offences, were registered under the *Goa Children's Act 2003*. Now, the *POCSO* prevails over the *Goa Children's Act*.

3.A.2. *Indian Penal Code 1860*

The national substantive criminal law on sexual abuse of children consists of the *IPC*. This is a general criminal law statute defining various kinds of offences against the body, property, and the state. This section discusses eight sexual offences of relevance to children under the general criminal law, ranging from those of least gravity to those of greatest gravity. Prior to the *Criminal Law (Amendment) Act 2013*, sexual offences against children were not defined in the *IPC*. Certain sexual offences protective of women existed, but even these offences were not sufficient to protect women and girl children. After the *Criminal Law (Amendment) Act 2013* of 2013, positive changes were brought about into general criminal law. This amendment is important in the history of criminal law because it has revised and reformed the law in relation to women's rights to a great extent. Sexual offences against women like rape were more broadly defined in the *IPC*. New offences like sexual harassment, voyeurism and stalking were introduced for the first time. As the definition of the term "woman" in the *IPC* includes girl children, this amendment is significant as it brought about reform in the law with regard to sexual offences against girl children. However, this amending statute did not address the issue of punishment for sexual violations of male children in the *IPC*. This section discusses the original provisions before the *Criminal Law (Amendment) Act 2013*, the J.S. Verma Committee recommendations and new provisions after the *Criminal Law (Amendment) Act 2013*.

Table 1 depicts the eight sexual offences before and after the *Criminal Law (Amendment) Act 2013* and a comparison of both in each of these eight key legislative provisions in order to provide a summary:

Table 1: Major developments regarding offences against children in the *Indian Penal Code 1860*

Offence in the *IPC*	**Previous provision (before the *Criminal Law (Amendment) Act 2013*)**	**Current provision (after the *Criminal Law (Amendment) Act 2013*)**	**How is the current provision different from the previous provision?**
Word, gesture or act intended to insult the modesty of a woman s.509	1. The offender is gender-neutral. 2. The offence comprises of utterance of any word, or making a gesture or doing an act intended to insult the modesty of a woman. 3. Punishmentwith simple imprisonment up to one year duration, or with fine, or with both.	1. The offender remains gender-neutral. 2. The offence comprises of utterance of any word, making any sound or gesture, or exhibiting any object, intending to insult the modesty of any woman. 3. Punishment with simple imprisonment up to three years duration, along with fine.	1. It increases the term of imprisonment from a maximum of one year to three years. 2. Imprisonment was formerly optional but is now compulsory with an additional fine.
Assault or criminal force to woman with intent to outrage her modesty s.354	1. The offender is gender-neutral. 2. The offence comprises of assault or use of criminal force to any woman, intending to outrage or knowing it to be likely that the offender will thereby outrage her modesty. 3. Punishment with imprisonment of either description up to two years duration, or with fine, or with both.	1. The offender remains gender-neutral. 2. The offence comprises of assault or use of criminal force to any woman, intending to outrage or knowing it to be likely that the offender will thereby outrage her modesty. 3. Punishment with imprisonment of either description for a minimum of one year duration up to five years, along with fine.	1. It sets a new minimum term of one year imprisonment, where formerly there was none. 2. It increases the maximum term of imprisonment from two years to five years. 3. Imprisonment was formerly optional at the discretion of judge but is now compulsory with an additional fine.
Sexual harassment and punishment for sexual harassment s.354A	No specific offence existed previously. Sections 354 and 509 applied regarding this type of offence.	1. Offender is male (use of the term “a man”). 2. These acts comprise this offence: (i) physical contact and advances involving unwelcome and explicit sexual overtures; or (ii)a demand or request for sexual favours; or (iii)showing pornography against the will of a woman; or (iv)making sexually coloured remarks. 3. Punishment for the first three types of sexual harassment is rigorous imprisonment up to three years duration, or fine, or both. The fourth type of sexual harassment carries punishment of imprisonment of either description up to one	1. The type of sexual harassment listed in clause (i) of s. 354A(1): physical contact and advances involving unwelcome and explicit sexual overtures. This would previously have come under the offence in s.354 with punishment of imprisonment of either description for a term which may extend to two years, or with fine, or with both. The current punishment is rigorous imprisonment for a term which may

		year duration, or fine, or both.	extend to three years, or with fine, or with both. 2. The type of sexual harassment listed in Clause (ii) of s.354A(1): demand or request for sexual favours. This would previously have come under the ambit of s 509 with simple imprisonment of up to one year, or fine, or both. The current punishment is rigorous imprisonment for a term which may extend to three years, or with fine, or both. 3. The type of sexual harassment listed in clause (iii) of s. 354A(1): showing pornography against the will of a woman; or making sexually coloured remarks. This would previously have come under the offence in s.509 with punishment of simple imprisonment upto one year, or fine, or both. The current punishment is rigorous imprisonment for a term which may extend to three years, or with fine, or both. 4. The type of sexual harassment listed in clause (iv) of s.354A(1): making sexually coloured remarks. This would previously have come under the offence in s. 509 with punishment of simple imprisonment up to one year, or fine, or both. The current punishment is imprisonment of either description for a term which may extend to one year, or fine, or both.

Offence in the *IPC*	**Previous provision (before the *Criminal Law (Amendment) Act 2013*)**	**Current provision (after the *Criminal Law (Amendment) Act 2013*)**	**How is the current provision different from the previous provision?**
Assault or use of criminal force to a woman with intent to disrobe s.354B	No such offence existed previously. Section 354 applied for this type of offence.	1. Offender is male (use of the term "a man"). 2. The offence comprises of assault or use of criminal force to any woman or abetment of such an act with the intention of disrobing or compelling her to be naked. 3. Punishment with imprisonment of either description for term not less than three years up to seven years, along with fine.	This offence would previously have come under the offence in s.354 with punishment of imprisonment of either description for a term which may extend to two years, or with fine, or both. The current punishment is imprisonment of either description for a minimum term of three years and a maximum of seven years, along with fine.
Voyeurism s.354C	No such offence existed previously. Section 509 applied for this type of offence.	1. Offender is male (use of the term "a man"). 2. The offence comprises of watching, or capturing the image of a woman engaging in a private act in circumstances of privacy or disseminating such image to any third person without her permission. 3. Punishment on first conviction with imprisonment of either description for a term extending from one year to three years along with fine and on subsequent conviction, with imprisonment of either description for a term extending from three years to seven years, along with fine.	This offence would previously have come under the offence in s.509. The current punishment on first conviction is with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, along with fine, and on subsequent conviction, with imprisonment of either description for a minimum term of three years and a maximum of seven years, along with fine. Whereas previously, under s.509, the punishment would have been simple imprisonment upto one year, or fine, or both.

Offence in the *IPC*	**Previous provision (before the *Criminal Law (Amendment) Act 2013*)**	**Current provision (after the *Criminal Law (Amendment) Act 2013*)**	**How is the current provision different from the previous provision?**
Stalking s.354D	No such offence existed previously. Section 509 applied for this type of offence.	1. Offender is male (use of the term "a man"). 2. These acts constitute this offence: (i) following a woman and contacting her to foster personal interaction repeatedly despite a clear indication of her disinterest; or (ii) monitoring the woman's use of any form of electronic communication. 3. Punishment is imprisonment of either description for a term up to three years and fine, and on a subsequent conviction, with imprisonment of either description for a term up to five years, and fine.	This offence would previously have come under the offence in s.509, where the punishment would have been simple imprisonment up to one year, or fine, or both. The current punishment has a higher duration on first conviction as well as on second conviction, and the type of imprisonment is not restricted to simple alone, but may be either simple or rigorous imprisonment.
Rape s.375	1. Offender is male (use of the term "a man"). 2. This offence occurs if he has sexual intercourse with a woman under six circumstances. 3. These six circumstances are the following: against her will; without her consent; with her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt; with her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married; with her consent, when she is unable to understand the nature and consequences of her act of consent due to unsoundness of mind or intoxication or the administration of any stupefying or unwholesome substance; with or without her consent, when she is under sixteen years of age. 3. Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape. 4. Sexual intercourse by a man with his wife,	1. Offender is male (use of the term "a man"). 2. This offence incurs if he: (a)penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her do so with him or any other person; or (b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or (c) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or (d) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person, under seven circumstances. 3. These seven circumstances are the following: against her will; without her consent; with her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt; with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she	1. Previously the offence only covered penile penetration of the vagina. It now covers penile and the other forms of penetration of a woman's body (mouth, any object or a part of the body, not being the penis, any part of the body of a woman). 2. Previously the offence treated the consent of a woman above sixteen years of age as valid. It now deems valid consent can only be given by a woman above eighteen. 3. Now, rape is also deemed to occur when she is unable to communicate consent (e.g., in an intoxicated or drugged state). Lack of physical resistance shall not be regarded as consent. 4. In the new provision, the term "vagina" is defined to include labia majora, to clarify that penetration of the labia majora would also constitute rape. Formerly, this was

	who is above fifteen years of age, is not rape.	is or believes herself to be lawfully married; with her consent, when she is unable to understand the nature and consequences of her act of consent due to unsoundness of mind or intoxication or the administration of any stupefying or unwholesome substance; with or without her consent, when she is under eighteen years of age; when she is unable to communicate consent. 4. Consent is defined to mean an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act, provided that consent shall not be deemed only due to lack of physical resistance to the act of penetration by the woman. 5. In this section, "vagina" shall also include labia majora. 6. Sexual intercourse or sexual acts by a man with his wife, who is above fifteen years of age, is not rape.	not the case. 5. In the new provision, consent, which was not defined previously, is defined and includes recognition that lack of physical resistance does not demonstrate consent.
Punishment for rape s..376 (1)	1. Punishment for rape under s.375 is imprisonment of either description for a term extending from seven years to life or for a term which may extend to ten years along with fine. 2. The court has the discretion to impose a sentence of imprisonment for a term less than seven years for adequate and special reasons to be mentioned in the judgment. 3. Exemption to punishment is given for a case of rape of a wife by her husband, when the wife is above twelve years of age. A husband who rapes his wife, who is between the ages of twelve and fifteen, shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both.	1. Punishment for rape under s.375 is rigorous imprisonment of either description for a minimum term of seven years, which may extend to imprisonment for life, along with fine.	1. Formerly, judges had discretion to impose either simple imprisonment (no hard labour) or rigorous imprisonment (includes hard labour as per s.53 *IPC*). Now, discretion has been removed so that imprisonment can only be rigorous. 2. The new law has removed the previous lower punishment for sexual intercourse with a child wife aged between twelve and fifteen. 3. The new law removes the previous judicial discretion to award punishment of less than seven years imprisonment.

Offence in the *IPC*	**Previous provision (before the *Criminal Law (Amendment) Act 2013*)**	**Current provision (after the *Criminal Law (Amendment) Act 2013*)**	**How is the current provision different from the previous provision?**
Punishment for rape s.376(2)	1. The offender is male. 2. Such offender is a police officer who commits rape under certain circumstances specified in the provision or is a public servant who commits rape under certain circumstances specified in the provision or is on the management or on the staff of a place of custody established by law or of a woman's or children's institution, who commits rape on any inmate of such institution; or is on the management or on the staff of a hospital, who commits rape on a woman in that hospital; or such offender commits rape on a woman knowing her to be pregnant or such offender commits rape when she is under twelve years of age or such offender commits gang rape. 3. Punishment is rigorous imprisonment for a minimum term of ten years which may extend for life, and fine. 4. The court is given the discretion to impose a sentence of imprisonment of either description for a term of less than ten years, for adequate and special reasons to be mentioned in the judgment.	1. The offender is male. 2. Such offender is a police officer who commits rape under certain circumstances specified in the provision or is a public servant, who commits rape under certain circumstances specified in the provision or is a member of the armed forces deployed in an area by the Central of a State Government who commits rape in such area; or is on the staff of a place of custody established by law or of a woman's or children's institution, who commits rape on any inmate of such institution; or is on the management or on the staff of a hospital, who commits rape on a woman in that hospital or is a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, who commits rape on such woman or the offender commits rape during communal or sectarian violence or the offender commits rape on a woman knowing her to be pregnant or the offender commits rape on a woman when she is under sixteen years of age or the offender commits rape, on a woman incapable of giving consent; or the offender is in a position of dominance or control over a woman, and commits rape on such woman or the offender commits rape on a woman suffering from physical or mental disability or the offender, while committing rape, causes grievous bodily harm or maims or disfigures or endangers the life of a woman or the offender commits rape repeatedly on the same woman. 3. Punishment is rigorous imprisonment for a term extending from ten years to life, which shall mean imprisonment for the remainder of that person's natural life, and fine.	1. The new law clarifies that life imprisonment shall mean imprisonment until the end of the convict's natural life. 2. The new law provides for aggravated punishment for rapists of girls aged under sixteen, whereas formerly, such punishment was limited to rapists of girls under twelve. 3. Aggravated punishment for rapists who are relatives, guardians or teachers of the victim, or who are in positions of trust or responsibility towards the victim. 4. Removal of judicial discretion to impose sentence of either description of less than ten years for adequate and special reasons mentioned in the judgment.

Offence in the *IPC*	**Previous provision (before the *Criminal Law (Amendment) Act 2013*)**	**Current provision (after the *Criminal Law (Amendment) Act 2013*)**	**How is the current provision different from the previous provision?**
Unnatural Offences s.377	1. The offender is gender-neutral (use of the word "whoever"). 2. The offence comprises of voluntarily having carnal intercourse against the order of nature with any man, woman or animal. 3. Punishment is imprisonment for life, or imprisonment of either description for term which may extend to ten years, and fine. 4. Penetration is sufficient to constitute the carnal intercourse necessary to this offense.	No legislative change	No change.

The following is a description of legal developments regarding the eight key legislative provisions, which includes executive reports as well as important explanatory case law.

3.A.2.a. Section 509 *IPC*: Word, gesture or act intended to insult the modesty of a woman

This punishes a word, gesture or act intended to insult the modesty of a woman. This provision is used to cover a wide range of sexual offences such as eve-teasing, exhibitionism, sending or showing of pornographic material, making obscene or sexually-toned remarks, telephone calls or sending obscene messages, voyeurism, and so on.[79]

Pre-*Criminal Law (Amendment) Act 2013*:

Section 509 *IPC* stated thus:

> Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

This is a non-cognizable, bailable offence, triable by any magistrate. It is compoundable by the woman whom it was intended to insult or whose privacy was intruded upon with the permission of the court (section 320, *CrPC*).[80]

The term "insulting the modesty of a woman" has not been defined. Also, the punishment, of up to one year imprisonment and /or fine, has largely been considered as grossly inadequate, and women's rights groups have been clamouring to get section 509 *IPC* amended with increased punishment.

Criminal Law (Amendment) Bill 2012

This proposed legislation did not alter the term "insulting the modesty of a woman" in section 509. It increased the maximum punishment to three years imprisonment with fine of "not less than one thousand rupees."

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[79]Seshadri, S.P., Haritas, K.I. (2009).Preserving Wellness and Personhood: A Psychosocial Approach to the Child. In Kannabiran, K. & Singh, R. (Eds.), *Challenging the Rule(s) of Law: Colonialism, Criminology and Human Rights in India.*(p. 184), New Delhi: SAGE.

[80] Section 320, *Code of Criminal Procedure* lays down the categories of compoundable offences. All offences which are excluded from the table of compoundable offences are considered to be non-compoundable, which means that a compromise and settlement of the dispute cannot be attained by the parties independent of the court.

Justice Verma Committee Report

The J.S. Verma Committee Report specifically recommended the repeal of this provision.[81]It may be inferred that the use of words, acts or gestures that create an unwelcome threat of a sexual nature would come under the definition of the offence of sexual assault (under section 354 *IPC*) with one year imprisonment or fine or both as punishment.[82]

Post-Criminal Law (Amendment) Act 2013

No repeal was made of the provision. The term "insulting the modesty of a woman" was retained by the *Criminal Law (Amendment) Act 2013*. Punishment is simple imprisonment for an enhanced term which may extend to three years, and with fine. However, no minimum fine was imposed. The provision reads as follows:

> Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, of that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to three years and also with fine.

The amendments made in 2003 to section 354 *IPC* have specifically criminalised sexual harassment, assault with intent to disrobe, voyeurism and stalking as separate offences within the section 354 *IPC* cluster of offences.

Table 1 demonstrates the differences between definitions of the offence both before and after the *Criminal Law (Amendment) Act 2013*.

A defect of the provision which points towards ambiguity is that it is not clear from the present amendment as to what acts would constitute offences under section 509 *IPC* which merit imprisonment up to three years, and which do not come under the sections 354A, B, C and D *IPC* categories of offences. While the section 509 *IPC* offence is non-cognizable, sections 354A, B, C and D *IPC* offences are cognizable.

3.A.2.b. Section 354 *IPC*: Assault or criminal force to woman with intent to outrage her modesty

This punishes use of criminal force to outrage the modesty of a woman. Section354is attracted in cases where is criminal force used by the accused with intent to outrage the modesty of a woman. It can range from mere catching hold of a woman's hand to any heinous

[81] Chapter 3, Para 67, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013*). Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p. 111
[82]*Ibid*

nature of sexual assault which may fall short of penile penetration or an attempt to do so or unnatural offences.[83]

Pre-Criminal Law (Amendment) Act 2013

The following portion outlines the law before the *Criminal Law (Amendment) Act* 2013.

> Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

This was a non-cognizable, bailable offence, triable by any magistrate.[84] It was classified as an offence compoundable only with the permission of the court before which prosecution for such offence was pending. The woman upon whom criminal force was used was the person in whom power was vested to compound the offence with the permission of the court.

The meaning of the term "outraging the modesty" has not been explained in the statute. The following case is important because it deliberated on the meaning of the term "modesty" in the context of a sexual violation of a baby girl.

State of Punjab v. Major Singh (1967)[85]

This is the landmark case which deliberated on the question of the capacity of a female child of a few months of age to possess "modesty" which could be outraged as stipulated in section 354 *IPC*. Here the respondent inserted his finger and tore the vagina of a female child of just 7.5 months of age. He was stripped to the waist at the time the child's mother entered the room and put on the light, after which he fled from the room. The trial court convicted the respondent under section 323 of the *IPC* for voluntarily causing hurt to rigorous imprisonment for one year and Rs. 1000/- fine and a further period of three months for non-payment of fine. In appeal before the Punjab High Court, the judges differed in the view of whether the person could be said to have outraged the modesty of a child under section 354 of the *IPC*. The majority took the view that the offence could be committed only when a woman felt that her modesty was outraged. The child upon whom the criminal force was used was of too tender an age to be capable of having any sense of modesty. One of the judges who differed and answered the question in the affirmative, held that the word "modesty" meant accepted notions of womanly modesty and not the notions of the woman against whom

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[83]*Santhosh Madhavan @ Amrutha Chaithanya* v. *C.I. of Police & Anr.* MANU/KE/0162/2008.
[84] As per the First Schedule of the *Code of Criminal Procedure* 1973
[85]AIR 1967 SC 63.Also cited in *Santhosh Madhavan @ Amrutha Chaithanya* v. *C.I. of Police & Anr.* MANU/KE/0162/2008.

the offence was committed and that the section was intended as much in the interest of the woman concerned as in the interest of public morality and decent behaviour. Further, that the object of the provision could be achieved only if the word “modesty” was considered to be an attribute of a female irrespective of whether she had developed enough understanding to realise that an act was offensive to decent female behaviour or not. The High Court did not alter the sentence.

The matter went to the Supreme Court. The three-judge bench felt the need to deliberate on whether a girl who was 7.5 months of age could be said to possess the requisite modesty that was capable of being outraged. Divided opinion also prevailed there. Chief Justice Sarkar, in his dissenting judgment, stated that under the section the accused would be guilty of an offence if he assaults or uses criminal force "intending to outrage or knowing it to be likely that he will thereby outrage" the modesty of a woman. This intention or knowledge is the ingredient of the offence and not the woman's feelings or reaction. The test therefore would be whether a reasonable man would think that the act of the offender was intended to or was known to be likely to outrage the modesty of the woman. In the present case, there could be no question of the accused having intended to outrage the modesty of the child or having known that his act was likely to have that result, because, although the victim is a "woman" under the *IPC*, no reasonable man would say that a female child of that age was possessed of womanly modesty.

However, on equally strong reasons, two judges differed with this view and interpreted the word “modesty” in such a manner so as to bring the offence committed by the accused under section 354 *IPC*. As per Mudholkar J, under section 354 *IPC*, while the individual reaction of the victim to the act of the accused would be irrelevant, when any act done to or in the presence of a woman is clearly suggestive of sex according to the common notions of mankind, that act must fall within the mischief of the section and would constitute an offence under the section. Since the action of the accused in interfering with and thereby causing injury to the vagina of the child, who was 7.5 months old, was deliberate, he must be deemed to have intended to outrage her modesty. Bachawat, J went on to make the famous statement: “The essence of a woman's modesty is her sex. Even a female of tender age from her very birth possesses the modesty which is the attribute of her sex. Under the section the culpable intention of the accused is the crux of the matter. The reaction of the woman is very relevant, but its absence is not always decisive. The respondent is punishable for the offence under the

section because, by his act, he outraged and intended to outrage whatever modesty the little victim was possessed of."

The Supreme Court altered the conviction of the respondent under section 323 *IPC* to one under section 354 *IPC*, and awarded the respondent rigorous imprisonment for a term of two years and a fine of Rs. 1,000/-, and in default, rigorous imprisonment for a period of six months. Out of the fine, Rs. 500/- was to be paid as compensation to the child.

The Criminal Law (Amendment) Bill 2011

This recommended the substitution of the words "shall be punished with imprisonment of either description for a term of one year which may extend to five years and shall also be liable to fine which may not be less than one thousand rupees" for the words "shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both" in Section 354 *IPC*.

The J.S. Verma Committee Report

This suggested a complete overhaul of the offence in section 354 *IPC*. It recommended that all non-penetrative non-consensual forms of sexual contact should be defined as sexual assault under section 354.[86] The Committee recommended the drafting of section 354 *IPC* as in the form of actual touch as well as use of threatening words, acts or gestures.[87] Thus the sexual nature of an act would be determined on the basis of the circumstances. Sexual gratification as a motive for the act would not be a prerequisite for proving the offence.[88]

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[86] Chapter 3, Para 67 and Para 69, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, pp. 111-112.

[87] Section 354: Sexual assault and punishment for sexual assault:
(1) The following acts shall constitute the offence of sexual assault:
(a) Intentional touching of another person when such act of touching is of a sexual nature and is without the recipient's consent;
(b) Using words, acts or gestures towards or in the presence of another person which create an unwelcome threat of a sexual nature or result in an unwelcome advance.
Explanation: For the purposes of this section, 'acts' shall include the display and dissemination of pornographic material.
(2) Any person who commits the offence described in sub-clause (a) of sub-section (1) above shall be punishable with rigorous imprisonment that may extend to five years, or with fine, or both.
(3) Any person who commits the offence described in sub-clause (b) of sub-section (1) above shall be punishable with imprisonment of either description that may extend to one year, or with fine, or both.
Section 354, Sub-heading 4, Appendix 4, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law*. New Delhi: Government of India.p.436.

[88] Chapter 3, Para 69,Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.*New Delhi: Government of India, p.112.

Post-*Criminal Law (Amendment) Act 2013*

After amendment by the *Criminal Law (Amendment) Act 2013*, section 354 states:

> Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine.

Table 1 demonstrates the differences between definitions of the offence both before and after the *Criminal Law (Amendment) Act 2013*. The minimum mandatory punishment has been stipulated as one year where none existed, and the maximum punishment as five years, in place of the previous two years.

This offence has been made a cognizable, non-bailable one, triable by any magistrate as well as compoundable by the woman assaulted to whom the criminal force was used,[89] with the permission of the court before which its prosecution is pending. By making this provision cognizable and non-bailable, the legislature has finally understood the gravity of the crime and has brought much-needed relief to victims of such assault.

Unfortunately, the use of an archaic term like "outraging the modesty" of a woman continues to exist in the post-2013 provision. Even after the *Criminal Law (Amendment) Act 2013*, it is not clear as to what acts would constitute offences which "outrage the modesty of a woman" under section 354, which would not come under the ambit of section 509. This defect has been identified as one of the issues for analysis in Chapter 3 of this thesis.

Certain additional offences have been created by the *Criminal Law (Amendment) Act 2013* in continuation to section 354. These are the offences of sexual harassment, assault to disrobe, voyeurism and stalking.

3.A.2.c. Section 354A *IPC*: Sexual harassment and punishment for sexual harassment

This is a new offence inserted by the *Criminal Law (Amendment) Act 2013*. It was not recommended by the J.S. Verma Committee. This provision states:

> (1) A man committing any of the following acts
> (i) physical contact and advances involving unwelcome and explicit sexual overtures; or
> (ii) a demand or request for sexual favours; or
> (iii) showing pornography against the will of a woman; or
> (iv) making sexually coloured remarks,
> shall be guilty of the offence of sexual harassment.

[89] As per the First Schedule read with section 320 of the *Code of Criminal Procedure 1973*.

(2) A man who commits the offence specified in clause (i) or clause (ii) or clause (iii) of sub-section (1) shall be punished with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.
(3) Any man who commits the offence specified in clause (iv) of sub-section (1) shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

Formerly this offence would have come under the ambit of section 509 *IPC*. However, the punishment awarded under section 509 *IPC* for sexual harassment was only up to one year and/or with fine.

When a man commits an act involving physical contact and advances involving unwelcome and explicit sexual overtures, or commits an act involving a demand or request for sexual favours, or commits an act of showing pornography against the will of a woman, he shall be punished with rigorous imprisonment for a term up to three years and/or with fine. This is the first category of offences and punishment stipulated under the provision.

When a man commits an act of making sexually-coloured remarks, he shall be punished with imprisonment of either description for a term which may extend to one year, and/or with fine. This is in tune with the pre-2013 punishment awarded for insulting the modesty of a woman under section 509 *IPC*. The differences between section 509 *IPC* and the present definition of the offence can be seen in Table 1.

The two different punishments for acts comprising sexual harassment are both cognizable, bailable offences, triable by any magistrate.[90] As per section 320 *CrPC*, it is not included under "Compoundable offences". Hence it may be understood to be non-compoundable, unlike section 354 *IPC*.

3.A.2.d. Section 354B *IPC*: Assault or use of criminal force to a woman with intent to disrobe.

This is a new offence inserted by the *Criminal Law (Amendment) Act 2013*. Previously, this offence would have come under the ambit of section 354.

The J.S. Verma Committee Report

The Report suggested the inclusion of a new offence punishing assault of a woman intending to disrobe her.[91]This recommendation found a place in the 2013 amending statute.[92]

[90] As per the First Schedule of the *Code of Criminal Procedure 1973*.
[91] Appendix 4, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.*New Delhi: Government of India, p.437.

Post-*Criminal Law (Amendment) Act 2013*

Section 354B *IPC* states thus:

> Assault or use of criminal force to a woman with intent to disrobe. Any man who assaults or uses criminal force to any woman or abets such an act with the intention of disrobing or compelling her to be naked shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine.

Here both the actual doer of the act of disrobing and the abettor of the act of disrobing are to be given a minimum mandatory punishment of three years simple or rigorous imprisonment and fine, and a maximum punishment of seven years simple or rigorous imprisonment and fine. The differences between section 354 *IPC* and the present provision punishing the offence can be seen in Table 1.

This is a cognizable, non-bailable offence, triable by any magistrate.[93] It is not included under "Compoundable offences" as laid down in section 320 *CrPC*. Hence it may be understood to be non-compoundable, unlike section 354 of *IPC*.

3.A.2.e. Section 354C *IPC*: Voyeurism

This is a new offence inserted by the *Criminal Law (Amendment) Act 2013*. This offence would have previously come under section 509 *IPC*.

The J.S. Verma Committee Report

The Report suggested the inclusion of a new provision defining and punishing the offence of voyeurism[94] in the *IPC*.

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[92] Section 354A: Assault or use of criminal force to woman with intent to disrobe her: Whoever assaults or uses criminal force to any woman or abets such act with the intention of disrobing or compelling her to be naked in any public place, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years and shall also be liable to fine.

[93] As per the First Schedule of the *Code of Criminal Procedure 1973.*

[94] Section 354B: Voyeurism: Whoever watches a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator, or by any other person at the behest of the perpetrator shall, be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but may extend to three years, and with fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but may extend to seven years, and also with fine.

Explanation 1:"Private act", in the context of this provision, is an act carried out in a place which, in the circumstances, would reasonably be expected to provide privacy, and where the victim's genitals, buttocks or breasts are exposed or covered only in underwear; or the victim is using a lavatory; or the person is doing a sexual act that is not of a kind ordinarily done in public.

Explanation 2: If the victim consented to capture of the images or other material, but not to their dissemination to third persons, such dissemination shall be considered an offence within this section.

Appendix 4, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.437

Post-*Criminal Law (Amendment) Act 2013*

Section 354C *IPC* states thus:

> Voyeurism. Any man who watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and shall be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.
> Explanation 1: For the purpose of this section, "private act" includes an act of watching carried out in a place which, in the circumstances, would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear, or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public.
> Explanation 2: Where the victim consents to the capture of the images or any act but not to their dissemination to third persons and where such image or act is disseminated, such dissemination shall be considered an offence under this section.

It is a notable fact that various school-aged girls in India have committed suicide due to blackmail when images of them carrying on acts pertaining to bodily functions are captured by cameras placed in bathrooms and disseminated through the internet. "Private acts" has been defined in Explanation 1 as acts carried out in a place which would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear, or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public. Watching, capturing images of such private acts and dissemination of such images, all come under the same category of "voyeurism".

Privacy laws are generally deficient in India, leading to difficult situations where even the public media does not hesitate to publish photographs and films which affect the privacy of the people involved in such photograph or film. Hence, Explanation 2 of this section would come as a relief to many women. Where the victim consents to the capture of the images or any act but not to their dissemination to third persons and where such image or act is disseminated without her permission, such dissemination is also considered an offence under this section as per Explanation 2. The differences between section 509 *IPC* and the present provision punishing the offence can be seen in Table 1.

When the offender is committing a first time offence, the *CrPC* classifies this offence as cognizable, bailable, triable by any magistrate.[95] In the case of a second or subsequent

[95]As per the First Schedule of the *Code of Criminal Procedure 1973.*

conviction, the offence is cognizable, non-bailable, triable by any magistrate.[96]It is not included under "Compoundable offences" as laid down in section 320 *CrPC*. Hence it may be understood to be non-compoundable, unlike Section 354 *IPC*.

3.A.2.f. Section 354D *IPC:* Stalking

This is a new offence inserted by the *Criminal Law (Amendment) Act 2013*. It previously would have come under the ambit of section 509 *IPC*.

The J.S. Verma Committee Report

The Report suggested the inclusion of a new provision defining and punishing the offence of stalking[97] in the *IPC*.[98] This recommendation was couched in gender-neutral terms for both offender and victim. However, it was incorporated into the 2013 amending statute in gender-specific terms of man as offender and woman as victim. While this recommendation put a minimum term of one year imprisonment as punishment and a maximum term of punishment as three years imprisonment, the amending statute made the term of punishment for first conviction as upto three years imprisonment and for subsequent conviction, the term of punishment as upto five years imprisonment.

Post-*Criminal Law (Amendment) Act 2013*

Section 354 D *IPC* states thus:

(1) Any man who-
  (i) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or
  (ii) monitors the use by a woman of the internet, e-mail or any other form of electronic communication,
  commits the offence of stalking:

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[96]*Ibid.*

[97] Appendix 4, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.437.

[98] Section 354C(1): Stalking: Whoever follows a person and contacts, or attempts to contact such person to foster personal interaction repeatedly, despite a clear indication of disinterest by such person, or whoever monitors the use by a person of the internet, email or any other form of electronic communication, or watches or spies on a person in a manner that results in a fear of violence or serious alarm or distress in the mind of such person, or interferes with the mental peace of such person, commits the offence of stalking.
Provided that the course of conduct will not amount to stalking if the person who pursued it shows:
i. that it was pursued for the purpose of preventing or detecting crime and the person accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the state; or,
ii. that it was pursued under any enactment or rule of law, or to comply with any condition or requirement imposed by any person under any enactment; or,
iii. that in the particular circumstances the pursuit of the course of conduct was reasonable
(2) Whoever commits the offence described in Section 354C(1) shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to three years, and shall also be liable to fine.

PROVIDED that such conduct shall not amount to stalking if the man who pursued it proves that –

(i) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking has been entrusted with the responsibility of preventing and detection of crime by the State; or

(ii) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or

(iii) in the particular circumstances such conduct was reasonable and justified.

(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

The offence of stalking is committed when a man follows a woman and contacts, or attempts to contact such woman in order to foster personal interaction repeatedly without her consent, or monitors the woman's use of any form of electronic communication. However, if such man can prove that such following and contacting of the woman was done legally, or under reasonable circumstances, then he would not have committed the offence under this section. The differences between Section 509, *IPC* and the present provision is depicted in Table 1.

When the offender is committing a first time offence, the *CrPC* classifies this offence as cognizable, bailable, triable by any magistrate.[99] In case of a second or subsequent conviction, the offence is cognizable, non-bailable and triable by any magistrate.[100] It is not included under "Compoundable offences" as laid down in section 320 *CrPC*. Hence it may be understood to be non-compoundable, unlike section 354 *IPC*.

Rape: Problematic areas

Table 1 depicts the differences between the definitions of the previous and the present versions of the offence before and after the passing of the *Criminal Law (Amendment) Act 2013*. The nature and scope of the amended offence of rape in the *IPC* is analysed in Chapter 4 in the following contexts:

1. What is the rationale behind the continuance of the term "rape" instead of "sexual assault"?
2. Does gender-specificity in the case of the offence of rape render the law discriminatory in that it excludes male children from its ambit?
3. Is a lack of consistency evident in the act of the legislature, which crafted the offence of "Rape" in gender-specific terms for both perpetrator and victim in the *IPC*, while excluding the same from the *POCSO*?

[99]As per the First Schedule of the *Code of Criminal Procedure 1973*.
[100]*Ibid*.

Other issues within the offence of rape that shall be analysed in Chapter 4 are with regard to the age of consent to sexual activity for girl children and, in the context of child marriage, the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC*.

These contexts must be considered while examining the following provisions on rape:

3.A.2.g. Section 375: Rape

This provision defines rape. The law on this matter underwent a substantial change on 3 February 2013 after the *Criminal Law (Amendment) Act 2013*. The pre-February 2013 law on rape is understood to cover only penile penetration of the vagina of a female[101] without her consent – the age of consent being sixteen years.

The following part traces the developments on the law of rape in a chronological manner, referring to relevant Law Commission Reports recommending changes, as well as important case law which helped to guide law reforms.

Pre-*Criminal Law (Amendment) Act 2013*

Section 375 *IPC*[102] stated thus:

> Rape.—A man is said to commit "rape" who, except in the case hereinafter excepted, has sexual intercourse with a woman under circumstances falling under any of the six following descriptions:—
> First— Against her will.
> Secondly—Without her consent.
> Thirdly— With her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt.
> Fourthly—With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.
> Fifthly— With her consent, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.
> Sixthly— With or without her consent, when she is under sixteen years of age.
> Explanation: Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.
> Exception: Sexual intercourse by a man with his own wife, the wife not being under fifteen years of age, is not rape.

A man is guilty of rape when he has sexual intercourse with a woman against her will or without her consent. The sixth description states that when a man has sexual intercourse with a woman below the age of sixteen, then the issue of consent is immaterial, and that such

[101] *Sakshi v Union of India* MANU/SC/0523/2004.
[102] This was amended by Act No. 43 of 1983, section 3.

sexual intercourse is considered to be rape irrespective of consent. However, the courts in many cases have not relied on the sixth description for convicting the accused. Instead, the issue of the underage girl child's consent has been given greater importance.

The significance of penetration: Madan Gopal Kakkad (1992)

The Explanation to Section 375 stated that penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.

Madan Gopal Kakkad v. Naval Dubey and Another (1992)[103]

In this case, the Supreme Court clarified the meaning of the term "penetration" for rape under section 375 *IPC*.

The facts of this case involved a minor girl aged eight who was raped by her friend's uncle in 1982. The respondent was aged 28 and had completed his medical studies. Both respondent and victim belonged to highly educated and affluent families. The respondent committed the offence in such a way that her hymen was not injured. Medical evidence pointed to injuries on the *labia majora* and *minora* alone. It was alleged by the prosecution that the accused was in the habit of raping young girls in the locality who were friends of his niece, and that his niece herself had confessed to the victim that she had been raped by him many times. The Trial Court discharged the respondent of offences under sections 354, 375 and 376 *IPC*. The State appealed to the High Court. The High Court found the respondent guilty of the offence only under section 354 *IPC* and sentenced him to pay a fine of Rs. 3,000, in default to suffer simple imprisonment for 6 months and also directed a sum of Rs. 2,000 out of the fine amount if collected to be paid over as compensation to the father of the victim girl. The State did not prefer any appeal before the Supreme Court. However, the father of the victim girl, feeling aggrieved by the judgment of the High Court, filed this criminal appeal on two grounds:(1) that the High Court erred in finding the respondent guilty of a minor offence under section 354 of the *IPC* when all the necessary ingredients to constitute an offence punishable under section 376 of the *IPC* have been satisfactorily established; (2) that the sentence of fine alone imposed by the High Court under section 354 *IPC* for this serious offence was grossly inadequate and not commensurate with the gravity of the offence committed by the respondent.

Supreme Court

[103]MANU/SC/0509/1992.

In appeal, the Supreme Court set aside the judgment of the High Court. Upon examination of the evidence preferred before the Trial Court and High Court, Justices S.R. Pandian and M. Fathima Beevi came to a finding that there is acceptable and reliable evidence that there was slight penetration, not a complete penetration. The judgment stated that it is well understood from various legal treatises as well as High Court case law on the subject that even the slightest penetration is sufficient to make out an offence of rape and the depth of penetration is immaterial.[104]The Supreme Court held that, having regard to seriousness of crime, the respondent was to be convicted under section 376 and was sentenced to undergo rigorous imprisonment for period of seven years with fine of Rs. 25000. A delay of ten years had already occurred. The High Court's reason for imposing a fine only and not sentencing imprisonment to the accused was that the respondent "is now gainfully employed and there is nothing to show that he is indulging in his nefarious activities". The Supreme Court judges stated that the reasons given by the High Court for imposing only a fine are not in conformity with existing sentencing policy for a case of such grave nature. The Supreme Court judges took into account the fact that the victim was presently 19 years old and continued to undergo untold agony of the traumatic experience and the deathless shame suffered by her, and that she was harbouring the impression that her future chances for getting married in a respectable family had been completely marred.

Various judicial decisions reiterate the point. It is quite possible to commit legally the offence of rape even without causing any injury to the genitals or leaving any seminal stains.[105] The *sine qua non* of the offence of rape is penetration, and not ejaculation. Ejaculation without penetration constitutes an attempt to commit rape and not actual rape.[106]

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[104]Reference was made to Encyclopedia of Crime and Justice (Vol. 4) at page 1356; Gour's"The Penal Law of India" 6th Edn. 1955 (Vol. II) p.1678; Halsbury's Statutes of England and Wales (Forth Edition) Volume 12 vide *R v Hughes* [1841] 9 C & P 752; *R v Lines* [1844] 1 C &K 393 and *R v Nicholls* [1847] 9 LTOS 179; *Natha v Emperor* 26 Cri.L.J. [1925] 1185; *Abdul Majid v Emperor* AIR 1927 Lah 735(2); *Mussammat Jantan v The Crown* (1934) PLR 36; *Ghanashyam Mishra v State* MANU/OR/0023/1957, AIR1957 Ori 78; *D. Bernard v State* (1947) Cri.L.J. 1098; *In Re Anthony* AIR 1960 Mad. 308.

[105] A similar case, *State of U.P. v Babul Nath* MANU/SC/0837/1994 where a five year old girl was raped by the accused, it was laid down by the Supreme Court that in order to constitute the offence of rape neither Section 375 of *IPC* not the Explanation attached thereto require that there should necessarily be complete penetration of the penis into the private part of the victim/prosecutrix. To constitute the offence of rape it is not at all necessary that there should be complete penetration of the male organ with emission of semen and rupture of hymen. Even partial or slightest penetration of the male organ within the labia majora or the vulva or pudenda with or without any emission of semen of even an attempt at penetration into the private part of the victim would be quite enough for the purpose of Sections 375 and 376 of *IPC*.

[106] *Koppula Venkatrao v State of AP* (2004)3 SCC 602 stated that the definition of "rape" as contained in section 375 of the *IPC* refers to "sexual intercourse" and the Explanation appended to the section provides that

The penetration referred to, before the *Criminal Law Amendment 2013*, was exclusively penile penetration of the vagina of the woman. Section 375 of the *IPC* extends only to heterosexual intercourse involving penetration of the vagina by the penis, which is explained by a statement that penetration is sufficient to constitute the sexual intercourse necessary for the offence of rape.[107]

Marital rape under section 375, pre-2013

The original exception to section 375 in 1860 read:

> Sexual intercourse of a man with his own wife, the wife not being under ten years of age, is not rape.

Kannabiran (2009) outlines the case *Queen Empress v Hurree Mohun Mythee*[108], where an 11-year old girl named Phulmoni died in 1890 after her 35-year-old husband raped her. The women of Phulmoni's family testified in court that since caste codes did not permit premenstrual cohabitation, the couple had been kept apart until, her husband had stolen into Phulmoni's room and forced himself on her. Yet the English judge, Wilson J., accepted the husband's version that they had cohabited several times earlier, and hence intercourse was not the cause of death. The charge of rape did not arise because she was clearly over 10 years of age. The jury consisted of six Hindus, two Europeans and one Mohamedan. The husband was found guilty of causing death inadvertently, by a rash and negligent act under section 338 of the *IPC*, and was sentenced to one year's rigorous imprisonment. After Phulmoni's death, 44 women doctors, as part of the reformist movement to raise the age of consent, brought out lists of child-wives who had died or suffered grievous hurt, raging debate on marital rape in India.[109]

The colonial government then proposed to increase the age of consent for sexual intercourse for a girl from 10 to 12 years by the *Age of Consent Act* passed in 1891, after much opposition from some Indian leaders.[110]Such increase in age was believed to be an interference by the British rulers into the Hindu religion. This age was further increased to 13 years in 1925 and to 15 years in 1940.

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penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape. Intercourse means sexual connection.

[107]*Sakshi v Union of India* AIR 2004 SC 3566.

[108] (1891) ILR 18 Cal 49.

[109]Kannabiran, K. (2009). Sexual assault and the Law. Kannabiran,K. & Singh,R. (Eds.), *Challenging the Rule(s) of Law: Colonialism, Criminology and Human Rights in India*. (pp. 78-118 at 82-83), New Delhi: SAGE.

[110]Sharma, K & Gupta, A. (2015). When even rape is legal. *The Hindu*http://www.thehindu.com/opinion/op-ed/when-even-rape-is-legal/article7298898.ece.

Law Commission of India: 42nd and 84th Reports

The 42nd Law Commission Report on the *Indian Penal Code 1860* in 1971 suggested a separate section 376A punishing sexual intercourse with a child-wife below twelve years of age with heavier punishment of seven years imprisonment and fine and if the child-wife is between the ages of 12and 15, with a milder punishment of two years and fine.[111] However, the 84th Law Commission of India Report in 1980, titled "Rape and allied offences some questions of Substantive Law, Procedure and Evidence", recommended punishment of all instances of rape of girls below the age of 18. As marriage of girls below the age of 18 is now prohibited by law, section 375 should reflect this changed mentality.[112]

A chart was given in the 84th Law Commission Report (1980) showing the historical growth of the law regarding age of consent, as on 31 March 1980:

Table 2 : Chart of the 84th Law Commission Report (1980) showing the historical growth of the law regarding age of consent

Year		Age of consent under section 375, 5th Clause, *IPC*	Age mentioned in the Exception to Section 375, *IPC*	Minimum age of marriage under the *Child Marriage Restraint Act 1929*
1860	.....	10 years	10 years	-
1891	(Act 10 of 1891)(after the amendment of *IPC*)	12 years	12 years	-
1925	(after the amendment of *IPC*)	14 years	13 years	-
1929	(after the passing of the *Child Marriage Act*)	14 years	13 years	14 years
1940	(after the amendment of the *Penal Code* and the *Child Marriage Act*)	16 years	15 years	15 years
1978	.....	16 years	15 years	15 years

The post-1940 Exception to Section 375 increased the age of consent of a married woman to sexual intercourse to 15. Post-1940, this Exception states that sexual intercourse by a man with his own wife, the wife not being under 15years of age, is not rape. From this, it is generally understood that a man cannot be guilty of raping of his own wife, if she is over the

[111]Law Commission of India (1971). 42nd Report *Indian Penal Code 1860*. (Para 16.119 at 278); Law Commission of India (1971). 42nd Report *Indian Penal Code 1860*. (Para 16.119 at p.278) http://lawcommissionofindia.nic.in/1-50/Report42.pdf.

[112]Law Commission of India (1980). 84th Report on Rape and Allied Offences Some Questions Of Substantive Law, Procedure and Evidence.(Para 2.20 at p.9). http://lawcommissionofindia.nic.in/51-100/Report84.pdf.

age of 15years, on account of the matrimonial consent she has given, which she cannot retract.[113]

The Code of Criminal Procedure Amendment Act 2008

Section 198 of the *Code of Criminal Procedure 1973* deals with prosecution for offences against marriage. According to sub-section 6, the courts cannot take cognizance of an offence of rape under section 376 *IPC* one year after the lapse of an offence regarding sexual intercourse by a man with his own wife who is below 15 years of age. Through an amendment in 2008, the words "fifteen years of age" in section 198 of the *CrPC* was substituted with "eighteen years of age" in sub-section 6. Hence sub-section 6 of section 198 *CrPC* now reads:

> No court shall take cognizance of an offence under section 376 of the *Indian Penal Code 1860* (45 of 1860), where such offence consists of sexual intercourse by a man with his own wife, the wife being under eighteen years of age, if more than one year has elapsed from the date of commission of the offence.

Court on its own motion (Lajja Devi) v State (2012)[114]

Regarding the pre-2013 section 375*IPC* position of the offence of rape, the Delhi High Court observed that it is "distressing" that the *IPC* "acquiesces child marriage" by stating that sexual intercourse by a man with his wife above the age of 15 and below the age of 16 years is not rape. The Court lamented the distressing fact that various legislations – like the *Indian Majority Act 1875*, *Hindu Minority and Guardianship Act 1956* and the *Dowry Prohibition Act 1961*– also recognize child marriages and thereby destroy the very purpose and object of the *Prohibition of Child Marriage Act 2006* (referred to by the court as the PCM Act) which has been enacted to restrain and prevent the solemnization of child marriages.

The Court then distinguished the position of girls below and above 16 years of age. With respect to girls above the age of 16 years, it held that if the girl is more than 16 years, and the girl makes a statement that she went with her consent and the statement and consent is without any force, coercion or undue influence, the statement could be accepted and Court will be within its power to quash the proceedings under section 363 or 376 *IPC*. Attending circumstances, including the maturity and understanding, social background, and the age of

[113] However, he has no right to invite others to rape her. If he does so, he would be said to abet the offence.
[114] 2012 VIAD (Delhi) 465.

the girl and male, have to be taken into consideration. The girl above the age of 16has right to get the marriage nullified under section 3 of the *Prohibition against Child Marriage Act 2006*. In cases of marriage of a girl below the age of 16 years, her consent would be immaterial. Most importantly, the Court also held that consummation with a wife below the age of 15 years is an offence and it is irrelevant whether she is married or applicable personal law provides otherwise.[115]

Meena & Another v State & Another (2012)[116]

The Court observed that for a girl who is not the wife of the man but is below 16 years of age even consensual intercourse between the two amounts to rape. But if the girl is above 16 years and is wife of the man, then even forced intercourse is not rape. This provision in the *IPC* is a specific illustration that the legislature has legitimized the concept of child marriage by keeping a lower age of consent for marital intercourse.[117]

Sexual consent obtained by putting the woman or any person in whom she is interested in fear of death or of hurt.: Tukaram (1979)

The 42nd Law Commission Report of 1971 regarding amendments to the *IPC* characterised rape into three categories: rape proper, rape with child-wife, and illicit intercourse with the girl between 12 to 16 years of age with her consent. It recommended that the words "either to herself or to anyone else present at that place" be added after the words "(c) with her consent when it has been obtained by putting her in fear of death or of hurt" in description (3) of section 375 *IPC*. However, this recommendation was not acted upon because of the dissolution of the Lower House of Parliament (*Lok Sabha*) in 1979.

Tukaram & Another v. The State of Maharashtra[118] (The Mathura case)(1979)

The Mathura case is a classic example of how the supposed "consent" of a child below the age of 16 is taken into consideration by the Indian criminal justice system in order to establish that there was no rape. This case involved the instance of custodial rape on 26 March 1972, wherein Mathura, a young tribal girl, was raped by two policemen in the police station compound. The Supreme Court's acquittal of the accused led to public outcry and

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[115]Raha, S. & Giliyal, A. (2013). *Child Marriage and the Protection of Children from Sexual Offences Act, 2012.(* p. 3), Bangalore: CCL-NLSIU https://www.nls.ac.in/ccl/justicetochildren/poscoact.pdf .
[116] W.P. (Crl.) 1231/2012.
[117] Yadav, A. (2016). A rape covered under the veil of marriage. *Lawfarm* https://lawfarm.in/blogs/a-rape-covered-under-the-veil-of-marriage.
[118]AIR 1979 SC 185.

protests. This resulted in the amendments in Indian rape law through the *Criminal Law (Second Amendment) Act 1983*.

As per the facts of the case, a *Dalit*[119] girl of 14 to 16 years of age named Mathura lived with her brother. A young man named Ashok wanted to marry her, but his match was initially rejected. Later on, they decided to marry. After Mathura left her home with Ashok, her brother lodged a complaint at a police station stating that Mathura had been kidnapped by Ashok and his family members. Later on, all of them went to the police station. After the recording of statements, they were permitted to leave. However, a constable directed Mathura to stay back and her family to proceed out. She was raped by the two police constables present there. When her family came searching for her, she informed them immediately about the rape. The sessions court failed to believe in this story and said that because Mathura was "habituated to sexual intercourse", her consent was voluntary; under the circumstances rape could not be proved. On appeal, the High Court reversed the decision of the lower court and convicted the accused, observing that her subsequent conduct in making a statement immediately, not only to her relatives, but also to the members of the Crown, leaves no manner of doubt that she was subjected to forcible sexual intercourse. It said that mere passive or helpless surrender of the body and its resignation to the others' lust, induced by threats or fear, cannot be equated with desire or will, nor can it furnish an answer by the mere fact that the sexual act was not in opposition to such desire. The Court stated that the fact that the only reason Mathura was in the police station was because of the complaint filed by her brother makes it more probable that any effort to have sexual intercourse was made by the accused and was without the consent of the prosecutrix.

Supreme Court appeal

In appeal to the Supreme Court, a bench comprising of Justices A.D. Koshal, Jaswant Singh, and P.S. Kailasam set aside the conviction on the grounds that the said sexual intercourse was not proved to have amounted to rape. It further held that there were no circumstances available which made out a case of fear on the part of the girl and there was no finding that she was put to fear of death or hurt. The Supreme Court pointed out that Mathura had raised no alarm and there were no visible marks of injury on her person, suggesting no struggle and

[119]This term is the political name of the lowest castes in India, commonly grouped under the Scheduled Castes and Scheduled Tribes, who are historically disadvantaged communities that were traditionally excluded from society as "untouchables". The term means "broken".

therefore no rape. It said that unless the fear was of hurt or death, it would not vitiate consent and in this case the circumstantial evidence proves that the fear, if any, was not the kind to vitiate consent. The medical evidence adduced also proved that Mathura was used to sexual intercourse. Therefore, section 375 (3) *IPC* was held not apply in this case.

The 84th Law Commission Report of 1980 and the Criminal Law (Amendment) Act 1983

The Mathura case decision by the Supreme Court was vehemently protested against by women's organisations in various cities in India. Thereafter, the 84th Law Commission Report of 1980 on "Rape and Allied Offences: Some Questions of Substantive Law, Procedure and Evidence" was submitted to the government. It stated that consent is vitiated not only when a woman is put in fear of death or hurt, but also when she is put in fear of any injury being caused to any person (including herself) in body, mind, reputation or property and also when her consent is obtained by criminal intimidation – that is to say, by any words or acts intended or calculated to put her in fear of any injury or danger to herself or to any person in whom she is interested or when she is threatened with any injury to her reputation or property or to the reputation of anyone in whom she is interested. Thus, if the consent is given after threatening to spread false and scandalous rumours about her character, or destruction of her property, or injury to her children or parents, or by holding out threats of other injury to her person, reputation or property that consent will not be consent under the third description of Section 375 *IPC*.[120]

Pursuant to the 84th Law Commission Report, the third description of section 375 *IPC* was widened by the *Criminal Law (Amendment) Act 1983* by the insertion of the words "or any person in whom she is interested" after the words "putting her" in fear of death or hurt in the clause. Consent to sexual intercourse obtained by putting the woman or anyone she is interested in – such as her children, husband or parents – into fear of death or hurt is treated as no consent. Hence, such kind of sexual intercourse would be treated as rape of the woman.[121]

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[120]Law Commission of India (1980). 84th Report on Rape and allied offences some questions of Substantive Law, Procedure and Evidence. (Para 2.9 at p. 6) http://lawcommissionofindia.nic.in/51-100/Report84.pdf.

[121] The *Criminal Law (Second Amendment) Act 1983* also added section 114 (A) of the *Evidence Act* to state that if the victim says that she did not consent to the sexual intercourse, the Court shall presume that she did not consent, which shall be a rebuttable presumption. New sections were added to the *Indian Penal Code 1860*: sections 376(A), 376(B), 376(C) and 376(D), which made custodial rape punishable. It also added provisions for in-camera trials, the prohibition on the victim identity disclosure, and tougher sentences in the *Code of Criminal Procedure*.

Socio-cultural contexts regarding the plight of a female victim of a sexual offence: Bharwada Bhoginbhai Hirjibhai (1983)

In *Bharwada Bhoginbhai Hirjibhai v State of Gujarat,*[122]two young girls visited the appellant's house in order to play with his daughter who was their friend. She was not at home, but her father falsely induced them to enter the house. Once they were inside, the appellant closed the door, undressed himself in the presence of both the girls, and exposed himself. He asked one of the girls to indulge in an indecent act, whereupon she fled from the house. The other girl could not escape. She was pushed into a cot and was made to undress. The appellant sexually assaulted her. The parents of both assaulted girls wanted to keep the matter quiet. However, the residents of the locality came to know about the incident and took up the cause. The Sessions Judge found the appellant guilty of serious charges of sexual misbehaviour with the two girls and convicted the appellant for the offence of rape, outraging the modesty of women, and wrongful confinement. The High Court affirmed the order regarding wrongful confinement and outraging the modesty, but modified the conviction under rape to attempt to rape (section 376 read with section 511 of the *IPC*).[123] The appellant appealed to the Supreme Court.

Supreme Court appeal

Justices M.P. Thakkar and A.P. Sen rejected his appeal, and made a number of crucial observations on the plight of an Indian girl or woman who is a victim of sexual assault. These observations laid down, for the first time, the socio-psychological reasons which make the average Indian female cry "rape". The Supreme Court observed that rarely will a girl or woman in India make false allegations of sexual assault, regardless of her position in society. An exception or two may exist, possibly from the urban elites. The learned judges of the Supreme Court listed several reasons for this observation:

> (1) A girl or woman in the tradition-bound non-permissive society of India would be extremely reluctant even to admit that any incident which is likely to reflect on her chastity had ever occurred.
> (2) She would be conscious of the danger of being ostracised by the society or being looked down by her own family members, relatives, friends and neighbours.
> (3) She would have to brave the whole world.
> (4) She would face the risk of losing the love and respect of her own husband and near relatives, and of her matrimonial home and happiness being shattered.
> (5) If she is unmarried, she would apprehend that it would be difficult to secure an alliance with a suitable match from a respectable or an acceptable family.
> (6) It would almost inevitably and almost invariably result in mental torture and suffering to herself.
> (7) The fear of being taunted by others will always haunt her.

[122] 1983 (3) SCC 566.
[123]Section 511 of the *IPC* deals with attempt to commit an offence under the *IPC.*

> (8)She would feel extremely embarrassed in relating the incident to others being overpowered by a feeling of shame on account of the upbringing in a tradition-bound society where, by and large, sex is a taboo.
> (9) The natural inclination would be to avoid giving publicity to the incident lest the family name and family honour is brought into controversy.
> (10) The parents of an unmarried girl, as also the husband and members of the husband's family of a married woman, would also more often than not, want to avoid publicity on account of the fear of social stigma on the family name and the family honour.
> (11) The fear of the victim herself being considered to be promiscuous or in some way responsible for the incident regardless of her innocence.
> (12) The reluctance to face interrogation by the investigating agency, to face the court, to face the cross-examination by counsel for the culprit, and the risk of being disbelieved, acts as a deterrent.[124]

Satish (2017) comments that the Court stereotypes a rape victim whose testimony could be believed and acted upon without corroboration as a person from a rural area and a traditional and conservative background, who treasures her chastity and is ashamed to speak about it in public, who if unmarried would fear that her prospects of getting married would be hampered, and who exhibits visible signs of emotional trauma, agony and suffering on account of the rape.[125]

A procedural shift in the trial of rape cases: A change to protect the victim against stereotypical branding and prosecution as "immoral": *Gurmit Singh*(1996)

State of Punjab v Gurmit Singh [126] was the first case in which the Supreme Court laid down guidelines to be followed by trial courts in cases of rape, due to the trial court adding to the trauma of the victim by branding her as a person of loose morals and acquitting the accused on the basis of her delay in filing the case. This case is a glaring example of secondary victimization when the victim, who is being "protected" by the criminal justice administration system, finds this experience more traumatic than the alleged abuse

In this case, a young girl below the age of 16 years was abducted from her school by the three accused. She was repeatedly raped by each one of them in turn under the threat of death if she raised an alarm. Hence, she kept quiet. The delay in filing the First Information Report with the police as well as slight discrepancies in her testimony led the Sessions Court in Ludhiana to acquit all the accused on both counts of abduction and rape. The trial court referred to the young village girl as a person of loose character who had invented the story of rape in order to justify spending a night out of home. It refused to rely on her statement.

Supreme Court appeal

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[124] At para 10.
[125]Satish, M. (2017). *Discretion, Discrimination and the Rule of Law- Reforming Rape Sentencing in India.* Delhi: Cambridge University Press, p. 42–43.
[126] MANU/SC/0366/1996.

The Supreme Court bench comprising of Justice A.S. Anand and Justice Ahmad Saghir S. observed that the appreciation of evidence by the trial court was "not only unreasonable but perverse". The Supreme Court held that the sexual intercourse was against the girl's will for which the accused were liable for rape under section 376 of the *IPC*. *Gurmit Singh* is important because it was the first time the Supreme Court laid down guidelines for trial in cases of rape:

1. Delay in lodging First Information Report is not material when properly explained.
2. The Court should find no difficulty in convicting the accused on the prosecutrix's testimony alone. Corroboration of the victim's testimony would be necessary only if there are compelling reasons.
3. The trial of sexual offences should be *in camera* and invariably by a lady judge whenever available.
4. The Court must refrain from making derogatory observations of the prosecutrix.
5. In a rape trial, the Court is under an obligation to ensure that the prosecutrix is not harassed and humiliated in cross-examination.

The 156th Law Commission Report (1997): A legal definition of the term "child sexual abuse"

This Report put forth a definition of child sexual abuse:

"Accordingly, child sexual abuse could be any kind of 'physical or mental violation of the child with sexual intent usually by an elder person who is in a position of trust or power viz-a-viz the child". [127]

This definition was based on those provided by Schwartz et. al(1990) and Amod Kanth (1996).[128]The 156th Report stated that child sexual abuse may be committed in various forms, such as sexual intercourse, carnal intercourse and sexual assault. The cases involving penile penetration into vagina are covered under section 375 of the *IPC*. Cases of penile/oral penetration and penile penetration into the anus are covered under section 377 of the *IPC*, whereas acts such as penetration of finger or any inanimate object into vagina or anus against a woman or a female child would be covered under an amended section 354 of the *IPC*. The Commission felt that a distinction has to be naturally maintained between sexual assault/use of criminal force falling under section 354, sexual offences falling under section 375 and

[127] Section 9.52 of the 156th Law Commission Report (1997) on the *Indian Penal Code 1860* at p.175 refers here to Gomes-Schwartz, B., Horowitz, J.M., Cardarelli, A.P. (1990) *Child Sexual Abuse: The initial effects,* Newbury Park, CA: Sage Publications, pp.58-59.

[128]The experience may vary from an adult exposure of genitals to the child or to persuade the child to do the same, the adult touching the child's genital or making the child to touch his own, involving the child in pornography – both printed and visual, having oral, vaginal or anal intercourse with the child, making verbal or other sexual suggestions or indecent overtures. In addition, fondling or fingering, touching or voyeurism or any such attempt could also be child sexual abuse. Section 9.52 of the 156th Law Commission Report (1997) on the *Indian Penal Code 1860* at pp.175-176 refers here to Amod Kanth (1996), 'CSA Legal and Investigative Perspective" in Sheela Barse (Ed) *Child Victim's Rights: Report of International Conference on Child Sex Abuse, Victim Protective Investigation and Trial Procedure,* p.13.

unnatural offences falling under section 377 *IPC*. It stated it would not be appropriate to bring unnatural offences punishable under section 377 or mere sexual assault or mere sexual use of criminal force which may attract section 354 within the ambit of "rape", as rape is a distinct and grave offence with a definite connotation.

A case for gender-neutrality: *Sudhesh Jhaku* (1998)

In *Sudhesh Jhaku v KC. Jhaku* [129] the Supreme Court was asked to determine whether the definition of rape could include non-penetrative sexual acts. The Court stated it was for the legislature to make such an interpretation. Sikri, J stated that he preferred the offence of rape to be redefined in gender-neutral terms. He quoted Legrand (1973) who stated that men who are sexually assaulted should have the same protection as female victims, and that women sexual assaulters should be as liable for conviction as conventional (male) rapists. If rape were to be considered as a sexual assault, rather than a special crime against women, rape law could be put in a healthier perspective and reduce the mythical elements that have tended to make rape laws a means of reinforcing the status of women as sexual possessions.[130]

The definition of "sexual intercourse" in section 375 *IPC: Sakshi* (1999, 2004)

Persuant to the *Sakshi* case which sought clarification of the meaning of the term "sexual intercourse" used in section 375 *IPC*, the Supreme Court directed the Law Commission to make recommendations regarding the same. The Law Commission submitted its 172nd report in 2000 recommending an expanded definition to the offence under section 375 *IPC*, and proposed renaming it as "Sexual Assault" instead of "Rape".

***Sakshi v Union of India (1999)*[131]**

In Writ Petition (Crl.) No.33 of 1997, the petitioner, "Sakshi", an organisation interested in issues concerning women, approached the Supreme Court of India for directions concerning the definition of "sexual intercourse" as contained in section 375 *IPC*. The Law Commission's reply was that such issues had already been dealt with by the 156th Law Commission Report. The Supreme Court, under Chief Justice Dr. A. S. Anand, Justice Sujata V. Manohar and Justice B. N. Kirpal, felt that the precise issues raised in the writ petition had

[129]MANU/DE/0153/1996.
[130]Legrand C.E. (1973). Rape and Rape Laws: Sexism in Society and the Law. *California Law Review,* 61 (3), pp. 919 -941 at p.941 (quoted in *Id* at para 29).
[131] MANU/SC/1007/1999.

not been dealt with by the 156th Law Commission Report. Therefore, the Supreme Court disposed of the case by directing the Law Commission,

> to examine the issues submitted by the petitioners and examine the feasibility of making recommendations for amendment of the *Indian Penal Code 1860* or deal with the same in any other manner so as to plug the loopholes.

The 172nd Law Commission Report 2000

Thereafter, a copy of the draft of comments prepared by the Law Commission was forwarded to Sakshi, and other women's organisations; namely, Interventions for Support, Healing and Awareness (IFSHA), All India Democratic Women's Association (AIDWA) and the National Commission for Women (NCW) inviting their views for changes of a procedural nature, whether in the *Criminal Procedure Code 1973* or the *Indian Evidence Act 1872*.

After detailed discussions, the Law Commission recommended, in its 172nd report submitted to the Government of India in 2000, that the law relating to rape is to be made gender-neutral, wider, and more comprehensive in order to bring it in line with current thinking.

Various other changes were recommended to sections 376, 376A to 376D *IPC*. It recommended the insertion of a new section 376F dealing with unlawful sexual contact, deletion of section 377 *IPC* and enhancement of punishment in section 509 *IPC*. The proposed section 375 *IPC* read as:

Section 375. Sexual Assault:
Sexual assault means-
(a) penetrating the vagina (this term shall include the labia majora), the anus or urethra of any person with any part of the body of another person, or
an object manipulated by another person except where such penetration is carried out for proper hygienic or medical purposes;
(b) manipulating any part of the body of another person so as to cause penetration of the vagina (which shall include the labia majora), the anus or urethra of the offender by any part of the other person's body;
(c)introducing any part of the penis of a person into the mouth of another person;
(d) engaging in cunnilingus or fellatio; or
(e)containing sexual assault as defined in clauses (a) to (d) above in circumstances falling under any of the six following descriptions:
First - Against the other person's will.
Secondly - Without the other person's consent.
Thirdly - With the other person's consent when such consent has been obtained by putting such other person or any person in whom such other person is interested, in fear of death or hurt.
Fourthly - Where the other person is a female, with her consent, when the man knows that he is not the husband of such other person and that her consent is given because she believes that the offender is another man to whom she is or believes herself to be lawfully married.
Fifthly - With the consent of the other person, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by the offender personally or through another of any stupefying or unwholesome substance, the other person is unable to understand the nature and consequences of that to which such other person gives consent.

Sixthly - With or without the other person's consent, when such other person is under sixteen years of age.
Explanation: Penetration to any extent is penetration for the purpose of this section.
Exception: Sexual intercourse by a man with his own wife, the wife not being under sixteen years of age, is not sexual assault.

The 172nd Law Commission Report recommended using a gender-neutral term – namely "sexual assault"– in place of the offence of rape under section 375 *IPC*, and deletion of the existing section 377 *IPC* which punishes unnatural offences. However, these recommendations were not incorporated into legislation.[132]

Only penile penetration constitutes rape: *Sakshi* (2004)[133]

In its 1999 decision on the *Sakshi* case, the Supreme Court referred the matter on 13 January 1998 to the Law Commission of India for its opinion as to whether all forms of penetration would come within the ambit of section 375 *IPC* or whether any change in statutory provision need to be made, and if so in what respect. However, in its 2004 judgment, the Supreme Court under Chief Justice S. Rajendra Babu and Justice G. P. Mathur held that only penile penetration would constitute rape, and no other forms of penetration would attract the offence under section 375 *IPC*. The Supreme Court held that prosecution of an accused for an offence under section 376 *IPC* on a radically enlarged meaning of section 375 *IPC* may violate the guarantee enshrined in Article 20(1) of the Constitution, which states that no person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. The Supreme Court held "it will not be in the larger interest of the State of the people to alter the offence of rape as contained in Section 375 *IPC* to include penetration other than penile penetration, by a process of a judicial interpretation as is sought to be done by the petitioner" in that case." Thus, despite the recommendations of the 172ndLaw

[132]It was after 12 years that the *Protection of Children Against Sexual Offences Act 2012* criminalised sexual violence against children by using the terms "aggravated sexual assault" and "sexual assault". Thereafter, the *Criminal Law (Amendment) Bill 2012* (introduced on 4 December 2012) also used the term "sexual assault" in place of the existing term "rape" for defining the offence under section 375 of the *IPC* which, post the Delhi Rape Incident on 16 December 2012, found place in the *Criminal Law Amendment Ordinance 2013* (promulgated on 3 February 2013). However, the J.S. Verma Committee Report submitted on 23 January 2013 recommended the retention of the offence of "rape" instead of using the term "sexual assault". Rape was defined by this Report as an offence by a man (the offender) upon a "person" (the victim), which included "all forms of non-consensual penetration of a sexual nature", again preferring a partly gender-neutral definition of the victim, thereby expanding the traditional understanding of the term "rape". Ultimately, however, the *Criminal Law (Amendment) Act 2013* retained the traditional interpretation of male offender upon female victim. As a result, the *Criminal Law (Amendment) Act 2013* once again defines rape as an offence perpetuated by a man against a woman, which includes all forms of non-consensual penetration, both penile and non-penile.
[133]MANU/SC/0523/2004.

Commission, the Supreme Court refused to tamper with the existing interpretation of the offence of rape in section 375 *IPC*.

Unfortunately, the recommendations of the Law Commission were not taken into consideration by the Indian Parliament and no amendments to the *IPC* and allied laws were made. It took almost 13 years for parliamentary change to be wrought in the *IPC* and related laws regarding sexual offences, mainly due to the public outrage propagated through social media regarding the Delhi Rape Incident in 2012.

Further recommendations to reform the law in Section 375 *IPC*

The Criminal Law (Amendment) Bill 2012 definition of rape

Section 375 *IPC* was defined as follows:

> Section 375, *Indian Penal Code 1860*.
> A person is said to commit "sexual assault" if that person—
> (a) penetrates, for a sexual purpose, the vagina or anus or urethra or mouth of another person with—
> (i) any part of the body including the penis of such person; or
> (ii) any object manipulated by such person,
> except where such penetration is carried out for proper hygienic or medical purposes;
> (b) manipulates any part of the body of another person so as to cause penetration of the vagina or anus or urethra or mouth of such person by any part of the other person's body;
> (c) engages in "cunnilingus" or "fellatio",
> under the circumstances falling under any of the following six descriptions:—
> Firstly.—Against the other person's will.
> Secondly.— Without the other person's consent.
> Thirdly.— With the other person's consent when such consent has been obtained by putting such other person or any person in whom such other person is interested, in fear of death or of hurt.
> Fourthly.—When the person assaulted is a female, with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes to be lawfully married.
> Fifthly.—With the consent of the other person when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by that person personally or through another of any stupefying or unwholesome substance, the other person is unable to understand the nature and consequences of that action to which such other person gives consent.
> Sixthly.—With or without the other person's consent, when such other person is under eighteen years of age.
> Explanation I.—Penetration to any extent is "penetration" for the purposes of this section.
> Explanation II.—For the purposes of this section, "vagina" shall also include labia majora.
> Exception.—Sexual intercourse or sexual acts by a man with his own wife, the wife not being under sixteen years of age, is not sexual assault.

The J.S. Verma Committee Report definition of "rape"

The Committee objected to the use of the term "sexual assault" over "rape" in section 375 *IPC*. It stated that the *Criminal Law (Amendment) Bill 2012* uses the term "sexual assault" in lieu of "rape" to cover a wider gamut of offences including penetrative sexual assault which has thus far been called "rape" in the *IPC*. However, the Committee found *POCSO* defines the term "sexual assault" in a limited context. Section 7 *POCSO* confines sexual assault to

acts that involve physical contact without penetration. Hence, if rape were to be redefined as "sexual assault" in relation to the *IPC* then there would be a clear contradiction between that and the *POCSO*. The Committee recommended that the term "rape" be retained in the *IPC* to denote the highest categorisation of sexual assault of penetrative sexual assault.[134]

The Committee opined that rape and sexual assault are not merely crimes of passion but an expression of power.[135]Rape should be retained as a separate offence.[136] It is not to be limited to penetration of the vagina, mouth or anus. Any non-consensual penetration of a sexual nature should be included in the definition.[137] The offender is to be retained as male, but the victim should be changed from women to "a person". This Report advocated male gender-specificity for the offender, and gender-neutrality in the case of the victim.

The J.S. Verma Committee Report defined rape in the *IPC* as follows:[138]

> 375. A man is said to commit rape if he—
>
> (a) penetrates the vagina or anus or urethra of a person with—
> (i) any part of his body including his penis or,
> (ii) any object manipulated by him, except where such penetration is carried out for proper hygienic or medical purposes; or,
> (b) manipulates any part of the body of a person so as to cause penetration of the vagina or anus or urethra of another person; or,
> (c) engages in "cunnilingus" or "fellatio",
> under the circumstances falling under any of the following six descriptions:—
> Firstly.—Against the person's will; or,
> Secondly.— Without the person's consent; or,
> Thirdly.—With the person's consent, where such consent has been obtained by putting the person, or any other person in whom the person is interested, in fear of death or of hurt;
> or,
> Fourthly.— With the person's consent, when the man induces the person to consent to the relevant act by impersonating another man to whom the victim would have otherwise knowingly consented to; or,
> Fifthly.— With the person's consent, when at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by the man personally or through another of any stupefying or unwholesome substance, the person is unable to understand the nature and consequences of the action to which he/she gives consent; or,
> Sixthly.— When the person is unable to communicate consent either express or impliedly.
> Explanation I.— For the purposes of this section, "penetration" means penetration of the vagina, anus or urethra to any extent.
> Explanation II.—For the purposes of this section, "vagina" shall also include labia majora.
> Explanation III.—Consent will not be presumed in the event of an existing marital relationship between the complainant and the accused.
> Explanation IV.—Consent means an unequivocal voluntary agreement when the person by words, gestures or any form of non-verbal communication, communicates willingness to participate in the specific act.

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[134]Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.434.
[135]*Id*, at p.220, Para 37.
[136]*Id*, at p. 111, Para 67.
[137]*Id*, at p. 111, Para 68.
[138] *Id* at pp.439-440, Appendix 4, sub-heading 7, Section 375.

Provided that, a person who does not offer actual physical resistance to the act of penetration is not by reason only of that fact, to be regarded as consenting to the sexual activity

The Criminal Law (Amendment) Ordinance 2013

As per the recommendation of the J.S. Verma Committee Report, the President of India promulgated this Ordinance on 3 February 2013. Section 375 *IPC* read as follows:

375. A person is said to commit "sexual assault" if that person–
(a) penetrates his penis, to any extent, into the vagina, mouth urethra or anus of another person or makes the person to do so with him or any other person; or
(b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of another person or makes the person to do so with him or any other person; or
(c) manipulates any part of the body of another person so as to cause penetration into the vagina, urethra, anus or any part of body of such person or makes the person to do so with him or any other person; or
(d) applies his mouth to the penis, vagina, anus, urethra of another person or makes such person to do so with him or any other person;
(e) touches the vagina, penis, anus or breast of the person or makes the person touch the vagina, penis, anus or breast of that person or any other person,
except where such penetration or touching is carried out for proper hygienic or medical purposes under the circumstances falling under any of the following seven descriptions:-
First.— Against the other person's will.
Secondly. — Without the other person's consent.
Thirdly. — With the other person's consent when such consent has been obtained by putting such other person or any person in whom such other person is interested, in fear of death or of hurt.
Fourthly. — When the person assaulted is a female, with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes to be lawfully married.
Fifthly.— With the consent of the other person when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by that person personally or through another of any stupefying or unwholesome substance, the other person is unable to understand the nature and consequences of that action to which such other person gives consent.
Sixthly. — With or without the other person's consent, when such other person is under eighteen years of age.
Seventhly. — When the person is unable to communicate consent.
Explanation 1.— Penetration to any extent is "penetration" for the purposes of this section.
Explanation 2.— For the purposes of this section, "vagina" shall also include labia majora.
Explanation 3.— Consent means an unequivocal voluntary agreement when the person by words, gestures or any form of non-verbal communication, communicates willingness to participate in the specific act:
Provided that, a person who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.
Exception.— Sexual intercourse or sexual acts by a man with his own wife, the wife not being under sixteen years of age, is not sexual assault.

The 167th Report On The Criminal Law (Amendment) Bill 2012[139]

A Report by the Parliamentary Standing Committee On Home Affairs on the Criminal Law (Amendment) Bill 2012 was presented to the *Rajya Sabha* on 1March 2013 and laid on the table of the Lok Sabha on 4 March 2013. This Report stated thus:

[139]The One Hundred And Sixty Seventh Report On The Criminal Law (Amendment) Bill, 2012, Department-Related Parliamentary Standing Committee On Home Affairs.
http://www.prsindia.org/uploads/media/Criminal%20Law/SCR%20Criminal%20Law%20Bill.pdf

> While discussing about Section 375, some Members felt that the word 'rape' should also be kept within the scope of sexual assault. The Home Secretary clarified that there is a change of terminology and the offence of 'rape' has been made wider. Some Members also suggested that somewhere there should be some room for wife to take up the issue of marital rape. It was also felt that no woman takes marriage so simple that she will just go and complain blindly. Consent in marriage cannot be consent forever. However, several Members felt that the marital rape has the potential of destroying the institution of marriage. The Committee felt that if a woman is aggrieved by the acts of her husband, there are other means of approaching the court. In India, for ages, the family system has evolved and it is moving forward. Family is able to resolve the problems and there is also a provision under the law for cruelty against women. It was, therefore, felt that if the marital rape is brought under the law, the entire family system will be under great stress and the Committee may perhaps be doing more injustice. Some Members also suggested that the age mentioned in the exception to the Section may be raised to 18 years from 16 years. The exception provides that sexual intercourse or sexual acts by a man with his own wife, the wife not being under 16 years of age, is not sexual assault. The Home Secretary, responding to this suggestion, stated that by doing so by one stroke, the marriages in thousands in different States would be outlawed. One Member again suggested that for the words 'with or without the other person's consent, the words 'with or without the complainant's consent' may be used. The Committee, however, felt that by using complainant, a proper message will not go and existing formulation may continue.[140]

The Parliamentary Standing Committee recommended the following definition for the offence under section 375 *IPC*:

> Section 375. Sexual assault
> A person is said to commit "sexual assault" if that person—
> (a)penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of another person or makes the person to do so with him or any other person; or
> (b)inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of another person or makes the person to do so with him or any other person; or
> (c) manipulates any part of the body of another person so as to cause penetration into the vagina, urethra, anus or any part of body of such person or makes the person to do so with him or any other person; or
> (d) applies his mouth to the penis, vagina, anus, urethra of another person or makes such person to do so with him or any other person;
> (e)touches the vagina, penis, anus or breast of the person or makes the person touch the vagina, penis, anus or breast of that person or any other person,
> except where such penetration or touching is carried out for proper hygienic or medical purposes under the circumstances falling under any of the following seven descriptions.
> First.— Against the other person's will.
> Secondly.— Without the other person's consent.
> Thirdly. — With the other person's consent when such consent has been obtained by putting such other person or any person in whom such other person is interested, in fear of death or of hurt.
> Fourthly. — When the person assaulted is a female, with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes to be lawfully married.
> Fifthly.— With the consent of the other person when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by that person personally or through another of any stupefying or unwholesome substance, the other person is unable to understand the nature and consequences of that action to which such other person gives consent.
> Sixthly.— With or without the other person's consent, when such other person is under eighteen years of age.
> Seventhly.— When the person is unable to communicate consent.
> Explanation 1.— Penetration to any extent is "penetration" for the purposes of this section.
> Explanation 2.— For the purposes of this section, "vagina" shall also include labia majora.
> Explanation 3.— Consent means an unequivocal voluntary agreement when the person by words, gestures or any form of non-verbal communication, communicates willingness to participate in the specific act:

[140] *Id* at pp.47-48, Para 5.9.

> Provided that, a person who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.
> Exception.— Sexual intercourse or sexual acts by a man with his own wife, the wife not being under sixteen years of age, is not sexual assault.[141]

Post–Criminal Law (Amendment) Act 2013

The *Criminal Law (Amendment) Act 2013* gave the offence of rape a wider meaning. Rape is no longer confined to penile-vaginal penetration. It includes penile penetration, or insertion of any object or non-penile body part, or manipulation of a body part of a woman, by a man, or application of his mouth, into the vagina, mouth, urethra and anus of the woman. When a woman is forced to perform such penetration, insertion etc with him or any other person, this would also amount to rape.

Section 375 *IPC* states thus:

> Rape:
> A man is said to commit "rape" if he-
> (a)penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her do so with him or any other person; or
> (b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or
> (c) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or
> (d) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person, under circumstances falling under any of the following seven descriptions:
> First.— Against her will.
> Secondly.— Without her consent.
> Thirdly.— With her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt.
> Fourthly.— With her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.
> Fifthly.— With her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.
> Sixthly.— With or without her consent, when she is under eighteen years of age.
> Seventhly.— When she is unable to communicate consent.
> Explanation 1.—For the purposes of this section, "vagina" shall also include labia majora
> Explanation 2.— Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:
> PROVIDED that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.
> Exception 1.— A medical procedure or intervention shall not constitute rape.
> Exception 2.— Sexual intercourse or sexual acts by a man with his own wife, the wife not being under fifteen years of age, is not rape.

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[141]*Id* at p. 59, Para 5.17, *Chapter V: Final Deliberations and Clause-by-Clause Consideration and Recommendations.*

The amended section is a copy of various instances of penile and non-penile penetration, which has been defined as "penetrative sexual assault" under the *POCSO*. The difference is while the perpetrator in *POCSO* is gender-neutral, the perpetrator in the amended *IPC* is a man, as in the original *IPC*, and the offence continues to be termed as "rape". It can be seen that the first five instances of the circumstances which would constitute rape is the same as in the pre-2013 *IPC*. However, in the sixth instance, the age of the consent has been raised to 18years. Hence, whether she consents or not, if she is under 18years of age, her consent to sexual intercourse is immaterial and such sexual intercourse with a girl under the age of 18will be construed as rape.

A seventh instance of rape has been added. If a woman is unable to communicate her consent, it will be deemed that she did not consent and hence the act of sexual intercourse will be construed as rape.

The first Explanation to Section 375 states that vagina includes *labia majora*. The second Explanation defines the term consent as an "unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act". A proviso to the Explanation states that just because a woman does not physically resist the act of penetration, she shall not, by the reason only of that fact, be regarded as consenting to the sexual activity. The first Exception to Section 375 *IPC* states that a medical procedure or intervention shall not constitute rape.

Marital rape under section 375, post-2013

Prior to the 2013 Amendment, there was only a single Exception to Section 375 *IPC*, which exempted sexual intercourse by a man with his own wife, the wife not being under 15years of age, from the ambit of rape. Currently, this Exception is numbered as the second Exception to Section 375 *IPC*. No change has been made regarding the content of this exception, which repeats the statement that sexual intercourse or sexual acts by a man with his own wife who is above 15years of age is not rape.

Question of culpability of a child engaged in sexual activities below the age of consent

In the pre-2013 *IPC*, the question of consent to sexual intercourse had to be addressed before arriving at a conclusion of rape in cases involving girls above the age of 16years. The *Penal*

Code puts the legal age of exoneration of a child from unlawful activities as below seven years.[142] Children above the age of seven and below the age of 12can be made criminally responsible if found to be having sufficient mental capacity to understand the implication of their criminal act.[143] Criminal responsibility for offences accrues to all persons above the age of 12. A reading of section 375 *IPC* shows the age of consent to sexual activity of a girl child as 16years of age. If she was married, her age of consent to sexual activity is 15as per the second Exception to Section 375 *IPC*. Therefore, it may be understood that under the prior law girl-children were not held criminally responsible for indulging in sexual activities below the age of 16years if unmarried and below 15years if married, as all their sexual activity with men is regarded as statutory rape.[144] However, this principle does not apply in the case of boy-children above the age of seven years, who can be held criminally responsible for committing rape under section 375 *IPC*. On the other hand, criminal responsibility for both male and female children may accrue in the case of unnatural offences under section 377 *IPC*.

The *POCSO* criminalises penetrative and non-penetrative sexual assault of children below the age of 18. The *Criminal Law Amendment Bill 2012* also stated that "sexual assault" under section 375 *IPC* would occur if the person is below the age of 18, irrespective of consent. The J.S. Verma Committee Report lamented the fact that such increase in the age of consent for children to engage in consensual sexual activity has criminalized all consensual sexual activity of children below the age of 18, and goes against the spirit of the *UNCRC*.[145] Thereafter, the *Criminal Law (Amendment) Bill 2013*, in section 375 *IPC*, put the age of consent at 16 years. But this was reversed to 18 years in the *Criminal Law (Amendment) Act 2013*.

It has been questioned whether Indian law recognizes 18 as the legal age of adulthood.[146] A perusal of pre-1950 enactments made during the British rule, and post-1950 enactments made

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[142]Section 82 *IPC*: Act of a child under seven years of age: Nothing is an offence which is done by a child under seven years of age.

[143] Section 83 *IPC:* Act of a child above seven and under twelve of immature understanding: Nothing is an offence which is done by a child above seven years of age and under twelve, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion.

[144] When the prosecutrix is a minor aged below 16 years, the question of her being a consenting party to the sexual inter-course does not arise or is of no consequence : *Naresh v State of Haryana* (1997) 2 Crimes 587 (P&H).

[145]Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, pp.443-444.

[146]Bajpai, A. (2007). Who is a Child? Info Change News and Features. Pune: Centre for Communication and Development Studies. Retrieved 12 January 2017, from

after Indian Independence point to the fact that the age of 18 has been adopted. Under the *Age of Majority Act 187*5, every person domiciled in India shall attain the age of majority on completion of 18 years and not before. However, in the case of a minor for whose person or property, or both, a guardian has been appointed or declared by any court of justice before the age of 18 years, and in case of every minor the superintendence of whose property has been assumed by the Court of Wards, the age of majority will be 21 years and not 18. The *Child Marriage Restraint Act 1929* is another piece of legislation which defined "child" as a person who, if a male, has not completed 21 years of age, and if a female, has not completed 18 years of age, and the definition remains the same even after repeal through the recent *Prohibition of Child Marriage Act 2006*. However, other recent legislation has fixed the definition of child to 18years, irrespective of gender. Under the *Juvenile Justice (Care and Protection of Children) Act 2000*, the age is 18for both boys and girls. The *Protection of Women from Domestic Violence Act 2005* defines a child as any person below the age of 18. The *POCSO* also defines a child as a person under the age of 18.

The inconsistency in the *Indian Penal Code 1860* between the genders regarding age of sexual consent, the context of child marriage, and the need for specific legislation dealing with the age for sexual consent have been analyzed in Chapter 4.

Case law

A synthesis of recent case law demonstrates that judges favour non-criminalisation of sexual activity when the child is mature and responsible enough to understand the implications of his/her sexual act. The following are case law which shows the intersection between child marriage, sexual consent of children below the age of 18, and Indian criminal law:

1. ***Marimuthu v The Inspector of Police, Ayakudi Police Station and Others(2016)***[147]

This case was decided by Justice Dr. S. Vimala of the High Court of Madras (Madurai bench).The father of a minor girl aged 17 years 8 months complained that his daughter had been kidnapped by the accused, aged 17 years 6 months. Investigation found that the girl married the accused out of her own free volition and became pregnant with his child. Her father presented a writ petition before the High Court asking for the abortion of his daughter's foetus, while she herself did not wish to terminate her pregnancy. The Court

http://infochangeindia.org/index.php?option=com_content&view=article&id=6472:who-is-a-child&catid=245:child-rights-in-india&Itemid=149.

[147] MANU/TN/2236/2016.

examined the matter and found that the marriage was not void under section 12 (a) to (c), of the Prohibition of Child Marriages Act, 2006, which nullifies marriages when a minor: (a) is taken or enticed out of the keeping of the lawful guardian; or (b) by force compelled or deceitfully induced to go from any place; or (c) sold for the purpose of marriage and made to go through a form of marriage or if the minor is married after which the minor is sold or trafficked or used for immoral purposes. Hence, the request of the father to terminate the pregnancy of the daughter without her consent was not permitted by the Court.

The Court referred to the study by the National Law School, Bangalore where it stated that the tragedy of *POCSO* lies in the fact that under the guise of protecting children, minors are being dragged into the criminal justice system, which results in trauma. The Court quoted the National Commission for Protection of Child Rights which had proposed in 2010 that any consensual sexual act should not be an offence when it involves two persons who are both above 14 and are either of the same age or the age difference is not more than three years. The Court stated that the *Prohibition of Child Marriage Act 2006* is silent on sexual relations in a child marriage, and extends legitimacy to children born of child marriages, thereby indirectly acknowledging sexual intercourse within a child marriage. Under the *IPC*, sexual intercourse by a man with his wife above 15 years is an exception to rape. The *Criminal Law (Amendment) Act 2013* raised the age of consent to 18 years but did not disturb this exception. As a result, sexual intercourse with a wife above 15 years and below 18 years of age will not amount to rape under the *IPC*. The Courts stated that it is time that child marriage be prohibited, but it is unclear what happens to the marriage which is already performed due to lack of awareness. The Court dismissed the petition stating that this case has ramifications which touch upon the constitutional validity of the *POCSO* and hence cannot be decided by the single bench of this Court.

2. ***Satpal v State of H.P. and Others (2015)***[148]

This case was decided by Justice Rajiv Sharma in the High Court of Himachal Pradesh at Shimla. The petitioner was in love with a woman named Pooja who was below the age of 18. A case was charged against the petitioner under sections 363 *IPC* (punishment for kidnapping) and 366 *IPC* (kidnapping, abducting or inducing woman to compel her marriage, etc.), as well as section 4 (penetrative sexual assault) of the *POCSO*. A baby daughter was born to them the following year. The petitioner was before the High Court to invoke section

[148] MANU/HP/1079/2015.

482 of the *Code of Criminal Procedure 1973* in order to quash the pending criminal proceedings before him. The High Court upheld the principle enunciated by the Supreme Court in *Jitendra Raghuvanshi and others v Babita Raghuvanshi & Another*[149] that even in non-compoundable offences pertaining to matrimonial disputes, if the Court is satisfied that the parties have settled the disputes amicably and without any pressure, then criminal proceedings with respect to offences can be quashed in order to secure the ends of justice. Hence it allowed the petition.

3. ***Yunusbhai Usmanbhai Shaikh v State of Gujarat and Others (2015)***[150]

This case was decided by Justice J.B. Pardiwala of the High Court of Gujarat. The daughter of the complainant, a 16-year-old girl, got married to the accused according to Muslim rites. The accused was 12 years older than her. He was charged under sections 363(punishment for kidnapping), 366 (kidnapping, abducting or inducing woman to compel her marriage, etc.) and 376 (punishment for rape) *IPC* and section 18 (attempt to commit an offence) *POCSO*. It was found that the daughter of the complainant admitted she had accompanied the accused of her own free will. It could not be proved that she had received any promise or assurance or any tempting offer from the accused for which she was forced or enticed to leave her parental home. Hence it could not be proved that he had kidnapped her, nor could rape be proved. Pending criminal proceedings against him were liable to be quashed. In paragraph 30, the Court stated that the object of enacting the *Prohibition of Child Marriages Act 2006* was to curb the menace of child marriages, which is most common among the Muslim community and in rural areas. It quoted the case of *Association for Social Justice and Research v Delhi High Court*[151]which cited poverty, culture, tradition and values based on patriarchal norms as reasons for child marriage. Low level of education of girls, lower status of girls, considering girls as a financial burden, social customs, and a mixture of these causes result in the imprisonment of girls in marriage without consent. The Delhi High Court cited some of the ill- effects of child marriage:

(i) Girls who get married at an early age are often more susceptible to the health risks associated with early sexual initiation and child bearing, including HIV and obstetric fistula.
(ii) Young girls who lack status, power and maturity are often subjected to domestic violence, sexual abuse and social isolation.
(iii) Early marriage almost always deprives girls of their education or meaningful work, which contributes to persistent poverty.
(iv) Child marriage perpetuates an unrelenting cycle of gender inequality, sickness and poverty.

[149] MANU/SC/0239/2013.
[150] MANU/GJ/0876/2015.
[151] W.P. (Crl.) No. 535/2010, Delhi H.C. (2010).

(v) Girls who marry at an early age when they are not physically mature leads to highest rates of maternal and child mortality.

It was held by the High Court of Gujarat that no case was made out for the offences charged upon the accused husband. Instead, if during investigation it is found out that a particular person had performed, conducted, directed or abetted the marriage, such person would be accused under section 10 of the *Prohibition of Child Marriage Act 2006*.

4. ***Renu v State of U.P. and Others (2015)***[152]

This case was decided by Justice Ajai Lamba and Justice Ashok Pal Singh of the Allahabad High Court (Lucknow Bench).The petitioner had eloped with her husband and was pregnant with child. She was detained by order of a magistrate to a protection home, by initiation of criminal proceedings by her mother, stating that the petitioner's husband induced and kidnapped her into marriage. He was charged under sections 363 (punishment for kidnapping) and 366 (kidnapping, abducting or inducing woman to compel her marriage, etc.) of the *IPC* and sections 3 (penetrative sexual assault) and 4 (punishment for penetrative sexual assault) of the *POCSO*. The High Court directed the petitioner to be released from the protection home and be reunited with her husband, as she did not want to go with her parents. It was stated by the Court that a large number of cases occur when parents do not accept their daughter's choice of marriage on grounds of caste, financial conditions, social status, or religion. Even though the girl elopes voluntarily, criminal proceedings are initiated on grounds of abduction, kidnapping or inducing the girl to get married. In most cases, the complainant takes a ground that the daughter is a minor, for which school certificates are relied upon.

5. ***Keerti Gupta and Others v State of U.P. and Others (2016)***[153]

This was decided before the Allahabad High Court (Lucknow Bench) by Justice Ajai Lamba and Justice Aditya Nath Mittal. The first petitioner, who was a minor girl just a few months shy of 18, left her parental home and eloped with her boyfriend, the second petitioner. After living together for a month, they got married in a temple. The parents of the first petitioner charged the second petitioner with offences under sections 363 (punishment for kidnapping), 366 (kidnapping, abducting or inducing woman to compel her marriage, etc.), 504 (intentional insult with intent to provoke breach of the peace) and 506 (punishment for

[152]MANU/UP/1438/2015.
[153] MANU/UP/0464/2016.

criminal intimidation) of the *IPC* as well as sections 7 (sexual assault) and 8 (punishment for sexual assault) of the *POCSO*. The High Court stated that the impugned proceedings have been initiated in abuse of process of the Court and process of the law. A personal grudge against the daughter's marriage of choice was being settled by virtue of initiating criminal proceedings, which would abrogate the constitutional right of the petitioners to get married as per their discretion, especially since there is no evidence to indicate that the marriage is void. The High Court quashed criminal proceedings against the second petitioner.

6. ***Sunil Mahadev Patil v The State of Maharashtra (2015)***[154]

This was decided by Justice Mridula Bhatkar of the High Court of Bombay. The 15-year-old prosecutrix and the 20-year-old applicant were in love, so they eloped. They performed a ceremony in lieu of marriage and started residing together in a relative's home. The applicant was charged by the prosecutrix's father of having committed the offences of sections 376 (punishment for rape), 363(punishment for kidnapping) and 366A (procuration of minor girl) of the *IPC* as well as offences under sections 3 and 4 (penetrative sexual assault), 5 and 6 (aggravated penetrative sexual assault) of the *POCSO*. The High Court stated that biologically, whenever a child reaches puberty, the child starts understanding his or her sexual needs. Some sects and religions acknowledge this biological factor and perform early age marriages in order to regularise sexual behaviour in the community. These social and biological factors meant that the lawmakers used the age of 15 as the age of consent for marriage. In such cases, the trial judges ought to pass orders of bail. The High Court allowed the bail application and summed up the considerations regarding applications of bail as follows:

> When a boy and a minor girl are in love with each other and chose to live together without consent of their parents, then the following factors are to be considered:
>
> (i) What is the age of the prosecutrix, who is minor
>
> (ii) Whether the act is violent or not.
>
> (iii) Whether there are antecedents or not.
>
> (iv) Whether the offender is capable of repeating the Act or not.
>
> (v) Whether there is likelihood of threats or intimidation, if at all the boy is released.
>
> (vi) Whether any chance of tampering with the material witnesses when their statements are recorded.
>
> (vii) It is also to be taken into account in such cases that a boy in his early 20s deserves to get employment and to plan, stabilize and secure his future.

[154] MANU/MH/3141/2015.

3.A.2.h. Section 376 *IPC*: Punishment for rape

Sub section (1) of this section is a continuation of the previous section 375 *IPC* and lays down the punishment for rape. In addition, a second sub section punishes aggravated instances of rape with additional punishment.

Pre-*Criminal Law (Amendment) Act 2013*

The law on punishment for rape under section 376 *IPC* previously stated:

> Section 376: (1) Whoever, except in the cases provided for by sub-section (2), commits rape shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may be for life or for a term which may extend to ten years and shall also be liable to fine unless the woman raped is his own wife and is not under twelve years of age, in which cases, he shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:
> Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than seven years.
> (2) Whoever: -
> (a) Being a police officer commits rape-
> (i) Within the limits of the police station to which he is appointed; or
> (ii) In the premises of any station house whether or not situated in the police station to which he is appointed; or
> (iii) On a woman is his custody or in the custody of a police officer subordinate to him; or
> (b) Being a public servant, takes advantage of his official position and commits rape on a woman in his custody as such public servant or in the custody of a public servant subordinate to him; or
> (c) Being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a woman's or children's institution takes advantage of his official position and commits rape on any inmate of such jail, remand home, place or institution; or
> (d) Being on the management or on the staff of a hospital, takes advantage of his official position and commits rape on a woman in that hospital; or
> (e) Commits rape on a woman knowing her to be pregnant; or
> (f) Commits rape when she is under twelve years of age; or
> (g) Commits gang rape,
> Shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may be for life and shall also be liable to fine:
> Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term of less than ten years.
> Explanation 1
> Where a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang rape within the meaning of this sub-section.
> Explanation 2
> "Women's or children's institution" means an institution, whether called an orphanage or home for neglected women or children or a widows' home or by any other name, which is established and maintained for the reception and care of women or children.
> Explanation 3
> "Hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation.

The offence has been classified as cognizable, non-bailable, non-compoundable and triable by a Court of Session.[155]

[155] As per the First Schedule read with section 320 of the *Code of Criminal Procedure 1973*.

Here, the punishment for the section 375 offence of rape is given in section 376(1). An aggravated punishment for certain kinds of rape is given in section 376(2). This is problematic in that it does not allow for conceptual clarity. Whereas, in the *POCSO,* aggravated punishment is given for a defined aggravated offence.

Marital rape of a child-wife under section 376 *IPC*, pre-2013

Before the 2013 amendment to the *IPC,* under sub-section (1) of section 376, if the woman raped is his own wife and the wife is above the age of 12and below the age of 15 the punishment would be imprisonment up to two years or fine or both. Such an offence was a non-cognizable, bailable, non-compoundable offence triable by a Court of Session as per the First Schedule read with section 320 of the *Code of Criminal Procedure*. Unlike the *IPC,* which does not recognise marital rape as an offence, in the case of child marriages where the wife is above the age of 12 and below the age of 15, rape was a punishable offence, even though the punishment was mild compared to the general punishment for rape. Once the child-wife is 15, sexual intercourse with her husband without her consent is not considered rape. However, if a husband has sexual intercourse with his child-wife who is below the age of 12, consent was immaterial and such sexual intercourse would be considered as statutory rape.

Pre-*Criminal Law (Amendment) Act 2013*, enhanced punishment was prescribed for rape of a woman below 12 years of age under section 376(2)(f) *IPC*; namely, rigorous imprisonment for a term which shall not be less than 10 years but which may be for life and also fine. However, the proviso to section 376(2) *IPC* stated that the court may also, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term of less than 10 years.

Under the prior law, that is, the pre-Criminal Law Amendment Section 367(1) *IPC*, all sexual intercourse with girl children falling within the category of 12 to 16 years of age is statutory rape as defined in section 375 *IPC*. The punishment is imprisonment of either description for a term which shall not be less than seven years but which may be for life or for a term which

may extend to 10 years and also liable to fine. A term lesser than seven years could be imposed so long as adequate and special reasons are mentioned in the judgment.[156]

Sub-section (2) of section 376 *IPC*: Aggravated punishment in certain cases

This has seven parts. Clause (a) applies to police officers committing rape. Clause (b) applies to public servants committing rape on a woman in his custody or in the custody of a subordinate public servant by taking advantage of his official position. Clause (c) applies to a man on the management or on the staff of a jail, remand home, a women's or children's institution, or other place of custody of a woman or child, who takes advantage of his official position and commits rape on any inmate of such place of custody. Explanation 2 states that "women's or children's institution" means an institution which is established and maintained for the reception and care of women and children. It may be called an orphanage or a home for neglected women or children or a widow's home or any other name. Clause (d) applies to a man on the management or on the staff of a hospital who commits rape on a woman in that hospital by taking advantage of his official position. Explanation 3 states that hospital means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation. Clause (e) applies to a man who rapes a pregnant woman knowing her to be pregnant. Clause (f) applies to a man who commits rape on a woman under the age of 12. Clause (g) applies to men who commit gang rape. Explanation 1 defines the term gang rape as rape of a woman by a group of persons acting in furtherance of their common intention, and that culpability accrues upon each of them within the meaning of this sub-section.

The J.S. Verma Committee Report

The provision was framed as such:

> 376. (1) Punishment for Rape
> Whoever, except in the cases provided for by sub-section (2), commits the offence of rape shall be punished with rigorous imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life, and shall also be liable to pay compensation to the victim, which shall be adequate to meet at least the medical expenses incurred by the victim.

[156]An interesting remainder to section 376 (1) *IPC* continued to exist even after the *Prohibition of the Child Marriage Act 2006* legally abolished child marriages in India, namely, "unless the woman raped is his own wife and is not under twelve years of age, … he shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both…". This means that if a married man rapes his wife of above 12to below 15years, it would not be treated as statutory rape in normal circumstances, and the punishment would be imprisonment of either description ("Imprisonment of either description" means either simple imprisonment or rigorous imprisonment which is left to the discretion of the court) of up to two years or with fine or with both. It is also subject to the proviso for imposition of a lesser term for adequate and special reasons mentioned.

(2) Whoever,—
(a) being a police officer, whether on duty or otherwise, commits rape —
(i) within the limits of the police station to which such police officer is appointed; or,
(ii) in the premises of any station house; or,
(iii) on a person in such police officer's custody, or in the custody of a police officer subordinate to such police officer; or,
(b) being a member of the armed forces is in the area by virtue of deployment by the Central or a State government, and commits rape; or
(c) being a public servant, commits rape of a person in his custody or in the custody of a public servant; or
(d) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or
(e) being on the management or on the staff of a hospital, commits rape on a patient in that hospital; or
(f) commits rape on a woman knowing her to be pregnant; or
(g) being a relative, guardian or teacher of, or a person in a position of trust or authority towards the person assaulted, commits rape; or
(h) commits rape, where the person assaulted is incapable of giving consent including in circumstances defined under Section 375 *Thirdly, Fifthly and Sixthly*.
(i) while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of the person assaulted; or
(j) commits rape repeatedly on the same person,
shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to pay compensation to the victim which shall be adequate to meet at least the medical expenses incurred by the victim.
Explanation 1: For the purposes of this Section, "rape" shall mean any of the acts mentioned in clauses (a) to (c) of section 375.
Explanation 2: For the purposes of this Section, "women's or children's institution" includes an institution, whether called an orphanage or a home for neglected women or children or a widow's home or an observation home, beggar home or a halfway home or an institution called by any other name, which is established and maintained for the reception and care of women or children;
Explanation 3: For the purposes of this Section, "hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation.
Explanation 4: In sub-clause (a) of clause (2), "police officer" shall have the same meaning as the word "Police" under The Police Act, 1861.
Explanation 5: For the purposes of this section 'custody' includes any form of physical, mental or psychological restraint to inhibit the exercise of free will by the person in custody.
Explanation 6: For the purposes of this section, 'armed forces' means the naval, military and air forces and includes any member of the Armed Forces enumerated in the Schedule, including the paramilitary forces and any auxiliary forces that are under the control of the Central or State Government.

The Committee recommended the creation of a new offence punishing rape of an underage person below 16 years of age with rigorous imprisonment of a minimum of 10 years and a maximum of life imprisonment. If rape of an underage person resulted in the death or persistent vegetative state, the minimum punishment would be 20 years.[157]

The Committee recommended that, based on the interpretation of Article 34 of the *UNCRC*, the age of consent be reduced to 16, and necessary amendments be made to the *POCSO* , in order to avoid contradictions with the *IPC*. The Committee commented that both the *POCSO*

[157]Section 376(B) *IPC*, sub-heading 12, Appendix 4, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.443.

and the *Criminal Law (Amendment) Bill 2012* had earmarked 18 as the age of consent for the purposes of section 375 *IPC*, thereby achieving the result of criminalising all sexual activity whether consensual or non-consensual where one person is below the age of 18. The Committee stated that the *UNCRC* aimed to protect children from sexual assault and abuse and not to criminalise consensual sex between two individuals even if they are below 18 years of age.[158]

Post-Criminal Law (Amendment) Act 2013

After the 2013 amendment to the *IPC*, the provision in sub-section (1) of section 376 *IPC* regarding punishment for marital rape was removed. The part "or for a term which may extend to ten years and shall also be liable to fine" was removed. Also removed is the proviso in sub-section (1) stating that the court may impose a sentence of imprisonment for a term of less than seven years provided adequate and special reasons for giving such lesser punishment are mentioned in the judgment.

A total of 14 clauses have been placed under sub-section (2) for which punishment is the same as that before the 2013 amendment: rigorous imprisonment for a term which shall not be less than 10 years but which may be for life and shall also be liable to fine. However, it is a matter of significance that life imprisonment for rape under this sub-section has been stated to mean imprisonment for the remainder of the convict's natural life. Life imprisonment usually meant incarceration for 14 years when life sentence convicts become entitled to remission of the rest of the sentence as per Prison Manual provisions.[159] Sections 432, 433 and 433-A of the *Code of Criminal Procedure 1973*(referred to as *CrPC*) state that state governments can grant remission and commutation to the sentence awarded by the court. There are many instances where life convicts have been allowed to go free after a limited period using these provisions. The Supreme Court has reiterated that life imprisonment means imprisonment for the entire period of the convict's life.[160] The 2013 amendment

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[158]Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.*, New Delhi: Government of India, pp.443-444.

[159] Rule 18.06 (iv): Life convicts (men and adolescent offenders) on completion of 10 years of imprisonment, including remission, except those covered under Section 433-A of *CrPC* 1973, whose cases will be considered after completing 14 years of actual imprisonment. *Model Prison Manual for the Superintendence and Management of Prisons in India* (2003). Bureau of Police Research and Development, Ministry of Home Affairs. Government of India, New Delhi.

[160]*Gopal Vinayak Godse v The State of Maharashtra and Ors* AIR 1961 SC 600*; State of Madhya Pradesh v Ratan Singh* (1976) 3 SCC 470*; Maru Ram v Union of India &Ors.* (1981) 1 SCC 107;*Shri Bhagwan v State of*

clarifies that a rape convict under section 376(2) *IPC* who has been granted life imprisonment is to serve imprisonment for the remainder of his natural life. When the court does not lay down a mandatory sentence, a question arises whether the state government can exercise its powers of remission or commutation under sections 432, 433 and 433A *CrPC*.

Clauses (a), (b), (c) and (d) of the former sub-section (2) of section 376 *IPC* have been retained with slight changes in expression. Clause (b) states the punishment for armed forces personnel deployed in an area by the central or state government who commit rape in that place. The *Armed Forces (Special Powers) Act 1958* (AFSPA) requires a sanction by the central government for initiating prosecution against armed forces personnel. However, the new clause (c) in sub-section (2) strips security forces of the special immunity that they enjoy in conflict areas in cases of rape on women, and brings them under the purview of the ordinary criminal law. Another insertion is enhanced punishment for a rapist who is a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, under clause (f). Clauses of the same sub-section give enhanced punishment for other categories of rape – rape during communal or sectarian violence(s.375(2)(g)); raping a woman under sixteen years of age (s.375(2)(i)); raping a woman incapable of giving consent (s.375(2)(j)); or raping a woman while being in a position of dominance or control over a woman (s.375(2)(k)); raping a woman suffering from physical or mental disability(s. 375(2)(l)); while raping a woman, causing grievous bodily harm or maiming or disfiguring or endangering the life of a woman(s.375(2)(m)); or repeatedly committing rape on the same woman(s.375(2)(n)). The previous clause (e) concerning committing rape on a woman knowing her to be pregnant has been reproduced verbatim in clause (h).

In the Explanation part of the section, the terms “armed forces”, “hospital”, “police officer” and “women’s and children’s institution” have been defined. The previous definition of the term “gang rape” has been substituted by the definition of the term “armed forces”. The term “police officer” has also been newly defined. The previous definitions of the terms “hospital” and “women’s and children’s institution” have been retained verbatim.

The punishment for rape is given as follows:

Section 376. Punishment for rape

Rajasthan (2001) 6 SCC 296*; Mohd. Munna with Kartik Biswas v Union of India* (2005) 7 SCC 417, *SwamyShraddananda v State Of Karnataka* AIR 2008 SC 3040.

(1) Whoever, except in the cases provided for by sub-section (2), commits rape shall be punished with rigorous imprisonment of either description for a term which shall not be less than seven years but which may extend to imprisonment for life, and shall be liable to fine.
(2) Whoever, -
(a) Being a police officer commits rape-
(i) within the limits of the police station to which such police officer is appointed; or
(ii) in the premises of any station house; or
(iii) on a woman is such police officer's custody or in the custody of a police officer subordinate to such police officer; or
(b) being a public servant, commits rape on a woman in such public servant's custody or in the custody of a public servant subordinate to such public servant; or
(c) being a member of the armed forces deployed in an area by the Central of a State Government commits rape in such area; or
(d) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a woman's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or
(e)being on the management or on the staff of a hospital, commits rape on a woman in that hospital; or
(f) being a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, commits rape on such woman; or
(g) commits rape during communal or sectarian violence; or
(h) commits rape on a woman knowing her to be pregnant; or
(i) commit rape on a woman when she is under sixteen years of age; or
(j)commits rape, on a woman incapable of giving consent; or
(k)being in a position of dominance or control over a woman, commits rape on such woman; or
(l) commits rape on a woman suffering from physical or mental disability; or
(m) while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of a woman; or
(n) commits rape repeatedly on the same woman,
shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may be for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.
Explanation.—For the purposes of this sub-section,—
a. "armed forces" means the naval, military and air forces and includes any member of the Armed Forces constituted under any law for the time being in force, including the paramilitary forces and any auxiliary forces that are under the control of the Central Government, or the State Government;
b. "hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation;
c. "police officer" shall have the same meaning as assigned to the expression "police" under the Police Act, 1861;
d. "women's or children's institution" means an institution, whether called an orphanage or a home for neglected women or children or a widow's home or an institution called by any other name, which is established and maintained for the reception and care of women or children

The offence continues to be classified as cognizable, non-bailable, non-compoundable and triable by a Court of Session.[161]

Table 1 details the differences between the previous and current versions of this offence before and after the *Criminal Law (Amendment) Act 2013*. For example, the proviso of adequate and special reasons given by a judge to commute the sentence to less than seven years has been deleted.

[161] As per the First Schedule read with section 320 of the *Code of Criminal Procedure 1973*.

Despite the recommendations of the J.S. Verma Committee Report to lower the age of consent for sexual activity to 16,[162]the law regarding the age of consent of a girl child has been harmonised with other national legislation through the *Criminal Law (Amendment) Act 2013*. Section 375 *IPC* criminalises sexual intercourse with or without consent, when a girl is under 18years of age. Section 376 *IPC* punishes the same with rigorous imprisonment of either description for a term which shall not be less than seven years, but which may extend to imprisonment for life, and liability of fine.

Despite the *POCSO* providing for aggravated punishment for a separately defined aggravated offence, the punishment for the section 375 *IPC* offence of rape is retained in section 376 (1) *IPC*, with aggravated punishment for certain kinds of rape in Section 376(2) *IPC*. When there are two separate punishments for two different degrees of the same offence, combining them creates confusion to the reader. This lack of conceptual clarity in sections 375 and 376 of the *IPC* is discussed in Chapter 3.

Marital rape of a child-wife, post-2013

The J. S. Verma Committee dealt with the issue of marital rape in detail. The *IPC* differentiates between rape within marriage and outside marriage. Under the *IPC* sexual intercourse without consent is prohibited. However, an exception to the offence of rape exists in relation to un-consented sexual intercourse by a husband upon a wife. The Committee recommended that the exception to marital rape be removed. Marriage should not be considered as an irrevocable consent to sexual acts. As seen in Explanation III of the Committee's draft of section 375 *IPC*, the relationship between the victim and the accused should not be relevant with regard to an inquiry about whether the complainant consented to the sexual activity.[163]

Sub section (1) of the pre-2013 section 376 *IPC* awarded a lesser punishment of imprisonment up to two years or fine or both if the woman who is raped by her husband is not under 12 years of age. This was removed by the *Criminal Law (Amendment) Act 2013*. The present position is that a married woman above the age of 15cannot be raped by her husband. Non-consensual sexual intercourse of a woman above the age of 15 with her husband does not amount to rape, as in the case of an 18-year-old married woman, because

[162]Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, pp.443-444.
[163] *Id* at p.117, Para 79.

the Penal Code does not recognise an offence of marital rape for non-consensual intercourse. Post-2013, Clause (i) of sub-section (2) of section 376 *IPC* raised the threshold age from 12 to 16 for awarding aggravated punishment for rape of a woman when she is under 16years of age. So in the case of a married woman below the age of 15, sexual intercourse with her by her husband invokes punishment of rigorous imprisonment for a term which shall not be less than 10 years but which may be for life – which shall mean imprisonment for the remainder of that person's natural life – and shall also be liable to fine.

Now, sexual intercourse with an unmarried girl above the age of 16 incurs punishment under Section 376(1) *IPC*. She cannot consent to sexual intercourse until she reaches the age of 18. Whereas, a married girl of 15 years and above can enter into sexual intercourse with her husband without her husband attracting punishment under section 376(1) *IPC*. The predicament of a child-wife above the age of 15 –who does not get the protection against rape that an unmarried girl below the age of 18 is entitled to merely because the rapist happens to be her husband – is discussed in Chapter 4, along with the grey area regarding legal consent of children for sexual activity.

Kannabiran (2009) comments that while criminal law does not recognise marital rape as rape, the new civil law on domestic violence - the *Protection of Women against Domestic Violence Act 2005* -– includes marital rape within the meaning of domestic violence, against which women can seek protection and remedy.[164] Though the term "marital rape" has not been specifically used in this enactment, section 3 of the *Protection of Women Against Domestic Violence Act 2005* includes "sexual abuse" within the term "domestic violence", and defines "sexual abuse" to include any conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of woman (Explanation 1(ii) of section 3). The civil remedies available under this enactment include protection orders, residence orders, monetary relief, custody orders, compensation orders, interim and ex parte orders.

3.A.2.i. Certain Offences Of Rape From Sections 376A To 376E *IPC*

The following provisions are relevant because they deal with rape of a woman in various circumstances:

1. Section 376A *IPC*: Punishment for causing death or resulting in persistent vegetative state of victim

[164]Kannabiran, K. (2009). Sexual assault and the Law. Kannabiran, K. and Singh, R. (eds.), *Challenging the Rule(s) of Law: Colonialism, Criminology and Human Rights in India.* New Delhi: SAGE, pp. 78-118.

This is a new provision which provides for punishment for causing death or resulting in persistent vegetative state of victim. It replaces the previous section 376A *IPC* which punished the husband for sexual intercourse with a wife during separation as rape. Post-*Criminal Law (Amendment) Act 2013*, section 376A *IPC* states:

> Whoever commits an offence punishable under sub-section (1) or sub-section (2) of section 376 and in the course of such commission inflicts an injury which causes the death of the woman or causes the woman to be in a persistent vegetative state, shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, or with death.

This offence is classified as a cognizable, non-bailable, non-compoundable offence triable by a Court of Session.[165]

2. Section 376B *IPC*: Sexual intercourse by husband upon his wife during separation

This section is a modified version of the pre-2013 section 376A *IPC*, which punishes sexual intercourse with wife during separation, with imprisonment which may extent up to two years and fine. Section 376A *IPC*, pre-2013, read as follows:

> Whoever has sexual intercourse with his own wife, who is living separately from him under a decree of separation or under any custom or usage without her consent shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.

In the newly amended section, punishment for the same offence carries a minimum mandatory punishment of two years and a maximum of seven years, along with fine. Also, the act of sexual intercourse has been defined as any of the acts mentioned in clauses (a) to (d) of section 375 *IPC*, which means penile penetration, or insertion of any object or non-penile body part, or manipulation of a body part of a woman, by a man, or application of his mouth, into the vagina, mouth, urethra and anus of the woman. When a woman is forced to perform such penetration, insertion etc with him, this would also amount to an offence under this section. Post-2013, it states as follows:

> Whoever has sexual intercourse with his own wife, who is living separately, whether under a decree of separation or otherwise, without her consent, shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine.
> Explanation.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 375.

3. Section 376C *IPC*: Punishment for sexual intercourse by a superintendent/manager of a jail

[165] As per the First Schedule read with section 320 of the *Code of Criminal Procedure 1973*.

This provides punishment for sexual intercourse by person in authority. Pre-*Criminal Law (Amendment) Act 2013*, section 376C *IPC* provided punishment for intercourse by superintendent of jail, remand home, etc. as follows:

> Whoever, being the superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force or of a woman's or children's institution lakes advantage of his official position and induces or seduces any female inmate of such jail, remand home, place or institution to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.
> Explanation I.--"Superintendent" in relation to jail, remand home or other place of custody or a women's or children's institution includes a person holding any other office in such jail, remand home, place or institution by virtue of which he can exercise any authority or control over its inmates.
> Explanation 2.--The expression "women's or children's institution" shall have the same meaning as in Explanation 2 to sub-section (2) of section 376.

Post-*Criminal Law (Amendment) Act 2013*, this offence deals with certain instances of sexual intercourse which does not amount to rape, as the element of consent of the woman involved is present. The new offence in section 376D *IPC* combines three former offences under sections 376B, 376C and 376D of the *IPC*.[166]

Post-*Criminal Law (Amendment) Act 2013*, section 376C *IPC* states thus:

> Whoever, being—
> a. in a position of authority or in a fiduciary relationship; or
> b. a public servant; or
> c. superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force, or a women's or children's institution; or
> d. on the management of a hospital or being on the staff of a hospital, abuses such position or fiduciary relationship to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.
> Explanation l.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 375.
> Explanation 2. —For the purposes of this section, Explanation I to section 375 shall also be applicable.
> Explanation 3.—"Superintendent", in relation to a jail, remand home or other place of custody or a women's or children's institution, includes a person holding any other office in such jail, remand home, place or institution by virtue of which such person can exercise any authority or control over its inmates.
> Explanation 4.—The expressions "hospital" and "women's or children's institution" shall respectively have the same meaning as in Explanation to sub-section (2) of section 376.

This offence is a cognizable, non-bailable, non-compoundable offence triable by the Court of Sessions.[167]Under the First Schedule of the *CrPC*, it used to be classified as a bailable

[166] Under the former section 376B *IPC*, which provided punishment for intercourse by a public servant with woman in his custody, section 376C *IPC*, which provided punishment for intercourse by a superintendent of a jail, remand home etc, and section 376D *IPC* which provided punishment for intercourse by manager or staff of the hospital with a woman in that hospital, the punishment was imprisonment for five years and fine.
[167]*Ibid*.

offence, triable by the Court of Session. It was a cognizable offence but no arrest was to be made without a warrant or without an order of a Magistrate.

4. Section 376D *IPC*: Punishment for gang rape

This provides punishment for gang rape**.** Formerly, Clause (g) of sub-section (2) of section 376 *IPC* stated that whoever commits gang rape shall be punished with imprisonment for a term for a term which shall not be less than 10 years but which may be for life and shall also be liable to fine, which could be lessened by the court provided adequate and special reasons are mentioned in the judgment. Explanation 1 defined gang rape as where a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang rape within the meaning of this sub-section.

Pre-*Criminal Law (Amendment) Act 2013*, section 376D *IPC* provided punishment for intercourse by any member of the management or staff of a hospital with any woman in that hospital, as follows:

> Whoever, being on the management of a hospital or being on the staff of a hospital lakes advantage of his position and has sexual intercourse with any woman in that hospital, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.
> Explanation.--The expression "hospital" shall have the same meaning as in Explanation 3 to sub-section (2) of section 376

The new section 376D *IPC* punishes gang rape with minimum imprisonment of twenty years and a maximum of life imprisonment till the remainder of that person's natural life, and with fine. The fine imposed shall be imposed taking account the cost of medical expenditure and rehabilitation of the victim. Also, it is clearly stipulated that the fine imposed under this section shall be paid to the victim.

Post-*Criminal Law (Amendment) Act 2013*, section 376D *IPC* states thus:

> Where a woman is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to life which shall mean imprisonment for the remainder of that person's natural life, and with fine:
> Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:
> Provided further that any fine imposed under this section shall be paid to the victim.

This offence is a cognizable, non-bailable, non-compoundable offence triable by the Court of Sessions.[168]

5. Section 376E *IPC:* Punishment for repeat offenders

Post-*Criminal Law (Amendment) Act 2013*, a new section was inserted into the *IPC*. It states thus:

> Whoever has been previously convicted of an offence punishable under section 376 or section 376A or section 376D and is subsequently convicted of an offence punishable under any of the said sections shall be punished with imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, or with death.

This offence is a cognizable, non-bailable, non-compoundable offence triable by the Court of Sessions.[169] Accordingly, repeat offenders are to be punished with life imprisonment for the remainder of that person's natural life, or with death.

3.A.2.j. Section 377 *IPC*: Unnatural offences

Before the advent of the *POCSO*, there was no provision in Indian law to specifically punish sexual crimes against male children. Section 377 *IPC* was generally used for this purpose. The ambit of section 377 *IPC* extends to any sexual union involving penile insertion, which can be understood to include homosexual acts, bestiality, as well as consensual heterosexual acts such as oral and anal penetration. Table 1 provides information regarding this offence in the context of certain selected provisions on sexual offences in the *IPC*.

Section 377 *IPC* states thus:

> Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with imprisonment for life[170], or with imprisonment of either description for term which may extend to ten years, and shall also be liable to fine.
> Explanation: Penetration is sufficient to constitute the carnal intercourse necessary to the offense described in this section.

This offence is classified as a cognizable, non-bailable, non-compoundable offence, triable by a Magistrate of the first class.[171]

The terms "carnal intercourse" and "penetration" are not defined in the *IPC*. However, Indian courts have sought to distinguish the elements are necessary to constitute an offence under this section as: (i) The accused must have carnal intercourse with a man, or a woman or an animal; (ii) The act must be against the order of nature; (iii) The act must have been done voluntarily by the accused; and (iv) There was penetration. The Explanation states that

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[168]*Ibid*.
[169]*Ibid*.
[170]Substituted for the words "transportation for life"by Act 26 of 1955.
[171]As per the First Schedule read with section 320 of the *Code of Criminal Procedure 1973*.

penetration is required to constitute the carnal intercourse. Hence, penetration, however minimal, is required as in the case of the pre-2013 definition of rape under section 375.[172] In another case, it was observed that even mere penetration will be sufficient to constitute the carnal intercourse and there need not be necessary a seminal discharge for constituting the carnal intercourse.[173] Adenwalla (2000) stated that sodomy or carnal copulation amounts to 'carnal intercourse against the order of nature' as the natural object of carnal intercourse is supposed to be the possibility of conception.[174]

The following are case laws which are referred to in order to define what constitutes "carnal intercourse against the order of nature":

Khanu v Emperor (1925)[175]

The court was required to determine whether fellatio constituted an act of "carnal intercourse against the order of nature" for the purpose of section 377 *IPC*. It stated:

> Section 377 punished certain persons who have carnal intercourse against the order of nature with inter alia human beings. Is the act here committed one of carnal intercourse; if so it is clearly against the order of nature, because the natural object of carnal intercourse is that there should be the possibility of conception of human beings, which in the case of coitus per os fellatio is impossible.

Khandu v Emperor (1934)[176]

The accused was convicted for the carnal intercourse by placing his penis into the nostril of a bullock.

Lohana Vasantlal Devchand v The State (1968)[177]

In the course of forcible anal intercourse with a boy, one of the accused voluntarily put his male organ in the mouth of the boy. The question was whether the insertion of the male organ by the second accused into the orifice of the mouth of the boy amounted to an offence under section 377 *IPC*. It was held by the Court that the act was the actual replacement of desire of coitus and would, therefore, amount to an offence punishable under section 377 *IPC*: "There was an entry of male penis in the orifice of the mouth of the victim. There was the enveloping

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[172]*Calvin Francis v Orissa*1992 (2) Crimes 455 (Ori)
[173]*Lohana Vasantlal Devchand v State of Gujarat* AIR 1968 Guj. 252.
[174] Examples cited by Adenwalla(2000) are thrusting the penis into the anus of a male or female, sexual intercourse through the mouth. Adenwalla, M. (2000). *Child Sexual Abuse and the Law.* (p.50), India Centre for Human Rights and the Law, Mumbai.
[175](1925) 26 CrLJ 945.
[176]AIR 1934 Lah. 261.
[177] AIR 1968 Guj 252.

of a visiting member by the visited organism. There was thus reciprocity; intercourse connotes reciprocity".[178]The Court held that the act in question amounted to an offence punishable under section 377 *IPC*.

State of Kerala v K. Govindan (1969)[179]

The Kerala High Court held that an act of inserting the male organ between the thighs of another amounts to an unnatural offence contrary to section 377 *IPC*. It observed:

> The word 'intercourse' ….is the temporary visitation of the organisms by a member of the other organism ….There is no intercourse unless the visiting member is enveloped at least partially by the visited organism, for intercourse connotes reciprocity. Therefore, to decide whether there is intercourse or not, what is to be considered is whether the visited organ is enveloped at least partially by the visiting organism.

Fazal Rab Choudhary v State of Bihar (1982)[180]

A reduced sentence of six months rigorous imprisonment was granted to the appellant who was convicted for having committed an offence under section 377 of the *IPC* upon a young boy who had come to his house to take a syringe. The Sessions Court had awarded him three years rigorous imprisonment, specifically denying him the benefit of probation. The reason for reduction, though not specifically stated, seems to be that no force was used upon the boy in order to make him comply.

Kedar Nath S/o Bhagchand v State of Rajasthan (1985)[181]

The Rajasthan High Court came to a finding that the presence of human spermatozoa in the rectum of the deceased, who was a young boy, leads to the conclusion that he was subjected to carnal intercourse against the course of nature.

Calvin Francis v State of Orissa (1992)[182]

It was held that the person is guilty of carnal intercourse against the order of nature when he puts his sex organ into the victim's mouth as an initiative act of sexual intercourse.

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[178]*Id* at Para 10.
[179](1969) Cr.LJ 818.
[180] (1982) 3 SCC 9.
[181]1985 (2) WLN 560.
[182](1992) 2 Crimes 455 (Ori.).

Brother John Antony v State (1992)[183]

It was alleged that the petitioner, a sub-warden of a boarding home, had committed unnatural offences with the minor boys who were inmates of the home. These acts were of two kinds: (i) insertion of the penis into the mouth of the victim boy and doing the act of carnal intercourse up to the point of ejaculation of semen into the mouth; and (ii) manipulation and movement of the penis of the petitioner whilst being held by the victim boys in such a way as to create an orifice like thing for making the manipulated movements of insertion and withdrawal upto the point of ejaculation of semen. It was held that both the above categories of acts fall within the sweep of unnatural carnal offences under section 377 *IPC*.

Smt. Sudesh Jhaku v State (1998)[184]

It was held that penile-mouth penetration amounts to an act contrary to section 377 *IPC*.

The 172nd Law Commission Report (2000)

The Law Commission made the following recommendations in its Report submitted in 2000 to the Supreme Court:

> 3.5.1. Insertion of new section 376E recommended.- We therefore recommend that a new section, namely, section 376E be inserted in the *IPC* in the following terms:
>
> "376E. Unlawful sexual contact (1) Whoever, with sexual intent, touches, directly or indirectly, with a part of the body or with an object, any part of the body of another person, not being the spouse of such person, without the consent of such other person, shall be punished with simple imprisonment for a term which may extend to two years or with fine or with both.
> (2) Whoever, with sexual intent, invites, counsels or incites a young person to touch, directly or indirectly, with a part of the body or with an object, the body of any person, including the body of the person who so invites, counsels or incites, or touches, with sexual intent, directly or indirectly, with a part of the body or with an object any part of the body of a young person, shall be punished with imprisonment of either description which may extend to three years and shall also be liable to fine.
> (3) Whoever being in a position of trust or authority towards a young person or is a person with whom the young person is in a relationship of dependency, touches, directly or indirectly, with sexual intent, with a part of the body or with an object, any part of the body of such young person, shall be punished with imprisonment of either description which may extend to seven years and shall also be liable to fine.
> Explanation: "Young person" in this sub-section and sub-section (2) means a person below the age of sixteen years."
>
> 3.6. Deletion of section 377: In the light of the change effected by us in section 375, we are of the opinion that section 377 deserves to be deleted. After the changes effected by us in the preceding provisions (sections 375 to 376E), the only content left in section 377 is having voluntary carnal intercourse with any animal. We may leave such persons to their just deserts.

[183](1992) Cr.LJ 1352 (Mad.).
[184](1998) Cr.LJ 2428 (Del.)

Sakshi v Union of India (2004)[185]

After the 172nd Law Commission Report (2000), the Division Bench of the Supreme Court, comprising of Chief Justice Rajendra Babu and Justice G.P. Mathur, stated that penetration other than penile/vaginal penetration are unnatural sexual offences. Penile/anus penetration, penile/oral penetration, finger/anal penetration, finger/vaginal penetration or object/vaginal penetration are serious sexual offences of unnatural nature to be covered under section 377 *IPC*, which prescribes stringent punishment.

Naz Foundation v Govt. of NCT of Delhi (2010)[186]

The NAZ Foundation (India) Trust (NI) is a New Delhi-based NGO that works on HIV/AIDS and sexual health issues. The Foundation filed a writ petition in the Delhi High Court challenging the constitutional validity of section 377 *IPC* for penalizing unlawful sexual acts "against the order of nature" which results in criminalizing even consensual sexual intercourse between two adults of the same sex or even of the opposite sex indulging in penile non-vaginal sexual activities. The petitioner contended that section 377 *IPC* encroached upon Articles 14, 15, 19 and 21 of the Constitution of India and also that the section ought not to criminalise consensual penile non-vaginal sex between two consenting adults of the same sex. A Division Bench comprising of Chief Justice Ajit Prakash Shah and Justice S. Muralidhar decided that section 377 *IPC* violates various fundamental rights, including the right to privacy and right to dignity under the fundamental right to life and liberty (Article 21), the right to equality (Article 14), and forbiddance of separation on grounds of sex (Article 15).

Suresh Kumar Koushal & Another. v Naz Foundation & Others (2014)[187]

This case challenged the 2009 Delhi High Court judgment striking down section 377 *IPC* as unconstitutional in so far as it criminalises consensual sexual acts of adults in private. The judgment of the Delhi High Court in 2009 kept intact the provision insofar as it applies to non-consensual non-vaginal intercourse and intercourse with minors. The appellants contended that section 377 *IPC* is too broadly phrased, as it may include: (1) Carnal intercourse between husband and wife; (2) Carnal intercourse between man and woman for pleasure without the possibility of conception of a human being; (3) Use of contraceptives between man and woman; (4) Anal sex between husband and wife; (5) Consenting carnal

[185]MANU/SC/0523/2004.
[186](2010) CriLJ 94.
[187](2014) 1 SCC 1.

intercourse between man and man; (6) Non-consenting carnal intercourse between man and man; (7) Carnal intercourse with a child with or without consent. The Bench comprising of Justices G.S. Singhvi and Sudhansu Jyoti Mukhopadhayar examined various cases in detail to find out what exactly comprises acts of "carnal intercourse against the order of nature", and found that it is not possible to lay down a uniform test for classifying such acts. They opined that the acts which fall within the ambit of the section can only be determined with reference to the act itself and the circumstances in which it is executed. They stated that all the cases examined by them referred to non-consensual and markedly coercive situations and that the keenness of the court in bringing justice to the victims who were either women or children cannot be discounted while analyzing the manner in which the section has been interpreted. However, in a case of proved consensual intercourse between adults, such a sympathetic approach may not be taken. It held that the Delhi High Court was wrong in its findings and was also wrong in reading down the section to allow consensual homosexual activities between two adults of the same sex. The Bench stated that it difficult to prepare a list of acts which would be covered by section 377 *IPC*. It was ruled that section 377 *IPC* would apply irrespective of age and consent in light of the plain meaning and legislative history of the section. The Supreme Court held that amending or repealing section 377 *IPC* is a matter that should be left to Parliament, not the judiciary.

Shankar Kisanrao Khade v State of Maharashtra (2013)[188]

The first accused and his wife were convicted for kidnapping, rape and murder by strangulation of a minor girl. Additional Sessions Court convicted the first accused and sentenced him to death under section 302 *IPC*[189] and the second accused/wife was convicted for offences punishable under section 363A *IPC* [190]and section 34 *IPC*.[191] An appeal was made to the Supreme Court.

Supreme Court appeal

In appeal, the question before the Supreme Court under Justices K.S. Radhakrishnan and Madan B. Lokur was whether the matter in question fell in category the rare cases warranting

[188] MANU/SC/0476/2013.
[189]Punishment for murder.
[190]Kidnapping or maiming a minor for purposes of begging.
[191]Acts done by several persons in furtherance of common intention.

capital punishment. The Supreme Court converted the death sentence to rigorous imprisonment for life.

The Supreme Court evaluated that the cause of the death was asphyxia due to strangulation and though there was clear evidence of carnal intercourse, the accused was not charged for that offence. The deceased girl was subjected to the acts of rape for more than one occasion by the accused. The Supreme Court found that any other punishment other than life imprisonment would be completely inadequate. The Supreme Court further observed that police, after charging the accused under section 377 *IPC*, failed to charge sheet him, in spite of the fact the medical evidence had clearly established the commission of carnal intercourse on a minor girl with moderate intellectual disability. Article 39 of the Indian Constitution provides that the State shall, in particular, direct its policy towards securing that the tender age of children are not abused and their childhood and youth are protected against exploitation and they are given facilities to develop in a healthy manner and in conditions of freedom and dignity. The Supreme Court established that in a case of child abuse, the best interests of the child standard must be applied. The conduct of the police for not registering the charge under section 377 *IPC* against the accused, the agony undergone by child of 11 years with moderate intellectual disability, the non-reporting of offence of rape committed on her either to the local police or to the Juvenile Justice Board, were unjustified. It was stated that the Court as *parens patriae* has a duty to protect children from sexual abuse as the Court has guardianship over minor children, especially for children with intellectual disability. Justice K.S. Radhakrishnan in Paragraph 55 made the following directions in compliance with *POCSO* (referred to in this judgment as the Act 32 of 2012):

> (1) The persons in-charge of the schools/educational institutions, special homes, children homes, shelter homes, hostels, remand homes, jails etc, or wherever children are housed, if they come across instances of sexual abuse or assault on a minor child which they believe to have committed or come to know that they are being sexually molested or assaulted are directed to report those facts in secret to the nearest S.J.PU.[192] or local police, and depending upon the gravity of the complaint and its genuineness, the police is take appropriate follow up action in a manner which casts no stigma upon the child or upon his family members.
> (2) Media personnel, persons in charge of hotels, lodges, hospitals, clubs, studios, and institutions having photograph facilities have to duly comply with the provision of Section 20 of the Act 32 of 2012 and provide information to the S.J.PU., or to the local police. Media has to strictly comply with Section 23 of the Act as well.
> (3) Children with intellectual disability are more vulnerable to physical, sexual and emotional abuse. Institutions which house them or persons in care and protection have a duty to bring any case of sexual abuse to the notice of the J.J. Boards[193]/ S.J.PU. or local police and they in turn be in touch with the competent authority and take appropriate action.

[192] Abbreviated form of the term 'Special Juvenile Police Unit' as defined in the Juvenile Justice (Care and Protection of Children) Act 2000.
[193] Abbreviated form of the term 'Juvenile Justice Board' as defined in the Juvenile Justice (Care and Protection of Children) Act 2000.

(4) Further, it is made clear that if the perpetrator of the crime is a family member himself, then utmost care be taken and further action be taken in consultation with the mother or other female members of the family of the child, bearing in mind the fact that best interest of the child is of paramount consideration.
(5) Hospitals, whether Government or privately owned or medical institutions where children are being treated, are to immediately report incidents of sexual abuse of children to the nearest Juvenile Justice Board/State Juvenile Police Unit. The J.J. Board, in consultation with the S.J.P.U., should take appropriate steps in accordance with the law safeguarding the interests of child.
(6) The non-reporting of the crime by anybody, after having come to know that a minor child below the age of 18 years was subjected to any sexual assault, is a serious crime and by not reporting they are screening offenders from legal punishment and hence be held liable under the ordinary criminal law and prompt action be taken against them, in accordance with law.
(7) Complaints received by the NCPCR, S.C.P.C.R. Child Welfare Committee (CWC) and Child Helpline, NGO's or Women's Organizations etc., may be followed up in consultation with the nearest J.J. Board, S.P.J.U. or local police in accordance with law.
(8) The Central Government and the State Governments are directed to constitute SJPUs in all the Districts, if not already constituted. They have to take prompt and effective action in consultation with J.J. Board to take care of child and protect the child and also take appropriate steps against the perpetrator of the crime.
(9) The Central Government and every State Government should take all measures as provided under Section 43 of the Act 32/2012 in order to give wide publicity to the provisions of the Act through media including television, radio and print media, at regular intervals, to make the general public, children as well as their parents and guardians, aware of the provisions of the Act.

The scope of the offence under section 377 *IPC*

This section examines whether section 377 *IPC* is sufficient to accommodate the various forms of sexual violations of all children, both male and female.

1. Carnal intercourse with any man or woman

The section punishes whoever voluntarily has carnal intercourse against the order of nature with any man or woman. The Explanation to section 377 *IPC* states that penetration is necessary to constitute the carnal intercourse necessary to the offence. The *Sakshi* case (2004) interpreted "penetration" to mean the types of penetration other than penile/vaginal penetration, which were enumerated as penile/anus penetration, penile/oral penetration, finger/anal penetration, finger/vaginal penetration or object/vaginal penetration. In the *Naz* case (2009), decided by the Delhi High Court, it was reiterated that this was the only legislation at that time which could deal with sexual violations against children. The Delhi High Court observed that section 377 *IPC*, whatever its present pragmatic application, was not enacted for instances of child sexual abuse or to fill the lacuna in a rape law, but was instead based on a conception of sexual morality specific to the Victorian era, drawing on notions of carnality and sinfulness. It struck down section 377 *IPC* as unconstitutional.

Suresh Kumar Koushal & Another v Naz Foundation & Ors (2013) challenged the 2009 Delhi High Court judgment striking down section 377 *IPC* as unconstitutional in so far as it

criminalises consensual sexual acts of adults in private. The Supreme Court ultimately upheld the constitutionality of section 377 *IPC* because it found that the provision has been largely used to prosecute instances of child sexual abuse. The allegation of the respondents that this section was used to perpetuate harassment, blackmail and torture on certain persons, especially those of the LGBT community, is not a treatment mandated by the section or condoned by it. The fact that it is misused by police authorities and others is not a reflection of the *vires* of the section, but might be, instead, a relevant factor for the legislature to consider while considering the desirability of amending section 377 *IPC.*[194] The Court reiterated that all penetrative non-penile-vaginal sex, including oral and anal sex, irrespective of gender and consent, comes within the purview of unnatural offences criminalised by section 377 *IPC*.

However, *Shankar Kisanrao Khade v State of Maharashtra,*[195] discussed earlier in this chapter, showed that a charge of carnal intercourse upon a young girl under section 377 *IPC*– who was also raped and subsequently murdered – was not even registered by the police. The Supreme Court reprimanded the police for their inaction and set out various guidelines regarding the protection of minor children, which included the principle of mandatory reporting under the *POCSO*.

Although the Supreme Court insists that section 377 *IPC* is adequately worded for dealing with crimes excluding penile-vaginal intercourse, this offence has not been used by the police in charging those for carnal abuse of children. Earlier in this chapter, the case of *State of Punjab v Major Singh*[196] was cited, where the accused caused injuries to the vagina of the 7.5 month old child by fingering. The trial court convicted the accused for voluntary causing hurt under section 323 *IPC*. The Supreme Court altered the conviction of the respondent under section 323 *IPC* to one under section 354 *IPC* for the offence of outraging the modesty of a woman, despite the existence of section 377 *IPC*. It did not occur to the eminent judges that this was an unnatural offence under section 377 *IPC*, and not one of outraging the modesty of a woman.

Lack of clarity regarding ingredients of an "unnatural offence" involving a child

The concept of what constitutes an act of outraging the modesty of a woman and what would be the ingredients of an unnatural offence are not clear from the wordings of the *IPC*, as a

[194](2014) 1 SCC 1.
[195] MANU/SC/0476/2013.
[196]AIR 1967 SC 63.

result of which children are not offered adequate protection under that legislation. A reading of the case law on the topic suggests that a case of sexual violation of a child would be an offence under section 377 *IPC* only if it has an "unnatural" or "non-penile-vaginal" element involving penile/anus penetration, penile/oral penetration, finger/anal penetration, finger/vaginal penetration or object/vaginal penetration as per *Sakshi* case (2004).Hence, sexual abuse of a boy-child by a woman would an offence under section 377 *IPC*, only if it is "unnatural" or "non-penile-vaginal" intercourse. The law is silent regarding the abuse of boys by adult women. Penile-vaginal intercourse between a boy and an adult woman is not punishable under any other provision in the *IPC*.[197]

Non-criminalisation of sexual abuse of boys by adult women in the IPC

The 42nd Law Commission Report of 1971 debated whether a mature woman who compels or seduces a boy under the age of 16 to sexual intercourse should be as severely punished as a man in the converse case. The Commission stated that apart from the physiological fact that forcing a boy, in the strict sense, to perform the act is impossible, complaints of a woman forcing or seducing minor boys to illicit intercourse is unheard of. Such lascivious acts on the part of a woman are not so evil as to merit a penal provision.[198] This mentality persists even to date, and the general criminal law fails to law criminalise sexual abuse of boys by women.

2. Carnal intercourse with any animal

Section 377 *IPC* brings sexual intercourse with any animal within the purview of an "unnatural offence, but no explanation has been given regarding this. For this reason, this researcher conducted an internet search for legal material in other countries regarding the offence of bestiality. It was found that the Canadian *Criminal Code* contained provisions on the same.

Section 160 of the Canadian *Criminal Code* maintains three different bestiality offences: the commission of bestiality, which carries a maximum prison term of ten years; compelling bestiality, which carries the same penalty; and bestiality in presence of or by child — prohibiting both the act in the presence of a minor below 16 years of age, or inciting the child

[197]Dutta, N.N.(2015). "16-year-old boy raped by woman in Mumbai – can a man be sexually assaulted?" http://www.india.com/news/india/16-year-old-boy-raped-by-woman-in-mumbai-can-a-man-be-sexually-assaulted-337583/.

[198] Law Commission of India (1971). *The Indian Penal Code 1860,* Para 16.121, p.279 http://lawcommissionofindia.nic.in/1-50/Report42.pdf.

to commit the act — which carries a minimum of one year, with a maximum of 14 years, on indictment.[199]

There is an absence of a clear definition of the acts which comprise "unnatural offences" as well as the act of bestiality which is an unnatural offence in the *IPC*.

3.A.2.k. Section 511 *IPC*: Punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment

This section punishes any attempt to commit any offence under the *IPC*. Attempts to commit any crimes under sections 354, 375, 377 and 509 *IPC* are punishable under this section. The section states:

> Whoever attempts to commit an offence punishable by this Code with imprisonment for life or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence, or with such fine as is provided for the offence, or with both.

In the light of Supreme Court rulings clarifying that life imprisonment means imprisonment to the end of a person's natural life, the question arises as to how the interpretation of the words in this section is be made; namely "be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life." Section 511 *IPC* needs to be clarified regarding the term one-half of the imprisonment for life.

3.A.2.l. Conclusion

The absence of empirical studies analysing the nature, incidence, prevalence and effects of child sexual abuse in India is a glaring anomaly. Despite the lack of statistical data, the upper judiciary has been able to accurately observe and record the social science dimensions in sexual offences. *Bharwada Bhoginbhai Hirjibhai v State of Gujarat*[200] attempted to throw light on the socio-psychological reasons which make an average Indian female to cry "rape". The judges opined that rarely will a girl or woman in India make false allegations of sexual assault, regardless of the sophistication of her society. Her allegation of rape must be given due consideration. The reasons for attributing truth to such an allegation of rape was that non-disclosure is the norm in the case of sexual offences. Factors that would press the average

[199] This shall be discussed in greater detail in Chapter 4.
[200] 1983 (3) SCC 566

Indian female towards non-disclosure were identified in this judgment. Despite the Justice Verma Committee Report expressing its regret regarding such profiling of an Indian girl, as it would not be accurate or scientific to test the testimony of an Indian woman with reference to the criteria mentioned in this case,[201] this judgment is significant because it discloses the general attitude, and in turn, the judicial attitude towards women in India.

These attitudes are reflected by the lower judiciary in *State of Punjab v Gurmit Singh*[202] where the legal effects of abuse discussed in Chapter 2 are portrayed. In this case, the trial court inhumanly branded the female victim as a person of loose morals and acquitting the accused on the basis of her delay in filing the case. The victim who was supposedly being protected by the criminal justice system had to experience defamation, harassment and non-application of existing law from the trial court, which was more traumatic than the alleged abuse (Mudaly & Goddard, 2006).

The issues identified in this chapter are analysed in Chapter 4.

3.A.3. National Special Legislation: *The Protection of Children From Sexual Offences Act 2012*

What is special legislation in India?

Special legislation consist of legislation enacted on specific subjects, such as food safety, narcotics and psychotropic substances, domestic violence, information technology, juvenile justice, and labour welfare legislation. Some of these enactments may have jurisdiction within a specific state or states. Acts of Parliament which deal with specific matters and apply nationally are referred to as national special legislation. In these forms of legislation, substantive definitions of the civil/criminal wrongs and their penalties/punishments, respectively, as well as the relevant legal procedure, are laid down within the single enactment. The law in the substantive laws as well as the Codes of Civil or Criminal Procedure take a secondary place when a wrong comes within the purview of special legislation, unless it is specified by law that the general law should prevail.

[201]See Chapter III, Para 26, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.83.
[202]MANU/SC/0366/1996.

-3.A.3. *The Protection of Children From Sexual Offences Act 2012* (*POCSO*)

This special legislation changed the nature and scope of children's rights against sexual abuse in India. This legislation overrides general substantive and procedural law with regard to offences of child sexual abuse. This legislation was enacted after the MWCD Report (2007), which was first official study on child abuse, showed high prevalence rates of sexual abuse nationally. This law applies nationally, and overrides all laws, including the *Goa's Children's Act 2003* in the State of Goa. This law is extremely important in the history of child rights because various sexual offences against children were defined and criminalised for the first time. This sub-section of this thesis deals with the history of the legislation, lists the sexual offences against children as defined by the legislation, and clarifies the position of this special enactment over existing legislation.

(i) History of the legislation

The need for legislation to address offences against children came to the forefront during discussions relating to the commissioning of the *Study on Child Abuse: India 2007*, which identified widespread abuse of children. This study was conducted by the Ministry of Women and Child Development. It examined the extent and characteristics of physical, sexual, emotional child abuse and girl child neglect. The report from this study revealed statistics on the extent and magnitude of forms of child abuse and generated data on variations among different age groups, gender variations, state variations and variations within evidence groups. It stated that children on the street, children at work, and children in institutional care reported the highest incidence of sexual assault, while the majority of abuse cases take place within the family environment with the perpetrators being close family relatives.[203]

Extensive consultations were held by the then Department of Women and Child Development in 2005, which led to the conclusion there was a need for legislation on child abuse. The Department prepared a Draft Offences against Children Bill 2005 ("Draft Bill") in consultation with civil society participants and experts which covered various offences against children, including sexual offences. The Draft Bill was sent to the Ministry of Home Affairs for review in November 2005. The Ministry of Home Affairs was requested to

[203] Save the Children, *Study on Child abuse: India 2007* http://resourcecentre.savethechildren.se/library/study-child-abuse-india-2007

consider amendment to the *IPC* by incorporating the provisions of the Draft Bill. However, the Ministry opined that as amendment to the *IPC* was a long process, a comprehensive legislation on child abuse may be considered by the Department. The Draft Bill was circulated to the State Governments for their views and received their support. Subsequently, the Draft Bill was discussed through inter-ministerial consultations in 2006-2007. The Department of Legal Affairs returned the Draft Bill with the observation that most of the offences were already covered under the existing laws, and the purpose of bringing a new law was not clear. The Ministries of Home Affairs and Labour and Employment made additional suggestions to the Draft Bill. The Bill was, accordingly, revised and sent to the Department of Legal Affairs, with the clarification that the purpose of the proposed legislation was to provide stringent punishment for various offences which were already punishable under existing acts such as the *IPC*, *Immoral Traffic Prevention Act 1956*, *Information and Technology Act 2000*, and the *Child Labour (Prohibition and Regulation) Act 1986*, etc.

During mid-2007, consultations were held by the National Commission for Protection of Child Rights (NCPCR) with the India Alliance for Child Rights, HAQ Centre for Child Rights, UNICEF, and TULIR. The consensus was that instead of having a separate Draft Bill, appropriate changes could be made to the *Criminal Procedure Code 1973* and the *Indian Evidence Act 1872*, and that an additional chapter or provision could be added to the *IPC* in order to address the requirements adequately.[204] However, in view of the findings of the Study on Child Abuse 2007 and the specific advice given by the Ministry of Home Affairs on the need for a separate law, the Draft Bill was revised by the NCPCR between January and September 2009. In January 2010, the NCPCR held consultations with NGOs, legal experts, child rights activists and concerned government officers. It emerged from these consultations that instead of a general legislation covering all offences against children, the focus should be on legislation for the protection from sexual offences against children. The relevant sections of the *IPC*, the *Criminal Procedure Code 1973*, the *Indian Evidence Act 1872* and other laws could be amended concurrently in order to ensure that children were not victimized further and that justice was rendered in a timely manner.[205]

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[204]Department-Related Parliamentary Standing Committee On Human Resource Development (2011).Two Hundred Fortieth Report On The Protection Of Children From Sexual Offences Bill, 2011. New Delhi: *Rajya Sabha* Secretariat (Para 2.2) http://www.prsindia.org/uploads/media/Protection%20of%20children/SCR%20Protection%20of%20Children%20from%20Sexual%20Offences%20Bill%202011.pdf

[205]*Id* at Para 2.3.

The Ministry of Law and Justice, in consultation with non-governmental organisations, prepared a draft Bill on Sexual Offences against Children and sent it to the Ministry of Women and Child Development (MWCD). In September 2010, the MWCD, along with other Ministries and the NCPCR, prepared a draft of the Protection of Children from Sexual Offences Bill 2010. Another draft bill was prepared by the NCPCR and submitted to the MCWD in November 2010. Thereafter the MWCD prepared a new bill based on the recommendations of the other Ministries, State Governments/Union territories and the NCPCR. [206] The Protection of Children from Sexual Offences Bill 2011 (*POCSO*) was introduced in the *Rajya Sabha* – the Upper House of Parliament – on 23 March 2011. The *Rajya Sabha* referred the Bill to the Parliamentary Standing Committee on Human Resource Development on 28 March 2011 for examination and report. This report was presented to the *Rajya Sabha* on 21December 2011 and laid on the table of the *Lok Sabha*– the Lower House of Parliament – on the same day.[207] Thereafter, the *POCSO* was passed by the *Rajya Sabha* on 10 May 2012 and by the *Lok Sabha* on the 22 May 2012. It received Presidential assent on 19June 2012. It entered into force on 14 November 2012, November 14 being Children's Day in India.[208]

The *POCSO* consists of 10 chapters. It lays down the law regarding offences and their punishments, mandatory reporting and punishments for non-reporting and false complaints, procedure to be followed in recording the child's statement by both police and magistrate, procedure regarding medical examination of the child, constitution of special courts and procedure to be followed, right to free legal aid for the indigent, imposition of duty upon state governments guidelines regarding pre-trial and trial assistance to the victim to be framed by state governments, the role of the NCPCR and corresponding state commissions in implementation of the *POCSO* , as well as statements regarding the prevalence of *POCSO* over other legislation.

(ii) The Protection of Children against Sexual Offences Act 2012 (POCSO)

This legislation is novel because, for the first time in the history of Indian law, sexual offences against children which did not exist in criminal law were defined and criminalised.

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[206] *Id* at Para 2.4.

[207] Sanyal, K. (2011). Bill Summary, The Protection of Children from Sexual Offences Bill, 2011. *PRS Legislative Research*, Centre for Policy Research: New Delhi http://www.prsindia.org/billtrack/the-protection-of-children-from-sexual-offences-bill-2011-1598/

[208] This is the birthday of India's first Prime Minister, Jawaharlal Nehru, who introduced various welfare measures for the education and development of children in India.

Nine categories of offences against children were conceptualised, which did not previously exist in the *IPC*. These are the offences of penetrative sexual assault, aggravated penetrative sexual assault, sexual assault, aggravated sexual assault, sexual harassment, using child for pornographic purposes, abetment of an offence, and attempt to commit an offence. The *POCSO* extends the scope of criminal law in significant ways.

Table 3 discusses the various provisions of the *POCSO*. Table 4 compares these offences with the *IPC*, the *Goa Children's Act 2003*, and the legislation applicable in Kerala.

***1. Penetrative sexual assault and punishment (sections 3 and 4 POCSO*):**

Five types of penetrative acts constitute this offence under section 3: penile penetration; insertion of any object or body part into the body of the child; manipulation of any part of the body of a child so as to cause penetration; into vagina, mouth, urethra or anus of the child or making the child to do so with such person or any other person; or oral application to the penis, vagina, anus, urethra of the child; or making the child to do so to such person or any other person.[209]This offence is punishable under section 4 by imprisonment of either description from seven years to life and fine,[210]
It can be seen that no specific amount has been prescribed as fine throughout the Act.

CASE LAW

***Gaya Prasad Pal v State* (2016)[211]:** This case was decided by Justice Gita Mittal and Justice Gauba R.K of the High Court of Delhi. The appellant assaulted and committed forcible sexual intercourse with his step-daughter who was less than 14-years-old, causing her to become pregnant and subjecting her to criminal intimidation. He was charged under sections 354A (sexual harassment and punishment for sexual harassment), 375 (rape) and 506 (punishment for criminal intimidation) of the *IPC*, read with section 4 (punishment for

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[209] Section 3 *POCSO*. Penetrative sexual assault.- A person is said to commit "penetrative sexual assault" if-
a. he penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a child or makes the child to do so with him or any other person; or
b. he inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of the child or makes the child to do so with him or any other person; or
c. he manipulates any part of the body of the child so as to cause penetration into the vagina, urethra, anus or any part of body of the child or makes the child to do so with him or any other person; or
d. he applies his mouth to the penis, vagina, anus, urethra of the child or makes the child to do so to such person or any other person.
[210]Section 4 *POCSO*. Punishment for penetrative sexual assault.- Whoever commits penetrative sexual assault shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may extend to imprisonment for life, and shall also be liable to fine.
[211] MANU/DE/3290/2016.

penetrative sexual abuse) of the *POCSO*. The Court dismissed the appeal, reprimanding the trial court for failing to correct the provisions under which the *POCSO* applied. The Court said that clause (n) of section 5 *POCSO* ought to have been attracted, as the step-daughter was living in a shared household with the appellant, along with clause (p) of section 5 *POCSO*, as the appellant was her guardian. Instead, the trial court allowed the appellant to be put to trial under section 4, but awarded rigorous imprisonment for life under section 6, which was wholly impermissible and illegal. The Court states there is an overlap between the *IPC* and the *POCSO* in the offences of assault or criminal force to a woman with intent to outrage her modesty, punishable under sections 354 *IPC* and of rape punishable under section 376 *IPC* on one hand, and the offence of sexual assault defined in section 7 *POCSO* and made punishable under section 8 *POCSO* and the offences of penetrative sexual assault punishable under section 4 *POCSO* and aggravated penetrative sexual assault under section 5 *POCSO* on the other. The Court states that what is defined by law as "rape" (section 375 *IPC*) may also constitute "penetrative sexual assault" (section 3 *POCSO*) in the case of a child. Conversely, acts constituting "penetrative sexual assault" against a girl-child also amount to rape. The distinction between the two offences is that "penetrative sexual assault", an offence under the special law (*POCSO*), is gender-neutral and for it the victim must be a child, while the offence of "rape" under the general law (*IPC*) must be against a woman irrespective of her age. Since the issue of consent does not arise in the case of offence against a child, the definition in the *POCSO* omits any reference to it. Acts constituting the offence of aggravated penetrative sexual assault under the *POCSO* or rape under the *IPC* were committed by the step-father. Section 42 of the *POCSO* expects the court to invoke the offence attracting graver punishment: the higher the prescription of punishment, the graver the offence. The Court stated that section 376 (2) clauses (f), (i) and (k) of the *IPC* would apply in this case, and since section 375(2) *IPC* prescribes punishment that may extend to "imprisonment for life" which shall mean imprisonment for the remainder of such person's "natural life" and "shall also be liable to fine"; section 42 *POCSO* would apply and the Court shall punish the offender for the offence under section 376 (2) clauses (f), (i) and (k) *IPC*, which is greater in degree in comparison to the offence under section 4 *POCSO* .

2. Aggravated penetrative sexual assault and punishment (sections 5 and 6 POCSO): Commission of this offence is based on the class of perpetrators, certain types of acts and certain types of victims. This is laid down in section 5 *POCSO*.[212]

When persons in certain positions of trust and responsibility commit the act of penetrative sexual assault, then they get aggravated punishment under sections 5 and 6 *POCSO*. Those who come under this category of offenders are:

1. Police officers
2. Members of the armed forces/security forces,

[212] Section 5 *POCSO*. Aggravated Penetrative Sexual Assault: (a) Whoever, being a police officer, commits penetrative sexual assault on a child — (i) within the limits of the police station or premises at which he is appointed; or (ii) in the premises of any station house, whether or not situated in the police station, to which he is appointed; or (iii) in the course of his duties or otherwise; or (iv) where he is known as, or identified as, a police officer; or
(b) whoever being a member of the armed forces or security forces commits penetrative sexual assault on a (i) within the limits of the area to which the person is deployed; or (ii) in any areas under the command of the forces or armed forces; or (iii) in the course of his duties or otherwise; or (iv) where the said person is known or identified as a member of the security or armed forces; or
(c) whoever being a public servant commits penetrative sexual assault on a child; or (d) whoever being on the management or on the staff of a jail, remand home, protection home, observation home, or other place of custody or care and protection established by or under any law for the time being in force, commits penetrative sexual assault on a child, being inmate of such jail, remand home, protection home, observation home, or other place of custody or care and protection; or (e) whoever being on the management or staff of a hospital, whether Government or private, commits penetrative sexual assault on a child in that hospital; or (f) whoever being on the management or staff of an educational institution or religious institution, commits penetrative sexual assault on a child in that institution; or Explanation.—When a child is subjected to sexual assault by one or more persons of a group in furtherance of their common intention, each of such persons shall be deemed to have committed gang penetrative sexual assault within the meaning of this clause and each of such person shall be liable for that act in the same manner as if it were done by him alone; or (g) whoever commits gang penetrative sexual assault on a child. (h) whoever commits penetrative sexual assault on a child using deadly weapons, fire, heated substance or corrosive substance; or (i) whoever commits penetrative sexual assault causing grievous hurt or causing bodily harm and injury or injury to the sexual organs of the child; or (j) whoever commits penetrative sexual assault on a child, which— (i) physically incapacitates the child or causes the child to become mentally ill as defined under clause (b) of section 2 of the *Mental Health Act 1987* or causes impairment of any kind so as to render the child unable to perform regular tasks, temporarily or permanently; (ii) in the case of female child, makes the child pregnant as a consequence of sexual assault; (iii) inflicts the child with Human Immunodeficiency Virus or any other life threatening disease or Infection which may either temporarily or permanently impair the child by rendering him physically incapacitated, or mentally ill to perform regular tasks; or (k) whoever, taking advantage of a child's mental or physical disability, commits penetrative sexual assault on the child; or (l) whoever commits penetrative sexual assault on the child more than once or repeatedly; or (m) whoever commits penetrative sexual assault on a child below twelve years; or (n) whoever being a relative of the child through blood or adoption or marriage or guardianship or in foster care or having a domestic relationship with a parent of the child or who is living in the same or shared household with the child, commits penetrative sexual assault on such child; or (o) whoever being, in the ownership, or management, or staff, of any institution providing services to the child, commits penetrative sexual assault on the child; or (p) whoever being in a position of trust or authority of a child commits penetrative sexual assault on the child in an institution or home of the child or anywhere else; or (q) whoever commits penetrative sexual assault on a child knowing the child is pregnant; or (r) whoever commits penetrative sexual assault on a child and attempts to murder the child; or (s) whoever commits penetrative sexual assault on a child in the course of communal or sectarian violence; or (t) whoever commits penetrative sexual assault on a child and who has been previously convicted of having committed any offence under this Act or any sexual offence punishable under any other law for the time being in force; or (u) whoever commits penetrative sexual assault on a child and makes the child to strip or parade naked in public, is said to commit aggravated penetrative sexual assault.

3. A public servant or the management/staff of a jail, remand home, protection home, observation home, other place of custody or care and protection
4. Management/staff of a hospital (both government-run as well as private hospitals)
5. Management /staff of an educational institution or religious institution
6. A relative of the child through blood/adoption/marriage/guardianship/in foster care/domestic relationship with parent/living in same or shared household
7. Anyone having ownership or management or staff of any institution providing services to the child
8. Anyone, being in a position of trust or authority of a child in an institution or home
9. Anyone, who knows the child is pregnant and commits penetrative sexual assault on a child

Certain types of acts qualify for aggravated punishment. They are:

1. Committing gang penetrative sexual assault on a child
2. Use of deadly weapons, fire, heated/corrosive substance for committing penetrative sexual assault on a child
3. Causing grievous hurt/bodily harm/injury to sex organs of child
4. Physically incapacitating a child or
4. Causing a child to become mentally ill
5. Causing impairment of child temporarily or permanently
6. Making a female child pregnant
7. Inflicting the child with HIV or other life threatening disease
8. Committing penetrative sexual assault more than once or repeatedly on a child
9. Attempting to murder the child while committing penetrative sexual assault on a child
10. Committing penetrative sexual assault on a child in the course of communal or sectarian violence
11. Committing penetrative sexual assault on a child who has been previously convicted of offence under this Act or any sexual offence punishable under any other law for the time being in force
12. Committing penetrative sexual assault upon a child and making the child to strip or parade naked in public.

When a child belongs to a certain category of victims, committing penetrative sexual assault on a child would qualify for the commission of the offence of aggravated penetrative sexual assault:

1. Mentally or physically disabled children
2. A child below 12 years of age.

Punishment under section 6 for the offence of aggravated penetrative sexual assault is rigorous imprisonment for a term not less than ten years to imprisonment for life and fine.[213]

CASE LAW

Akshay Sarma v State of Assam and Others (2016)[214]**:** This was decided by the High Court of Gauhati by Justice Rumi Kumari Phukan. The accused penetrated his finger into the vagina of a 5-year-old girl. He was charged under section 376(2)(l) of the *IPC* read with section 6 of the *POCSO* (punishment for aggravated penetrative sexual assault). He was convicted by the trial court to undergo rigorous imprisonment of 10 years and to pay a fine of Rs. 10,000, in default of which to suffer rigorous imprisonment for further period of two months. The High Court upheld the validity of the sentence.

Nar Bahadur Subba v State of Sikkim (2016)[215]**:** This was decided by Justice Meenakshi Madan Rai of the High Court of Sikkim. The 72-year-old accused committed penetrative sexual assault upon an 11-year-old girl. He was convicted by the trial court for aggravated penetrative sexual assault under section 5(l) *POCSO* for committing penetrative sexual assault on the child more than once and section 5(m) *POCSO* for committing penetrative sexual assault on a child below 12 years. Despite the fact that the child's hymen was intact, the High Court reiterated that the principle enunciated in *Das Bernard v State*[216], that in the case of penetrative sexual assault under section 3 *POCSO*, for the offence of rape to be committed, it is not necessary there should be complete penetration, and that partial penetration within the labia majora of the vulva or pudendum with or without emission of semen is quite sufficient under the law.

It is of relevance to note that even though four years have passed since the *POCSO* came into force, at times, the police and courts still omit to charge offenders under the provisions of the *POCSO*.[217]

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[213]Section 6 *POCSO*. Punishment for aggravated penetrative sexual assault: Whoever, commits aggravated penetrative sexual assault, shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life and shall also be liable to fine.
[214] MANU/GH/0572/2016.
[215] MANU/SI/0055/2016.
[216] 1974 CriLJ 1098.
[217]In *State of Himachal Pradesh v Sanjay Kumar* (MANU/SC/1599/2016) decided by Justice A.K. Sikri and Justice Abhay Manohar Sapre of the Supreme Court of India , the accused committed penetrative sexual assault upon his nine-year-old niece repeatedly in2009 for which the offences under sections 376(2)(f) (punishment for

3. Sexual assault and punishment (Sections 7 and 8 POCSO):

Two elements need to be present in an act in order to come within the ambit of this offence: physical contact without penetration and sexual intent.

The following acts by a person would qualify under section 7 *POCSO*:

1. Touching the vagina, penis, anus or breast of a child with sexual intent.
2. Making a child touch the vagina, penis, anus or breast of such person or any other person.
3. Doing any other act with sexual intent which involves physical contact without penetration. [218]

The punishment under section 8 *POCSO* for sexual assault is imprisonment from three years to five years and fine.[219]

4. Aggravated sexual assault and punishment (Sections 9 and 10 POCSO):

When persons in certain positions of trust and responsibility commit the act of sexual assault, then aggravated punishment under sections 9 and 10 *POCSO* apply. Those who come under this category of offenders are:

1. Police officers
2. Members of the armed forces/security forces
3. Public servants
4. The management/staff of a jail, remand home, protection home, observation home, other place of custody or care and protection
5. Member/staff of a hospital (government and private)
6. Member/staff of an educational institution or religious institution

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rape of a woman below twelve years of age) and 506 (punishment for criminal intimidation) of the *Indian Penal Code 1860* were made out against him. The trial court convicted him, but this order was set aside by the High Court on the basis that the prosecution had failed to prove itself beyond reasonable doubt. The Supreme Court restored the conviction of the trial court which had awarded rigorous imprisonment for a period of twelve years and fine of Rs. 50,000, in default of which a further period of one year would have to be served.

[218]Section 7 *POCSO*. Sexual assault: Whoever, with sexual intent touches the vagina, penis, anus or breast of the child or makes the child touch the vagina, penis, anus or breast of such person or any other person, or does any other act with sexual intent which involves physical contact without penetration is said to commit sexual assault.

[219]Section 8 *POCSO*. Punishment for sexual assault: Whoever, commits sexual assault, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to five years, and shall also be liable to fine.

7. Anyone, being a relative of the child through blood/adoption/marriage/guardianship/in foster care/domestic relationship with parent/living in same or shared household
8. Anyone who is in the ownership or management or staff of any institution providing services to the child
9. Anyone who is in a position of trust or authority of a child in an institution or home
10. Anyone who knows the child is pregnant and commits sexual assault on a child.

Certain types of acts qualify for aggravated punishment:

1. Committing gang sexual assault on a child
2. Using deadly weapons, fire, heated/corrosive substance for committing sexual assault on a child
3. Causing grievous hurt/bodily harm/injury to sex organs of child
4. Physically incapacitating a child
5. Causing a child to become mentally ill
6. Causing impairment of child temporarily or permanently
7. Making a female child pregnant
8. Inflicting a child with HIV or other life threatening disease
9. Committing sexual assault more than once or repeatedly on a child
10. Attempting to murder the child
11. Committing sexual assault on a child in the course of communal or sectarian violence
12. Committing sexual assault on a child when previously convicted of any offence under the *POCSO* or any sexual offence punishable under any other law for the time being in force
13. Committing sexual assault on a child and making the child to strip or parade naked in public.

When a child belongs to a certain category of victim, then committing sexual assault on such a child would qualify for the commission of the offence of aggravated penetrative sexual assault:

1. Mentally or physically disabled children

2. A child below twelve years of age.[220]

The punishment under section 10 *POCSO* for aggravated sexual assault is imprisonment for a term not less than five years up to seven years and fine.[221]

5. Sexual harassment and punishment (Sections 11 and 12 POCSO):

One essential element of all acts of sexual harassment is that there should be sexual intent. Various acts such as uttering words, making sounds or gestures, exhibiting objects or body parts, making a child exhibit his body, showing pornography to a child, stalking a child,

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[220] Section 9 *POCSO*. Aggravated sexual assault: (a) Whoever, being a police officer, commits sexual assault on a child—
(i) within the limits of the police station or premises where he is appointed; or (ii) in the premises of any station house whether or not situated in the police station to which appointed; or (iii) in the course of his duties or otherwise; or (iv) where he is known as, or identified as a police officer; or
(b) whoever, being a member of the armed forces or security forces, commits sexual assault on a child—
(i) within the limits of the area to which the person is deployed; or (ii) in any areas under the command of the security or armed forces; or (iii) in the course of his duties or otherwise; or (iv) where he is known or identified as a member of the security or armed forces; or (c) whoever being a public servant commits sexual assault on a child; or (d) whoever being on the management or on the staff of a jail, or remand home or protection home or observation home, or other place of custody or care and protection established by or under any law for the time being in force commits sexual assault on a child being inmate of such jail or remand home or protection home or observation home or other place of custody or care and protection; or (e) whoever being on the management or staff of a hospital, whether Government or private, commits sexual assault on a child in that hospital; or (f) whoever being on the management or staff of an educational institution or religious institution, commits sexual assault on a child in that institution; or (g) whoever commits gang sexual assault on a child. Explanation.—when a child is subjected to sexual assault by one or more persons of a group in furtherance of their common intention, each of such persons shall be deemed to have committed gang sexual assault within the meaning of this clause and each of such person shall be liable for that act in the same manner as if it were done by him alone; or (h) whoever commits sexual assault on a child using deadly weapons, fire, heated substance or corrosive substance; or (i) whoever commits sexual assault causing grievous hurt or causing bodily harm and injury or injury to the sexual organs of the child; or (j) whoever commits sexual assault on a child, which— (i) physically incapacitates the child or causes the child to become mentally ill as defined under clause (l) of section 2 of the *Mental Health Act 1987* or causes impairment of any kind so as to render the child unable to perform regular tasks, temporarily or permanently; or (ii) inflicts the child with Human Immunodeficiency Virus or any other life threatening disease or infection which may either temporarily or permanently impair the child by rendering him physically incapacitated, or mentally ill to perform regular tasks; or (k) whoever, taking advantage of a child's mental or physical disability, commits sexual assault on the child; or (l) whoever commits sexual assault on the child more than once or repeatedly; or (m) whoever commits sexual assault on a child below twelve years; or (n) whoever, being a relative of the child through blood or adoption or marriage or guardianship or in foster care, or having domestic relationship with a parent of the child, or who is living in the same or shared household with the child, commits sexual assault on such child; or (o) whoever, being in the ownership or management or staff, of any institution providing services to the child, commits sexual assault on the child in such institution; or (p) whoever, being in a position of trust or authority of a child, commits sexual assault on the child in an institution or home of the child or anywhere else; or (q) whoever commits sexual assault on a child knowing the child is pregnant; or (r) whoever commits sexual assault on a child and attempts to murder the child; or (s) whoever commits sexual assault on a child in the course of communal or sectarian violence; or (t) whoever commits sexual assault on a child and who has been previously convicted of having committed any offence under this Act or any sexual offence punishable under any other law for the time being in force; or (u) whoever commits sexual assault on a child and makes the child to strip or parade naked in public, is said to commit aggravated sexual assault.

[221]Section 10. Punishment for aggravated sexual assault.-Whoever, commits aggravated sexual assault shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years, and shall also be liable to fine.

blackmailing a child and enticing or giving gratification for pornographic purposes come under the ambit of the definition of sexual harassment.

The following acts with sexual intent would constitute sexual harassment under section 11 *POCSO*:

1. Utterance of any word
2. Making any sound or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard or such gesture or object or part of body shall be seen by the child
3. Makes a child exhibit his body/any part
4. Showing any object to a child in any form or media for pornographic purposes
5. Repeatedly or constantly following or watching or constantly contacting a child either directly or through electronic, digital or any other means
6. Threatening to use in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act
7. Enticing a child for pornographic purposes or giving gratification therefore.[222]

The punishment under section 12 *POCSO* shall be imprisonment up to three years and fine.[223]

6. Using a child for pornographic purposes and punishment (Sections 13 and 14 POCSO):

This offence exists in section 67B of the *Information Technology Act 2000*.[224]Section 67B of that Act punishes publishing material containing child pornography or creating text or

[222]Section 11. Sexual harassment: A person is said to commit sexual harassment upon a child when such person with sexual intent-
utters any word or makes any sound, or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard, or such gesture or object or part of body shall be seen by the child; or
makes a child exhibit his body or any part of his body so as it is seen by such person or any other person; or
shows any object to a child in any form or media for pornographic purposes; or
repeatedly or constantly follows or watches or contacts a child either directly or through electronic, digital or any other means; or
threatens to use, in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act; or
entices a child for pornographic purposes or gives gratification therefore.
Explanation: Any question which involves "sexual intent" shall be a question of fact.

[223]Section 12 *POCSO*. Punishment for sexual harassment.-Whoever, commits sexual harassment upon a child shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine.

[224] Section 67 B *Information Technology Act 2000*. Punishment for publishing or transmitting of material depicting children in sexually explicit act, etc. in electronic form: Whoever,- (a) publishes or transmits or causes

browsing or downloading material containing child pornography, or contacting children online for sexual purposes or facilitating online child abuse or recording own abuse or abuse of others. However the *POCSO* defines this offence in greater detail. Sections 13, 14 and 15 of *POCSO* is more extensive. Section 13 *POCSO* punishes anyone who uses a child in any form of media (including programme or advertisement telecast by television channels or internet or any other electronic form or printed form, whether or not such programme or advertisement is intended for personal use or for distribution) for the purposes of sexual gratification, which includes—representation of the sexual organs of a child; usage of a child engaged in real or simulated sexual acts (with or without penetration); and the indecent or obscene representation of a child.

An explanation is appended to section 13 *POCSO* regarding the expression "use a child". This expression shall include involving a child though any medium like print, electronic, computer or any other technology for preparation, production, offering, transmitting, publishing, facilitation and distribution of the pornographic material.[225] Punishments are many and varied, and have been extensively laid down in section 14 *POCSO*:

1. For mere usage of a child for pornographic purposes, the punishment is imprisonment of either description up to 5 years and fine. In the event of subsequent conviction,

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to be published or transmitted material in any electronic form which depicts children engaged in sexually explicit act or conduct or (b) creates text or digital images, collects, seeks, browses, downloads, advertises, promotes, exchanges or distributes material in any electronic form depicting children in obscene or indecent or sexually explicit manner or (c) cultivates, entices or induces children to online relationship with one or more children for and on sexually explicit act or in a manner that may offend a reasonable adult on the computer resource or (d) facilitates abusing children online or (e) records in any electronic form own abuse or that of others pertaining to sexually explicit act with children, shall be punished on first conviction with imprisonment of either description for a term which may extend to five years and with a fine which may extend to ten lakh rupees and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to seven years and also with fine which may extend to ten lakh rupees: Provided that the provisions of section 67, section 67A and this section does not extend to any book, pamphlet, paper, writing, drawing, painting, representation or figure in electronic form-(i) The publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper writing, drawing, painting, representation or figure is in the interest of science, literature, art or learning or other objects of general concern; or (ii) which is kept or used for bonafide heritage or religious purposes. Explanation: For the purposes of this section, "children" means a person who has not completed the age of 18 years.

[225]Section 13 *POCSO*. Use of child for pornographic purposes: Whoever, uses a child in any form of media (including programme or advertisement telecast by television channels or internet or any other electronic form or printed form, whether or not such programme or advertisement is intended for personal use or for distribution), for the purposes of sexual gratification, which includes-

a. representation of the sexual organs of a child;

b. usage of a child engaged in real or simulated sexual acts (with or without penetration);

c. the indecent or obscene representation of a child, shall be guilty of the offence of using a child for pornographic purposes.

Explanation: For the purposes of this section, the expression "use a child" shall include involving a child through any medium like print, electronic, computer or any other technology for preparation, production, offering, transmitting, publishing, facilitation and distribution of the pornographic material.

punishment shall be imprisonment of either description up to 7 years and fine (section 14(1) *POCSO*).

2. If a person uses the child for pornographic purposes coupled with penetrative sexual assault, by directly participating in the pornographic act, such person shall be liable for not less than ten years imprisonment of either description to life imprisonment and fine. If a person uses a child for pornographic purposes coupled with aggravated penetrative sexual assault, by directly participating in the pornographic act, the punishment is rigorous imprisonment for life and fine (section 14(2) *POCSO*).
3. If any person uses a child for pornographic purposes coupled with sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term which is not less than 6 years imprisonment up to 8 years and fine (section 14(3) *POCSO*).
4. If any person uses a child for pornographic purposes coupled with aggravated sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term of not less than 8 years imprisonment up to 10 years and fine (section 14(4) *POCSO*).
5. If any person commits the offence abetment of any offence under the *POCSO*, the punishment shall be as provided for the actual commission of the offence. If any person attempts to commit an offence under the *POCSO*, punishment is imprisonment for a term up to one half of the imprisonment for life or one half of the longest term of imprisonment provided for that offence or with fine or with both (section 14(5) *POCSO*). [226]

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[226]Section 14 *POCSO*. Punishment for using child for pornographic purposes:

1. Whoever, uses a child or children for pornographic purposes shall be punished with imprisonment of either description which may extend to five years and shall also be liable to fine and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to seven years and also be liable to fine.
2. If the person using the child for pornographic purposes commits an offence referred to in section 3, by directly participating in pornographic acts, he shall be punished with imprisonment of either description for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine.
3. If the person using the child for pornographic purposes commits an offence referred to in section 5, by directly participating in pornographic acts, he shall be punished with rigorous imprisonment for life and shall also be liable to fine,
4. If the person using the child for pornographic purposes commits an offence referred to in section 7, by directly participating in pornographic acts, he shall be punished with imprisonment of either description for a term which shall not be less than six years but which may extend to eight years, and shall also be liable to fine.
5. If the person using the child for pornographic purposes commits an offence referred to in section 9, by directly participating in pornographic acts, he shall be punished with imprisonment of either description for a term which shall not be less than eight years but which may extend to ten years, and shall also be liable to fine.

7. *Punishment for storage of pornographic material involving child (Section 15 POCSO)*:

Section 15 *POCSO* states that if any person, for commercial purposes, stores any form of child pornography, such person shall be punished with imprisonment of either description for a maximum period of three years or with fine or with both.[227]It is pertinent to point out that this provision departs from section 67B of the *Information Technology Act 2000* by providing lesser punishment for storage of commercial child pornography.[228]

8. *Abetment of an offence and punishment (Sections 16 and 17 POCSO)*:

A person abets an offence, who instigates any person to do that offence or engages in any conspiracy to do that offence or intentionally aids the doing of that offence is said to aid the doing of that offence (section 16 *POCSO*).[229]Punishment for abetment is the punishment for that offence.[230]

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[227]Section 15 *POCSO*. Punishment for storage of pornographic material involving child: Any person, who stores, for commercial purposes any pornographic material in any form involving a child shall be punished with imprisonment of either description which may extend to three years or with fine or with both.

[228]It is not clear why the *POCSO* has departed from awarding higher as laid down in section 67B of the *Information Technology Act 2000*. Originally, section 42 *POCSO* stated that in cases of conflict between *POCSO* and another law regarding punishment of the same act or omission, the offender found guilty of such offence shall be liable to whichever law which provides for greater punishment. In that case, section 67B of the *Information Technology Act 2000* would have prevailed over section 15 *POCSO* in offences of storage of child pornography. However, after the *Criminal Law (Amendment) Act 2013*, section 42 *POCSO* applies only to cases of conflict between the *POCSO* and certain provisions of the *Indian Penal Code 1860*. In cases of conflict between the *POCSO* and any other law, section 42A *POCSO* clarifies that the *POCSO* would prevail over any other law. This makes it clear that a person found guilty of a crime of storing commercial child pornography would be entitled to a lesser punishment under section 15 *POCSO* .

[229]Section 16 *POCSO*. Abetment of an offence: A person abets an offence, who:

First.- Instigates any person to do that offence; or

Secondly.- Engages with one or more other person or persons in any conspiracy for the doing of that offence, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that offence; or

Thirdly.- Intentionally aids, by any act or illegal omission, the doing of that offence.

Explanation I.- A person who, by wilful misrepresentation, or by wilful concealment of a material fact, which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure a thing to be done, is said to instigate the doing of that offence.

Explanation II.- Whoever, either prior to or at the time of commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act.

Explanation III.-Whoever employs, harbours, receives or transports a child, by means of threat or use force or other forms of coercion, abduction, fraud, deception, abuse of power or of a position, vulnerability or the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of any offence under this Act, is said to aid the doing of that act.

[230]Section 17 *POCSO*. Punishment for abetment: Whoever abets any offence under this Act, if the act abetted is committed in consequence of the abetment, shall be punished with punishment provided for that offence.

Explanation.- An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy or with the aid, which constitutes the abetment.

Explanation.- An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy or with the aid, which constitutes the abetment.

9. Punishment for attempt to commit an offence (Section 18 POCSO):

Attempt is punishable with imprisonment of any description provided for in the offence, for a term which may extend to one-half of the imprisonment for life or as the case may be, one-half of the longest term of imprisonment provided for that offence or with fine or with both.[231]

Table 2 outlines the list of offences in the *POCSO*. The defining provision as well as the punishing provision are laid down within the same row.

[231] Section 18 *POCSO* . Punishment for attempt to commit an offence.-Whoever attempts to commit any offence punishable under this Act or to cause such an offence to be committed, and in such attempt, does any act towards the commission of the offence, shall be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence or with fine or with both.

Table 3. Sexual offences in the *POCSO*

Serial No.	Offence in the *POCSO*	Provision
1.	**Penetrative sexual assault (Sections 3 and 4)**	It incurs when a person, by means of penile, object, body part, oral penetration or manipulation of child's body to cause penetration, of the child's vagina, mouth, urethra or anus, or when the child is made to penetrate the offender or any other person(section 3). This offence is punishable by imprisonment of either description from seven years to life and fine (section 4).
2.	**Aggravated penetrative sexual assault (Sections 5 and 6)**	It incurs when the offence of penetrative sexual assault is committed by a person in authority or position of responsibility or trust, or a relative of the child, through blood, adoption, marriage, guardianship, foster care etc. Other instances of this offence being attracted are if the child is below the age of twelve years, or is mentally or physically incapacitated or pregnant or sexually penetrated by a gang etc. (section 5). Punishment for the offence of aggravated penetrative sexual assault is rigorous imprisonment for a term not less than ten years to imprisonment for life and fine (section 6).
3.	**Sexual assault (Sections 7 and 8)**	It incurs when a person touches, with sexual intent, the vagina, penis, anus or breast of a child or makes the child touch the vagina, penis, anus or breast of such person or any other person, or does any other act with sexual intent which involves physical contact without penetration (section 7). The punishment for sexual assault is imprisonment from three years to five years and fine (section 8).
4.	**Aggravated sexual assault (Sections 9 and 10)**	It incurs when a person sexually assaults a child by a person in a position of authority, responsibility or trust, or who is a relative of the child by blood or adoption or marriage or guardianship or foster care etc. Other instances of this offence include sexual assault upon a child below the age of twelve, gang sexual assault, sexual assault of a pregnant child etc. (section 9) The punishment for aggravated sexual assault is imprisonment for a term not less than five years up to seven years and fine (section 10)
5.	**Sexual harassment (Sections 11 and 12)**	It incurs when a person with sexual intent utters any word or makes any sound or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard or such gesture or object or part of body shall be seen by the child or makes a child exhibit his body/any part or shows any object to a child in any form or media for pornographic purposes or repeatedly or constantly follows or watches or constantly contacts a child either directly or through electronic, digital or any other means or threatens to use in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act, or entices a child for pornographic purposes or giving gratification therefore (section 11). The punishment shall be imprisonment up to three years and fine (section 12).

6.	**Using a child for pornographic purposes (Sections 13 and 14).**	Section 13 punishes anyone who uses a child in any form of media (including programme or advertisement telecast by television channels or internet or any other electronic form or printed form, whether or not such programme or advertisement is intended for personal use or for distribution), for the purposes of sexual gratification, which includes—representation of the sexual organs of a child; usage of a child engaged in real or simulated sexual acts (with or without penetration); the indecent or obscene representation of a child. An explanation is appended to section 13 stating that the expression "use a child" shall include involving a child though any medium like print, electronic, computer or any other technology for preparation, production, offering, transmitting, publishing, facilitation and distribution of the pornographic material. Section 14 lays down various punishments for different degrees of 'using a child' for pornographic purposes: 1. For mere usage of a child for pornographic purposes, the punishment is imprisonment of either description up to 5 years and fine. In the event of subsequent conviction, punishment shall be imprisonment of either description up to 7 years and fine (Section 14(1)). 2. If a person uses the child for pornographic purposes coupled with penetrative sexual assault, by directly participating in the pornographic act, such person shall be liable for not less than ten years imprisonment of either description to life imprisonment and fine. If a person uses a child for pornographic purposes coupled with aggravated penetrative sexual assault, by directly participating in the pornographic act, the punishment is rigorous imprisonment for life and fine (Section 14(2)). 3. If any person uses a child for pornographic purposes coupled with sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term which is not less than 6 years imprisonment up to 8 years and fine (Section 14(3)). 4. If any person uses a child for pornographic purposes coupled with aggravated sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term of not less than 8 years imprisonment up to 10 years and fine (Section 14(4)). 5. If any person commits the offence abetment of any offence under the *POCSO*, the punishment shall be as provided for the actual commission of the offence. If any person attempts to commit an offence under the *POCSO*, punishment is imprisonment for a term up to one half of the imprisonment for life or one half of the longest term of imprisonment provided for that offence or with fine or with both (Section 14(5)).
7.	**Punishment for storage of pornographic material involving child (Section 15)**	If any person, for commercial purposes, stores any form of child pornography, such person shall be punished with imprisonment of either description for a maximum period of three years or with fine or with both.
8.	**Abetment of an offence and punishment (Sections 16 and 17)**	It incurs when anyone instigates another to do an offence or engages in any conspiracy to do that offence or intentionally aids the doing of that offence (Section 16). Punishment for abetment is the punishment for that offence.
9.	**Punishment for attempt to commit an offence (Section 18)**	It is punishable with imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or as the case may be, one half of the longest term of imprisonment provided for that offence or with fine or with both.

(iii) Clarification regarding the prevalence of the POCSO over other legislation: Sections 42 and 42A POCSO:

The *Criminal Law (Amendment) Act 2013* inserted a new section 42 and section 42A into the *POCSO*. Section 42 *POCSO* provides for alternate punishment in cases where an act or omission constitutes an offence punishable under the *POCSO* and also under sections 166A, 354A, 354B, 354C, 354D, 370, 370A, 375, 376, 376A, 376C, 376D, 376E or section 509 of the *IPC*. Then, notwithstanding anything contained in any law, the offender found guilty of such an offence shall be liable to punishment under the or under the *IPC* as it provides for punishment which is greater in degree. Also, section 42A *POCSO* states that the provisions of the *POCSO* shall be in addition to and not in derogation of the provisions of any other law for the time being in force and, in case of any inconsistency, the provisions of the *POCSO* shall have overriding effect on the provisions of any such law to the extent of the inconsistency. This means that the provisions of the *POCSO* shall prevail over the provisions of any other law in case of inconsistency. Table 4 gives a bird's eye view of the same. This particular aspect of prevalence of law shall be analysed in detail in Chapter 4 in order to establish whether the *POCSO*, the *IPC*, or the *Goa Children's Act 2003* provisions would override the others for the same offence.

One problem faced before the *POCSO* was enacted was the lack of clear gender-neutral laws protecting both boys and girls from various types of sexual abuse. In this context, this chapter examines whether the definitions of sexual offences in the *POCSO* and their punishments adequately protect both male and female children from sexual abuse. The situation in Goa, which had pre-existing special legislation against child sexual abuse since 2003, and in Kerala, which had none other than the national laws of India, has to be examined to ascertain the adequacy of protecting children through the *POCSO*.

3.B. SYNTHESIS OF LEGISLATION AND CASE LAW ON SEXUAL OFFENCES AGAINST CHILDREN IN GOA

The state of Goa, as in all states within the Union of India, has its own independent legislature, elected by the people within its territorial limits who have been issued an electoral card by the Election Commission of India.[232]

This section discusses the provisions in law applicable to Goa in the area of sexual offences against children. Relevant case law of the High Court of Bombay (Goa Bench) is also discussed.

The purpose of this sub-section is to lay the foundation for a comparison of the sexual offences in the *Goa Children's Act 2003* with the *POCSO* and their corresponding *IPC* offences. Table 4 compares the *IPC* and *POCSO* with the *Goa Children's Act*.

3.B.1. Legislation on sexual offences against children in Goa

Currently, cases of child sexual abuse in Goa come under provisions of national legislation: the *IPC*, the *CrPC*, the *Indian Evidence Act 1872* and the *POCSO*. Before the advent of the *POCSO*, the *Goa Children's Act 2003* prevailed. However, presently, as per section 42A *POCSO*, the *POCSO* will prevail over any other law which is inconsistent with *POCSO* provisions. Section 42A *POCSO* states that the provisions of the *POCSO* shall be in addition to and not in derogation of the provisions of any other law for the time being in force and, in case of any inconsistency, the provisions of the *POCSO* shall have overriding effect on the provisions of any such law to the extent of the inconsistency. So, as long as section 8(2) of the *Goa Children's Act 2003* is not inconsistent with *POCSO*, it can co-exist along with the *POCSO*.

[232] Under the Indian constitutional framework, the President of India appoints the Governor as the constitutional head of the state, and all executive actions are taken in the name of the Governor. But he is only a de jure head. The real executive power vests in the Chief Minister. The legislature is headed by the Chief Minister, who is assisted by his Cabinet of Ministers. The Cabinet of Ministers is selected from the Members of the Legislative Assembly. It is from the state legislature that the executive controllers are selected. The State Legislature is allowed under the *Constitution of India* to legislate on subjects mentioned in the State List; that is, List II of the Constitution. In case there is any incidental overlapping between any subject matter present in State legislation and that present in Central or Union Legislation, it is the Central law that will prevail. The judiciary functions as an independent body.

The following sub-section explains the details of the *Goa Children's Act 2003*, with emphasis on sexual offences against children.

3.B.1.a. The *Goa Children's Act 2003*

The *Goa Children's Act 2003* (*Goa Children's Act 2003*) is a piece of special legislation which guarantees the various rights of a child as envisaged in the *International Convention on the Rights of the Child*. Goa is the only state in India to have legislation of this nature at present. The statute addresses all issues relating to children including their right to education, health and safe environment as well as issues of trafficking, child labour and other pro-active measures. It is the first statute which mentions sexual abuse in the child abuse context. Under Section 2 (m)(i) of the *Goa Children's Act 2003*, child abuse is defined to include sexual abuse; however, sexual abuse is not defined.

Sexual Offences under section 2 Clauses (x) and (y) of the Goa Children's Act 2003 and punishments under section 8

Section 2(x) states:

"Sexual Offence" covers all forms of sexual abuse which constitute offences under the Act.

Section 2(y) states:

Sexual offences for the purposes of awarding appropriate punitive action means and includes

(i) "Grave Sexual Assault" which covers different types of intercourse: vaginal, oral, anal, use of objects, forcing minors to have sex with each other, deliberately causing injury to the sexual organs, making children pose for pornographic photos or films;

(ii) "Sexual Assault" which covers sexual touching with the use of any body part or object, voyeurism, exhibitionism, showing pornographic pictures or films to minors, making children watch others engaged in sexual activity, issuing of threats to sexually abuse a minor, verbally abusing a minor using vulgar and obscene language;

(iii) Incest which is the commission of a sexual offence by an adult on a child who is a relative or is related by ties of adoption.

Section 8(2) lays down the punishment for child sexual abuse as follows:

> Whosoever commits any child abuse or sexual assault as defined under this Act, shall be punished with imprisonment of either description for a term that may extend to three years and shall also be liable to fine of Rs. 1,00,000/-. Whoever commits any Grave Sexual Assault shall be punished with imprisonment of either description for a term that shall not be less than ten years but which may extend to life imprisonment and shall also be liable to a fine of Rs. 2,00,000. Whoever commits incest shall be punished with imprisonment of either description for a term that shall not be less than ten years but which may extend to life imprisonment and also a fine which may extend to Rs.2,00,000. Statement of the child victim shall be treated on par with the statement of a child rape victim under Section 375 of the *IPC*, as laid down by the Supreme Court of India.

Under the statute, adults staying with unrelated children are required to register with the government. Hotels are required to take measures to ensure the safety of children on their premises. Photo studios are required to report to the police if they find films or photos that contain objectionable material. It casts an obligation on the larger community to protect the safety of children. Children below the age of 14 are not allowed to enter into a cyber café without being accompanied by an adult. It authorises all governmental authorities to report suspicious circumstances. Proactive measures include setting up a victim assistance unity, sensitization of the police and law enforcement authorities, better investigation techniques evolving a child-friendly tourism code and setting up a child-friendly court. Such a court is to try adult offenders, but the court is required to be less formal so that a child witness finds the atmosphere less intimidating.[233]

The Children's Court under *Goa Children's Act 2003* is competent to try cases under the *POCSO* in Goa.[234] The 11th Law Commission Report in 2010 suggested the creation of two Children's Courts for the two districts of Goa. To date, this recommendation of the Law Commission has not been implemented.

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[233]UNICEF (2007).Development of Law relating to Child Rights. Chennai.

[234]It was the national enactments, viz, the *Indian Penal Code 1860* and the *Code of Criminal of Criminal Procedure 1973* that prevailed in Goa before the *Children's Act* was passed in 2003. The *Children's Act 2003* came into force in July 2003. Thereafter, a Children's Court was formed accordingly with separate procedural rules: the *Goa Children's (Court) Rules 2004*. Thereafter, the Children's Court was started in December 2004.
Section 31 lays down that the Children's Court shall have all the powers of:
(a) the Court of Sessions under the *Code of Criminal Procedure 1973* (2 of 1974);
(b) a Civil Court for the purpose of summoning and enforcing the attendance of witnesses, compelling the discovery and production of documents and material objects, and administering oath and recording evidence.
Also, every proceeding of the Children's Court shall be deemed to be a judicial proceeding within the meaning of sections 195 and 228 of the *Indian Penal Code 1860*.
Section 28 of the *Goa Children's Act 2003* states that a President of the Court shall be a person of District Judge rank, provided that the Government may also appoint any Sessions or Additional Sessions Judge as the President of the Children's Court, but no appointment under this section shall be made except after consultation with the High Court. Section 29 of the *Goa Children's Act 2003* provides that the President of the Children's Court shall hold office for a term of five years or up to the age of 65 years, whichever is earlier, and shall not be eligible for reappointment.
Section 30 of the *Goa Children's Act 2003* lays down that all offences against children come under the jurisdiction of the Children's Court, whether such offence is specified under this Act or not. Hence, once the *POCSO* entered into force on 12 November 2012, it became binding on the state of Goa. Thereafter the existing Children's Court in Goa was granted jurisdiction to try cases under the *POCSO* as well.
Children's Court gets powers under POCSO Act. Dated 07/12/2013 http://timesofindia.indiatimes.com/city/goa/Childrens-court-gets-powers-under-POCSO-Act/articleshow/21027387.cms

3.B.2. Case laws on sexual offences against children in Goa

This section deals with reported cases of the High Court of Bombay (Goa Bench). These cases are relevant to the three types of sexual offences discussed in the *Goa Children's Act 2003*.

When the statutory provision specifically provides a fixed amount to be fined, once an offence is established, no discretion is left to the Court to fix a fine less than the statutory quantum. The reduction of mandatory fine is not possible, nor is it possible to increase the statutory fine and correspondingly decrease the statutory minimum imprisonment. It is also prohibited to reduce the term of imprisonment, while upholding the amount of fine. These case laws are relevant to the principle of restriction upon judicial subjectivity, which is discussed in Chapter 4.

3.B.2.a. Maloji Patil v State of Goa(2008)[235]

The appellant accused appealed against his conviction by the Children's Court under sections 354 and 509 *IPC*, as well as under section 8(2) of the *Goa Children's Act*, whereby he was ordered to undergo the punishment of: (1) simple imprisonment for three months and a fine of Rs. 500 on account of the offence punishable under section 354 *IPC*; (2) one month simple imprisonment and a fine of Rs. 200/- for the offence punishable under section 509 *IPC*; and to suffer (3) simple imprisonment for 3 months and a fine of Rs. 2,000/- for the offence punishable under section 8(2) of the *Goa Children's Act*. The state also filed appeal against the judgment of the Children's Court, being dissatisfied with the punishment of fine to the extent of 2,000/- in spite of being convicted under section 8(2) of the *Goa Children's Act 2003*. The learned Single Judge, Justice R.M.S. Khandeparkar of the High Court of Maharashtra, held that when the statutory provision specifically provides a fixed amount to be fined, once an offence is established, no discretion is left to the Court to fix a fine less than the statutory quantum. While a discretion regarding the quantum of fine has been given to the Court in case of the offence of incest as a result of which the Court can impose any fine up to Rs. 2,00,000/- for incest alone, in case of sexual assault and grave sexual assault, he stated that no such discretion is left to the Court. Thereby, the appeal of the State was allowed and the quantum of fine payable by the accused was directed to be specified as Rs. 1,00,000/- instead of Rs. 2,000/-.

[235] MANU/MH/1435/2008.

3.B.2.b. Dhannaram v State(2012)[236]

The accused appealed against his conviction and sentence of life imprisonment and fine of Rs. 200000/- for grave sexual assault of a mentally retarded girl of seven years of age. Various factors were taken into consideration for reduction of his sentence to 12 years by the High Court of Bombay (Goa Bench),in a Division Bench comprising of Justices A.P. Lavande and U.V. Bakre. These factors were: the accused was young (19 years of age) at the time of the offence; the accused had no criminal antecedents; there was only slight penetration and the hymen was intact; the minimum prescribed punishment as per the *Goa Children's Act* is 10 years. However, the Court specified that reduction of the mandatory fine of Rs. 200000/- was not possible.

3.B.2.c. **Narshiv Usapkar v The State of Goa (2012)**[237]

The mother of the victim girl found the accused, a neighbor, holding the breasts of her daughter, who had been sleeping with her siblings. The trial court convicted and sentenced the accused to simple imprisonment for six months and fine of Rs. 1000/-, for the offence under section 452 *IPC*; simple imprisonment for one year and Rs. 100000/- fine, under section 354 *IPC* read with section 8(2) of the *Goa Children's Act 2003*; and simple imprisonment for three months under section 506(ii) *IPC*.

Before the High Court of Bombay (Goa Bench), the question was raised whether the Court can award a fine greater than the statutory quantum of Rs. 100000/- for the offence of sexual assault under section 8(2) of the *Goa Children's Act 2003* and correspondingly waive the term of imprisonment to be served by taking benefit of the *Probation of Offenders Act 1958*. This was rejected by the Court – headed by Justice A.P. Lavande – upholding the *Goa Children's Act 2003* verdict.

3.B.2.d. **Mansoor K. K. Mohammed v State (2014)**[238]

On 24 March 2009, the accused, a temporary worker in an estate, was seen fondling the genitals of a girl of four years, who was the daughter of a security guard on the estate. Two women sweepers saw this incident and reported the matter to the girl's mother. The girl's mother lodged a complaint against the accused on 25 March 2009. Investigation was

[236] MANU/MH/0030/2012.
[237] MANU/MH/1651/2012.
[238] MANU/MH/0688/2014.

commenced immediately, the statements of the two sweepers were recorded as witnesses, and the accused arrested. Both the child and the accused were subjected to medical examination. At the time of trial, however, the complainant and her family had shifted to Nepal and were not available to depose before the court. Despite the fact that there was no medical evidence to corroborate the fact that the child had been sexually abused, the veracity of the depositions of the two witnesses and the police investigation report caused the trial court to sentence the accused to suffer rigorous imprisonment for six months and to pay fine of Rs. 10,000/- under section 354 *IPC*. He was also convicted for an offence punishable under section 8(2) of the *Goa Children's Act 2003* and sentenced to suffer rigorous imprisonment of six months with fine of Rs. 10,000/-.

The question before the High Court of Bombay (Goa Bench) was whether the accused could be punished under section 354 *IPC* read with section 8(2) of the *Goa Children's Act 2003* and be awarded punishment of rigorous imprisonment for six month and fine of Rs. 10,000/-, in default, to undergo imprisonment for 10 days, in the absence of medical evidence of the child and corroboration from the child's mother. The Learned Single Judge Justice T.V. Nalawade took into consideration the fact that the accused was a married man with a child. The absence of medical evidence in corroboration, and the absence of the evidence of the child's mother who said that the child had disclosed the incident to her, were considered to be of relevance in this case, as the two women sweepers had witnessed the incident from some distance. In view of these circumstances, the High Court held that sending the accused behind bars for six months would be harsh. The appeal was partly allowed.

Conviction for the offence under section 354 *IPC* was maintained. The accused was sentenced to pay fine of Rs. 10,000/-, in default, to undergo imprisonment for 10 days. The conviction for offence punishable under section 8(2) of the *Goa Children's Act 2003* was maintained. For this offence, the accused was sentenced to suffer rigorous imprisonment for one month and to pay fine of Rs. 10,000/-, in default, to undergo imprisonment for 10 days.

3.B.2.d. Madhu Nair v. State of Goa (2015)[239]

On 23/04/2009 the appellant called his six year old neighbour to sit on his lap and inserted his finger into the vagina of his six year old neighbour. This happened when she was playing with her friends in the neighbourhood. Her mother found her suffering with fever in the evening. She reported the incident to the police the next day morning. Medical examination

[239] MANU/MH/1717/2015.

found a reddish tender bruise on the child's hymen opening. The Children's court convicted the appellant to ten years imprisonment and two lakh rupees fine under section 2 (y) (i) of the *Goa Children's Act 2003* for grave sexual assault and its punishment under section 8(2) of the Act. The appellant approached the High Court pleading that the offence came only under section 2 (y)(ii) for Sexual Assault, and not under section 2 (y)(i), as the appellant had not 'deliberately' caused injury as per section 2(y)(i). It was submitted that unless and until the prosecution is able to establish an intention on the part of the appellant to cause such an injury, no offence under Section 2(y)(i) of the Act can be said to be made out. Justice C.V. Bhadang rejected this contention, and upheld the verdict of the Children's Court, as such injury caused to the sexual organ of the victim was a deliberate act, which is sufficiently established by the medical evidence, and certainly more than what is contemplated under Section 2(y)(ii) of the Act, namely of only sexually touching, with the use of any body part or object.

3.B.3. Conclusion

The High Court of Bombay (Goa Bench) has, for the most part, acted in a fair manner and upheld the rule of law. However, some recent decisions of the Goa Bench are not so commendable; for example, when the High Court was swayed in 2012 by the young age and lack of criminal antecedents of the offender despite the fact that the victim was a mentally retarded child. However, the High Court did not depart from the letter of the law, which prescribes imprisonment of not less than ten years and fine of Rs. 200000/- for grave sexual assault. The trial court sentenced the accused to life imprisonment and Rs 200000/-. Here the High Court reduced his sentence to 12 years imprisonment on the basis he was only 19 years of age at the time of the offence, had no criminal antecedents, and that the hymen of the child had not ruptured because of slight penetration alone. However, the court refused to reduce the fine.

In a 2014 decision, the High Court seems to have clearly violated the letter of the law which prescribes a statutory mandatory fine of Rs. 100000/-. The trial court convicted the accused and sentenced him to rigorous imprisonment for six months with fine of Rs. 10,000/- based on the veracity of the depositions of two witnesses and the police investigation report, despite the fact that there was neither medical evidence to corroborate the fact that the victim child had been sexually abused, nor were the child or her parents available during trial for corroboration of the complaint. In appeal against conviction, the High Court took into

consideration the facts of absence of corroboratory evidence by the mother, the absence of medical evidence, and the fact that the accused was a married man with a child, and reduced the term of punishment to one month. It is pertinent to note that the statutory mandatory fine of Rs. 100,000 under the *Goa Children's Act 2003* was reduced to Rs. 10,000.

However, the 2015 decision in *Madhu Nair* is highly commendable as the learned judge has acted in accordance with the rule of law, and rightly interpreted the word 'deliberately' in accordance with the prevailing circumstances.

Thus, in Goa, it can be seen that the majority of decisions reflect a protective stance towards children, with few exceptions where the law is interpreted to protect sexual offenders.

3.C. SYNTHESIS OF LEGISLATION AND CASE LAW REGARDING SEXUAL OFFENCES AGAINST CHILDREN IN KERALA

This section will examine the criminal court system as well as case law within the jurisdiction of the High Court of Kerala. As in Goa, the criminal court system of the states within the Union of India is based on the *Code of Criminal Procedure 1973.* The hierarchy of courts in Kerala is the same the rest of India in accordance with national procedural law in the *Code of Criminal Procedure 1973*. In Kerala, there are two additional Sessions Courts at Thiruvananthapuram (the capital of Kerala) and Ernakulam to deal with sexual offences against women and children, and each have jurisdiction to try adult sexual offenders against children.

3.C.1. Legislation on sexual offences against children in Kerala

In 2009-2010, pressure groups engaged in consultations for developing a draft bill similar to on the *Goa Children's Act 2003* in order to punish crimes against children. During the beginning of my research, pressure groups within Kerala were holding consultations with governmental authorities for the enactment of regional legislation to protect children from sexual abuse. This was because the MWCD Report of 2007 reported a high prevalence rate of child sexual abuse in Kerala, and there was general consensus regarding the need for law and policy to combat this phenomenon. However, these initiatives lost relevance when a National Bill regarding Offences Against Children was mooted in 2010, which quickly metamorphosed into a specific legislation on sexual offences against children by the end of 2011. Ultimately, there was no need for Kerala to have its own separate legislation on protection of children against sexual abuse, as this concern would be solved by the enactment of national legislation.

Currently, cases of child sexual abuse in Kerala come under provisions of the *IPC,* the *Criminal Procedure Code 1973*, the *Indian Evidence Act 1872* and the *Protection of Children Against Sexual Offences Act 2012*.Kerala is representative of all the other states and union territories in India which do not have special regional legislation for prosecuting child sexual abuse offences (the State of Goa alone is excluded from this list).

3. C. 2. Case law on sexual offences against children in Kerala

Reported decisions of the High Court of Kerala have been cited in chronological order. It is relevant to note that the High Court of Kerala gives the reason for non-disclosure and consequent delay in filing a case of rape by the female victim as the fear of dishonour. This corroborates international studies on reasons for non-disclosure. The testimony of victims of sexual offences must be considered by the judge with full evidentiary value. Delay in filing a case involving a sexual offence is not a ground for acquittal of the accused. The pressure of social ostracism is evident in the instance of a mother who is willing to give an affidavit before the High Court of Kerala, stating that her husband did not sexually molest their 13-year-old daughter.

Also, within the definition of rape, the High Court of Kerala distinguished the section 375 *IPC* offence of rape from the medical counterpart of the term, in that it is not necessary for there to be penile penetration of the vagina. Even in the absence of entry into the vagina or rupture of hymen, by the mere fact that the male organ "accessed" the female organ, rape under section 375 *IPC* can be attracted. Here, a broad definition of the offence of rape has been given, as the *IPC* is not clear as to how penetration should occur. The absence of definitions of sexual offences within the *IPC* invoked reiteration of the international obligations under Article 19 of the *UN Convention on Elimination of Discrimination Against Women 1979* and the *UN Convention on Rights of the Child 1989*. The need for psychological counselling is supported by the finding of the High Court of Kerala that there is no adequate provision for giving support to such victims of rape either at the cost of the offender or the state.

3.C.1.2.a. Sunil v State of Kerala (2001)[240]

A girl of 13 years was forcefully fondled by her neighbour. A medical certificate was issued stating that both breasts, vulva, labia majora and labia minora as oedematous. The next day a First Information Report (FIR) was registered in the police station. Even though certain prosecution witnesses turned hostile, the trial court accepted and acted upon the evidence of the victim girl holding that her evidence is reliable and suffers from no infirmity and is not tainted. It convicted the accused to rigorous imprisonment for two years under section 354

[240]MANU/KE/0399/2001.

IPC, rigorous imprisonment for six months under section 448 *IPC*[241] and rigorous imprisonment for one year under section 506 *IPC.*[242] The sentences imposed were ordered to run concurrently. A revision petition was filed before the High Court, alleging delay in filing the FIR. The High Court, under Justice T.M. Hassan Pilla, ruled that delay in lodging FIR in sexual offences is not a reason for acquitting the accused, and it is the duty of the judiciary to consider the testimony of victims of sexual offences with full evidentiary value. The revision petition was dismissed; however, the sentences given by trial courts under sections 354,448 and 506 *IPC* were reduced to six months and a compensation of Rs 15000/- was awarded to the victim.

3.C.1.2.b. State of Kerala v M. Ayoob (2005)[243]

The accused promised to marry the prosecutrix who was a minor and she fell pregnant. Later, he withdrew from the promise. The alleged incident of rape was concealed by the prosecutrix for six months due to the accused threatening to kill her. The trial court acquitted the accused on the basis of delay of the prosecutrix in filing her case. The State filed an appeal against the acquittal before the High Court of Kerala. The issue was whether the delay in filing the case is a reason for the acquittal of the accused. Justice K.A Abdul Gafoor ruled that mere delay is not a reason. It is a common female tendency to conceal the sexual offences because of the fear of dishonour. The decision of the lower court acquitting the accused was reversed and he was convicted under section 376 *IPC*.

3.C.1.2.c . Chenthamara v State of Kerala (2008)[244]

A 12-year-old girl suffered attempted rape by the accused at his house. The Assistant Sessions Judge found the accused to be guilty of attempt to commit rape and convicted and sentenced him to undergo rigorous imprisonment for a period of three years. On appeal to the Sessions Court, the conviction was confirmed but the sentence was reduced to rigorous imprisonment for a period of one year. The accused challenged the conviction and sentence in the revision petition before the High Court of Kerala. The issue was whether there was only an attempt to commit rape or was it rape itself or did the conduct amount to outraging the modesty of the woman. The High Court, headed by Justice K. Hema, found that the

[241] Punishment for house trespass.
[242] Punishment for criminal intimidation.
[243] 2005(2)KLJ16; 2005(2)KLT 441.
[244] ILR2008(4) Kerala 363; 2008(3) KLJ 375; 2008(4) KLT 290.

offence of rape had been committed and the trial courts were mistaken in analysing the term “penetration” in section 376 of the *IPC*. It is clearly stated that even an attempt at penetration to the private part of the woman is sufficient for the purpose of sections 375 and 376 *IPC*. Penile accessing would clearly attract penetration that is sufficient to constitute offence of rape. "Penetration" referred to in section 375 *IPC* is something lesser in extent, nature and degree than what is ordinarily understood by the word "penetration" in common parlance, in the context of sexual intercourse. By virtue of the Explanation to Section 375 *IPC*, for the sexual intercourse necessary for the offence of rape, penile-vaginal entry is not essential, but even in the absence of such entry or rupture of hymen, the offence of rape can be committed. Reliance was placed on the following precedents regarding interpretation of the word "penetration" as used in section 375 *IPC*:

In *Mohammed v State of Kerala*[245] it was held that partial penetration of the penis with the labia majora or the vulva or pudendum with or without emission of semen was held sufficient for the purpose of law.

In *State of U.P. v Babulnath*[246], it was held that even partial or slight penetration of the male organ within labia majora or the vulva or pudendum with or without any emission of semen, or even an attempt at penetration into the private part of the victim would satisfy sections 375 and 376 *IPC*.

In *Aman Kumar v State of Haryana*[247] the Supreme Court held that even a slight penetration in the vulva is sufficient to constitute the offence of rape and rupture of the hymen is not necessary. Vulva penetration with or without violence is as much rape as vaginal penetration. The statute merely requires evidence of penetration, and this may occur with the hymen remaining intact. In order to constitute penetration, there must be clear and cogent evidence to prove that some part of the virile member of the accused was within the labia of the pudendum of the woman, no matter how little.

However, the decision of lower court was not reversed as there was no challenge by the prosecution. The State of Kerala did not challenge the conviction or the insufficiency of the sentence awarded. The revision petition was dismissed.

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[245]1987 (2) KLT 565.
[246]MANU/SC/0837/1994MANU/SC/0837/1994.
[247]MANU/SC/0104/2004MANU/SC/0104/2004.

3.C.1.2.d. Santhosh Madhavan @ Amrutha Chaithanya v Circle Inspector of Police & Another(2008)[248]

A god man named Swami Amrutha Chaithanya ran a hostel for students from poor families. He raped one of these students many times and videographed the events, using them to threaten her to remain silent. In 2008, following media reports he was wanted by Interpol for embezzlement of funds in another country, the victim felt confident to report the crime to the police. In his application for bail, the accused claimed medical records stated that the vagina admits only a single finger, so the offence of rape under section 375 *IPC* could not be made out. The learned judge of the High Court of Kerala, Justice K. Hema, pointed out the inadequacy of laws related to the sexual offences in sections 354, 376 and 377 *IPC*. The international obligations of India under Article 19 of the *UN Convention on Elimination of Discrimination against Women 1979* and *UN Convention on Rights of the Child 1989* were reiterated. The judge observed that victims of sexual offences are denied justice because the offences were not defined in the *IPC*. The petition for bail by the accused was dismissed by the High Court. The police were directed to conduct an investigation regarding whether there was rape or outraging the modesty of women. Direction was given to the State to consider whether suitable amendments could be made to section 354 *IPC* for protecting the child/woman from sexual assaults, other than those covered by section 375 *IPC*, as in the *Andhra Pradesh Amendment Act199*1, wherein punishment was enhanced and the offence under section 354 *IPC* is made a non-bailable one.[249]

3.C.1.2.e. Kunjumon v State of Kerala (2011)[250]

The accused was charged for the offence of committing rape on his 10-year-old daughter. Evidence revealed that before there could be emission of semen into vagina, the child's grandmother came to scene and semen fell on the child's thigh while accused withdrew from the act. The trial court convicted him with 10 years imprisonment and fine of Rs. 25000/-.On appeal, it was argued that as there was no instance of recent penetration, no rape had

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[248] MANU/KE/0162/2008.

[249] *Andhra Pradesh Amendment Act1991*. In the *Indian Penal Code 1860*, for section 354, the following section shall be substituted, namely: Section 354: Assault or criminal force to woman with intent to outrage her modesty. - Whoever assaults or used criminal force to any woman intending to outrage or knowing it to be likely that he will thereby outrage her modesty shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years and shall also be liable to fine;
Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term which may be less than five years, but which shall not be less than two years.

[250] 2011 (4) KHC 72.

occurred, and it was not section 376 but section 377 of the *IPC* that would apply. The medical examiner held the view that there was no rape as actual penetration did not occur. However, the High Court, headed by Justice K. Hema, took the view that rape in legal parlance is different from the medical definition of rape. The act by the accused father was rape as there was penile accessing. The Court held that the accused cannot be given pardon because he committed a heinous offence on his own daughter and caused her deep physical and psychological trauma. The Court upheld the conviction by the trial court.

The issue of providing psychological assistance to the victim was discussed in this case.The Court lamented the fact that there is no adequate provision in law for providing support – at the very least, psychological counselling – to victims of rape at the cost of the offender or the State.

3.C.1.2.f. Noushad K. v State of Kerala (2014)[251]

The petitioner was alleged to have made frequent sexual overtures towards his 13-year-old daughter. The daughter reported the matter to her mother. The petitioner was convicted under section 354 of the *IPC* and sections 7 and 8 of the *Protection of Children from Sexual Offences Act 2012*. He issued a petition before the High Court to quash the proceedings on the basis of the affidavit given by his wife (the victim's mother and the complainant) that no such incident occurred. The Court, under Justice B. Kemal Pasha, held the offence cannot be compounded on the basis of an agreement between the accused father and complainant mother. The protection of the child is the necessity, so the Court ordered that the investigation proceed. It was held that the inherent powers of the High Court to quash proceedings[252]cannot be invoked to shelter criminals. The petition was dismissed, and the Investigating Officer was directed to continue the investigation and file the final report as soon as possible.

3.C.1.2.g. Shambu Thilak v State of Kerala and Others (2017)[253]

The petitioner and the third respondent were school mates and deeply in love with each other. When the third respondent 17 years old, she went missing from her friend's house, and found to have engaged in sexual intercourse with the petitioner, who was 20 years old. Her mother filed a case against the petitioner under section 376 *IPC* and under section 3(a) and 4

[251]MANU/KE/2025/2014.
[252] Under section 482 *CrPC*.
[253] MANU/KE/0043/2017.

POCSO. In 2015, when both the petitioner and third respondent attained the age of majority, their marriage took place.

The Court opined that this was a case of elopement of a girl with her lover against the wishes of her family members, and not one of those cases wherein the allegations reek of extreme depravity, perversity or cruelty. Hence the offence in this case does not fall in the category of offences that have a serious impact on society. The facts of the instant case when looked at dispassionately would reveal a long term love affair between two young people which weathered all storms and ended up in the altar of marriage.

Justice Raja Vijayaraghavan of the High Court of Kerala exercised the extraordinary powers of the High Court under Section 482 *CrPC* to quash the criminal proceedings against the petitioner, citing the extreme hardship caused to the third respondent if criminal proceedings against her husband were to continue. The learned judge reasoned that when the third respondent has asserted that she does not desire to prosecute her husband any further, the prospects of an ultimate conviction is remote and bleak.

3.C.1.2.h. Muhammed Fasil v. Sabira and Others (2017)[254]

Here the petitioner and the daughter of the second respondent were in love with each other, and entered into sexual intercourse when the daughter of the second respondent was a minor. Fearing that the petitioner would not marry her daughter, the second respondent filed a case in 2014 against him under sections 376, 506 *IPC* and sections 3 and 4 *POCSO*. Thereafter both of them got married. Affidavits filed by respondents 1 and 2 state that continuance of proceedings against the petitioner will hinder congenial matrimonial relationship between the parties. Justice Vijayaraghavan of the High Court of Kerala pointed out that even though the Supreme Court of India has categorically stated that rape is an offence against society and hence it is a non-compoundable offence which cannot be settled between the parties, this particular case is not one of those cases wherein the allegations reek of extreme depravity, perversity or cruelty. It would not fall in the category of offences that have a serious impact on society. Hence the extraordinary powers of the High Court under Section 482 *CrPC* were invoked by the learned judge to quash the criminal proceedings against the petitioner.

[254] MANU/KE/0122/2017.

3.C.1.3. Conclusion

The legislation applicable in Kerala is the same as the rest of India. This is in contrast to the statutory provisions available for Goa, who developed its own legislation due to the onslaught of foreign tourists flowing in to obtain sexual services from children. The decisions of the High Court of Kerala portray a progressive and protective attitude towards the rights of children. In the absence of detailed statistical studies on Kerala, these High Court decisions clearly state fear of disclosure and social ostracism as a reason for delay in filing complaints in sexual offences, which corroborates scientific studies on the reasons for non-disclosure. The need for a system for overcoming structural barriers against disclosure – such as psychological services being available at the cost of the government or the offender – was highlighted by the High Court of Kerala in *Kunjumon's* case.

The need for broader legal definitions in the context of the various types of penetration possible within the section 375 *IPC* offence of rape has been documented by the High Court of Kerala. Interestingly, the High Court of Kerala in decisions rendered in January 2017 has circumvented the judicial precedents regarding non-compoundability of rape charges. The honourable Court has distinguished rape from sexual intercourse on the basis of love affairs with minors which have ended in marriage, and thereby invoked its extraordinary powers to quash criminal proceedings against adult males who have been charged with rape under Section 376 *IPC* along with penetrative sexual assault under section 3 and 4 *POCSO*, when their spouses have pleaded for quashing such proceedings in the interest of justice.

Key sexual offences against children and the legislative framework:

Table 4 compares provisions of the *IPC*, *POCSO*, and *Goa Children's Act 2003* along with the statutory laws in Kerala. The *IPC* is the general substantive criminal law applicable nationally. The *POCSO* is special legislation applicable nationally, confined specifically to child sexual abuse offences. Goa is bound by the *IPC*, the *POCSO*, and *Goa Children's Act*. However, section 42A *POCSO* has inactivated the *Goa Children's Act* in case of conflict between the *POCSO* and the *Goa Children's Act* provisions. Kerala does not have any special legislation of its own, hence only the *IPC* and *POCSO* are applicable. This comparison clarifies the similarities and differences between the three pieces legislations. These key legislative provisions are analysed in detail in Chapter 4.

Table 4. Key sexual offences against children and the legislative framework: A comparison between the *IPC*, the *POCSO*, Goa and Kerala

Sl. No.	Criminal offence	National legislation: *Indian Penal Code 1860*	National legislation: Protection of Children Against Sexual Offences Act 2012	Goa: Children's Act 2003, *IPC* and *POCSO*	Kerala: *IPC* and *POCSO*
1	**Rape**	1. Defined in s.375 to include penile, object, body part and oral penetration by a man, of the vagina, mouth, urethra or anus of a woman or making her penetrate the rapist or any other person. Punishment is rigorous imprisonment of either description for a term which shall not be less than seven years but which may extend to imprisonment for life, and shall be liable to fine (s.376(1)). 2. S.376(2) grants greater punishment to cases of such penetration by a person in a position of responsibility, trust, family relationship etc, as well as raping a pregnant woman, woman under the age of sixteen etc. Punishment is rigorous imprisonment for a term which shall not be less than ten years but which may be for life, and fine. 3. Rape causing death or persistent vegetative state, rape by a husband during separation, rape by a person in authority, gang rape and rape by repeated offenders are given separate punishments under ss.376A to E.	No offence of rape exists in *POCSO*	No offence of rape exists in *Goa Children's Act.* The offence in ss.375,376 *IPC* applies.	The offence in ss.375,376 *IPC* applies.

Sl. No.	Criminal offence	National Legislation-*Indian Penal Code 1860*	National Legislation-Protection of Children Against Sexual Offences Act, 2012	Goa-*Goa Children's Act 2003, IPC* and *POCSO*	Kerala- *IPC* and *POCSO*
2	**Penetrative sexual assault**	No offence of penetrative sexual assault exists in the *IPC*.	When a person, by means of penile, object, body part, oral penetration or manipulation of child's body to cause penetration, of the child's vagina, mouth, urethra or anus, or when the child is made to penetrate the offender or any other person(s.3). Punishable by imprisonment of either description from seven years to life and fine (s. 4).	No offence of penetrative sexual assault exists in the *Goa Children's Act*. The offence in the *POCSO* applies.	The offence of penetrative sexual assault in the *POCSO* applies.
3	**Aggravated penetrative sexual assault**	No offence of aggravated penetrative sexual assault exists in the *IPC*. S. 376(2) relates to this.	When the offence of penetrative sexual assault is committed by a person in authority or position of responsibility or trust, or a relative of the child, through blood, adoption, marriage, guardianship, foster care etc. or if the child is below the age of twelve years, or is mentally or physically incapacitated or pregnant or sexually penetrated by a gang etc. (s. 5). Punishment is rigorous imprisonment for a term not less than ten years to imprisonment for life and fine (s.6).	No offence of Aggravated penetrative sexual assault exists in the *Goa Children's Act*. The offence in the *POCSO* applies.	The offence of aggravated penetrative sexual assault in the *POCSO* applies.
4	**Grave sexual assault**	No offence of grave sexual assault exists in the *IPC*.	No offence of grave sexual assault exists in the *POCSO*.	Covers vaginal, oral or anal intercourse, use of objects with children, forcing minors to have sex with each other, deliberately causing injury to the sexual organs of children, making children pose for pornographic photos or films, and rape (s.2(y)(i) of the *Goa Children's Act*). Punishment of imprisonment of either description for a term that shall not be less than ten years but which may extend to life imprisonment and shall also be liable to a fine of Rs. 2, 00,000 (s. 8(2)of the *Goa Children's Act*).	No offence exists in the *IPC* and *POCSO*. .

Sl. No.	Criminal offence	National Legislation-*Indian Penal Code 1860*	National Legislation-Protection of Children Against Sexual Offences Act, 2012	Goa-*Goa Children's Act 2003, IPC* and *POCSO*	Kerala- *IPC* and *POCSO*
5	**Sexual assault**	The offence incurs when a person assaults or use criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty. Punishment is imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine (s. 354).	When a person touches, with sexual intent, the vagina, penis, anus or breast of a child or makes the child touch the vagina, penis, anus or breast of such person or any other person, or does any other act with sexual intent which involves physical contact without penetration (s. 7). The punishment for sexual assault is imprisonment from three years to five years and fine (s.8).	Covers sexual touching with the use of any body part or object, voyeurism, exhibitionism, showing pornographic pictures or films to minors, making children watch others engaged in sexual activity, issuing of threats to sexually abuse a minor, and verbally abusing a minor using vulgar and obscene language (ss. 2(y)(ii) and 8(2) of the *Goa Children's Act*). Even though both the *IPC* and *POCSO* apply to Goa, the *POCSO* prevails over the *IPC* and the *Goa Children's Act* as per s. 42A of the *POCSO*.	Even though both the *IPC* and *POCSO* apply to Kerala, the *POCSO* prevails over *IPC* as per s. 42A of the *POCSO*.
6	**Aggravated Sexual Assault**	No offence of aggravated sexual assault exists in the *IPC*.	When a person sexually assaults a child by a person in a position of authority, responsibility or trust, or who is a relative of the child by blood or adoption or marriage or guardianship or foster care etc. Other instances of this offence include sexual assault upon a child below the age of twelve, gang sexual assault, sexual assault of a pregnant child etc. (s.9) The punishment for aggravated sexual assault is imprisonment for a term not less than five years up to seven years and fine (s.10 of the *POCSO*).	No offence of aggravated sexual assault exists in the *Goa Children's Act*. The offence under the *POCSO* applies in Goa.	The offence of aggravated sexual assault in the *POCSO* applies.
7	**Incest**	Even though no specific offence of incest has been defined in the *IPC*, certain elements of this wrong can be understood to be attracted under s. 376(2)(f) which punishes rape by a relative.	Even though no specific offence of incest exists in the *POCSO* , the offence can be understood to be attracted under s.5 (n), which punishes aggravated penetrative sexual assault by a relative by blood or adoption, and s.9(n), which punishes aggravated sexual assault by a relative by blood or adoption.	The offence of incest is the commission of a sexual offence by an adult on a child who is a relative or who is related by ties of adoption (ss.2(y)(iii) and 8(2) of the *Goa Children's Act*). As per s.42A of the *POCSO*, s.5(n) and s 9 (n) of the *POCSO* prevail over the *IPC* and *Goa Children's Act.*	No specific offence of incest exists; however, it can attracted as per the *POCSO*, which prevails over the *IPC* under s.42A of the *POCSO*.

Sl. No.	Criminal offence	National Legislation-*Indian Penal Code 1860*	National Legislation-Protection of Children Against Sexual Offences Act, 2012	Goa-*Goa Children's Act 2003, IPC* and *POCSO*	Kerala- *IPC* and *POCSO*
8	**Marital rape of girl child above fifteen years of age**	A man can commit sexual intercourse or sexual acts with his wife who is above fifteen years of age. Such is not considered to be rape (s. 375Exception 2).	Not specified. No exemption as per ss. 3 and 5.	No offence of marital rape of a child exists in the *Goa Children's Act.* *POCSO* applies over Exception 2 of s.375 of the *IPC* as per s.42 of the *POCSO,* as the *POCSO* provides for greater punishment (the *IPC* exempts punishment).	*POCSO* applies over Exception 2 of s. 375 of the *IPC* as per s.42 of the *POCSO,* as the *POCSO* provides for greater punishment (the *IPC* exempts punishment).
9	**Carnal Intercourse against the order of nature**	It is an offence to voluntarily have carnal intercourse against the order of nature with any man, woman or animal (s.377).	Not specifically mentioned. Sections 3, 5, 7 and 9 make penile penetration of non-vaginal orifices of children and non-penile penetration of vaginal orifices of children unlawful.	Not specifically mentioned. Sections 2(y) and 8(2) of the *Goa Children's Act* make penile penetration of non-vaginal orifices of children and non-penile penetration of vaginal orifices of children unlawful.	Same as the *IPC* and *POCSO*.
1	**Sexual activity between children**	It is an offence even though not specifically mentioned. Irrespective of age of perpetrator and victim and the presence of consent, any act of penetrative sexual intercourse by a male with a female child below the age of eighteen has been criminalised under the definition of rape in s. 375. Any voluntary act of penile penetration of non-vaginal orifices and non-penile penetration of vaginal orifices has also been criminalised under s.377, even when children of the same peer group are involved.	It is an offence even though not specifically mentioned- can be understood as an offence until attainment of adulthood at eighteen as per ss. 3, 5, 7, 9 and 11.	It is an offence even though not specifically mentioned as per *IPC* and *POCSO*. It can be understood as an offence until attainment of adulthood at eighteen as per ss. 2 (y) and 8(2) of the *Goa Children's Act*.	It is an offence even though not specifically mentioned in the *IPC* and *POCSO.*

3.D. *UNCRC* AND CHILD SEXUAL ABUSE

India acceded to the *United Nations Convention on the Rights of the Child 1989* (*UNCRC*) in 1992. This section deals with the rights under *UNCRC* in sub-section 3.D.1 and the effect of this Convention on domestic legislation in sub-section 3.D.2. This focuses on internationally recognised principles to be embodied in Indian law to develop a legal framework against child sexual abuse, and examines whether the principles in this Convention have been implemented.

3.D.1 The *United Nations Convention on the Rights of the Child 1989* (*UNCRC*)

The *United Nations Convention on the Rights of the Child 1989* (*UNCRC*) is one of the most widely ratified human rights instruments. Currently, 196 countries are party to it, including every member of the United Nations except the United States. Its acceptance has resulted in greater recognition of the fundamental human dignity of all children and draws attention to the urgency of ensuring their wellbeing and development. The Convention makes clear that a basic quality of life is the right of all children. The UN General Assembly adopted the Convention and opened it for signature on 20 November 1989. It came into force on 2 September 1990. Governments of countries under the Convention are required to report to, and appear before, the United Nations Committee on the Rights of the Child periodically to be examined on their progress with regards to the advancement of the implementation of the Convention and the status of child rights in their country.

India acceded to the *UNCRC* on 11 December 1992, with certain reservations on issues relating to child labour. The National Commission on Child Rights and the State Commissions on Child Rights are statutory bodies charged with ensuring justice in the area of child rights in India (See Appendix 1.4.).

Various rights of children are protected by the *UNCRC* which can be understood in the context of rights of the child against sexual abuse. Some provisions have been selected based on their importance to this thesis. These Articles depict internationally recognised principles on child sexual abuse that need to be adopted into Indian domestic law. Comments have been made on how far the provision has been implemented:

Article 1

> For the purposes of the present Convention, a child means every human being below the age of eighteen years unless under the law applicable to the child, majority is attained earlier.

The age of the child is relevant with regard to the age of consent and child marriage. Indian law fixes the age of consent to sexual activities as 18, age of marriage of girls as 18, and the age of boys as 21.[255] While legislation prohibits child marriage, it does not make the marriage void *ab initio*. A Supreme Court ruling making registration of marriages compulsory[256] attempts to curb child marriage, but without proper enforcement methods the problem continues.

Article 12

> 1. States Parties shall assure to the child who is capable of forming his or her own views the right to express those views freely in all matters affecting the child, the views of the child being given due weight in accordance with the age and maturity of the child.
> 2. For this purpose, the child shall in particular be provided the opportunity to be heard in any judicial and administrative proceedings affecting the child, either directly, or through a representative or an appropriate body, in a manner consistent with the procedural rules of national law.

The State is obligated to make provisions ensure a child is free to express his own views in accordance with his age and maturity. Such a child shall be given an opportunity to be heard before any judicial and administrative proceedings affecting the child. This is particularly relevant in judicial proceedings involving relationships, when the age of consent has been fixed at 18 under the *POCSO*.

Article 19

> 1. States Parties shall take all appropriate legislative, administrative, social and educational measures to protect the child from all forms of physical or mental violence, injury or abuse, neglect or negligent treatment, maltreatment or exploitation, including sexual abuse, while in the care of parent(s), legal guardian(s) or any other person who has the care of the child.
> 2. Such protective measures should, as appropriate, include effective procedures for the establishment of social programmes to provide necessary support for the child and for those who have the care of the child, as well as for other forms of prevention and for identification, reporting, referral, investigation, treatment and follow-up of instances of child maltreatment described heretofore, and, as appropriate, for judicial involvement.

The Committee on the Rights of the Child (2011) defines sexual abuse and exploitation to include:

> (a) The inducement or coercion of a child to engage in any unlawful or psychologically harmful sexual activity;
> (b) The use of children in commercial sexual exploitation; and

[255] As seen from the *Protection of Children Against Sexual Offences Act 2012* and the *Prohibition of Child Marriage Act 2006.*
[256] *Smt. Seema v Ashwani Kumar* AIR 2006 SC 1158.

> (c) The use of children in audio or visual images of child sexual abuse;
> (d) Child prostitution, sexual slavery, sexual exploitation in travel and tourism, trafficking (within and between countries) and sale of children for sexual purposes and forced marriage. Many children experience sexual victimization which is not accompanied by physical force or restraint but which is nonetheless psychologically intrusive, exploitive and traumatic.[257]

The Committee on the Rights of the Child (2011) states that sexual abuse comprises any sexual activities imposed by an adult on a child, against which the child is entitled to protection by criminal law. Sexual activities are also considered as abuse when committed against a child by another child, if the child offender is significantly older than the child victim or uses power, threat or other means of pressure. Sexual activities between children are not considered as sexual abuse if the children are older than the age limit defined by the State party for consensual sexual activities.

This provision demands India take measures to protect children from sexual abuse. Legislative measures have been taken through the *POCSO*. A national programme called the Integrated Child Protection Scheme (ICPS) is being implemented at district, state and national levels in order to facilitate social systems for curbing child abuse.[258]

Article 34

> States Parties undertake to protect the child from all forms of sexual exploitation and sexual abuse. For these purposes, States Parties shall in particular take all appropriate national, bilateral and multilateral measures to prevent:
> (a) The inducement or coercion of a child to engage in any unlawful sexual activity;
> (b) The exploitative use of children in prostitution or other unlawful sexual practices;
> (c) The exploitative use of children in pornographic performances and materials.

India must protect its children from all types of sexual exploitation and abuse. This provision in the Convention is augmented by the Optional Protocol on the Sale Of Children, Child Prostitution And Child Pornography, which was signed by India on 15 November 2004 and ratified on 16 August 2005. The *POCSO* is national legislation for protection of children

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[257] See para 25 of General Comment No. 13 (2011). *The right of the child to freedom from all forms of violence.* CRC/C/GC/13<http://www2.ohchr.org/english/bodies/crc/docs/CRC.C.GC.13_en.pdf>

[258] The Integrated Child Protection Scheme (ICPS) is a national programme run in collaboration with the UNICEF, intended to create a safe and secure environment in the country for comprehensive development of children in need of care and protection, children in conflict and contact with law, and any other vulnerable child such as children of migrant families, children of prisoners, children of women in prostitution, working children, children living on the streets, trafficked or sexually exploited children, etc. The Scheme, since its launch in 2009 by the Central Government in partnership with State Governments and Union Territories, has, among other things, enhanced infrastructure for child protection services and provided financial assistance in implementing the provisions of the *Juvenile Justice (Care and Protection of Children) Act 2000*. See Ministry of Women and Child Development, Government of India, *Revised Integrated Child Protection Scheme* (2014) at p. 7. http://wcd.nic.in/icpsmon/pdf/icps/final_icps.pdf.

against sexual abuse, including the exploitative use of children in pornographic performances and materials.

This provision is relevant in the case of child offenders below the age of 18who have engaged in sexual activities. The *Juvenile Justice (Care and Protection of Children) Act 2000*created a separate system for the trial of child offenders below the age of 18.[259] Chapter 3 of this thesis discusses the issue of age of consent for sexual activities.

Sub-section outlines the relevant provisions in the *UNCRC*, which have, to a large extent, been adopted either by legislation or by case law in the case of child sexual abuse.

3.D.2. The domestic effect of *UNCRC* provisions on sexual abuse in India

The legal basis upon which the *UNCRC* is adopted into domestic legislation varies from country to country. It is necessary to understand how international law is adopted into Indian law to find out the domestic effect of the *UNCRC* provisions on sexual abuse.

In *Jolly George* v. *Bank of Cochin,*[260] it was explained that India follows the dualist theory in adoption of international law. This means that treaties must be implemented by statute before their provisions may be given effect by the courts. Ratification/Accession/Adoption of an international treaty does not automatically cause the treaty to be incorporated into national law, as in monist states. International law must be translated into national law, and existing national law that contradicts international law must be modified or eliminated in order to conform to international law.

In India, the implementation of international law takes place in three ways:[261]

1. Article 73(1) of the Indian Constitution confers upon the government of India executive powers over all subjects in which the Parliament has legislative competence, which includes

[259] As an aftermath of the Delhi Rape case in 2012, an amendment was made to this Act in 2016, removing children above the age of 16into the adult criminal justice system for commission of heinous crimes, which are punishable with imprisonment of seven years or more. However, a discussion on this is outside the scope of this thesis.
[260] AIR 1980 SC 470.
[261] Agarwal, S.K. (2010). Implementation of International Law in India: Role of Judiciary. *SSRN Electronic Journal*. *http://papers.ssrn.com/sol3/papers.cfm?abstract_id=1864489*. See also Agarwal, B.A. (2009). *Enforcement Of International Legal Obligations In A National Jurisdiction.* AIR 2009 (Journal Section) pp. 71-78. http://brahmavtar.com/enforcement-of-international-legal-obligations-in-a-national-jurisdiction.doc.

the exercise of such rights, authority and jurisdiction as are exercisable by the Government of India by virtue of any treaty or agreement, under Articles 246 and 253 read with Entry 14 of List I of the Seventh Schedule of the Indian Constitution.

2. Where the implementation of a treaty requires legislation, the Parliament has exclusive legislative powers to enact a statute or legislation under Article 253 of the Indian Constitution. Article 253 empowers the Parliament to make any law, for the whole or any part of the territory, for implementing international instruments. Legislation is required to give effect to a treaty where it provides for payment of money to a foreign power,[262] where justiciable rights of the citizens or others are restricted or infringed,[263] where laws of the State are modified,[264] where implementation of a treaty would involve cession of Indian territory to a foreign power, but not when it merely involves the settlement of a boundary dispute not involving cession.[265]

3. Article 51 (c) of the Constitution is a directive principle of state policy which enjoins the State to endeavour to foster respect for international law, and treaty obligations in the dealings of organized peoples with one another. Though a non-justiciable right, this Constitutional provision has been used by the judiciary in a plethora of cases interpreting India's obligations under international laws when adjudicating on cases affecting human rights.[266]

These provisions portray the constitutional basis for the adoption of international obligations into municipal law in India. With regard to the implementation of the *UNCRC* from the time it was acceded to in 1992 various measures have been taken by Parliament – such as repealing the existing Juvenile Justice Act 1986 and enacting the Juvenile Justice (Care and Protection of Children) Act 2000 to bring juvenile justice law in conformity with international obligations; the adoption of free and compulsory education for the age group of 6–14 years by insertion of Article 21A into the Indian Constitution in 2002;the resultant legislation of the *Right of Children to Free and Compulsory Education Act 2009* and the

[262] *Union of India v Manmull Jain* AIR 1954 Cal. 615.
[263]*Maganbhai Ishwarbhai Patel v Union of India* AIR 1969 SC 783.
[264]*Ibid.*
[265]*Ibid.*
[266]*Nilabati Behera v State of Orissa AIR 1993 SC 1960; D.K. Basu v State of W.B* AIR 1997 SC 610; *People's Union for Civil Liberties v Union of India* AIR 1997 SC 1203 etc.

POCSO, which proclaims in its Preamble the adherence to India's international obligations under the *UNCRC*.

The establishment of the National Commission on Protection of Child Rights in 2007 as per the *Commission for Protection of Child Rights Act 2005* demonstrates India's commitment to upholding its international commitments under the *UNCRC*. The Commission is entrusted with the duty of ensuring that all laws, policies, programmes, and administrative mechanisms are in consonance with the child rights perspective as dictated by the Constitution and the *UNCRC*. In addition, the Commission produces and disseminates information about child rights, takes *suo motu* cognizance of violation of rights, and compiles and analyses data on children. Recent statutory obligations under the 2009 and 2012 special statutes include the monitoring of the fundamental right to free and compulsory education, as well as monitoring and coordinating the institutions that deal with protection of children against sexual offences, respectively. As per the *Commission for Protection of Child Rights Act 2005*, the states have legal obligation to set up state commissions for the protection of child rights in each state. In 2007, the states of Karnataka and Goa established their state commissions. In 2013, Kerala established the Kerala State Commission for the Protection of Child Rights.

India honours its commitment towards enforcement of *UNCRC* provisions into domestic law through legislation, policy-making, and case law. This is especially true with regard to protective mechanisms against child sexual abuse.

3.IV. Conclusion

There has been a range of developments in the law against child sexual offences in the *IPC* and *POCSO*, some of which have created sophisticated methods of dealing with sexual offences against children. Problematic areas identified from the synthesis of legislation and case law, both national and state, are:

1 Has the nature and scope of the sexual offences in the *POCSO* made positive advances in responding to child sexual abuse?

2. Has the nature and scope of the amended offence of rape in the *IPC* made positive advances in responding to child sexual abuse?

3. Does the current interpretation of the offence of carnal intercourse in the *IPC* offer sufficient protection against child sexual abuse?

4. Is the current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 a positive advance in responding to child sexual abuse?
5. Does the present law on sexual assault in the *IPC* make positive advances in responding to child sexual abuse?
6. Does the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC* construe a positive advance in responding to child sexual abuse?

These issues are analysed in Chapter 4 using the methodology of conventional legal analysis. The *IPC*, the *POCSO*, the *Goa Children's Act of 2003*, and the *Prohibition of Child Marriages Act 2006* are form the basis of this analysis. Case law of the Supreme Court and High Courts, and the High Courts of Goa and Kerala which were outlined in this chapter, are referred to in Chapter 4.

CHAPTER 4: LEGAL ANALYSIS OF LEGISLATION AND CASE LAW

4.I. Introduction

This chapter conducts a legal analysis of the six key questions identified in Chapter 3. Each issue will be examined using relevant and applicable methods of doctrinal legal analysis.

As stated in Chapter 1, legal analysis in this chapter is to be conducted using principles from the rule of law as a reference to determine how Indian statutes comply with the principles enshrined in the constitutions of modern governments. These principles are: First, the law must be accessible and so far as possible intelligible, clear and predictable. Second, questions of legal right and liability should ordinarily be resolved by application of the law and not the exercise of discretion. Third, the laws of the land should apply equally to all, save to the extent that objective differences justify differentiation. Fourth, the law must afford adequate protection of fundamental human rights. Fifth, adjudicative procedures provided by the state should be fair. Sixth, the existing principle of the rule of law requires compliance by the state with its obligations in international law (Bingham, 2007).

Indices of reference for doctrinal analysis

The methods of doctrinal analysis may include one or more of the following six indices:

First, are the legislative provisions and/or case law consistent with each other?
Second, are the legislative provisions and/or case law coherent; that is, are they understandable, clear, and certain; or are they indeterminate, vague or ambiguous and therefore difficult or impossible to apply consistently?
Third, are the legislative provisions and/or case law correct in being uniform and congruent with general principles of statutory interpretation?

Fourth, are the legislative provisions and/or case law correct in being congruent with the principle of equality characteristic of a rule of law society in providing adequate protection to a person or class of persons, or in relation to a certain type of act?
Fifth, are the legislative provisions and/or case law correct in being congruent with government policy principles?
Sixth, are the legislative provisions and/or case law correct in not permitting undue judicial discretion and thereby upholding the principle of the rule of law?

In Chapter 3, six issues were identified as posing difficulties in the current context. These shall be dealt with in this chapter. Numbered as Issues 4.1 to 4.6, the issues are:

4.1 Have the nature and scope of the sexual offences in the *POCSO* made positive advances in responding to child sexual abuse?
4.2. Has the nature and scope of the amended offence of rape in the *IPC* made positive advances in responding to child sexual abuse?
4.3. Does the current interpretation of the offence of carnal intercourse in the *IPC* offer sufficient protection against child sexual abuse?
4.4. Is the current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 a positive advance in responding to child sexual abuse?
4.5. Does the present law on sexual assault in the *IPC* make positive advances in responding to child sexual abuse?
4.6. Does the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC* construe a positive advance in responding to child sexual abuse?

Each issue is divided into sub-issues, which are numbered accordingly as 4.1.1., 4.1.2., 4.1.3. etc. Each issue is examined to see whether it satisfies any of the six indices enumerated above. This chapter seeks to analyse the main issues and sub-issues using relevant indices.

4.1 Have the nature and scope of the provisions on sexual offences in the *POCSO* made positive advances in responding to child sexual abuse?

One major problem faced before the *POCSO* was enacted was the absence of clear gender-neutral laws protecting both boys and girls from sexual abuse. This issue examines whether the definitions of sexual offences in the *POCSO* and the corresponding punishments adequately protect both male and female children from sexual abuse. This analysis shows that

the *POCSO* has, to a large extent, been drafted consistently, coherently, and correctly, in accordance with the rule of law principle.

Effect of the Criminal Law Amendment 2013 upon sexual offences under the POCSO and the IPC: Evolution of four categories of sexual offences against children

Four categories of sexual offences evolved as a result of the insertion of the amended sections 42 and 42 A *POCSO* by virtue of the *Criminal Law (Amendment) Act 2013*. This gave clarity and certainty to the law on sexual offences against children. Within the *IPC*, those categories of offences evolved: those listed in section 42 *POCSO* which were placed on par with similar *POCSO* offences; those listed in section 42 *POCSO* [267] which had the same or lower punishment than corresponding *POCSO* provisions; and those *IPC* offences which were not listed in section 42 *POCSO* and rendered void by section 42A *POCSO*.[268] The fourth category of sexual offences comprised on all non-*IPC* offences that were rendered void by virtue of section 42A *POCSO*. The three sexual offences defined and punished by the *Information Technology Act 2000* and the *Goa Children's Act 2003* come under this fourth category of sexual offences. The application of both *POCSO* offences and the *IPC* to the Kerala situation will be examined in this section.

All indices except the fifth index are used for analysis. These are:

1. The legislative provisions are not consistent with one another.
2. The legislative provisions are not coherent.
3. The legislative provisions are not uniform and/or congruent with general principles of statutory interpretation.
4. The legislative provisions do not provide adequate protection to a person or class of persons.
5. The legislative provisions permit undue judicial discretion.

[267]Section 42 *POCSO*. Alternate punishment. Where an act or omission constitutes an offence punishable under this Act and also under sections 166A, 354A, 354B, 354C, 3540, 370, 370A, 375, 376, 376A, 376C, 376D, 376E or section 509 of the *Indian Penal Code 1860*, then, notwithstanding anything contained in any law for the time being in force, the offender found guilty of such offence shall be liable to punishment under this Act or under the *Indian Penal Code 1860* as provides for punishment which is greater in degree.

[268]Section 42A *POCSO* not in derogation of any other law. The provisions of this Act shall be in addition to and not in derogation of the provisions of any other law for the time being in force and, in case of any inconsistency, the provisions of this Act shall have overriding effect on the provisions of any such law to the extent of the inconsistency.

4.1.1. Whether the definitions and punishments of sexual offences offer protection to children as a class, with an examination of whether gender neutrality augments better protection.

In the following section, each offence of the *POCSO* is compared with its corresponding provision in the *IPC*. The punishments for the offences of both statutes are compared against sections 42 and 42A *POCSO* in order to examine which provision prevails. Additionally, the various offences and their punishments are analysed on the basis of the indices of doctrinal analysis enumerated in the introductory section.

(1). Penetrative Sexual Assault

For the offence of penetrative sexual assault in section 3 *POCSO*, the provision is gender-neutral in terms of offender and victim, and stipulates the four means by which this offence gets attracted.[269] Section 375 *IPC* is a mirror copy of this provision, comprising of four stipulated acts;[270] cosmetic changes have been carried out through the use of the gender-specific terms "man" and "woman". It can be analysed that its exclusion of male children as a class would render the law as incorrect in being incongruent with the principle of equality characteristic of a rule of law society.

Section 42 *POCSO* , which was amended by the *Criminal Law (Amendment) Act 2013*, states that where an act or omission constitutes an offence punishable under this Act and also under sections 375 and 376 *IPC*, then the offender found guilty of such offence shall be liable to whichever punishment is greater in degree. Section 4 *POCSO* and section 376(1) *IPC* respectively deal with punishment for penetrative sexual assault and rape. Section 4 *POCSO* punishes this offence by imprisonment of either description for a minimum term of seven years to life and fine. Section 376(1) *IPC* punishes rape under section 375 *IPC* with rigorous imprisonment for a term which shall not be less than seven years but which may extend to

[269] (a) Penetration by penis (to any extent) of any person into vagina, mouth, urethra or anus of a child or making the child to do so with him or any other person or; (b) Insertion (to any extent) of any object or part of the body of any person, not being the penis into vagina, mouth, urethra or anus of a child or making the child to do so with him or any other person or; (c) Manipulation of any part of the body of a child so as to cause penetration, into vagina, mouth, urethra or anus of the child or making the child to do so with such person or any other person or; (d) Application of his mouth to the penis, vagina, anus , urethra of the child or making the child to do so to such person or any other person.

[270] (a) Penetration of his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her do so with him or any other person; or(b) Insertion, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or (c) Manipulation of any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or (d) Application of his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person.

imprisonment for life, as well as fine. Since the *IPC* prescribes a greater punishment of rigorous imprisonment, it would seem that rigorous imprisonment under section 376(1) *IPC* would be granted in cases where a girl under the age of 18 is raped by a man. If a boy under the age of 18 years is subjected to penetrative sexual assault, or a girl under the age of 18 years is subjected to penetrative sexual assault by a person who is not a man, then imprisonment of either description for a minimum term of seven years to life and fine under section 4 *POCSO* could be granted to such offender.

This would result in the following situation as outlined in the table below:

Table 1: Types of offenders, victims and punishments after application of section 42 *POCSO* on section 375 *IPC* and Section 3 and 4 *POCSO*

Type of minor victim	Type of offender	Type of offence	Type of punishment
Female	Male	Section 375 *IPC*: Rape	Section 376(1) *IPC*: Rigorous imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life, as well as fine.
Female	Gender not specified	Section 3, *POCSO* : Penetrative sexual assault	Section 4 *POCSO*: Imprisonment of either description for a minimum term of seven years to life and fine.
Male	Gender not specified	Section 3, *POCSO* : Penetrative sexual assault	Section 4 *POCSO*: Imprisonment of either description for a minimum term of seven years to life and fine.

Therefore, the amended section 42 *POCSO* renders the law incorrect as being incongruent to the equality principle, because offenders of minors, who belong to a single class, are treated differently by classifying them into three classes with regard to punishments for their offences:

1. male offenders of female children
2. non-male offenders of female children
3. all types of offenders of male children.

Sections 3 and 4 *POCSO* are succinct, consistent and correct in terms of being congruent with the equality principle. However, the application of the amended section 42 *POCSO* through the *Criminal Law (Amendment) Act 2013* has rendered the *POCSO* law incoherent and inconsistent with the equality principle.

(2). Aggravated penetrative sexual assault

When comparing the offence of aggravated penetrative sexual assault in section 5 *POCSO* and section 376(2) *IPC*, while the former is gender-neutral in terms of offender and victim, the latter is gender-specific in classifying the offender as male and the victim as female. Section 6 *POCSO*, as well as section 376(2) *IPC*, award the same punishment of rigorous imprisonment for a term not less than ten years to imprisonment for life and fine. Unlike sections 5 and 6 of the *POCSO* which exist as separate sections defining the offence and prescribing the punishment, respectively –section 376(2) *IPC* has been combined with section 376 (1) *IPC*. Section 376 (1) prescribes the punishment for section 375 *IPC*. Section 376(2) *IPC* ought to have been separated from the punishment in section 375 *IPC* and be enacted as a distinct offence along with its punishment. For example, the punishment for rape in Section 376(1) could have been placed in Section 375 following its current definition of rape, while Section 376 could have dealt exclusively with the definition of aggravated cases of rape and their corresponding aggravated punishment. While sections 5 and 6 of *POCSO* are clear, consistent and congruent with the principle of equality, and do not permit judicial discretion due to clear prescription of a minimum mandatory punishment, section 376(2) *IPC* lacks clarity because it does not exist as a separate offence, and also is incorrect in being incongruent with the principle of equality characteristic of a rule of law society by its exclusion of male children as a class.

Section 42 *POCSO* , which was amended by the *Criminal Law (Amendment) Act 2013*, states that where an act or omission constitutes an offence punishable under this Act and also under sections 375 and 376 *IPC*, then the offender found guilty of such offence shall be liable to whichever punishment is greater in degree. Section 6 *POCSO* and section 376(2) *IPC* deal with punishment for penetrative sexual assault and rape. Section 6 *POCSO* punishes this offence by rigorous imprisonment for a term not less than ten years to imprisonment for life and fine. Section 376(2) *IPC* provides for the same punishment. Hence there is no inconsistency between the two laws, which satisfies the test of clarity and correctness in being consistent and uniform.

(3). Sexual assault

A comparison of the *POCSO* offences of sexual assault in sections 7 and 8, with the offence of "assault or criminal force to a woman with intent to outraging her modesty" under section 354 *IPC* shows that while the *POCSO* is gender-neutral regarding both offender and victim,

the *IPC* is gender-neutral as regards the offender but gender-specific regarding the victim. Only women are protected from sexual assault of a non-penetrative under the *IPC*. Pertinently, the term "outraging the modesty of a woman" has neither been defined nor explained in the *IPC*.

An examination of the amended section 42 *POCSO*, post-*Criminal Law (Amendment) Act 2013* shows that section 354 *IPC* is not within the listed *IPC* offences which have to be considered – along with *POCSO* offences on an equal basis – to determine whether the *POCSO* or the *IPC* prescribes greater punishment.[271] Instead, section 42A *POCSO* applies, meaning that in case of conflict between section 354 of *IPC* and section 7, 8, 9 and 10 of the *POCSO* – it is the *POCSO* that prevails.[272]

The *IPC* law regarding sexual assault is inconsistent and incongruent with the equality principle. However, the prevalence of the *POCSO* with regard to minors by virtue of section 42A provides consistency, coherence and congruence to the equality principle with regard to the law relating to non-penetrative sexual assault of minors.

(4). Aggravated sexual assault

Section 9 and 10 of the *POCSO* define and punish aggravated non-penetrative sexual assault with a minimum of five years and a maximum of seven years imprisonment of either description. These sections do not have corresponding provisions in the *IPC*. The *IPC* does not separately punish an aggravated offence of assault or criminal force to woman with intent to outrage her modesty, unlike section 376(2) *IPC*.[273]The maximum punishment for a case of aggravated sexual assault cannot be more than five years imprisonment of either description and fine, as per section 354 *IPC*.

The following table shows the categories of offenders and victims regarding non-penetrative sexual assault under the *POCSO* and the *IPC*:

[271]*Supra*, n. 266.
[272] *Supra*, n. 267.
[273] The J.S. Verma Committee Report (2013) recommended punishment for the offence of sexual assault, with rigorous imprisonment up to five years, or with fine, or with both, for the act of intentional touching of another person when such act of touching is of a sexual nature and is without the recipient's consent. However, no other recommendation for aggravated cases of sexual assault was made by this Commission.

Table 2: Offenders and victims for non-penetrative sexual assault and punishment under the *POCSO* and *IPC*

Offence	Statutory provisions applicable	Type of victim	Type of offender	Type of punishment
Sexual assault	Section 354*IPC*,sections 7, 8 *POCSO*	Female	Male	Section 8 *POCSO*: imprisonment of either description for a term from three years up to five years and fine. This section prevails over section 354 *IPC* which carries imprisonment of either description for a term which one year but which may extend to five years, and shall also be liable to fine.
		Female	Female	
	Sections 7, 8 *POCSO*	Male	Male	Section 8 *POCSO*: imprisonment of either description for a term not less than three years which may extend up to five years and fine.
		Male	Female	
Aggravated sexual assault	Sections 9,10 *POCSO*	Female	Male	Section 10 *POCSO*: imprisonment of either description for a term not less than five years up to seven years and fine.
		Female	Female	
		Male	Male	
		Male	Female	

(5). Sexual harassment

A comparison of the offence of sexual harassment in the *POCSO* and those offences in the *IPC* of a non-penetrative nature which do not amount to sexual assault shows that sexual harassment under section 11 *POCSO* [274] is a combination of the *IPC* offences of sexual

[274] If anyone, with sexual intent utters any word or makes any sound or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard or such gesture or object or part of body shall be seen by the child, makes a child exhibit his body/any part, shows any object to a child in any form or media for pornographic purposes, repeatedly or constantly follows or watches or contacts a child either directly or through electronic, digital or any other means, threatens to use in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act, entices a child for pornographic purposes or gives gratification therefore, such person shall have committed the offence of sexual harassment. Explanation.—Any question which involves "sexual intent" shall be a question of fact (Section 11 *POCSO*).
Section 12 *POCSO*. Punishment for sexual harassment: Whoever, commits sexual harassment upon a child shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine.

harassment, stalking and "word, gesture or act intended to insult the modesty of a woman" under sections 354A,[275] 354B,[276] 354C,[277] 354D[278] and 509[279] of the *IPC* respectively.

With regard to offences pertaining to sexual harassment, the *IPC* has not consistently used gender-specificity of the perpetrator (as in section 509 *IPC* where the perpetrator is gender-neutral) and victim (as in clauses (i), (ii) and (iv) of section 354A(1) *IPC* where the gender of the victim is not specified). However, section 11 *POCSO* has been framed in a gender-neutral manner that is coherent and consistent with the principle of equality. There is no material available regarding the rationale of Parliament behind the adoption of a mixture of gender-specific and gender-neutral approaches in sections regarding sexual harassment in the *IPC*. This approach can be labelled as inconsistent and unreasonable and against Article 14 of the

[275]Section 354A *IPC*. Sexual Harassment and punishment for sexual harassment (1) A man committing any of the following acts—(i). physical contact and advances involving unwelcome and explicit sexual overtures; or
(ii) a demand or request for sexual favours; or (iii) showing pornography against the will of a woman; or (iv) making sexually coloured remarks, shall be guilty of the offence of sexual harassment. Any man who commits the offence specified in clause (i) or clause (ii) or clause (iii) of sub-section (1) shall be punished with rigorous imprisonment for a term which may extend to three years, or with fine, or with both. (2) Any man who commits the offence specified in clause (iv) of sub-section (1) shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.
[276]Section 354B *IPC*. Assault or use of criminal force to woman with intent to disrobe. Any man who assaults or uses criminal force to any woman or abets such act with the intention of disrobing or compelling her to be naked, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine.
[277]Section 354C *IPC*. Voyeurism: Any man who watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.
[278] Section 354D *IPC*. Stalking: (1) Any man who—
follows a woman and contacts, or attempts. to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or
monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking:
Provided that such conduct shall not amount to stalking if the man who pursued it proves that—
it was pursued for the purpose of preventing or detecting crime and the man accused of stalking bad been entrusted with the responsibility of prevention and detection of crime by the State; or
it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or in the particular circumstances such conduct was reasonable and justified.
(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.
[279]Section 509 *IPC*. Word, gesture or act intended to insult the modesty of a woman: Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, of that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to three years, and also with fine.

Constitution, as no intelligible differentia can be adduced by classifying the perpetrator as male in all instances except one, and the victim as female in all instances except three.

Under section 354A *IPC*, a male person can sexually harass another male person in three ways, excluding the showing of pornography to him. Whether the courts will use the principle of *generalis specialibus non derogant* in stating that this offence was meant to apply to instances of sexual harassment of men upon women alone – as seen in the offences under sections 354, 354B, 354C, 354D, 375 and 376 *IPC*– remains to be seen.

The following part is a dissemination of the various aspects of the offence of sexual harassment under section 11 *POCSO* , and a comparison with the offences under the *IPC* that relate to section 11 *POCSO* :

1. The first part of section 11 *POCSO* contains wording similar to section 509 *IPC*:"...anyone, with sexual intent utters any word or makes any sound or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard or such gesture or object or part of body shall be seen by the child..." . Since section 509 *IPC* does not specify the gender of the offender – only that the victim be female –this section can be expanded to include words, gestures, or acts by a female intending to sexually harass another female. Hence, a male as well as a female perpetrator upon a girl-child would not only attract the ambit of section 11 *POCSO*, but also come under section 509 *IPC*. An application of section 42 *POCSO* regarding punishment shows that section 12 *POCSO* will prevail as it has scope to provide for imprisonment of either description, while section 509 *IPC* can award only simple imprisonment. Section 509 *IPC* is incorrect because of incongruence to the equality principle, as it excludes male children from its scope.

2. "....makes a child exhibit his body/any part....". This can be included within clause (ii) of section 354A (1) *IPC* regarding the offence of when a man makes "a demand for sexual favours" upon a child of any gender, which is punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both, as per section 354A(2) *IPC*. An application of section 42 *POCSO* makes it clear that section 354A(2) *IPC* applies in such cases of abuse under section 354A(1)(ii) *IPC*. If a man makes a girl-child disrobe and exhibit her body by using criminal force, then section 354B *IPC* would be attracted, with a punishment of imprisonment of either description, which may range from three years to seven years and fine. An application of section 42 *POCSO* shows that the punishments under

sections 354A and 354B *IPC* is greater than that under section 12 *POCSO*. If a child of any gender is caused to exhibit his/her body parts by a woman, section 12 *POCSO* would apply. This differential treatment to the same classes of persons shows incongruence to the principle of equality.

3. "... shows any object to a child in any form or media for pornographic purposes....". Section 354A(1)(iii) *IPC* applies when a male person shows pornography to a girl. This carries a punishment of rigorous imprisonment upto three years, and/or with fine under section 354A(2), which is a more severe punishment than that laid down in section 12 *POCSO* . Hence, an application of section 42 *POCSO* means that section 354A(2) *IPC* would prevail when a male shows pornography to a female child. However, when a male shows pornography to male children, or females show pornography to male children, or females show pornography to female children, then section 12 *POCSO* would prevail. Such differential treatment to the same classes of persons shows incongruence to the principle of equality.

4. "...repeatedly or constantly follows or watches or contacts a child either directly or through electronic, digital or any other means, threatens to use in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act, entices a child for pornographic purposes or gives gratification therefore....". The element of watching or capturing the image of a woman engaging in a private act is embodied in the offence of voyeurism by a man of a woman in section 354C *IPC.*[280] The element of following a woman and contacting a woman despite a clear indication of disinterest by the woman is embodied in the offence of stalking by a man of a woman in section 354D *IPC.*[281]

[280] Section 354C *IPC* defines the offence of 'voyeurism' as being done by any man who watches or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator, or who disseminates such image. The punishment on first conviction is imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and fine. Punishment on a second or subsequent conviction shall be with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and fine.

[281]Section 354D *IPC* punishes any man who commits the offence of 'stalking' by engaging in the any of the two acts against a woman: (i) following a woman and contacting, or attempting to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or (ii) monitoring the use by a woman of the internet, e-mail or any other form of electronic communication. The punishment on first conviction shall be imprisonment of either description for a term which may extend to three years and fine. Punishment on second or subsequent conviction has also been specified – imprisonment of either description for a term which may extend to five years and fine.

While punishment under section 12 *POCSO* is imprisonment of either description for a term which may extend upto three years and also fine, under section 354C *IPC* it is imprisonment of either description for a term from one to three years and fine for first conviction, and imprisonment of either description for a term from to seven years and fine on second conviction. Under section 354D *IPC*, punishment on first conviction shall be imprisonment of either description for a term which may extend to three years and fine. Punishment on second or subsequent conviction has also been specified: imprisonment of either description for a term which may extend to five years and fine. An application of section 42 *POCSO* shows that in the case where a male watches or stalks a female child, the punishment under sections 354C and 354D *IPC* apply, instead of section 12 *POCSO* , as the quantum of punishment for the *IPC* offences are greater. However, if a male watches or stalks a male child, or a female watches or stalks a male child, or if a female watches or stalks a female child, then section 12 *POCSO* would apply. Such differential treatment to the same classes of persons shows incongruence to the principle of equality.

It is evident that with regard to various offences under the category of non-penetrative sexual offences not amounting to penetrative and non-penetrative assault, the *IPC* has not consistently stuck to gender-specificity of the perpetrator (as in section 509 *IPC* where the perpetrator is gender-neutral) and victim (as in clauses (i), (ii) and (iv) of section 354A(1) *IPC* where the gender of the victim is not specified). There is no material available regarding the rationale of Parliament behind the adoption of such a mixture of gender-specific and gender-neutral approaches in sections regarding sexual abuse in the *IPC*. This approach can be labelled as inconsistent, unreasonable and against Article 14 of the Constitution, as no intelligible differentia can be adduced by the classifying the perpetrator as male in all instances except one (section 509 *IPC*), and the victim as female in all instances except three (clauses (i), (ii) and (iv) section 354A(1) *IPC*).

Sections 11 and 12 *POCSO* are coherent and consistent and in accordance with the equality principle. However, the absence of a minimum mandatory punishment in section 12 *POCSO* renders it incorrect to the extent that it permits judicial discretion.

Table 3: Offenders, victims and punishment under the *POCSO* and *IPC*

Offence	**Statutory provisions applicable**	**Type of minor victim**	**Type of offender**	**Type of punishment**
The utterance of any word, making any sound or gesture or exhibition of any object intending that such word or sound shall be heard or such gesture or object shall be seen by the child	Section 509 *IPC* Sections 11 and 12 *POCSO*	Female	Male and female	Section 12 *POCSO* will prevail over Section 509 *IPC* as it has greater punishment and provides for imprisonment of either description upto three years and fine, while Section 509 can award only simple imprisonment for the same term and fine.
	Sections 11 and 12 *POCSO*	Male	Male and female	Section 12 *POCSO* will apply, with imprisonment of either description upto three years and fine.
Making a child exhibit his body/any part	Section 354A(1)(ii) *IPC* and Sections 11 and 12 *POCSO*	Gender-neutral	Male	Section 354(2) *IPC* will prevail over section 12 *POCSO* , as it provides for the punishment of rigorous imprisonment upto three years, and/or with fine.
Showing pornography to a child	Section 354 (1)(iii) *IPC,* Sections 11 and 12 *POCSO*	Female	Male	Section 354(2) *IPC* will prevail over section 12 *POCSO* , as it provides for the punishment of rigorous imprisonment upto three years, and/or with fine.
	Sections 11 and 12 *POCSO*	Female	Female	Section 12 *POCSO* will apply, with imprisonment of either description upto three years and fine.
		Male	Male	
		Male	Female	

Offence	**Statutory provisions applicable**	**Type of minor victim**	**Type of offender**	**Type of punishment**
Repeatedly or constantly following or watching or contacting a child either directly or through electronic, digital or any other means, threatening to use in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act, enticing a child for pornographic purposes or giving gratification therefore	Section 354C *IPC* Sections 11 and 12*POCSO*	Female	Male	Section 354C *IPC* will prevail over section 12 *POCSO*, as it provides for imprisonment of either description from three years to seven years, and fine.
	Section 354D *IPC* Sections 11 and 12 *POCSO*	Female	Male	Section 354D *IPC* will prevail over section 12 *POCSO* , as it provides on first conviction for imprisonment of either description upto three years and fine, and on a second or subsequent conviction, for imprisonment of either description upto five years and fine.
	Sections 11 and 12 *POCSO*	Female	Female	Section 12 *POCSO* alone will apply, with imprisonment of either description upto three years and fine.
		Male	Female	
		Male	Male	

(6). Using a child for pornographic purposes

Child pornography has been defined and punished in sections 13 and 14 of the *POCSO*.[282] The *IPC* does not specifically criminalise child pornography, even though the sale of obscene material and the sale of obscene objects to young persons are specific offences under sections 292 and 293 of the *IPC*. However, section 67B of the *Information Technology Act 2000* makes child pornography a punishable offence.[283] Punishment on first conviction shall be

[282]Section 13 *POCSO* defines the offence of using a child for pornographic purposes. If anyone uses a child in any form of media (including programme or advertisement telecast by television channels or internet or any other electronic form or printed form, whether or not such programme or advertisement is intended for personal use or for distribution), for the purposes of sexual gratification, which includes—(a) representation of the sexual organs of a child; (b) usage of a child engaged in real or simulated sexual acts (with or without penetration); (c) the indecent or obscene representation of a child, such person shall be guilty of the offence of using a child for pornographic purposes. An explanation is appended to the relevant section regarding the expression "use a child". This expression shall include involving a child though any medium like print, electronic, computer or any other technology for preparation, production, offering, transmitting, publishing, facilitation and distribution of the pornographic material.
Punishments are many and varied. These are laid down in Section 14 *POCSO*. For mere usage of a child for pornographic purposes, the punishment is imprisonment of either description up to 5 years and fine. In the event of subsequent conviction, punishment shall be imprisonment of either description up to 7 years and fine (Clause 1).
If a person uses the child for pornographic purposes coupled with penetrative sexual assault, by directly participating in the pornographic act, such person shall be liable for not less than ten years imprisonment of either description to life imprisonment and fine (Clause 2).
If a person uses a child for pornographic purposes coupled with aggravated penetrative sexual assault, by directly participating in the pornographic act, the punishment is rigorous imprisonment for life and fine (Clause 3).
If any person uses a child for pornographic purposes coupled with sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term which is not less than 6 years imprisonment up to 8 years and fine (Clause 4).
If any person uses a child for pornographic purposes coupled with aggravated sexual assault, by directly participating in the pornographic act, the punishment shall be imprisonment of either description for a term of not less than 8 years imprisonment up to 10 years and fine (Clause 5).
[283]Section 67B, *Information Technology Act 2000*.Punishment for publishing or transmitting of material depicting children in sexually explicit act, etc. in electronic form.
Whoever:
(a) publishes or transmits or causes to be published or transmitted material in any electronic form which depicts children engaged in sexually explicit act or conduct or
(b) creates text or digital images, collects, seeks, browses, downloads, advertises, promotes, exchanges or distributes material in any electronic form depicting children in obscene or indecent or sexually explicit manner or
(c) cultivates, entices or induces children to online relationship with one or more children for and on sexually explicit act or in a manner that may offend a reasonable adult on the computer resource or
(d) facilitates abusing children online or
(e) records in any electronic form own abuse or that of others pertaining to sexually explicit act with children,
shall be punished on first conviction with imprisonment of either description for a term which may extend to five years and with a fine which may extend to ten lakh rupees and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to seven years and also with fine which may extend to ten lakh rupees:
Provided that the provisions of section 67, section 67A and this section does not extend to any book, pamphlet, paper, writing, drawing, painting, representation or figure in electronic form-

with imprisonment of either description for a term which may extend to five years and with a fine which may extend to 10 lakh rupees and in the event of second or subsequent conviction with imprisonment of either description for a term which may extend to seven years and also with fine which may extend to 10 lakh rupees.

Analysing this provision in accordance with section 42A *POCSO* , in any case which attracts sections 13 and 14 *POCSO* , section 14 *POCSO* prevails regarding punishment, not section 67B of the *Information Technology Act 2000*. These provisions are consistent with one another, coherent and congruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society.

However, within the *POCSO* itself, a glaring anomaly exists. Section 15 of the *POCSO* punishes the storage of any form of child pornography for commercial purposes by any person. The punishment may be any of the following categories:

1. with imprisonment of either description for a maximum period of three years **or**
2. with fine **or**
3. with both.

Thus, an offender gets a lighter punishment when compared to a person who stores child pornography for non-commercial purposes. Also, imprisonment is optional, and an offender can escape by payment of fine alone, as it is not compulsory that payment of fine need accompany imprisonment.

The legislative intention here is highly questionable. Is it that Indian law seeks to protect persons who store child pornography for commercial purposes? Or perhaps legislature felt that “storage” of child pornography material for commercial purposes does not involve “using the child”? The Explanation in Section 13 *POCSO* states that the expression “using the child” includes “involving a child though any medium like print, electronic, computer or any other technology for preparation, production, offering, transmitting, publishing, facilitation and distribution of the pornographic material”.

(i) The publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper writing, drawing, painting, representation or figure is in the interest of science, literature, art or learning or other objects of general concern; or
(ii) which is kept or used for bonafide heritage or religious purposes
Explanation: For the purposes of this section, "children" means a person who has not completed the age of 18 years.

It is appropriate to refer to section 67B of the *Information Technology Act 2000* when examining what could be meant by "storage" of child pornography. Sub-section (a) of section 67B creates the offence of "causing to be published or transmitted" material in any electronic form which depicts children engaged in sexually explicit act or conduct. Additionally, sub-section (b) criminalises "collecting", "seeking", "browsing", "downloading", "exchanging" or "distributing" of material in any electronic form depicting children in obscene or indecent or sexually explicit manner.

Section 15 *POCSO* is inconsistent with provisions in section 14 *POCSO* as well as section 67B of the *Information Technology Act 2000*. Section 15 *POCSO* does not seem correct in being congruent with government policy principles as set out in parliamentary reports.[284]

It is not possible to differentiate storage of child pornography for commercial purposes and storage of child pornography for non-commercial purposes. Children used in both categories constitute a single class of minors who have been sexually abused. If such a differentiation were to be made, the law should have granted greater punishment to a person who stores child pornography for commercial purposes. Such a provision is inconsistent with the rest of the offences in the *POCSO* and the *Information Technology Act 2000*. It also violates the spirit of the law, as embodied in corresponding storage offences relating to commercial trafficking of women and children in the *IPC* and the *Immoral Trafficking (Prevention) Act 1956*. Applying the various indices for doctrinal analysis, the existence of such a provision shows inconsistency with legislative provisions, incorrectness due to incongruence with governmental policy principles set out in parliamentary debates, and incongruence with the

[284]See para 24 at pp. 56-57 of "The Information Technology (Amendment) Bill 2007", 50th Report of the Standing Committee on Information Technology (2007–2008) http://164.100.40.18/parliament/standing_reports/loksabha14/REPORT-I.T.-50E.pdf. This is quoted here:
Child Pornography 24. The Committee note that Clause 31 of the Bill intends to insert a new Section 67A which provides for stringent punishment for publishing or transmitting of material containing sexually explicit acts in electronic form. But the Committee are concerned to find that the term 'child pornography' has nowhere been mentioned in the proposed Section. The Department's argument that the Section while covering 'pornography' will automatically cover child pornography does not convince the Committee as there should be no scope for assumption or presumption when fresh amendments are being proposed. The Committee, therefore, impress upon the Department to include the term 'child pornography' in the proposed Section 67A in view of its growing menace. They also desire that specific provisions should be incorporated in this Section to criminalise child pornography in tune with the laws prevailing in the advanced Countries and Article 9 of the Council of Europe Convention on Cyber Crimes. In view of the several manifestations of sexual abuse of the children and its loathsome ramifications, the Committee desire that the act of grooming the child for sexual relationship through online enticement or distributing/showing pornography or through any other online means should also be made a criminal offence and a suitable provision be made in this regard in the proposed Section 67A.

principle of equality. The absence of a minimum mandatory punishment in section 15 of *POCSO* renders it incorrect to the extent that it also permits judicial discretion.

It is clear that the criminal law regarding prohibitions upon sexual assault is vague. Use of gender-neutral classifications for both offender and victim within the definitions of sexual offences has adequately strengthened the rule of law.

A brief summary of the points analysed with regard to the various offences is given below:

(a) Penetrative sexual assault: Sections 375 and 376 *IPC* do not provide adequate protection to a class of persons – namely, male minors – regarding penetrative acts by men or women. Sections 375 and 376 *IPC* are not correct as they are not congruent with fundamental legislative principles characteristic of a rule of law society. With regard to a comparison between specific legislation, sections 375 and 376 *IPC* suffer from various defects like inconsistency, ambiguity and incongruence with the principle of equality; Sections 3 and 4 of the *POCSO* , which define and punish the offence of penetrative sexual assault respectively, are succinct, consistent and congruent with the equality principle. However, an application of the amended section 42 *POCSO* through the *Criminal Law (Amendment) Act 2013* has rendered the law incoherent and inconsistent with the equality principle by creating three classes of offenders with different punishments under section 376(1) *IPC* for of rape and sections 3 and 4 *POCSO* for penetrative sexual assault. These are:

i. male offenders of female children: punishment under Section 376(1). Rigorous imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life, as well as fine.
ii. non-male offenders of female children: punishment under Section 4 *POCSO* . Imprisonment of either description for a minimum term of seven years to life and fine.
iii. all types of offenders of male children: punishment under Section 4 *POCSO* . Imprisonment of either description for a minimum term of seven years to life and fine.

(b) Aggravated penetrative sexual assault: Sections 5 and 6 *POCSO* defining and punishing aggravated penetrative sexual assault of children, and section 376(2) *IPC* defining and punishing the offences of aggravated forms of rape of women are similar in form and substance. The only anomaly that exists with regard to section 376(2) *IPC* is that it ought not to have been associated with the punishment for section 375 *IPC* which finds place in sub-

section (1) of section 376 *IPC*. Instead, it ought to have existed as a distinct offence along with its punishment. While sections 5 and 6 *IPC* are clear, consistent and congruent with rule of law principles, section 376(2) *IPC* is congruent in all respects except its lack of clarity regarding its existence as a separate offence.

(c) Sexual assault: The law prohibits non-penetrative sexual assault of women by any person under section 354 *IPC*. This applies to non-penetrative sexual assault of women by men and women by other women. Minor women are given relief by virtue of section 354 *IPC* from non-penetrative sexual assault by men of any age and by other women of any age. But there is no relief under this provision or any provision in the general criminal law for non-penetrative sexual assault of minor men from other men of any age or from women of any age. This approach is incongruent with the principle of equality. However, as per section 42A, the *POCSO* prevails over section 354 *IPC*; hence, sections 7 and 8 *POCSO* – which include both male and female minors within its ambit of protection – renders the law correct in its congruence with the principle of equality.

(d) Aggravated sexual assault: Unlike the *IPC* which does not define or prescribe punishment for aggravated forms of non-penetrative sexual assault, sections 9 and 10 *POCSO* define and punish such acts respectively. This approach is congruent with sound legislative principles of statutory interpretation that exist in a rule of law society.

(e) Sexual harassment: With regard to offences pertaining to sexual harassment, the *IPC* has not consistently adhered to gender-specificity of the perpetrator (as in section 509 *IPC* where the perpetrator is gender-neutral) and victim as in clauses (i), (ii) and (iv) section 354A (1) *IPC* where the gender of the victim is not specified. However, section 11 *POCSO* has been framed in a gender-neutral manner that is both coherent and consistent with the principle of equality.

The first part of section 11 *POCSO* – regarding utterance of any word or making any sound or making any gesture or exhibiting any object or part of body with the intention that such word or sound shall be heard or such gesture or object or part of body shall be seen by the child – is similar to the offence in section 509 *IPC* with no difference in punishment. Hence there is no inconsistency between the provisions. However, Section 509 *IPC* excludes male

children from its scope and may be considered incorrect in that it is incongruent with the equality principle.

Regarding the second part of section 11 *POCSO* which punishes the making of a child exhibit his/her body parts, the offence of causing a girl child to disrobe and exhibit her body part attracts a punishment of imprisonment of either description, which may range from three years to seven years and fine under section 354B *IPC*. However, if a male child is made to exhibit his body parts, then a punishment of imprisonment of either description for a term which may extend upto three years and fine accrues under section 12 *POCSO*. As per Section 42A *POCSO*, section 354B *IPC* would prevail over section 12 *POCSO*, as it provides for greater punishment for offences against girl children. This renders the law incorrect, as it is incongruent with the equality principle.

Regarding the third part of section 11 *POCSO*, which creates the offence of showing pornography to a child, as per section 42 *POCSO*, when a male person shows pornography to a female child, section 354A (1)(ii) *IPC* applies, as the punishment of rigorous imprisonment upto three years, and/or with fine under section 354A(2) *IPC* is a more severe than that laid down in section 12 *POCSO* . However, when males show pornography to male children, or females show pornography to male children, or females show pornography to female children, then section 12 *POCSO* would prevail; that is, punishment of imprisonment of either description for a term which may extend upto three years and fine. Such differential treatment to the same classes of persons shows incongruence to the principle of equality.

Regarding the fourth part of section 11 *POCSO* – concerning constantly following or watching or contacting a child through various means including digital means – the corresponding *IPC* offences of voyeurism under section 354C *IPC* and stalking under section 354D *IPC* are attracted in the case of a male watching or stalking a female child by virtue of section 42 *POCSO*, as they provide for greater quantum of punishment. However, if a male watches or stalks a male child, or a female watches or stalks a male child, or if a female watches or stalks a female child, then section 12 *POCSO* applies. Such differential treatment to the same classes of persons shows incongruence to the principle of equality.

(f) Child pornography: Sections 13 and 14 *POCSO* are consistent with one another, coherent and congruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society. However, section 15 *POCSO*

provides inadequate protection to children used in commercial child pornography as a class of persons. An offender gets a lighter punishment when compared to a person who stores child pornography for non-commercial purposes. Also, imprisonment is optional, and the offender can escape by payment of fine alone, as it is not compulsory that payment of fine need accompany imprisonment. The crime for commercial child pornography must be given greater punishment than those involved in disseminating child pornography for other reasons. Section 15 *POCSO* does not seem correct in being congruent with government policy principles as set out in parliamentary reports.

4.1.2. Does a comparison of the sexual offences laid down in the Goa Children's Act 2003 with POCSO offences and their corresponding IPC offences show positive development in the law against child sexual abuse?

Section 2 y) of the *Goa Children's Act 2003* lays down three sexual offences against children, and section 8(2) prescribes the punishments for the same.[285] These have been discussed in Chapter 2. Table 2 in Section 2.C.2of Chapter 2 charts the various sexual wrongs affecting children, and compares the positions on these offences as laid down in the *IPC*, the *POCSO*, the *Goa Children's Act 2003* as well as the law with regard to these offences in Kerala.

These provisions in the *Goa Children's Act 2003* set the baseline for drawing up legislation to protect children from sexual abuse. Post-publication of the Child Abuse Report 2007, various stakeholders in Kerala started drafting legislation criminalising sexual offences against children based on the *Goa Children's Act* model. These efforts were set aside post the *POCSO Bill 2012*. It is evident that the corresponding offences in the *POCSO* have maintained a gender-neutral approach, as has the *Goa Children's Act*. However, the *IPC*

[285]Section 2(y) states that 'Sexual offences' for the purposes of awarding appropriate punitive action means and includes "grave sexual assault" which covers different types of intercourse: vaginal, oral, anal, use of objects, forcing minors to have sex with each other, deliberately causing injury to the sexual organs, making children pose for pornographic photos or films; "sexual assault" which covers sexual touching with the use of any body part or object, voyeurism, exhibitionism, showing pornographic pictures or films to minors, making children watch others engaged in sexual activity, issuing of threats to sexually abuse a minor, verbally abusing a minor using vulgar and obscene language; "incest" which is the commission of a sexual offence by an adult on a child who is a relative or is related by ties of adoption. Section 8(2) of the *Goa Children's Act 2003* lays down the punishment for child sexual abuse: Whosoever commits any child abuse or sexual assault as defined under this Act, shall be punished with imprisonment of either description for a term that may extend to three years and shall also be liable to fine of Rs. 1,00,000/-. Whoever commits any Grave Sexual Assault shall be punished with imprisonment of either description for a term that shall not be less than ten years but which may extend to life imprisonment and shall also be liable to a fine of Rs. 2,00,000. Whoever commits incest shall be punished with imprisonment of either description for a term that shall not be less than ten years but which may extend to life imprisonment and also a fine which may extend to Rs.2,00,000/- Statement of the child victim shall be treated on par with the statement of a child rape victim under section 375 *IPC*, as laid down by the Supreme Court of India.

continues its gender-specific approach even with regard to children, despite its lofty predecessors.

4.1.3. Has legislation criminalising sexual abuse of children made a positive impact on the situation in Goa and is this reflected in the case law?

The *POCSO* has not specifically repealed sections 2(y) and 8(2) of the *Goa Children's Act*. However, the *Criminal Law (Amendment) Act 2013* inserted section 42A *POCSO*, which states that the provisions of *POCSO* shall be in addition to and not in derogation of the provisions of any other law for the time being in force and, in case of any inconsistency, the provisions of *POCSO* shall have overriding effect on the provisions of any such law to the extent of the inconsistency. Hence, it is clear that the *POCSO* prevails in case of sexual offences in Goa. This fulfils the index of clarity and coherence, and makes it easier to be applied consistently.

The law in Goa regarding the three offences of grave sexual assault, sexual assault and incest fulfil the index of correctness as being congruent with the principle of equality. The reason is that no discrimination is made between male and female children in the Act. This has resulted in cases against boy offenders being filed in Goa, with appropriate convictions. Statements by mother and relatives of boy victims were held as corroborative evidence for conviction of the accused.

One difficulty with regard to the provisions regarding sexual offences in the *Goa Children's Act 2003* is that the definition of sexual offences and its classification into three types of offences lies within the definition clause of the enactment in section 2(y), while punishment for these three offences lies in the main body of the enactment in section 8(2). Such wide spacing between definition and punishment of the offence shows lack of clarity and is not congruent with the general principles of drafting of statutes.

Another difficulty is that the three sexual offences defined and punished in the *Goa Children's Act 2003* –grave sexual assault (which includes contact offences like penetrative acts, injurious acts and using children in pornography), sexual assault (which comprises of sexual touching, and non-contact offences of voyeurism, exhibitionism, as well as showing pornography or sexual acts to children etc) and incest (which is sexual abuse by a relative by

blood or adoption) – lack clarity and comprehensiveness in comparison to the detailed definitions and punishments enumerated in the six *POCSO* offences.

Section 8(2) of the *Goa Children's Act 2003* prescribes minimum imprisonment for grave sexual assault and incest at ten years and a maximum of life imprisonment. The offence of sexual assault does not carry a minimum punishment, only a maximum punishment of upto three years imprisonment. With regard to fine, an interesting feature of this legislation is that a blanket statutory fine of Rs. 1,00000 and Rs. 2,00000 has been prescribed for sexual assault and grave sexual assault respectively. However, in the case of the offence of incest, the fine has been prescribed as that which may extend to Rs. 2,00000. It can be observed from case laws listed in Chapter 3 that clear specification of minimum punishment and amount of fine was conducive to elimination of judicial discretion and subjectivity.[286] Non-specification of statutory minimum sentence allows for judicial subjectivity.[287] Section 8(2) of *Goa Children's Act 2003*which clearly lays down the amount of fine, as well as minimum and maximum punishments, fulfils to a certain extent the index of correctness for being congruent with the principle of restriction upon judicial subjectivity.

A synthesis of case laws in Goa in Chapter 3 shows that a majority of decisions reflect a protective stance towards children. When the statutory provision specifically provides a fixed amount to be fine, once an offence is established, no discretion is left to the court to fix a fine less than the statutory quantum. The reduction of mandatory fine is not possible, nor is it possible to increase the statutory fine and correspondingly decrease the statutory minimum imprisonment.

However, Chapter 2 discusses a lamentable decision in 2014, which reduces the amount of statutory fine under section 8(2) of the *Goa Children's Act 2003* from Rs 100,000 to Rs 10,000. Such case law reflects the illegality of a judicial order, when the statute clearly curtails judicial discretion in the matter of sentencing.[288] Another decision reduced the term

[286]Refer to *Maloji Patil v State of Goa* (MANU/MH/1435/2008), where the Court headed by Justice R.M.S. Khandeparkar held that when the statutory provision specifically provides a fixed amount to be fine, once an offence is established, no discretion is left to the Court to fix a fine less than the statutory quantum.
[287]Refer to *Mansoor K. K. Mohammed v State* (MANU/MH/0688/2014), where the question was whether the accused could be punished under section 354 *IPC* read with section 8(2) of the *Goa Children's Act 2003* and be awarded punishment of rigorous imprisonment for one month and fine of Rs. 10,000/-, in default, to undergo imprisonment for 10 days, in the absence of medical evidence of the child and corroboration from the child's mother. The Court headed by Justice T.V. Nalawade reduced the punishment to rigorous imprisonment for one month and fine of Rs. 10,000/-, in default, to undergo imprisonment for 10 days.
[288]*Mansoor K. K. Mohammed v State* MANU/MH/0688/2014.

of imprisonment awarded by the trial court, from life imprisonment to imprisonment for 12years in the case of rape of a mentally-impaired girl child of 7 years of age. The grounds of reduction were that the accused was young – 19 years of age – at the time of offence; the accused has no criminal antecedents; there was only slight penetration and the hymen was intact; and the minimum prescribed punishment as per the *Goa Children's Act 2003* is 10 years.[289] The reason why the trial court had awarded life imprisonment to the accused, and why the High Court felt that the said punishment is excessive so as to warrant reduction in imprisonment, is not reflected in the wordings of this judgment.

The applicability of the *POCSO* to Goa brings clarity to the law on sexual abuse in Goa, as the provisions of the *Goa Children's Act 2003* on sexual offences against children lack comprehensiveness in comparison with the *POCSO* provisions.

Generally, reported case law in Goa reflects consistency and correctness in being uniform and congruent with general principles of statutory interpretation, and congruent with the principle of equality characteristic of a rule of law society. Case law in Goa is correct because excessive judicial interpretation in violation of the letter and spirit of the law is, to a large extent, absent. Therefore, the principle of the rule of law has been generally upheld by the upper judiciary in Goa.

4.1.4. Has the *POCSO* made a positive impact upon the situation in Kerala as evident from legislation and case law?

The *POCSO* has defined the offences relating to sexual abuse of children and has prescribed punishments for the same. An analysis of the case law in Chapter 2 shows that prior to the advent of the *POCSO*, it was only those cases which went to the High Court that stood a chance of getting justice meted out to the victim. Even then, absence of statutory minimum punishment allowed justice to get subverted unobtrusively under the guise of victim protection.[290] However, since the *POCSO* places clear restrictions on the scope for judicial discretion, courts are presently forced to comply with the rule of law.

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[289]*Dhannaram v State* MANU/MH/0030/2012.

[290]Refer to *Sunil v State of Kerala* (MANU/KE/0399/2001) in Chapter 3 where the lower court awarded sentences of 2 years, 6 months and 1 year imprisonment to run concurrently for convictions under sections 354, 448 and 506 *IPC*. A revision petition was filed before the High Court, alleging delay in filing the FIR by the victim, that the victim's testimony was without corroboration and hence has no evidentiary value. The High Court ruled that delay in lodging FIR in sexual offences is not a reason for acquitting the accused, and it is the duty of judiciary to consider the testimony of victim of sexual offences with full evidentiary value. The revision

The High Court of Kerala, in its various decisions prior to the passing of the *POCSO* , rendered judgments analysing and laying down the meaning of the word "penetration" used in the *IPC*.[291] The passing of the *POCSO*, and the present definition of the offence of rape in section 375 of the *IPC*, settled the controversy in this area and gave clarity to the type of acts which constitute penetrative sexual assault or rape.

Post-*POCSO*, positive judicial decisions were taken affirming the reliability of child witnesses of very young age,[292] the admissibility of extra judicial confession made by the appellant to the doctor while during the custody of police,[293] and the non-compoundability of a sexual offence on the basis of an agreement between the accused father and complainant mother.[294]

The decisions of the High Court of Kerala portray a progressive and protective attitude towards ensuring the rights of children against sexual abuse. A High Court decision clearly states the fear of dishonour as a reason for delay in filing complaints in sexual offences.[295] The pressure of social ostracism is evident in the instance of a mother who is willing to give an affidavit before the High Court of Kerala, stating that her husband did not sexually molest their 13-year-old daughter.[296] These decisions corroborate scientific studies on the reasons for non-disclosure, despite the absence of detailed statistical studies on Kerala. Chapter 2 refers to the need for charting a system of overcoming such structural barriers against disclosure,

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petition was dismissed, however the sentences given by trial courts under sections 354, 448and 506 *IPC* were reduced to six months and a compensation of Rs 15000 was awarded to the victim.

[291]Refer to *Chenthamara v State of Kerala* ILR2008(4)Kerala363; 2008(3)KLJ375; 2008(4)KLT290***;Santhosh Madhavan @ Amrutha Chaithanya v C.I. of Police & Another*** MANU/KE/0162/2008 and *Kunjumon v State of Kerala* 2011 (4) KHC 72 in Chapter 3.

[292]In *Sreekuttan v State of Kerala* (2011(3)KLJ225) the accused filed a revision petition to avoid conviction for rape of a girl of two and half years stating unreliability of the testimony of a child witness. The High Court held that as no special requirement regarding a child witness is specified under section 118 of the *Evidence Act*, the sole criterion for determination of reliability was whether the child is able to understand the facts, answer the questions clearly and convince the court that his/her testimony is not a tutored one.

[293]In *Salim v State of Kerala* (2012 CriLJ 3198; 2012(2)KLJ764) a twelve year old child was raped and murdered. Separate sentences for imprisonment of life was awarded to the accused under sections 376(2)(f) and 302 of the *IPC*. The main question raised by the accused during appeal to the High Court was whether the extra judicial confession made to the doctor by him was valid. It was ruled that the extra judicial confession made by the appellant to the doctor while during the custody of police is admissible since no police officer was present during the time when he made the confessional statement.

[294]See *Noushad K. v State of Kerala* (MANU/KE/2025/2014) in Chapter 3.

[295]*State of Kerala v M. Ayoob* 2005(2)KLJ16; 2005(2)KLT 441.

[296]*Supra* n. 293.

such as psychological services made available at the cost of the government or the offender, as recommended by Justice Hema of the High Court of Kerala.[297]

Chapter3 points out that the High Court of Kerala has referred to the need for broader legal definitions in the context of the types of penetration possible within the section 375 offence of rape. It was observed by Justice Hema that victims of sexual offences are denied justice because sexual offences were not defined in the *IPC*.[298]

Reported case law in Kerala reflects consistency with one another, correctness in being uniform and congruent with general principles of statutory interpretation, and congruent with the principle of equality. Case law in Kerala is correct because of the absence of excessive judicial interpretation in violation of the letter and spirit of the law. Therefore, the principle of the rule of law, to a large extent, has been upheld by the upper judiciary in Kerala.

Chapter 3 stated that the narrowness of definitions of sexual offences in the *IPC*, broadened by the *Goa Children's Act* and subsequently by the *POCSO* shows the necessity of developing broader definitions to solve the problems posed by the absence of an age of consent for non-abusive sexual activity, in exclusion of abusive practices like child marriage. The passing of the *POCSO* has made a positive impact upon the rule of law in Kerala with regard to sexual offences against children.

4.2. Has the nature and scope of the amended offence of rape in the *IPC* resulted in positive advances in responding to child sexual abuse?

The law on rape is laid down in sections 375 and 376 *IPC*. Prior to the *Criminal Law (Amendment) Act 2013*, this provision was interpreted by courts to mean penile-vaginal penetration by a man of a woman. It was not possible to extend this provision to include other types of penetration. Various recommendations were made by various bodies to make amendments making the offence gender-neutral, to change the term "rape" to "sexual assault", and to extend the definition of rape to include various types of penetration other than penile- vaginal. The *Criminal Law (Amendment) Act 2013* did not make the definition of rape gender-neutral. It retained the term "rape". However, it extended the definition of rape to include various other kinds of penetration. In this section, the main question is the conceptual limit of the offence of rape as the offence applies to the gender-based limit of "man upon woman". The shift from gender-neutrality in governmental policy to gender-specificity in the

[297] *Kunjumon v State of Kerala* 2011 (4) KHC 72.
[298] *Santhosh Madhavan @ AmruthaChaithanya v C.I. of Police & Another* MANU/KE/0162/2008.

amended definition of rape is outlined. An analysis of the law on rape shows that the law has not advanced in response to child sexual abuse.

In this issue, the indices used are

1. The legislative provision does not provide adequate protection to a person or class of persons.
2. The legislative provision is not in accordance with governmental policy.

4.2.1. Rationale behind the continuance of the term "rape" instead of "sexual assault"

From the time it was drafted in 1860, section 375 *IPC* has always been limited to an offence by a man against a woman. In a major reform push, the 172nd Law Commission Report of 2000 recommended that the law relating to rape is to be made "gender neutral, wider and more comprehensive, in order to bring it in tune with current thinking". As part of this exercise, the Law Commission recommended the substitution of the offence of rape with "sexual assault."[299]The proposed definition sought to include all acts of penetrative sexual violence against both male and female persons. Also, gender neutrality was sought to be maintained in all circumstances mentioned in the first to the sixth descriptions.

But these recommendations were not incorporated into the law. The offences of sexual assault in different forms were included within the *Protection of Children Against Sexual Offences Bill* and in its subsequent Act passed in 2012. Thereby, the perpetrator of the offences under this statute is any "person", which includes human beings of any gender and any age, and the victim is a child of any gender below the age of 18. Thus, the *POCSO* maintains gender neutrality with regard to offenders and victims as well as age neutrality with regard to offenders.

[299] This term meant (a) penetration of the vagina, anus or urethra of any person (ie, of the victim) by any part of the body of any person or by any object manipulated by such person except where such penetration is carried out for proper hygienic or medical purposes, (b) causing penetration of the vagina, anus or urethra of the offender by the body part of another person((ie, of the victim), (c) introduction of the penis of one person into the mouth of another person, (d) engaging in cunnilingus or fellatio, (e) containing sexual assault in any of the above circumstances as defined in sub sections (a) to (d). In this context, it is appropriate to point out that while sub sections (a) and (b) are clear, it can be seen that sub section (d) is inclusive of the act specified in sub section (c), and sub section (e) seems to be irrelevant.. Refer to Chapter 2 of this thesis.

In the subsequent *Criminal Law (Amendment) Bill 2012*, it was proposed that the offence of rape in section 375 was to be substituted with the offence of sexual assault in gender-neutral terms for both offender and victim.[300]

Incidentally, the J.S. Verma Committee Report submitted on 23 January 2013, dissented regarding the changing of the offence of rape to sexual assault in order to denote penetrative sexual violence.[301] It resorted to partial gender neutrality by favouring the retention of the word "man" to denote the offenders of the offence of rape as belonging to the male gender alone, but refers to the victim in a gender-neutral manner as "a person".[302] The first to sixth descriptions in Section 375 use the gender-neutral term "person" to denote the victim.

The *Criminal Law (Amendment) Ordinance 2013* passed on 3 February 2013 was based on the *Criminal Law (Amendment) Bill 2012*, and substituted the offence of rape with "sexual assault'", using gender-neutral terms for both offender and victim.

In a volte-face, the *Criminal Law (Amendment) Act 2013* retained the previous completely gender-specific version of the term rape in the *IPC*.[303] However, no reasons have been mentioned as to why the gender-specificity in the term "rape" was retained.

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[300] Accordingly, the offence of 'sexual assault' under Section 375 of the *IPC* would hold lie if a person (ie, the offender) does the following acts: (a) penetration, for sexual purposes, of the vagina or anus or urethra or mouth of another person with any body part including the penis or by any object manipulated by such person, except where such penetration is carried out for proper hygienic or medical purposes);(b) manipulation of any part of the body of another person (ie, the victim) so as to cause penetration of the vagina or anus or urethra or mouth of such person (ie, the offender) by any part of the other person's (ie, the victim's) body; (c) engaging in "cunnilingus" or "fellatio". All the circumstances mentioned later on (First till sixth) were couched in gender-neutral terms. Refer to Chapter 3.

[301]The Justice Verma Committee Report (2013) referred to the definitions of 'sexual assault' as used in the UN Handbook and Section 271 of the *Criminal Code* in Canada. The Committee preferred the use of the word 'rape' over the term 'sexual assault' in because the epithet 'rape' carries a high degree of moral and social opprobrium, which is not conveyed by the generic crime of 'sexual assault'. Removal of the term 'rape' creates the risk of diluting the extent of moral condemnation, and may signal a dilution of the political and social commitment to respecting, protecting and promoting women's right to integrity, agency and autonomy. The Committee recommended the introduction of the offence of sexual assault to include all forms of non-consensual non-penetrative touching of a sexual nature. Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). Report of the Committee on Amendments to Criminal Law. New Delhi: Government of India at Chapter III, Para 65 (iv), p. 107 and Para 67, p. 111.

[302] If a man (a) penetrates the vagina or anus or urethra of a person (ie, the victim) with any part of his body including his penis or any object manipulated by him, except where such penetration is carried out for proper hygienic or medical purposes; or (b) manipulates any part of the body of a person so as to cause penetration of the vagina or anus or urethra of another person; or, (c) engages in "cunnilingus" or "fellatio", he commits the offence of 'rape under section 375 *IPC*. Refer to Chapter 3 of this thesis.

[303](a) penetration of the penis of the man (here, the offender), to any extent, into the vagina, mouth, urethra or anus of a woman (here, the victim), or making her do so with him or any other person; or (b) insertion, to any extent, any object or a part of the body, not being the penis of the man, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or (c) manipulation of any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her

Vipra (2013) states that a statement raised by women's groups was the reason why the *Criminal Law (Amendment) Act 2013* changed the offence back to the gender-specific "rape".[304]It is important for male and female victims to identify the crime as rape, not just as an assault that happens to be sexual.[305]

4.2.2. Whether gender-specificity renders the law discriminatory: Was the legislature correct in rejecting the Law Commission and Verma Committee recommendations regarding adoption of full or partial gender-neutrality in the offence under section 375 *IPC*?

Responding to an allegation by Agnes (2002) that it is only "Western feminists" who advocate gender-neutral laws, Vipra (2013) studied 96 countries and found that 63 have rape or sexual assault laws written in gender-neutral language, 27 had rape laws that were completely gender-specific (the perpetrator was defined as male and the victim as female), and 6 had partly gender-neutral laws (the perpetrator was defined as male and the victims could be male or female).[306]

Gender-neutral rape laws are extremely unlikely to be used against women just to harass them. The costs of social stigma and ridicule are much higher than the benefits of humiliating a woman.[307] Female-on-male rape and female-on-female rape occurs, but is not formally reported to the police in contrast to the formal reporting of gang rape of a male by other males.[308] The two reasons for not publicizing a case of a woman raping a man in are: firstly, the stigma attached to being raped as a man discourages men from reporting a rape; and secondly, the absence of laws that deal with such a situation.[309] While there is a lack of male rape statistics in India, a survey of 222 men found that a majority of men believe a man can be sexually victimised by a woman (Vipra, 2013).[310]

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to do so with him or any other person; or (d) application of the mouth of the man to the vagina, anus, urethra of a woman or makes her to do so with him or any other person. Refer to Chapter 3 of this thesis.

[304]Vipra,J.(2013). A case for gender-neutral case laws in India. *CCS Working Paper # 286*. pp. 5–6. <https://ccsinternship.files.wordpress.com/2013/05/286_case-for-gender-neutral-rape-laws-in-india_jaai-vipra.pdf>.

[305]*Id* at p.27.

[306]*Id* at p.7.

[307]*Id* at p.28.

[308]Vipra J. (2013) cites a few qualitative interviews with doctors and police: *Id* at pp.13-14.

[309]*Id* at p.17.

[310]*Id* at p.12.

Vipra concludes that rape is a function of interpersonal relationships and sexual factors as well as social structures, and social inequality must not be cited as an excuse for excluding a certain set of victims from the law.[311]

It is clear that just because women are considered to be socially unequal to men, this cannot be a criterion for excluding men victims as a class from the law. The failure of the legislature to adopt gender-neutrality in the offence under section 375, whether defined as "rape" or "sexual assault" or "penetrative sexual assault", points to incorrectness due to incongruence with the principle of equality which is fundamental to a rule of law society.

The recommendation of the 172nd Law Commission Report of 2000 to substitute the gender-specific term of rape with the gender-neutral term of sexual assault was incorporated in the subsequent *POCSO*, as well as in the *Criminal Law (Amendment) Ordinance 2013*. The J.S. Verma Committee Report (published prior to the passing of the *Criminal Law (Amendment) Ordinance 2013*) recommended the retention of the term "rape" instead of sexual assault in section 375 of the *IPC*, and advocated a gender-neutral term of "person" as the victim. Both the Law Commission of India as well as the J.S. Verma Committee were bodies appointed by the Executive to study the issues in a scientific manner and make recommendations to be adopted by the legislature. Instead of adhering to these recommendations, the Parliament seems to have succumbed to the frenzies of certain pressure groups (Vipra,2013). It was not correct of the legislature to have continued with the term rape in gender- specific terms, as this points to incongruence with law reform recommendations of executive bodies.

4.2.3. Was it consistent of the legislature to have enacted the offence of rape in gender-specific terms for both perpetrator and victim in the *IPC*, while excluding the same from the *POCSO*?

The *POCSO* does not contain any offence of rape. This offence in the *IPC* is preferred over the term "sexual assault". According to the J.S. Verma Committee, the epithet "rape" carries a high degree of moral and social opprobrium, which is not conveyed by the generic crime of sexual assault. Removal of the term "rape" creates the risk of diluting the extent of moral condemnation, and may signal a dilution of the political and social commitment to respecting, protecting and promoting women's rights to integrity, agency and autonomy. With the enactment of section 375 *IPC* in gender-specific terms for offender and victim, as well as framing other sexual offences in gender-specific terms, the current governmental policy

[311] *Id* at p.20.

favours the adoption of gender-specificity regarding sexual offences. If this principle were to be applied uniformly across all legislation, then a similar offence of rape in gender-specific terms ought to be have been enacted within the *POCSO* in order to convey a similar "high degree of moral opprobrium". This inconsistency of the legislature in failing to amend the *POCSO* to include the offence of "rape" attracts the index of incongruence due to lack of uniformity in the law.

4.3 Does the current interpretation of the offence of carnal intercourse in the *IPC* offers sufficient protection against child sexual abuse?

"Unnatural offences" is defined in section 377 of the *IPC* as voluntary carnal intercourse against the order of nature with a man, woman or animal. The Explanation to Section 377 states that penetration is sufficient to constitute the carnal intercourse necessary to the offence. This is an offence criminalising voluntary acts of non-penile-vaginal intercourse of a homosexual and heterosexual nature, as well as bestiality, in which penetration is present. However, the definition of the term "penetration" is not given in the statute. In *Sakshi's* case in 2004, the Supreme Court of India explained that this provision can be used to criminalise the various sexual violations upon children which do not come within the ambit of the penile-vaginal type of rape of a girl child by a male. However, after the *Criminal Law (Amendment) Act 2013*, the definition of rape was extended to other types of penetration by a man of a girl child. After the amendment to section 375 *IPC* in 2013, the listing of types of sexual violations in *Sakshi's* case has become obsolete to a certain extent. *Suresh Kumar Kaushal's* case (2014)[312] failed to give any inputs on this matter. Hence, the main question here is the correctness of the Supreme Court's interpretation of section 377 *IPC* for accommodating these "non-rape" type of sexual violations of children as enumerated in *Sakshi's* case (2004). An analysis of the law on unnatural offences shows that the law has not advanced in response to child sexual abuse.

To examine this issue, the indices used are:

1. The legislative provision and case law is not coherent.
2. The legislative provision is not uniform and/or congruent with general principles of statutory interpretation.

[312]Refer to Chapter 3 of this thesis.

3. The legislative provision does not provide adequate protection to a person or class of persons.
4. The legislative provision is not in accordance with governmental policy.
5. The legislative provisions post -2013 *Criminal Law (Amendment) Act 2013* are not consistent with one another.

4.3.1. Does the offence of carnal intercourse under section 377 *IPC* offer adequate protection to children as a class?

Section 377 *IPC* punishes anyone who "voluntarily has carnal intercourse against the order of nature with any man, woman or animal".The ambit of section 377 *IPC* extends to any sexual union involving penile insertion, which can be understood to include homosexual acts, bestiality, as well as consensual heterosexual acts such as oral and anal penetration.

The Law Commission's 172nd Report in 2000 recommended the criminalisation of non-consensual homosexual and heterosexual acts within the definition of "sexual assault" in section 376 *IPC*, as well as addition of a new provision – section 376E – to penalize "unlawful sexual contact".[313] The 172nd Report recommended deleting section 377 *IPC* except with regard to retention of the criminalisation of "carnal intercourse with animals". However, these reforms did not happen.

Later on, in *Sakshi v Union of India*,[314] a Division Bench of the Supreme Court interpreted section 377 *IPC* to state that penetration other than penile-vaginal penetration are unnatural sexual offences. The Supreme Court listed various unnatural offences to include penile-anus penetration, penile-oral penetration, finger-anal penetration, finger-vaginal penetration or object-vaginal penetration.

In *Naz Foundation v Government of National Capital Territory of Delhi,*[315]both petitioner and the respondent Government agreed that section 377 *IPC* has been used in filling the lacuna in rape laws by punishing types of child sexual abuse which are excluded from section

[313]The new provision sought to criminalise non-consensual, direct or indirect, intentional unlawful sexual contact with part of the body or with an object upon any part of body of another person. The new section 376E would also criminalise a person committing unlawful sexual contact with a young person (below the age of 16 years) with enhanced punishment if the young person is in a relationship of dependency with the offender. Refer to Chapter 3 of this thesis.
[314] MANU/SC/0523/2004.
[315](2010)CriLJ 94.

376 *IPC*. In *Suresh Kumar Koushal & Another. v Naz Foundation &Others,*[316]the Bench ruled that section 377*IPC* would apply irrespective of age and consent in light of the plain meaning and legislative history of the section. It held that amending or repealing section 377 *IPC* is a matter that should be a matter left to Parliament.

Reading the new definitions of rape under sections 375 and 376 *IPC* post-2013, along with *Sakshi's* case (2004), *Naz* (2009) and *Suresh Kumar Kaushal* (2014),it seems that section 377 *IPC* would technically apply only to: (1) consensual penile-anus, penile-oral, finger-anal, finger-vaginal or object-vaginal penetration of a man by any person; (2) penile-anus, penile-oral, finger-anal, finger-vaginal or object/vaginal penetration of minor children irrespective of consent, by any person; and (3) bestiality.

In Canada, along with the crime of bestiality, section 160 of the *Canadian Criminal Code* specifies three other offences:

1. the offence of compelling the commission of bestiality
2. the offence of committing bestiality in the presence of a child
3. the offence of inciting a child commit bestiality.[317]

There is case law[318] as well as some reports regarding the prevalence of bestiality in India.[319] However, there has been no reported case before the courts regarding bestiality by or in the presence of children. Section 377 *IPC* can be used to cover penetrative sexual offences regarding animals and children. The definition of unnatural offence, which includes carnal intercourse with an animal, is not clearly defined, especially with regard to such offences

[316](2014) 1 SCC 1.

[317]The Canadian *Criminal Code:* Bestiality s. 160(1) Every person who commits bestiality is guilty of an indictable offence and liable to imprisonment for a term not exceeding ten years or is guilty of an offence punishable on summary conviction.
Compelling the commission of bestiality (2): Every person who compels another to commit bestiality is guilty of an indictable offence and liable to imprisonment for a term not exceeding ten years or is guilty of an offence punishable on summary conviction.
Bestiality in presence of or by child (3): Despite subsection (1), every person who commits bestiality in the presence of a person under the age of 16 years, or who incites a person under the age of 16 years to commit bestiality:(a) is guilty of an indictable offence and is liable to imprisonment for a term of not more than 14 years and to a minimum punishment of imprisonment for a term of one year; or (b) is guilty of an offence punishable on summary conviction and is liable to imprisonment for a term of not more than two years less a day and to a minimum punishment of imprisonment for a term of six months.

[318] The 1934 Lahore High Court case of *Khandu* v. *Emperor* where the accused was convicted for the carnal intercourse by placing his penis into the nostril of a bullock. Refer to Chapter 3.

[319] Shukla, R. (2014). Sexual Abuse of Stray Dogs in India. Report by Voice of Stray Dogs. https://drive.google.com/file/d/0BzAMn08dit28QVJ5M1IzLTA2NjA/view.

committed in the presence of a child or inciting a child to commit such unnatural offence with an animal.[320]

4.3.2. Are sections 375, 376 and 377 *IPC* consistent with each other as well as congruent with the general principle of equality?

The 172nd Law Commission's recommendation for deletion of section 377 *IPC* has been rejected by Parliament and the judiciary. Post-2013, section 377 *IPC* would apply only to: (1) consensual penile-anus, penile-oral, finger-anal, finger-vaginal or object-vaginal penetration of any man by any person; (2) penile-anus, penile-oral, finger-anal, finger-vaginal or object-vaginal penetration of minor males irrespective of consent, by any person; and (3) bestiality. After the amendment of the *IPC* in 2013, no clarification, either judicial[321] or legislative, has been given regarding deletion of the various types of penetration in *Sakshi's* case as inclusive within unnatural offences in section 377. The present interpretation of section 377 *IPC* is inconsistent with the approach of the post-2013 definitions of sections 375 and 376 *IPC*. This points to incoherence, vagueness and ambiguity and it is difficult to apply such provisions consistently. The inaction of the judiciary in *Suresh Kumar Kaushal* (2013) to clarify the interpretation of "unnatural offences" explained in *Sakshi* (2004) – which has been rendered partially obsolete by legislative amendment – reeks of judicial inadvertence. This is a clear instance of non-application of the imperative judicial discretion to interpret the law.

4.4. Is the current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 a positive advance in responding to child sexual abuse?

There is no specific law regarding the age of consent for sexual activity of female and male children. Before the *Criminal Law (Amendment) Act 2013*, the *IPC* stated the age of consent for women was 16 years. It was silent regarding that of men. In 2012, the *POCSO* criminalised all sexual activity with children under the age of 18, irrespective of the age of the offender. After the *Criminal Law (Amendment) Act 2013*, the *IPC* raised the age of consent for women to 18 years. This resulted in discriminatory situations where two children

[320]It is interesting to note a recent Canadian judgment in *R. v D.L.W.*, where it was specified by the Canadian Supreme Court that penetration is not necessary for the offence of bestiality under section 160 of the Canadian *Criminal Code*, and that section 160(3) is meant to protect children from sexual exploitation with animals. Therefore it was decided that section 160(3) applied to acts of compulsion by a step-father who forced his 15-year-old step daughter to perform sexual acts with the family dog, even though no penetration was involved. However, in India, since the Explanation in Section 377 *IPC* clearly states that penetration is 'sufficient' to constitute the offence of carnal intercourse, it is not clear from case law whether penile penetration itself is necessary, or whether other kinds of penetration would also come within the ambit of section 377 *IPC*, as in the amended section 376 *IPC*.

[321]See *Suresh Kumar Kaushal* (2013).

who are in non-abusive sexual relationships become criminals before the law. An analysis of the law on sexual activity of children shows that the law has not yet advanced to understand the parameters of child sexual abuse and how to exclude non-criminal sexual activities of children in response. The synthesis of case law from the various High Courts in India in Chapter 3 shows that judges favour non-criminalisation of sexual activity when the child is mature and responsible enough to understand the implications of his/her sexual act.

For this issue, the indices used for analysis are:

The legislative provisions are not consistent with one another

1. The legislative provisions do not provide adequate protection to a person or class of persons.

4.4.1. Current law regarding the age of consent of boys and girls: Inconsistency in the *IPC*

The *POCSO* criminalised all sexual activity of children below the age of 18 years into the offences of penetrative sexual assault, aggravated penetrative sexual assault, sexual assault, aggravated sexual assault, sexual harassment, using a child for pornographic purposes, and so on. The age of consent for sexual activity of both boys and girls under the age of 18 was stated for the first time in the case of boy children as 18, and increased from 16 to 18 in the case of girl children.

The 172nd Law Commission Report 2000, which recommended criminalisation of the offence of sexual assault under section 375 *IPC,* specified that consent of the gender-neutral "other person" (here, the victim) who is below 16 years of age is irrelevant. The *Criminal Law Amendment Bill 2012* – which also couched in gender-neutral terms the offence of sexual assault under section 375 – specified that the offence under section 375 would accrue if the victim (both male and female) was below the age of 18, irrespective of consent. Attempts were made – first by the 172nd Law Commission Report to specify the age of sexual consent of boys as 16 years, followed by the *Criminal Law (Amendment) Bill 2012* to define the age of sexual consent of boys as 18 and raise the age of sexual consent of girls to 18.

The *POCSO* criminalised all sexual activity, both penetrative and non-penetrative, of male and female children below the age of 18.The J.S. Verma Committee, which recommended the partly gender-neutral offence of rape in section 375 *IPC*, made no mention of the issue of the consent or non-consent of underage persons. It completely removed the offence of rape

committed by a male against an underage victim of any gender by recommending the creation of the separate offence of rape of an underage person by introducing a new section 375B *IPC*.[322]It recommended lowering of the age of consent from 18 to 16 by carrying out amendments to the *POCSO*.[323]

The *Criminal Law (Amendment) Ordinance 2013*, promulgated on 3 February 2013, largely borrowed from the *Criminal Law (Amendment) Bill 2012*. It specified that such sexual acts as laid down in section 375 of the *IPC* with a person of any gender below the age of 18 by an offender of any gender would constitute the offence of sexual assault.

In spite of these progressive recommendations, the *Criminal Law (Amendment) Act 2013* did not include males as victims of the offence of rape under section 375 *IPC*. The *IPC* penalises consensual and non-consensual penetrative sexual activity of a woman below the age of 18, and not men below the age of 18. As per section 42A *POCSO*, the *POCSO* prevails in case of conflict between the *POCSO* and any other legislation. The law regarding the age of sexual consent of men is clear: it is 18, along with that of women.

These provisions are consistent with one another, coherent and correct in being congruent with government policy principles as set out in parliamentary debates, and congruent with

[322]To the question whether there exists a need to remove children from the ambit of the definition of "man" and "woman" which includes boy child and girl child respectively, specifically for the case of section 375 *IPC*, it can be seen that section 10 of the *Indian Penal Code 1860* defines "man" and "woman" as a male human being of any age, and a female human being of any age, respectively. The 172nd Law Commission Report submitted to the Supreme Court in 2000, as part of the *Sakshi* case, to recommend retention of the sixth clause in section 375 *IPC* which criminalises penile-vaginal penetration of a man with a woman under the age of 16 irrespective of her consent. However, it favoured the enactment of a new offence of 'unlawful sexual contact' under section 376E, which would criminalise direct or indirect, intentional sexual contact with part of the body or with an object upon any part of the other's body, one of the persons involved being a young person (below the age of 16), and with enhanced punishment if the young person is in a relationship of dependency with the offender.
The Justice Verma Committee Report (2013), in its recommendations, omitted the Sixth Clause to Section 375 of the *IPC* and recommended the addition of a new Section 376B regarding the offence of 'rape of an underage person'. Section 375B(1) states that if a man has sexual intercourse with a person below the age of 16 years of age with or without that person's consent, he shall be deemed to have committed rape of an underage person, and shall be punished with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life. The Proviso states that the existence of a marital relationship between the accused and the underage person shall not be a valid defence. The Explanation to this section goes on to say that sexual intercourse for the purposes of this section shall mean any of the acts specified in Section 375(a) to(c). Section 375B(2) punishes the causing of death or a persistent vegetative state in the course of committing rape of an underage person with rigorous imprisonment for a minimum term of twenty years, which up to the remainder of that person's natural life.

[323]The Committee agreed with the earlier demands of the women's rights groups for reducing of the age of consent of children for sexual activity to 16 as putting the age at 18 would result in the criminalisation of consensual sex between persons who are below 18 years of age. See Footnote 1, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, pp. 443-444.

general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society.

4.4.2. Child marriage and the age of consent for sexual activity

With regards to children between the age of 16 and 18, it is important to establish the age of consent for sexual activity. The *Prohibition of Child Marriage Act 2006*, specifies 18 as the legal age of marriage for a woman, and 21 as the legal age for marriage of a man. This enactment recognises the validity of child marriage in the event the contracting minor party wishes to continue in the marriage within two years of attaining majority (section 3). However, all sexual activity with children below 18 is criminalised by the *POCSO*, as consent of a child is considered as no consent at all, even if he/she provided consent. Section 5(m) of the *POCSO* states that one of the grounds for the offence of aggravated penetrative sexual assault is penetrative sexual assault of a child by a person who is a relative of a child through marriage. Exception 2 of Section 375 *IPC* states that sexual intercourse or sexual acts by a man with his own wife who is above fifteen years of age is not rape. Section 42 *POCSO* makes it clear where there is conflict between the provisions of the *POCSO* and the *IPC*, the provision that stipulates greater punishment will prevail. Since section 5(m) *POCSO* prescribes punishment, while Exception 2 of Section 375 *IPC* exempts punishment for husbands of child wives within the ages of 15–18 years, the *POCSO* ought to prevail. However, the legal position regarding this is still unclear. Section 42A *POCSO* clarifies that in cases of conflict between the *POCSO* and any other law, it is the *POCSO* that will prevail. The provisions of *POCSO* are inconsistent with the *Prohibition of Child Marriage Act 2006*. However, it is interesting to note the case of *Yunusbhai Usmanbhai Shaikh* (2015), where a girl of 16 years got married to a man 12 years older to her, against the wishes of her parents. The Delhi High Court could not find proof of kidnapping or rape of the child.

The synthesis of case law shows that judges favour non-criminalisation of sexual activity when the child is mature and responsible enough to understand the implications of his/her sexual act.

4.4.3. The need for a general law on the age of consent for sexual activity

During discussions on the draft *POCSO* bill, objections were voiced by various women and child rights' activists regarding the issue of suppression of sexual freedom of children, stating that increasing the age of consent from 16 to 18 would be wrongly used by parents to harass mature children and add to the plethora of cases before courts of law. As predicted by the

women's rights groups, the lower judiciary currently faces a large number of cases wherein the victim is a girl between the ages of 16 and 18, who has made a choice to enter into a relationship with a man. Such men are taken to court under the *POCSO* because the law does not recognize sexual autonomy in any form. The criminal justice system is compelled to respond by prosecuting the adult male in such circumstances, and the judiciary and police stand as mute witnesses to this abuse of the right of mature children to exercise their sexual freedom and choice of sexual partner.

This shows the lack of a clear law regarding the age of consent to sexual activity causes problems for the criminal justice system. Not only should the law specify the age of consent to sexual activity, but should define the age of consent for a person to have sexual relations with partners older and younger than himself/herself. There is a need for a general law on the specific matter of the age of consent for sex. Such a law must not be appended to a provision on rape in the *IPC* or the *POCSO*, as these laws deal with crimes against children. Instead, this law should specify the civil rights of a person regarding two things: firstly, it should define the age of consent for a person to have sex with partners older than himself/herself. Secondly, it should lay down the age at which a person can consent to have sex with someone who is within a certain age category if the sexual partners involved are under the age of 18. Many jurisdictions have specific laws with regard to this. As rightly pointed out by the J.S. Verma Committee, the aim of the *UNCRC* upon which the *POCSO* is based is to protect children from sexual assault and abuse and not to criminalise consensual sex between two persons even if they are below 18 years of age. The absence of a general law which allows for sexual autonomy of a person below the age of 18 in certain circumstances makes the law incorrect in providing adequate protection to the class of persons between the ages of 16 and 18 who choose to engage in consensual sexual activities which do not amount to assault or abuse or compulsion due to customary practices.

It is interesting to note from the synthesis of case law that various judicial decisions of many of the High Courts in India during 2015 to 2017 show a trend against criminalisation of sexual activity between mature individuals, even though the female party may be a minor.

4.5. Does the present law on sexual assault in the *IPC* make positive advances in responding to child sexual abuse?

The law on sexual assault is laid down in section 354 *IPC*. It criminalises the use of force upon a woman by any person with intention to outrage the modesty of that woman. This

section examines whether "all forms of non-consensual non-penetrative touching of a sexual nature" against children have been penalised in the *IPC* post the 2013 amendment, and therefore explores whether the *IPC* contains sufficient criminal offences in relation to child sexual assault. An analysis of this issue shows that the law on sexual assault in the *IPC* has not made positive advances in response to child sexual abuse. Four indices have been used for analysis..

These are:

1. The legislative provisions are not consistent with one another.
2. The legislative provisions are not coherent.
3. The legislative provisions are not uniform and/or congruent with general principles of statutory interpretation.
4. The legislative provisions do not provide adequate protection to a person or class of persons.

4.5.1. The J.S. Verma Committee Report recommendations to section 354, *IPC*

The 172nd Law Commission Report 2000 recommended that the term "sexual assault" be used in section 375 *IPC* instead of the term "rape". The *Criminal Law Amendment Bill 2012*, specified the section 375offence as "sexual assault", denoting penetrative sexual abuse. The *POCSO* in 2012 differentiated the offences of "penetrative sexual assault" and "sexual assault"; the latter denoting the offence of non-penetrative sexual abuse of children. The J.S. Verma Committee Report recommended the replacement of the section 354 *IPC* offence of "assault or criminal force to woman with intent to outrage her modesty" with the term "sexual Assault and Punishment for sexual assault" to include all forms of non-consensual non-penetrative touching of a sexual nature.[324]

The J.S. Verma Committee recommended that non-consensual intentional touching ought to carry a punishment of rigorous imprisonment upto five years, or with fine, or both. Words, acts and gestures, which (i) create an unwelcome threat of sexual nature, or (ii) result in an unwelcome advance, ought to be punished with imprisonment of either description upto one year, or with fine, or both. These two types of non-penetrative acts would comprise of the offence of sexual assault.

[324]Para 69, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.436.

The J.S. Verma Committee recommended that non-consensual intentional touching ought to carry a punishment of rigorous imprisonment upto five years, or with fine, or both. Words, acts and gestures, which (i) create an unwelcome threat of sexual nature, or (ii) result in an unwelcome advance, ought to be punished with imprisonment of either description upto one year, or with fine, or both. These two types of non-penetrative acts would comprise of the offence of sexual assault.

Ultimately, the offence of sexual assault was not incorporated into the *IPC* I by the *Criminal Law (Amendment) Act 2013*. Instead, the existing offence in section 354 *IPC*, punishing assault or use of criminal force to outrage the modesty of a woman, was amended to increase the punishment from "imprisonment of either description for a term which may extend to two year, or with fine, or with both" to imprisonment for a minimum of one year and a maximum of five years, along with fine.

As pointed out earlier in this chapter, while the *POCSO* offence of sexual assault carries a minimum punishment of three years imprisonment of either description and a maximum of five years imprisonment of either description and fine, the section 354 *IPC* offence carries punishment for a minimum of one year and a maximum of five years with fine. The maximum limits of both are the same, while the minimum limits are different.[325]

A comparison of section 354[326] and section 509[327] of the *IPC* shows two differences: one, with regard to intention or knowledge. As per section 354, the intention or knowledge is to **outrage** the modesty of a woman, while according to section 509, the intention (not knowledge) is to **insult** the modesty of a woman. Two, with regard to the act. In the case of section 354, the act is assault or use of criminal force, while in section 509, the offender does not assault or use criminal force, but utters words, or makes sounds or gestures so that the woman hears the word or sound, or sees the gesture or object, or the offender intrudes upon the privacy of that woman.[328]

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[325] Refer to 4.1.1 of this chapter.
[326] Assault or criminal force to woman with intent to outrage her modesty.
[327] Punishment of utterance of word, gesture or act intended to insult the modesty of a woman.
[328]Narender Kumar, *Universal's Guide for Higher Judicial Services Examination*. New Delhi: 2010, Universal, p.73
https://books.google.co.in/books?id=924QqBkezV8C&pg=PA73&lpg=PA73&dq=modesty+of+woman+section+354&source=bl&ots=udJUTJvo3u&sig=mWPJgoWcb7cLwe02_3LU1Fe9LN0&hl=en&sa=X&ved=0ahUKEwjLttvt2K_JAhWSGI4KHe5pCC44FBDoAQgrMAM#v=onepage&q=modesty%20of%20woman%20section%20354&f=false

4.5.2. Interpretation of the term "outraging the modesty of a woman"

Even after the *Criminal Law (Amendment) Act 2013*, it is not clear as to what acts would constitute offences which "outrage the modesty of a woman" under Section 354 of the *IPC* which do not come under the ambit of section 509 of the *IPC*. As the term "outraging the modesty of a woman" has not been defined in the *IPC*, it is necessary to examine the case law regarding this term.

In *State of Punjab v Major Singh*,[329], Justice Mudholkar discussed the meaning of the word "modesty" given in the Oxford English Dictionary: "womanly propriety of behaviour, scrupulous chastity of thought, speech and conduct (in men or women) reserve or sense of shame proceeding from instinctive aversion to impure or coarse suggestions". It is in this sense that modesty appears to have been used in section 354 *IPC*. When any act done to or in the presence of a woman is clearly suggestive of sex according to the common notions of mankind, that act must fall within the mischief of the section and would constitute an offence under the section. In this case, Justice Bachawat made the oft-quoted statement that "the essence of a woman's modesty is her sex". He explained that under this section it is the culpable intention of the accused that is the crux of the matter, and not the reaction of the woman concerned. Though reaction of the woman is very relevant, its absence is not always decisive.

In *Kanwar Pal Singh Gill v State (Admn., U.T. Chandigarh) Through Secretary and Another and Mrs. Rupan Deol Bajaj, I.A.S. v Kanwar Pal Singh Gill*[330] it was held by Justices K.G. Balakrishnan and B.N. Srikrishna that the accused had used criminal force with intent to outrage the modesty of the complainant and possessed complete knowledge that gently slapping on the posterior of the prosecutrix in the presence of other guests would embarrass her. Hence, the accused was fully aware that touching the body of the prosecutrix at that place and time would amount to outraging her modesty. Had it been without any culpable intention on the part of the accused, nobody would have taken notice of the incident. The reaction of the prosecutrix is relevant in that she raised hue and cry immediately after the incident. The Court reached the conclusion that a police officer of the highest rank ought to have exercised exceeding care in this regard. By touching the body of the complainant with

[329] AIR 1967 SC 63.
[330] MANU/SC/0433/2005.

culpable intention the accused had committed offences punishable under sections 354 and 509 *IPC*.

In *Ramkripal S/o Shyamlal Charmakar v State of Madhya Pradesh*[331] decided by Justices Dr.ArijitPasayat and S.H. Kapadia, Pasayat J stated that modesty is a virtue which attaches to a female owing to her sex. The act of pulling a woman, removing her saree, coupled with a request for sexual intercourse, is such as would be an outrage to the modesty of a woman, and knowledge that modesty is likely to be outraged is sufficient to constitute the offence. The learned judge observed that modesty is the reserve or sense of shame proceeding from instinctive aversion to impure or coarse suggestions. On the basis of the earlier Supreme Court decisions on *Rupan Deol Bajaj (Mrs.) and Anr. V Kanwar Pal Singh Gill and Another*[332] and *Raju Pandurang Mahale v State of Maharashtra and Another,*[333] this Court reiterated that the ultimate test for ascertaining whether modesty has been outraged is whether the action of the offender is such as could be perceived as one which is capable of shocking the sense of decency of a woman.

4.5.3. The appropriateness of the term "modesty" in the *IPC*

Despite various judgments preserving the modesty of a woman in tune with protective jurisprudence enshrined in Article 15 of the Indian Constitution,[334] the Court has never objected to the use of the term "modesty". This "modesty" is criticised as encouraging a culture of honour and of femicide – whether as foeticide, infanticide or otherwise – and a sense of disregard for the bodily integrity of a woman, as well as forcing women them out of education and access to development because of the belief that they are not safe.[335]

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[331] MANU/SC/7225/2007.
[332]MANU/SC/0080/1996.
[333]MANU/SC/0116/2004.
[334] Section 15. Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth:
(1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them
(2) No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to
(a) access to shops, public restaurants, hotels and palaces of public entertainment; or
(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public
(3) Nothing in this article shall prevent the State from making any special provision for women and children
(4) Nothing in this article or in clause (2) of Article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.
[335]Jayakumar, K. (2015). *Why Are We So Concerned About Protecting The Modesty Of A Woman And Not The Woman Herself?* September 1, 2015 http://www.womensweb.in/2015/09/concerned-protecting-modesty-woman-not-woman/.

The word "modesty" ought not have been used with regard to a woman within sections 354 and 509 of the *IPC* when such a word is never used anywhere with regard to a man who possesses the same amount of modesty that a woman is supposed to possess. The *POCSO* does not resort to the use of the term "modesty" here. The term "modesty", instead of upholding the principle of equality enshrined in Article 14 of the Constitution, promotes discrimination of women by signifying a weakness which should be protected, instead of recognising the fact that sexual abuse can occur to any person, irrespective of gender.

The use of the term modesty within sections 354 and 509 of the *IPC* render these provisions incongruent with the principle of equality, whereas the recognition of sexual abuse in the *POCSO* as a concept entirely free from the straitjacket of the term modesty renders the *POCSO* congruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society.

4.5.4. The use of the term "whoever" in sections 354 and 509 *IPC* is inconsistent with other sexual offences in the *IPC* which specify the offender as male

Irrespective of the use of the word modesty with regard to a woman, the 2013 amendments to the *IPC* make the perpetrator of the section 354 and 509 offences gender-neutral by retaining the term "whoever" instead of "a man". However, the victim is always a woman. So if we were to check how effectively these sections would protect children from non-penetrative sexual abuse, only man/boy on woman/girl and woman/girl on woman/girl types of sexual abuse can be read within the ambit of this section. Any non-consensual non-penetrative sexual offences by both genders against boy children would have to be redressed by section 7 *POCSO* alone, as the general criminal law fails to provide relief in this regard.

4.5.5. The deficiency of section 354 *IPC* in punishing cases of aggravated sexual assault

Section 7 of the *POCSO* criminalises the following acts as sexual assault:

a. Touching the vagina, penis, anus or breast of the child
b. Making the child touch the vagina, penis, anus or breast of such person or any other person
c. Doing any other act with sexual intent which involves physical contact without penetration.

Section 354 *IPC* ought to cover all the above acts performed against women alone under the broad term of "outraging the modesty of a woman".

Section 8 *POCSO* criminalises aggravated sexual assault when committed by a person in various positions of trust or responsibility over the child. The minimum punishment for an offence of aggravated sexual assault under the *POCSO* is five years imprisonment of either description, and the maximum is seven years imprisonment. But Section 354 *IPC*, unlike Section 376(2), does not punish aggravated instances of outraging the modesty of women, in the same way as when a woman is sexually assaulted by a person who is a public officer or when the assaulter holds some position of trust and responsibility, as stated in Section 376(2) *IPC* or section 8 *POCSO*.[336] The non-inclusion of punishment for aggravated cases of sexual assault under section 354 *IPC* and for cases of using sexual words, gestures or acts by persons who hold positions of trust or responsibility under section 509 *IPC*, in comparison with section 376(2) *IPC* reeks of inconsistency of. The separation of aggravated instances of sexual assault in the *POCSO* ought to have made consistent changes to the *IPC* through its 2013 amendment.

4.5.6. Changes required to the offence of sexual assault in the *IPC*

The law does not provide adequate protection in relation to a class of offences: namely, non-penetrative acts of sexual abuse against male minors (section 354 *IPC* protects female minors alone against non-penetrative sexual assault by any person). A class of victims of male minors have been excluded. Also, a class of offenders – namely, persons who hold positions of trust and responsibility – have not been brought within the ambit of the *IPC* by imposing stricter punishments.

In order to make section 354 *IPC* more appropriate for the prosecution of children, the following changes ought to be made:

1. The victim must be gender-neutral
2. The term "outraging the modesty" must be removed
3. The acts comprising of non-penetrative non-consensual sexual assault must be specified
4. Provision should be made for punishment of aggravated cases of sexual assault.

[336] The *Mathura* case (1979) of girl-child rape by police authorities (referred to in Chapter 3) as well as the sensational case of a senior female officer of the Indian Administrative Service, Mrs. Rupan Deol Bajaj, being publicly assaulted by a senior male police officer of the Indian Police Service and Padma Shri award-winner, Major K.P.S. Gill (2005) (referred to in this chapter) are glaring examples of violation of the law by public authorities.

4.6. Does the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC* construe a positive advance in responding to child sexual abuse?

The Exception to Section 375 *IPC* lays down the law on marital rape. According to this Exception, marital rape of a child-wife below the age of 15 is punishable with enhanced punishment.[337] But once the age of 15 years is passed, her consent or non-consent to sexual relationships is at par with an adult wife, because marital rape is not an offence. However, under the *POCSO*, sexual relations with any child under the age of 18 is a penal offence.

This section examines the appropriateness of retaining Exception 2 of Section 375 *IPC* on marital rape of child-wives above the age of 15 in light of the *POCSO*, *IPC* and *Prohibition of Child Marriages Act 2006*. An analysis of this issue shows that the law with regard to marital rape has not advanced in response to child sexual abuse.

The indices used for analysis here are:

1. The legislative provisions are not consistent with one another
2. The legislative provisions are not coherent
3. The legislative provisions are not uniform and/or congruent with general principles of statutory interpretation
4. The legislative provisions do not provide adequate protection to a person or class of persons.

4.6.1. Marital rape in the *IPC*:

Marital rape is not an offence in India. Section 375 *IPC* defining rape does not criminalise non-consensual sexual intercourse of a man with his own wife unless the wife is below 15 years of age. As enumerated in Chapter 3, an Exception to section 375 *IPC* states:

> Sexual intercourse by a man with his own wife, the wife not being under fifteen years, is not rape.

4.6.2. Three scenarios created by section 375 and 376 *IPC* pre-2013 amendment

If a wife within the ages of 12and 15 was raped, then the husband would be punished with imprisonment of either description for a term which would extend up to two years or with fine or with both.

[337] As per Section 376 (2) *IPC*, this shall incur punishment of rigorous imprisonment for a term which shall not be less than 10 years but which may be for life – which shall mean imprisonment for the remainder of that person's natural life – and shall also be liable to fine.

Pre-2013 *Criminal Law (Amendment) Act 2013*, section 376 (1) stated:

> Section 376: (1) Whoever, except in the cases provided for by sub-section (2), commits rape shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may be for life or for a term which may extend to ten years and shall also be liable to fine **unless the woman raped is his own wife and is not under twelve years of age, in which cases, he shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:**
> Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than seven years. (Emphasis added)

In child marriages, where the wife was below the age of 12, sexual intercourse would have been considered as statutory rape and punished with graver punishment as under sub-section (2) of section 376 *IPC*. Pre-2013 *Criminal Law (Amendment) Act 2013*, enhanced punishment was prescribed for rape of a woman below 12 years of age under section 376(2)(f)-rigorous imprisonment for a minimum term of 10years upto life imprisonment and fine. However, this punishment could have been reduced by the judiciary as per the proviso to section 376(2), which stated that the court may also, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term of less than ten years.

A joint reading of sections 375 and 376, pre-2013 amendment, provided for three scenarios:

1. If the child-wife was below 12 years of age, sexual intercourse with her would have amounted to rape under section 376(2) with rigorous punishment from 10 years to life and fine. This could have been reduced by the judiciary for adequate and special reasons to be mentioned in the judgment, as provided in the proviso to section 376(2). Section 376(2) of the *IPC* allowed for judicial discretion by providing scope for subjectivity, and negated the principle of the rule of law.
2. If the child-wife was between the ages of 12 and 15, sexual intercourse with her would amount to rape; however, instead of incurring the punishment of a minimum of seven years imprisonment to a maximum of life imprisonment and fine, section 376(1) provided for a lesser term of punishment – imprisonment of either description for a term which may extend to two years or with fine or with both. A child wife was put in a different class of persons. A man could avoid normal punishment for rape due to the fact that he had married her.
3. Above the age of 15 years, a child wife was put in the same class as adult wives and deprived of her right to consent to sexual relations with respect to her husband. Unmarried girls from age 16 onwards had the right to consent to sexual relations to men they were not

married to. The fact that marital rape is not recognized as rape within the definition of section 375 of the *IPC* does not help the issue of a child-wife forced to enter into sexual intercourse with her husband without consent. When the age of consent was put at 16, the law-makers sought to put child wives over the age of 15 in a different category without explaining the rationale behind such differentiation. Such categorization makes the law inconsistent and incorrect, as well as incoherent in that it isvague or ambiguous and difficult to apply consistently.

These legislative provisions placed a child wife within these three scenarios outside the protective sphere of criminal law because of the fact that she was married. The provisions were incongruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society because the objective differences cannot justify differentiation.

The J.S. Verma Committee Report 2013 recommended criminalization of non-consensual penetrative sex upon a woman by a man, including the same within the relationship of marriage, as rape.[338] But this was not incorporated within the *Criminal Law (Amendment) Act 2013*.

Post-*Criminal Law (Amendment) Act 2013*, sexual intercourse with a woman under the age of 18 years, with or without her consent, has been criminalized under section 375 *IPC*. The Exception to Section 375, which exempts punishment for marital rape except in the case of rape of a child-wife under 15 years of age, has been retained. But, unlike its pre-2013 version, section 376(1) *IPC* completely omits reference to punishment for rape of a child-wife between the ages of 12 and 15 by her husband. It does not provide any lower punishment for a man who rapes his wife who is under 15 years of age.

Section 376(2) *IPC* provides an enhanced punishment of rigorous imprisonment for a minimum of 10 years and a maximum of life imprisonment, along with fine, upon whoever commits rape on a woman under 16 years of age (clause (i) of sub-section (2)).[339]Reading the Exception 2 to Section 375 *IPC*, along with section 376(2)(i) *IPC*, it can be inferred that if a husband has sexual intercourse with his wife who is below the age of 15, then he will be

[338]Para 79, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, p.117.
[339]Pre-2013, this was 12 years of age.

punished with rigorous imprisonment for a minimum of ten years and a maximum of life imprisonment, along with fine.

Thus, post-2013 *Criminal Law (Amendment) Act 2013*, the detrimental effect of sections 375 and 376 *IPC* to the rule of law, as mentioned in the first two scenarios above, have been negated. These sections have been made more congruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society. However, the retention of the age of 15 for a child wife to be deprived of her right to refuse sexual intercourse with her husband, while increasing the age of a woman to 16 from the earlier twelve regarding punishment for aggravated acts of rape under Section 376 (2), again makes the law inconsistent and incorrect, as well as incoherent in that it seems vague or ambiguous and therefore difficult to apply consistently. The gap of one year to reach the age of 16 is deemed irrelevant in the case of a married 15-year-old child. She does not gain any relief from non-consensual sexual intercourse with her husband, unlike her unmarried 16-year-old counterpart. Again, the rationale for such differential classification is not laid down, which is contrary to Article 14 of the *Constitution of India 1950*.

Exception 2 to Section 375 *IPC*, post-2013 amendment, places a child-wife outside the protective sphere of criminal law because of her marital status, as sexual relations with unmarried girls below the age of 18 years is treated as statutory rape under the *IPC*. This makes Exception 2 section 375 *IPC* incongruent with general principles of statutory interpretation and fundamental legislative principles characteristic of a rule of law society, because the objective differences are not justified. Such incongruence can be removed only when Exception 2 to Section 375 *IPC* is deleted.[340]

4.6.3. Marital rape and the *Protection of Women against Domestic Violence Act 2005*

Indian criminal law does not recognise marital rape as rape. However, the new civil law on domestic violence – the *Protection of Women against Domestic Violence 2005*– includes marital rape within the meaning of domestic violence against which women can seek protection and remedy. This legislation is the culmination of a century-old struggle that began

[340] From a women's rights perspective, it is preferable not to exclude marital rape, irrespective of age, from the definition of rape in the *Indian Penal Code 1860*.

around the time that Phulmoni died (Kannabiran K, 2009).[341] An examination of this statute shows that the term "marital rape" has not been specifically used. Yet, section 3 of the *Protection of Women Against Domestic Violence Act 2005* includes "sexual abuse" within the term "domestic violence", and defines "sexual abuse" to include any conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of woman (Explanation 1(ii) of Section 3). The magistrate can grant protection orders, residence orders, monetary relief, custody orders, compensation orders, and interim and ex parte orders in order to redress the victim and prevent the respondent from committing an act of domestic violence. Though the existence of this civil remedy is important, criminalising marital rape would act as a powerful deterrent and go a long way towards protecting women in their own homes.

4.6.4. Marital rape and the *Prohibition of Child Marriage Act 2006*

The *Prohibition of Child Marriage Act 2006* provides for the prohibition of solemnisation of child marriages. "Child" is defined as a person who, if a male, has not reached 21 years of age, and if a female, has not reached 18 years of age.[342] This enactment suffers the impediment that it is merely limited to a declaration of the validity or nullity of child marriages.

In child marriages, where any party or both parties involve boys below the age of 21, in the case of boys or/and girls below the age of 18, the marriage is valid so long as the contracting party who was a child at the time of marriage does not exercise his/her option to annul the marriage. Hence, with regard to the issue of marital rape within a relationship of child marriage, the provisions of the *IPC* apply regarding exemption for rape of a child-wife who is above the age of 15. If she is below 15, then the punishment of rigorous imprisonment for a minimum of ten years and a maximum of life imprisonment, along with fine applies to

[341]*Queen-Empress v Hurree Mohun Mythee* (1891) ILR 18 Cal 49, as stated in Kannabiran, K. (2009). Sexual assault and the Law, pp. 78-118. Kannabiran, K. and Singh, R. (eds.), *Challenging the Rule(s) of Law: Colonialism, Criminology and Human Rights in India*. New Delhi, SAGE, p.31.

[342]Section 2(a), *Prohibition of Child Marriages Act 2006.*

This enactment makes child marriages voidable at the option of the contracting party (Section 3). It criminalizes the promoting or permitting solemnization of child marriages by punishing any person having charge of the child, both lawful and unlawful, with rigorous imprisonment upto to two years and fine which may extend upto one lakh rupees (Section 11). The Act declares marriage of a minor child to be void when the child is taken out of the keeping of the lawful guardian, or by force or deceit, compelled or induced to go from any place or is sold for the purpose of marriage and made to go through a form of marriage or if the minor is marriage after which the minor is sold or trafficked or used for immoral purposes (Section 12). A First Class Judicial Magistrate/Metropolitan Magistrate can issue an injunction order prohibiting child marriages (Section 13), and those child marriages which are solemnized in violation of such injunction order are declared by the Act as void ab initio (Section 14).

whomever commits rape on a woman when she is less than 16 years of age, as per Section 376(2)(i) *IPC*.

The *IPC* does not punish marital rape of a woman above the age of 15 by her husband, even though the *Prohibition of Child Marriage Act 2006* clearly states that the age of marriage of a woman is 18 and that of a man is 21.

Further complicating matters is the fact that even though the *Prohibition of Child Marriages Act 2006* prohibits child marriages, such marriages have been permitted under the *Hindu Marriage Act* as well as Muslim personal law. No specific prohibition has been issued by the Indian Parliament against such provisions in personal law. Hence, the problem of child marriages continues.

4.6.5. Marital rape and *POCSO*

As demonstrated, the *POCSO* criminalizes sexual offences upon children below the age of 18 years, irrespective of the age of the perpetrator of such an activity, or consent of the child involved, or relationship with the child. In the paper on child marriage and the *POCSO*, Raha and Giliyal (2013) state that, irrespective of marital status, all sexual activity with regard to child wives above the age of 15and below the age of 18 is criminalized by the *POCSO*. The *POCSO* states that one of the grounds of aggravated penetrative sexual assault is through a relative of the child through marriage (section 5(n), punishable with a minimum period of ten years imprisonment which may extend up to life imprisonment (section 6).[343]

According to section 42A[344], the provisions of the *POCSO* shall be in addition to and not in derogation to any other law and, in case of any inconsistency, the provisions of the *POCSO* shall have overriding effect on the provisions of any such law to the extent of the inconsistency.

According to Raha and Giliyal (2013), from a reading of section 42A *POCSO* it can be clearly inferred that such exemption under Exception 2 of Section 375 *IPC* is to be overridden by the provisions of the *POCSO* which criminalises various sexual offences against children below the age of 18.

[343]Raha, S. & Giliyal, A. (2013). *Child Marriage and the Protection of Children from Sexual Offences Act, 2012*. Bangalore: CCL-NLSIU. https://www.nls.ac.in/ccl/justicetochildren/poscoact.pdf

[344]This was added by virtue of Chapter V of the *Criminal Law (Amendment) Act 2013*. It did not exist previously in the *POCSO*.

Definitely, section 42A *POCSO* , which was inserted as an amendment to the *POCSO* by the *Criminal Law (Amendment) Act 2013*, puts the entire issue of exempting marital rape of women above the age of 15 by their husbands in a different light. However, the question remains whether section 5(n) of the *POCSO* , which implicates a person who is a relative of a child through marriage and who commits penetrative sexual assault upon a child, was intended by the Parliament to include a spouse of the child, or a husband of a female child, the former being gender-neutral and the latter gender-specific. Again, if the interpretation argued by Raha and Giliyal (2013) is correct, then the law would be deemed coherent and in tune with the rule of law principle. It is understood that the issue of Exception 2 in Section 375 *IPC* is a matter sub-judice.[345]

4.6.6. Age of a married woman for sexual activity vis-a-vis age of an unmarried woman for sexual activity

In a decision by the Delhi High Court before the *POCSO* came into force, *Court on its own motion (Lajja Devi)v State*[346], on the pre-2013 section 375 of the *IPC* regarding the offence of rape, the Delhi High Court observed that it is "distressing" that the *IPC* "acquiesces child marriage" by stating that sexual intercourse by a man with his wife above the age of 15 and below the age of 16 years is not rape. The Court lamented the distressing fact that various legislations like the *Indian Majority Act 1875*, *Hindu Minority and Guardianship Act 1956* and the *Dowry Prohibition Act 1961* recognize child marriages and thereby destroy the very purpose and object of the *Prohibition of Child Marriage Act* (called the PCM Act by the Court) which was enacted to restrain and prevent the solemnization of child marriages. The Court then distinguished the position of girls below and above 16 years of age. With respect to girls above the age of 16 years, it held:

> "If the girl is more than 16 years, and the girl makes a statement that she went with her consent and the statement and consent is without any force, coercion or undue influence, the statement could be accepted and Court will be within its power to quash the proceedings under Section 363 or 376 *IPC*. Here again no straight jacket formula can be applied. The Court has to be cautious, for the girl has right to get the marriage nullified under Section 3 of the PCM Act. Attending circumstances including the maturity and understanding of the girl, social background of girl, age of the girl and boy etc. have to be taken into consideration."

[345]Mandhani, A. (2015). *SC impleads NCW as party to Writ challenging validity of Exception-2 of S.375 IPC - Sexual intercourse with married girl child between 15-18 years [Read the Submissions]*http://www.livelaw.in/sc-impleads-ncw-as-party-to-writ-challenging-validity-of-exception-2-of-s-375-*IPC/* ; A Public Interest Litigation filled by Independent Thought, an organization working on child rights law, is being heard in the Supreme Court of India for declaring the exception allowing marital rape within prohibited child marriages as unconstitutional- *Independent Thought* v. *Union of India* [W.P(civil) 382 of 2013] https://en.wikipedia.org/wiki/Child_marriage_in_India#cite_ref-5.
[346]2012 VIAD (Delhi) 465.

In cases of marriage of a girl below the age of 16 years, her consent would be immaterial. However, the court stated:

> "…there can be special or exceptional circumstances which may require consideration, in cases where the girl even after attaining majority affirms and reiterates her consent."

Most importantly, the court held that consummation with a wife below the age of 15 years is an offence and it is irrelevant whether she is married or applicable personal law provides otherwise.[347]

This problem is exacerbated now that the age of consent for sexual activity of girl-children has been raised to 18, as per the *POCSO* and post-2013 *IPC*. However, for married women below the age of 18, sexual intercourse can take place irrespective of her consent once she reaches the age of 15. This kind of classification of women – a higher age to indulge in sexual activity if she is unmarried because she is considered by law to be incapable of making decisions regarding her sexual freedom, and a lower age to indulge in the same kind of activity once she is married – is arbitrary and discriminatory, and makes mockery of women as a class. The child-wife above the age of 15 is in a sad predicament: since she is married, she does not get the protection against rape that an unmarried girl below the age of 18, merely because the rapist happens to be her husband, as Indian law does not recognize marital rape. However, as per section 42A *POCSO*, the girl child above the age of 15 and below the age of 18 is legally entitled to protection against penetrative sexual assault by a person who is a relative through marriage. Whether the relative through marriage would include a husband is not specified.

Incongruence to the rule of law can be removed if Exception 2 to Section 375 *IPC* is amended to exclude sexual intercourse with a wife below the age of 18 years.

4.II. Conclusion

Analysis of the first issue in this chapter showed that the nature and scope of sexual offences in the *POCSO* show positive advancement in child sexual abuse law. Analysis of the second issue regarding the amended offence of rape n the *IPC* show that, to a certain extent, positive advances have been made in responding to child sexual abuse. However, provisions punishing penetrative sexual abusers of male children must be added. Having gender-neutral

[347] *Supra* n.342 at p.3.

definitions of sexual offences for victim and offender in the general criminal law can simplify prosecution. Analysis of the third issue regarding the offence of carnal intercourse in the *IPC* shows that sufficient legal protection against child sexual abuse is absent because a reading of this section pinpoints the purpose to punish "voluntary" intercourse of a "carnal" nature alone. The Supreme Court judgment in *Suresh Kumar Kaushal* (2013) declares that both voluntary homosexual acts as well as heterosexual acts of a non-penile-vaginal penetrative nature alone are punishable under this section. Again, instances of sexual abuse of boy children by women is excluded from offences under the *IPC*. Analysis of the fourth issue shows that the present law on sexual assault in the *IPC* requires certain fundamental changes to make it more appropriate for prosecution of children:

a. The victim must be gender-neutral

b. Provisions punishing sexual assault of male children must be added

c. The term "outraging the modesty" must be removed

d. The types of acts which comprise of non-penetrative non-consensual sexual assault must be specified in the provisions

e. Provision should be made for punishment of aggravated cases of sexual assault.

The continuing refusal to recognise forced sexual intercourse within the institution of marriage is a stark reminder of social realities which continue to prevent changes in the law. Deletion of Exception 2 to Section 375 *IPC* would be one step towards removal of inequalities against women and foster congruence to the rule of law. This recommendation is beyond the scope of this thesis, but can be confined to a statement that incongruence to the rule of law, from a child rights' perspective, can be removed if Exception 2 to Section 375 of the *IPC* is amended to exclude sexual intercourse with a wife below the age of 18 years.

The current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 in the *POCSO* does not seem to be a positive advance in responding to child sexual abuse. There is a need for a general law which allows for sexual autonomy of a person below the age of 18 in certain circumstances, at the same time protecting children from sexual assault and abuse. This would provide adequate protection to the class of persons between the ages of 16 and 18 who engage in consensual sexual activities which do not amount to assault or abuse or compulsion due to customary practices.

This chapter has provided an analysis of legislation and case law on the basis of six indices of departure from consistency, coherence and clarity; correctness in allowing for uniformity and in tune with principles of statutory interpretation; correctness with the equality principle; correctness with regard to government policy; and correctness in restricting the scope of judicial discretion, as identified from the rule of law sub-rules principles enunciated by Bingham (2007).

CHAPTER 5: THEORETICAL ANALYSIS

5. I. Introduction

The law on child sexual abuse in India was vague, obscure and undefined until the passing of the *POCSO*, which is read along with the *IPC*. Important amendments were made to the *IPC* in 2013 by the *Criminal Law (Amendment) Act 2013*, resulting in ambiguity in the interpretation of certain provisions of the *POCSO*. Chapter 3 of this thesis synthesises relevant provisions and case law, along with certain provisions of the *United Nations Convention on the Rights of the Child*. From this, six key legal issues were identified, which were further analysed in Chapter 4. These issues pertained to the nature and scope of the sexual offences in the *POCSO*, the offence of rape in the *IPC*, the offence of carnal intercourse in the *IPC*, criminalisation of all sexual activity of children, offences on sexual assault in the *IPC*, statutory exclusion of marital rape of a child-wife in the *IPC*.

This chapter discusses the character of the law on child sexual abuse in India and its outcomes when viewed from a rights perspective of the *UNCRC*. Here, key legal issues are examined using social science evidence findings laid down in Chapter 1 with regard to the difficulties in definitions pertaining to consensual sexual relationships between minors, evidence of gender distinctions, and the difficulty for children to disclose, much less participate, in the legal process.

The key issues for analysis are:

1. The nature and scope of the provisions on sexual offences in the *POCSO* from a child rights' perspective
2.The gap in the *IPC* regarding sexual offences against children, created by the nature and scope of the amended offence of rape in sections 375 and 376 *IPC* and the present interpretation of the offence of carnal intercourse in section 377 *IPC*
3. The current criminalisation of all sexual activity (both abusive and non-abusive) of children below the age of 18

4. The statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC*.

5.1. Classification of sexual activity

Before proceeding, it must be clarified that sexual activity can be grouped into consensual and non-consensual, and abusive or non-abusive. The consent of children below the age of 18 is now technically immaterial, as they are deemed by law to be incapable of consent. However, social science evidence shows that it is a common part of sexual development for young people to explore and experiment in sexual interactions with their peers (Araji, 2004). Appropriate sexual exploration is when there is mutual agreement between same or similar-aged peers, it is non-coercive, and all participants have control to participate, continue or stop the behavior (Barbaree & Marshall, 2006).

Based on Araji (2004), the following table classifying "normal" non-abusive sexual behavior of adolescents and coercive or forceful or abusive sexual behavior was presented by Boyd & Bromfield (2006):[348]

Normal adolescent sexual behaviours	**Concerning/Abusive behaviours**
Masturbation in private	Masturbation causing physical harm or distress to self and others Public masturbation
Mutual kissing	Unwanted kissing
Sexual arousal Sexual attraction to others	Voyeurism Stalking Sadism (gaining sexual pleasure from the suffering of others)
Consensual touching of others' genitals Consensual sexual intercourse Consensual oral sex	Non-consensual groping or touching of others' genitals Coercive sexual intercourse/sexual assault Coercive oral sex
Behaviour that contributes to positive relationships	Behaviour that isolates the young person and is destructive of their relationships with peers and family

[348]See Table 1 at p.2 of Boyd, C. & Bromfield, L. (2006). Young people who sexually abuse: Key issues. NCPC Practice Brief No. 1 — December 2006. <https://aifs.gov.au/cfca/publications/young-people-who-sexually-abuse-key-issues>.

5.2. ISSUES FOR ANALYSIS

The four issues for theoretical analysis are framed based on the categorising of sexual activity as consensual and non-abusive, and non-consensual and abusive.

5.2.1. The nature and scope of the provisions on sexual offences in the *POCSO* from a child rights' perspective

The promulgation of the *POCSO* shows that Indian law has made positive advances in responding to child sexual abuse. This legislations provides clear substantive provisions defining the offences and laying down punishments. The six offences of sexual abuse – penetrative sexual assault, aggravated penetrative sexual assault, sexual assault, aggravated sexual assault, sexual harassment and using a child for pornographic purposes – cover the entire gamut of penetrative, contact and non-contact offences of sexual abuse of children. Chapter 4 shows that the *POCSO* has been drafted consistently, coherently, and correctly in accordance with the rule of law. The reasons cited in Chapter 4 are based on the following three findings:

1. The provisions of *POCSO* are consistently gender-neutral.
2. A comparison of the sexual offences laid down in the *Goa Children's Act 2003* with *POCSO* offences and their corresponding *IPC* offences show positive development in the law against child sexual abuse in India. The three sexual offences defined and punished in the *Goa Children's Act 2003*[349] lack clarity and comprehensiveness when compared to the six *POCSO* offences. Unlike the *POCSO* provisions which apply equally to protect boy and girl children, the *IPC* provisions do not offer adequate protection against sexual abuse of children of both genders. The recent amendment of the *IPC* in 2013 specifically punishes acts of male voyeurism, exhibitionism, sexual harassment, stalking and rape of females. However, male children continue to be excluded from protection against sexual acts in the *IPC*. The provision punishing voluntary unnatural acts under the *IPC* has been stretched by the judiciary to include unnatural sexual acts upon children, which adds to the ambiguity of the general criminal law.
3. The passing of the *POCSO* has made a positive impact upon the rule of law in Goa and Kerala with regard to sexual offences against children.

[349] Grave sexual assault (which includes contact offences like penetrative acts, injurious acts and using children in pornography), sexual assault (which comprises of sexual touching, and non-contact offences of voyeurism, exhibitionism, as well as showing pornography or sexual acts to children etc) and incest (which is sexual abuse by a relative by blood or adoption)

Article 34 of the *UNCRC* defines sexual exploitation and sexual abuse to comprise of:
(a) The inducement or coercion of a child to engage in any unlawful sexual activity;
(b) The exploitative use of children in prostitution or other unlawful sexual practices;
(c) The exploitative use of children in pornographic performances and materials.

Article 34 of the *UNCRC* states that State parties ought to undertake to protect the child from all forms of sexual exploitation and sexual abuse through appropriate national, bilateral and multilateral measures. After acceding to this treaty in 1992, India has an international obligation to abide by the treaty.

The provisions of the *POCSO* regarding the definitions of penetrative and non-penetrative sexual offences are in line with the stipulations under Article 34(a) of the *UNCRC* regarding unlawful sexual activity.

Article 2 of the *UNCRC* obligates the State to ensure for equality of all children, and prohibits discrimination on the basis of race, colour, sex, language, religion, political or other opinion, national, ethnic or social origin, property, disability, birth or other status, as well as protection against discrimination or punishment on the basis of status, activities, expressed opinions, or beliefs of the child's parents, legal guardians, or family members.

The *POCSO* offers equal protection to both boys and girls. Gender-neutrality in the definitions augments better protection for children, as, contrary to popular perception in India, boys are also highly at-risk as are girls – a fact indicated by the 2007 MWCD Report. Hence, gender-neutral definitions of sexual abuse offences in the *POCSO* allows for better protection of children as a class. This statute fulfils the obligations of the *UNCRC*.

5.2.2. The gap in the *IPC* regarding sexual offences against children: sections 375, 376, 377

Chapter 3 demonstrated that the pre-2013 provisions on rape in sections 375 and 376 *IPC* were problematic in three ways: firstly, only penile-vaginal sexual intercourse was recognised within the offence of rape; secondly, male children were not granted protection from penetrative sexual abuse; and thirdly, women sex offenders were not apprehended by the criminal justice system because the law does not recognise non-consensual penetrative sexual offences committed by a woman. After the 2013 amendment, other forms of penetrative sexual intercourse with a woman by a man also came within the definition of rape. This step of recognising unwanted oral, anal and other bodily-part intercourse within the offence of

rape under sections 375 and 376 *IPC* eradicated the restricted interpretation given to the term "rape". Yet these provisions continue to be problematic, as they exclude male children who are penetrated by males and females, and female children who are penetrated by women, from within the scope. Chapter 4 demonstrated the lack of adequate provisions for the protection of male children from sexual abuse, as well as the lack of law criminalising women who sexually violate others the bodies of others.

The current interpretation of the offence of carnal intercourse in section 377 *IPC*, obtained from a combined reading of the new definitions of rape under sections 375 and 376 post-2013 along with case laws in *Sakshi's* case (2004), *Naz* (2009) and *Suresh Kumar Kaushal* (2014), is problematic. Though section 377 punishes only voluntary acts, the court has interpreted this to include types of child sexual abuse which are excluded from section 376.[350]Section 377 would now technically apply to: (1) consensual penile-anus, penile-oral, finger-anal, finger-vaginal penetration, or object-vaginal penetration of a man by any person; (2) penile-anus, penile-oral, finger-anal, finger-vaginal or object-vaginal penetration of minor children irrespective of consent, by any person; and (3) bestiality.

Section 377 *IPC* was designed to criminalise voluntary carnal acts, not non-consensual and abusive carnal acts. The law does not protect men who seek legal recourse for being forced into non-consensual and abusive intercourse with other persons; non-consensual and abusive acts by women upon other women are also not addressed. Discussions on these reforms are beyond the scope of this thesis. However, it is necessary to argue for a separate provision in general criminal law regarding punishment of sexual penetration of minor children by any person, as in the *POCSO*, as the absence of provisions prosecuting penetrative sexual abuse of children of all genders by both men and women renders the law confusing, inconsistent and discriminatory.

This is problematic from a theoretical perspective when evaluating the law using the standards of the *UNCRC*, and the social science evidence about the prevalence of child sexual abuse.

Despite the 2007 MWCD Report showing higher statistics of boy-child sexual abuse contrary to popular conception, the substantive law in India – the *IPC* – continues to ignore the propensity of sexual abuse of boy-children. From a child rights' perspective, the *IPC* needs to

[350]*Naz Foundation v Government of National Capital Territory of Delhi* (2010) CriLJ 94.

be amended further in order to accommodate provisions punishing sexual offenders of boy-children.

In Chapter 2, evidence shows that girls are at higher risk of abuse than boys. Older boys are underrepresented in psychiatric samples, perhaps because of their unwillingness to disclose (Putnam, 2003). Factors that perpetuate non-disclosure by males are the socialisation of males within a culture where independence, sexual prowess and self-reliance are valued, whilst vulnerability, fear, dependency and homosexuality are considered as weaknesses and likely to lead to rejection and denigration (Spataro et al., 2001). This is particularly important when the *IPC* does not offer protection to boy-children from abuse.

Social myths allow women predators of male children to escape punishment. A combined reading of sections 375, 376 and 377 *IPC* show that the law allows adult women sex offenders to escape from its purview. In 2015, the Mumbai police reported a case where a boy of 16 years of age was repeatedly subjected to penetrative sexual assault by his friend's mother along with blackmail, putting an end to the arguments of pro-gender-specific women activist lawyers in India who have been quoted that there is not a single case reported of women having raped men.[351]Despite this case, it is highly unlikely that the law would be amended to include women sex offenders of male children. The main reason for such hesitancy was highlighted in the Delhi Rape case of 2012 where a minor male aged 17 years brutally raped an adult woman aged 21 years, and the fear that such a provision would be misused by males in order to escape liability for committing sexual offences upon adult women.

Article 34 of the *UNCRC* asks States to take steps to protect children from unwanted sexual activity. As per this Article, State Parties undertake to protect the child from all forms of sexual exploitation and sexual abuse. For these purposes, State parties shall in particular take all appropriate national measures to prevent (a) the inducement or coercion of a child to engage in any unlawful sexual activity; (b) the exploitative use of children in prostitution or other unlawful sexual practices; and (c) the exploitative use of children in pornographic performances and materials.

[351]Dutta, N. N. (2015)16-year-old boy raped by woman in Mumbai – can a man be sexually assaulted? http://www.india.com/news/india/16-year-old-boy-raped-by-woman-in-mumbai-can-a-man-be-sexually-assaulted-337583/

Article 2 of the *UNCRC* obligates the State to ensure for equality of all children, and prohibits discrimination on the basis of race, colour, sex, language, religion, political or other opinion, national, ethnic or social origin, property, disability, birth or other status, as well as protection against discrimination or punishment on the basis of status, activities, expressed opinions, or beliefs of the child's parents, legal guardians, or family members.

The law on rape in the *IPC* specifically excludes male children from within its ambit. Rape is confined to penetrative sexual abuse of a woman by a man. It excludes women offenders of male children. The general law does not protect male children from penetrative sexual abuse by men and women. It does not protect female children from penetrative sexual abuse by women. Hence the *IPC* does not fulfil the equality obligations laid down in Article 2, nor does it fulfil the obligation laid in Article 34 (a) of the *UNCRC* to prevent the inducement or coercion of a child to engage in any unlawful sexual activity.

5.2.3. The current criminalisation of all sexual activity (both abusive and non-abusive) of children below the age of 18

Chapter 3 demonstrated that prior to the enactment of the *POCSO,* the age for sexual relations was 16, as seen in section 375 *IPC* which punishes statutory rape of a girl below the age of 16irrespective of consent. But the age of sexual consent of male children was not stipulated by law. After the *POCSO* and the 2013 amendment to the *IPC*, the age of consent for sexual activity was18 for both sexes. These provisions in the *IPC* and *POCSO* which criminalize all sexual activity (both abusive and non-abusive) of children below the age of 18 present legal and practical issues, as shown in Chapter 4. The anomaly regarding inconsistency in the *IPC* between the genders regarding the age of consent (the age of consent of women is specified through section 375) and the conflict with the *POCSO* regarding which law prevails has been removed by section 42A *POCSO* , which makes the law regarding the age of consent of men and women at 18. The absence of a general law which allows for sexual autonomy of a person below the age of 18 in certain circumstances, at the same time protecting children from sexual assault and abuse, renders the law incorrect in providing adequate protection to the class of “mature” children between the ages of 16 and 18 who wish to engage in consensual sexual activities which do not amount to assault or abuse or compulsion due to customary practices.

As stated in Chapter 4, no general law exists which specifies the age of consent for sexual activity, other than prohibition of child marriage when one of the contracting parties is a male

child who has not reached 21 years of age or a female child who has not reached 18 years of age under the *Prohibition of Child Marriage Act 2006*, and the Exception to Section 375 which exempts married men from statutory rape if the wife is above the age of 15.[352]Under the current law, women can enter into sexual relationships within marriage from the age of 15, and enter into sexual relationships without marriage after the age of 18 (pre-2013 *Criminal Law (Amendment) Act 2013*, women's age of consent was 16 as per section 375), while males can enter into sexual relationships within marriage before the age of 21, and without marriage from the age of 18.

The law regarding the age of consent is highly confusing and inconsistent with rule of law principles.

This lack of clarity is also problematic from a theoretical perspective when evaluating the law against the *UNCRC*, and using the social science evidence about the prevalence of child sexual abuse generally.

In addition to Article 34, Article 19 of the *UNCRC* stipulates that State parties ought to take all appropriate legislative, administrative, social and educational measures to protect the child from all forms of sexual abuse while in the care of parent(s), legal guardian(s) or any other person who has the care of the child.

The Committee on the Rights of the Child has reinforced these Convention rights and made declarations which provide more substantive insights into the nature of the abstract rights. In 2011 in its General Comment No. 13 on Article 19 regarding the right of the child to freedom from all forms of violence, the Committee elaborated on the meaning of "sexual abuse" for the purpose of interpreting and applying Article 19, defining sexual abuse and exploitation in Article 19 to include:

(a) The inducement or coercion of a child to engage in any unlawful or psychologically harmful sexual activity;

(b) The use of children in commercial sexual exploitation; and

(c) The use of children in audio or visual images of child sexual abuse;

(d) Child prostitution, sexual slavery, sexual exploitation in travel and tourism, trafficking (within and between countries) and sale of children for sexual purposes and forced marriage.

[352]However, child marriages are not void *ab initio*, only voidable at the option of the contracting party, provided that such marriage, whether consummated or not, was repudiated within two years of either of them attaining the marriage age (section 13 of the *Prohibition of Child Marriage Act 2006*).

Many children experience sexual victimization which is not accompanied by physical force or restraint but which is nonetheless psychologically intrusive, exploitative, and traumatic.[353]

The Committee stated that sexual abuse comprises any sexual activities imposed by an adult on a child, against which the child is entitled to protection by criminal law. Sexual activities are also considered abuse when committed against a child by another child, if the child offender is significantly older than the child victim or uses power, threat or other means of pressure. Sexual activities between children are not considered sexual abuse if the children are older than the age limit defined by the State party for consensual sexual activities. [354]

The J.S. Verma Committee stated that the *UNCRC* aimed to protect children from sexual assault and abuse and not criminalize consensual sex between two individuals if they are below 18 years of age. Hence the J.S. Verma Committee was in favor of reducing of the age of consent for sexual activity to 16, as the age of 18 would result in the criminalization of consensual sex between persons who are below 18 years of age.[355] It is common knowledge that after the *POCSO* came into force, many cases were registered against young men in relationships with girls under the age of 18. However, if these relationships are against parental wishes, or the girl-child feels that her lover has cheated her, then cases against the man/boy involved would be booked under the *POCSO*. In many cases, the *POCSO* is used against innocent parties to settle scores.

Recently, a study by CCL-NLSIU (2016) examined 667 judgments passed by 20 judges from the Delhi District Courts from 1 January 2013 to 30 September 2015. In a large number of cases involving romantic relationships, a complaint was filed by the family after which the prosecutrix and the accused were found to have married each other. In most cases, the ceremonies of marriage were not performed, but this aspect was not scrutinized by the court. In a few cases, the complaint was filed by the prosecutrix, because of a breach of the promise to marry. In none of the cases in which the prosecutrix admitted to a romantic relationship was the voluntary nature of the relationship or the age gap between them scrutinized by the court.[356]

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[353] Para 25, General comment No. 13 (2011). *The right of the child to freedom from all forms of violence.* CRC/C/GC/13 http://www2.ohchr.org/english/bodies/crc/docs/CRC.C.GC.13_en.pdf at p.10.
[354]See Footnote, *Ibid*.
[355]Footnote 1, Verma, J.S., Justice, Seth, L., Justice, & Subramaniam, G. (2013). *Report of the Committee on Amendments to Criminal Law.* New Delhi: Government of India, pp.443-444.
[356] CCL-NLSIU (2016). *Report of Study on the working of Special Courts under the POCSO Act, 2012 in Delhi* (p.19). https://www.nls.ac.in/ccl/jjdocuments/specialcourtPOSCOAct2012.pdf.

Under Article 12 of the *UNCRC*, the State is obligated to make provisions that a child is free to express his own views in accordance with his age and maturity. The child shall be given an opportunity to be heard before any judicial and administrative proceedings affecting the child. This is particularly relevant in judicial proceedings involving romantic relationships, when the age of consent has been fixed at 18 under the *POCSO*. It is clear that a problem exists in establishing whether a child is of sufficient maturity to decide matters of sexual consent.

One solution to this problem would be to bring introduce "close-in-age" exceptions. In many countries, these exceptions are made for consensual acts between adolescents close in age. A liberal similar-age consent defence ensures that cases, in which a prosecution appears to be unjust, are kept to a minimum (Warner, 2012). Regarding the issue of age limits, Warner (2012) comments that to some extent all age limits are arbitrary, including the age below which no defence of consent is available.[357]

For example, in Australia, where the age of consent is at 16 years except for Tasmania and Southern Australia at 17 years, some state jurisdictions provide a legal defence when the sexual interaction is between two young people close in age (Western Australia, Tasmania, Victoria and the Australian Capital Territory). In South Australia, the defence of consent is only available to a person who is under the age of 17 and only when the person with whom they had sexual intercourse (the complainant) was at least 16 years of age.[358] In Victoria, as long as the complainant is at least 12 years old and the accused is not more than two years older, consent is a defence.[359] The ACT has a similar-age consent defence if the complainant is 10 years of age or older and the accused is not more than two years older.[360] In many other countries, like Austria, Bolivia, Croatia, and Sweden, "close-in age" exceptions are stipulated for sexual acts if the age difference is less than three years.[361] Hungary has an age of consent of 14 years, with a close-in-age exception for sexual acts from age 12 if the older party is under 18. In the Netherlands, close-in-age exceptions within "social-ethical norms" are at the discretion of the prosecution.[362] In the Netherlands, the age of consent for both males and females 16 years. However, in 1990, the Morality Laws were revised to the effect that all

[357]Warner, K. (2012). Setting The Boundaries Of Child Sexual Assault: Consent And Mistake As To Age Defences. [Online]. *Melbourne University Law Review*; *36* (3), pp.1009-1036 at p.1020.
[358]*Criminal Law Consolidation Act 1935* (SA) s 49(4).
[359]*Crimes Act 1958* (Vic) s 45(4).
[360]*Crimes Act 1900* (ACT) s 55(3).
[361]Legal Ages of Consent By Country https://www.ageofconsent.net/world.
[362]Age of Consent in Netherlands https://www.ageofconsent.net/world/netherlands.

"non-violent" sexual intercourse with a child between 12 and 16 years will only be prosecuted upon complaint by the child, although the age of consent remains 16 years for both males and females.[363] In Canada, there exist two close-in-age exceptions, depending on the age of the younger partner. A youth of 12 or 13can consent to sexual activity with an individual less than two years older. A 14- or 15-year-old can consent to sexual activity with a partner who is less than five years older.[364]

In the USA, where the age of consent varies from state to state from 16 to 18, the close-in-age exceptions varies.Federal legislation called the *Adam Walsh Child Protection and Safety Act* was signed into law in July 2006. Title I of the Act, known as the *Sex Offender Registration and Notification Act* (SORNA), establishes minimum registry standards states have to meet, which include registering juveniles found guilty of certain crimes. Various states have enacted laws commonly referred to as "Romeo and Juliet" laws which are intended to protect young people who are relatively close in age who engage in consensual sex from registering as sexual offenders. Some states, like Florida, have done this using a motion or petition process for registration relief, some states have provided age-gap provisions, while other states have gone so far as to legalize certain sexual conduct between minors and/or those close in age to avoid the registration requirement and the criminal charge associated with the sexual conduct.[365] Florida's age of sexual consent is 18 years. Its law provides a mechanism for the offender to petition or make a motion to the court to remove the requirement to register as a sexual offender if certain criteria are met: the victim must be at least 14 years-old, the offender no more than four years older than the victim at the time of the offence, and the victim must have consented to the sexual conduct.[366]In Delaware, the age of consent is 18. But close-in-age exceptions exist which allow minors aged below 18 years to consent to sexual intercourse if their partner is under the age of 30 or if they were married at the time of the incident.[367] Minors above age 12 may consent to a partner no more than 18 years of age, while children below age 12 may not consent under any circumstances.[368] In Hawaii, the age

[363]See Footnote 23, Simpson R. and Figgis H. (1997). *The Age Of Consent,* p. 9. https://www.parliament.nsw.gov.au/researchpapers/Documents/the-age-of-consent/bf21-1997.pdf .
[364]*Criminal Code* (Canada) ss150.1(2)–(2.1)
[365]Committee on Criminal Justice (2011). Examine Florida's "Romeo And Juliet" Law. *The Florida Senate Issue Brief 2012-2014.*http://www.flsenate.gov/PublishedContent/Session/2012/InterimReports/2012-214cj.pdf
[366]Section 943.04354, F.S.
[367] S. 770 (2), 11 De. Code Ann. http://www.delcode.delaware.gov/title11/c005/sc02/index.shtml
[368]See sections 768-773, *Ibid.*

of consent is 16. However, a child aged 14 or 15 can consent to sexual relations with a person not more than five years older than the child.[369]

Indian law could specifically provide for provisions in order to enable non-criminalisation of non-abusive sexual activity. Adequate leniency must be granted in the case of age-appropriate sexual behaviour. Article 40 of the *UNCRC* exhorts State parties to recognize the right of every child alleged as, accused of, or recognized as having infringed the law to be treated in a manner consistent with the promotion of the child's sense of dignity and worth, which reinforces the child's respect for the human rights and fundamental freedoms of others and which takes into account the child's age and the desirability of promoting the child's reintegration and the child's assuming a constructive role in society. The addition of appropriate defence provisions would help to prevent misuse of the *POCSO* by various interest groups.

The Netherlands model, where close-in-age exceptions within "social-ethical norms" are at the discretion of the prosecution, could suggest a way forward by giving discretion to judges to set aside convictions if the accused and the victim are within a reasonable age gap, both testify on the non-abusive nature of the sexual activity, and the judge is convinced that the sexual offence alleged is a manipulation of the legal system for personal vendetta.

Despite being a traditionally closed society like India, where religion dominates culture, discussions on sexuality are taboo, and pre-marital relationships by women are actively discouraged, where it may seem highly unlikely that a discussion on age-appropriate sexual behaviour can be initiated, much less legislation providing defence mechanisms for non-abusive sexual activity, it is welcoming to see judicial decisions by the High Courts of various states in India that have dismissed cases filed by the minor girl’s relatives against close in age adult males who have been found genuinely in love with the girl, by taking steps to get married after the girl child reaches majority. It is interesting to see how the Kerala High Court has invoked its inherent powers under Section 482 *CrPC* in order to quash criminal proceedings under *POCSO* and the *IPC* pending against the accused husband. This shows that there is a judicial trend among the High Courts in India not to criminalise sexual activity when the child is mature and responsible enough to understand the implications of his/her sexual act.

[369]Haw. Rev. Stat. ss.707-730, 707-732.

5.4.4. The statutory exclusion of child-wife rape above the age of 15 years from the scope of the amended offence of rape in the *IPC*

Chapter 4 demonstrated that the retention of Exception 2 of Section 375 of the *IPC* regarding sexual intercourse with child-wives above the age of 15, in the light of the *POCSO* and the *Prohibition of Child Marriages Act 2006*, is problematic, as all sexual intercourse, both consensual and non-abusive or non-consensual and abusive, with children under the age of 18 is prohibited.

Exception 2 of Section 375 of the *IPC* states that sexual intercourse by a man with his own wife, the wife not being under 15 years, is not rape. This conflicts with *POCSO* provisions prohibiting sexual activity with children below the age of 18, as well as *the Prohibition of Child Marriages Act 2006*, which establishes the age of a person for marriage as 18 for women, and 21 for men.[370] But the *Prohibition of Child Marriages Act 2006* ensures that child marriages are not void *ab initio*, and only rendered voidable at the option of the contracting party, provided that such marriage, whether consummated or not, was repudiated within two years of either of them attaining the marriage age.[371] These problems present legal and practical issues of incongruence.

These issues are problematic from a theoretical perspective when evaluating the law against the *UNCRC*, and using the social science evidence about the prevalence of child sexual abuse generally.

Article 34 of the *UNCRC* states that State parties ought to undertake to protect the child from all forms of sexual exploitation and sexual abuse, through appropriate national, bilateral and multilateral measures. It defines sexual exploitation and sexual abuse to comprise of:
(a) The inducement or coercion of a child to engage in any unlawful sexual activity;
(b) The exploitative use of children in prostitution or other unlawful sexual practices;
(c) The exploitative use of children in pornographic performances and materials.

Article 19 of the *UNCRC* stipulates that State parties ought to take all appropriate legislative, administrative, social and educational measures to protect the child from all forms of sexual

[370]Section 2(a) *Prohibition of Child Marriages Act 2006.*
[371]Section 3 *Prohibition of Child Marriages Act 2006.*

abuse while in the care of parent(s), legal guardian(s) or any other person who has the care of the child.

Child marriage is not unlawful in India. It cannot be considered as "unlawful sexual activity" which comes within the ambit of Clause (1) of Article 34. But the continued approach of permitting child marriages to remain legal in the name of customary practices in India ought not to prevail in the light of Article 19, which stipulates protection of a child from all forms of sexual abuse when in the care of any other person who has the care of the child. Here, the husband is entrusted with the care of his child-wife. Hence, India is obligated to fulfil its international obligations by making child marriage unlawful.

The concept of marriage ought to involve consensual and non-abusive sexual intercourse between two contracting parties. As sexual intercourse can be abusive, it is unacceptable to give blanket permission for any kind of sexual intercourse because the two contracting parties are in a marriage relationship; more so when at least one partner is a person who is incompetent to consent to the contract. By creating a safe zone under the guise of marriage, the law allows a male to sexually abuse a girl child above the age of 15years.

There are two options to address this issue:

1. The law must make marital rape a punishable offence, which allows all married women to prosecute their husbands if there is non-consensual abusive sexual intercourse. This would allow married girl children above the age of 15 to prosecute their husbands for rape; or
2. The law must remove the statutory exception for married girl children above the age of 15to be subjected to intercourse by their husbands. Exception 2 to Section 375 *IPC* should be amended so as to exclude sexual intercourse with a wife below the age of 18 years. This would clarify that Indian law penalises child marriage, in accordance with Article 19 of the *UNCRC*.

Ideally, making marital rape a punishable offence is the way forward in guaranteeing women's rights and children's rights. However, it is a practical reality that in India it is easier for the legislature to exercise the second option. Petitions for making marital rape a punishable offence have been rejected umpteen times even by the judiciary; however, an in-depth discussion on this issue here is outside the scope of this thesis.

5.II. Conclusion

The following analyses have been made in this chapter:

1. Gender-neutral definitions of sexual abuse offences in the *POCSO* allow for better protection of children as a class, fulfilling the obligations of the *UNCRC* with regard to equal treatment in Article 2 and protection from inducement or coercion to engage in any unlawful sexual activity in Article 34.

2. The general law does not protect male children from penetrative sexual abuse by men and women. It does not protect female children from penetrative sexual abuse by women. The *IPC* does not fulfil the equality obligations in Article 2, nor does it fulfil the obligation in Article 34(a) of the *UNCRC* to prevent the inducement or coercion of a child to engage in any unlawful sexual activity.

3. Allowing children within a particular age group to have freedom to decide matters of sexual consent with persons within a particular age group may assist in the fulfilment of obligations under Article 12 of the *UNCRC* to facilitate the giving of due weight of views of a child in accordance with his age and maturity. Such freedom extends to non-abusive, consensual sexual activity, and the legal system ought to prevent abusive and non-consensual sexual activity in an age-appropriate manner in accordance with Article 19 of the *UNCRC*, which exhorts the State to take protective measures against all forms of sexual abuse, including sexual activities when the child offender is significantly older than the child victim or uses power, threat or other means of pressure. Adequate leniency must be granted in the case of age-appropriate sexual behaviour, which means recognition of the right of every child alleged as, accused of, or recognized as having infringed the law to be treated in a manner consistent with the promotion of the child's sense of dignity and worth as per Article 40.

4. Provisions which condone child marriage, and provide exemptions for rape of child-wives above the age of 15, ought to be abolished, in order to fulfil obligations under Articles 34 and 19 of the *UNCRC*; the latter provision specifically stipulating that States must ensure protection from sexual abuse, while the child is in the care of parent(s), legal guardian(s) or any other person who has the care of the child. Since the husband has care over his child-wife, it is necessary that Exception 2 of Section 375 *IPC* be amended to exclude sexual intercourse with a wife below the age of 18 years.

The Constitution guarantees certain rights to children. However, the Indian patriarchal system ensures that children, in practice, have few rights. Carson (2014) states that in spite of the inclusion of children's rights within the Constitution, these constitutional rights are mainly need-based.[372] The analysis in this thesis identifies lacunae in the law from a child rights' perspective against the *UNCRC* as well as social science evidence. It is time that laws that prohibit child maltreatment be enforced and perpetrators held responsible through prosecution.[373] This can be achieved by reforming Indian law through the treaty obligations of the *UNCRC*, and by the social science and health evidence outlined in this thesis.

[372]Carson, D. Foster, J. and Chowdhury, A.(2014). Sexual Abuse of Children and Youth in India An Anthropological Perspective. *The Oriental Anthropologist.14*: 2: 343-364 at 354.
[373]*Ibid*.

CHAPTER 6: CONCLUSION

6.1. Introduction

At the time of this research in 2011,the general criminal law in the *IPC* contained provisions which were insufficient to deal with cases of child sexual abuse. A conspiracy of silence shrouded cases of child sexual abuse, due to various socio-cultural reasons, which were reflected in the non-receptiveness of the criminal justice system. The few cases that reached the courts were usually dismissed for lack of evidence. Since the 1990s, Goa had a high foreign tourist influx, which led to the mushrooming of institutions catering to child prostitution. The *Goa Children's Act 2003* was promulgated to curb this menace. From 2003, this was the only legislation which had specific provisions punishing certain types of sexual abuse against children. Goa also had a fully functional Children's Court, with powers of district and sessions, to deal with adult offenders of children. After the official study in 2007 showcased data regarding high prevalence of abuse, efforts were made to bring about a law protecting children along the lines of the *Goa Children's Act 2003*. In Kerala, statistics showing high prevalence of abuse fuelled endeavours to draft a state law for children. Before a state law in Kerala came to fruition, the national special statute of the *Protection of Children from Sexual Offences Act 2012* came into force. This changed the law on child sexual abuse across the nation, including Goa. This law is extremely important in the history of child rights because various sexual offences against children, which did not exist in Indian criminal law, were defined and criminalised for the first time. Later, the passing of the *Criminal (Amendment) Act 2013* led to a range of developments against child sexual offences in the *IPC* and *POCSO*, some of which have created sophisticated methods of dealing with certain sexual offences.

6.2. Research Questions

This chapter integrates the findings from Chapters 1 to 5 of this thesis and makes a significant contribution to knowledge by considering whether the literature and the qualitative analysis explore the nature and adequacy of Indian laws on child sexual abuse. This thesis examined the following research questions:

1. What is the social science evidence about the nature, prevalence and sequelae of child sexual abuse generally and in the Indian context?
2.What are the legislative models for prosecuting child sexual abuse offences in India nationally and in the states of Kerala and Goa?
3. What does a legal analysis of these frameworks reveal about advances and remaining problems in these models?
4. What does a theoretical critique informed by the social science evidence and the *UNCRC* reveal about the adequacy of the law?

6.3. Summary of findings

Social science evidence from international literature demonstrates the need for clear socio-legal studies on the impact of the criminal justice system on child victims of sexual abuse, and fuels the discourse on effective ways to combat non-disclosure due to socio-cultural reasons. The existence of various statutes defining substantive offences of child sexual abuse leads to confusion in interpretation of which law will prevail when two or more laws apply regarding various offences. This thesis shows which law ought to prevail in such circumstances. This thesis also discusses the impact of the *UNCRC* upon four problematic issues in the law.

6.3.1. Findings in Chapter 1

Chapter 1 introduces the topic, stating its context and scope, along with a literature review of relevant material from social science and legal disciplines. The gaps in scientific knowledge were highlighted, especially with regard to the absence of substantive analysis of the law before and after the recent major changes brought about by the *POCSO* in 2012 and the *Criminal Law (Amendment) Act 2013*in 2013. The original contributions that this thesis makes to knowledge is specified in this chapter. The contributions are: the synthesis of social science evidence about the nature, prevalence and sequelae of child sexual abuse generally and in the Indian context; synthesis of the legislative models comprising of statutory provisions and case law, both pre- and post- the *Criminal Law (Amendment) Act 2013* regarding prosecuting child sexual abuse offences in nationally and in the states of Kerala and Goa;a legal analysis of legal frameworks, both pre- and post- the *Criminal Law (Amendment)*

Act 2013, in order to reveal advances and remaining problems in these models; a theoretical critique informed by the social science evidence and the *UNCRC* about the adequacy of the law.

6.3.2. Findings in Chapter 2

Chapter 2 examined the social science evidence about child sexual abuse, its nature, and effects upon the health of victims. It makes an original contribution to knowledge by examining important Indian and international studies on the prevalence and effects of child sexual abuse. This thesis cited Indian case law referring to the socio-psychological contexts that make disclosure of sexual offences by women difficult. These references showed the importance of access to mental health support for both the child and non-offending family members in order to make disclosure, evaluation and examination by the criminal justice system easier. Such access to mental health support systems would positively impact the long-term emotional outcomes of the child and family.

6.3.3. Findings in Chapter 3

Chapter 3 synthesised statutes on child sexual abuse, as well as relevant case laws, and identified problematic areas. The *IPC*, the *POCSO*, the *Goa Children's Act 2003*, and the *Prohibition of Child Marriages Act 2006* were synthesised and analysed for this purpose. Relevant case law of the Supreme Court and High Courts of various states were examined to draw up comparisons between the national model and regional models in Goa and Kerala. Relevant case law was obtained by utilising the search engine of manupatra.com.

A significant contribution to knowledge made by Chapter 3 is a comparison of the various legislations on child sexual abuse after the *Criminal Law (Amendment) Act 2013*, and how these laws impact the law on child sexual abuse in the Kerala and Goa; the former representing all other states in the Indian Union, and the latter being unique in having a pre-existing special legislation. Pertinent articles from the *UNCRC* which are of relevance were examined in detail in order to lay the groundwork for theoretical analysis.

This thesis identified six issues which are problematic under the present law. Conventional legal analysis methods were used to analyse these issues. This analysis is an original contribution to knowledge on child sexual abuse law. These six issues were:

1 Has the nature and scope of the sexual offences in the *POCSO* made positive advances in responding to child sexual abuse?

2. Has the nature and scope of the amended offence of rape in the *IPC* made positive advances in responding to child sexual abuse?
3. Does the current interpretation of the offence of carnal intercourse in the *IPC* offer sufficient protection against child sexual abuse?
4. Is the current criminalisation of abusive and non-abusive sexual activity of children below the age of 18 a positive advance in responding to child sexual abuse?
5. Does the present law on sexual assault in the *IPC* make positive advances in responding to child sexual abuse?
6. Does the statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC* construe a positive advance in responding to child sexual abuse?

6.3.4. Findings in Chapter 4

Chapter 4 analysed the legislation and case law in Chapter 3 on the basis of six indices identified from Bingham (2007) to find establish whether the law departs from consistency, coherence and clarity, correctness in allowing for uniformity and principles of statutory interpretation, correctness with the equality principle, correctness with regard to government policy, and correctness in restricting the scope of judicial discretion.

It is clear that the nature and scope of sexual offences in the *POCSO* show positive advancement in child sexual abuse law. The amended offence of rape in the *IPC* has also made positive advances. However, provisions punishing penetrative sexual abuse of male children must be added into the *IPC*. Gender neutrality of victim and offender is recommended in definitions of sexual offences. The offence of carnal intercourse in the *IPC* does not offer sufficient legal protection. Provisions punishing sexual assault of male children in the *IPC* must be added, with punishment of cases of aggravated sexual assault. The archaic term “outraging the modesty” must be removed, and those acts which comprise of non-penetrative non-consensual sexual assault must be specified. The provision legalising marital rape ought to be amended to exclude sexual intercourse with a wife below the age of 18 years. There is the need for a law which provides adequate protection to the class of persons between the ages of 16 and 18 who engage in consensual sexual activities that do not amount to assault or abuse or compulsion due to customary practices. Various High Courts in India during 2015-2017 have acquitted men charged of sexual crimes against consenting minor women, despite the offences of statutory rape and penetrative sexual assault in the *IPC* and *POCSO*. This shows that legislation needs to be brought in tune with the ground reality.

6.3.5. Findings in Chapter 5

Four issues were identified for further theoretical analysis in Chapter 5, informed by the social science evidence and the relevant articles of the *UNCRC*. Such theoretical analysis is a novel contribution to knowledge in this area. These four issues were:

1. The nature and scope of the provisions on sexual offences in the *POCSO* from a child rights' perspective

2.The gap in the *IPC* regarding sexual offences against children, created by the nature and scope of the amended offence of rape in sections 375 and 376 of the *IPC* and the present interpretation of the offence of carnal intercourse in section 377 of the *IPC*

3. The current criminalisation of all sexual activity (both abusive and non-abusive) of children below the age of 18

4. The statutory exclusion of child-wife rape from the scope of the amended offence of rape in the *IPC*.

Chapter 5 found that gender-neutral definitions of sexual abuse offences in the *POCSO* allows for better protection of children as a class, fulfilling the obligations of the *UNCRC* with regard to equal treatment in Article 2, and protection from inducement or coercion to engage in any unlawful sexual activity in Article 34. The *IPC* does not fulfil the equality obligations laid down in Article 2, nor does it fulfil the obligation laid in Article 34(a) to prevent the inducement or coercion of a child to engage in any unlawful sexual activity. Article 12 of the *UNCRC* stipulates freedom to facilitate giving of "due weight" of the views of a child in accordance with his age and maturity, which ought to extend to non-abusive, consensual sexual activity alone in an age-appropriate manner in accordance with Article 19 of the *UNCRC*. Adequate leniency must be granted in the case of age-appropriate sexual behaviour. This involves recognition of the right of every child alleged of or recognized as having infringed the law to be treated in a manner consistent with the promotion of the child's sense of dignity and worth as per Article 40. Judicial decisions of the High Courts of various states in India reflect such trend of leniency in age-appropriate sexual conduct, even though the *IPC* and the *POCSO* do not uphold these stipulations. Provisions in the law which condone child marriage, and provide exemptions for rape of child wives above the age of 15, ought to be abolished, in order to fulfil obligations under Articles 34 and 19 of the *UNCRC*; the latter provision specifically stipulating that States must ensure protection from sexual abuse, while the child is in the care of parent(s), legal guardian(s) or any other person who has the care of the child.

6.4. Researcher's closing statement: Practical implications

The findings from the legal and theoretical analysis in this thesis show how substantive provisions of the Indian criminal law on child sexual abuse ought to be interpreted and where the law needs to be changed. It is necessary that Parliament designs laws that implement the prevention of child marriage irrespective of traditional community practices and also remove the exception for marital rape of a child wife above the age of fifteen. On the other hand, the legislature needs to form legislation to ensure non-prosecution of age-appropriate sexual activity to guarantee the protection of the rights of a child under the *UNCRC*. It is also important to enact laws that prevent the criminal justice system from re-traumatising a child, and courts to interpret the law in such a manner that promotes beneficial outcomes for the child. This will help to uphold the principle of the rule of law as enshrined in the *Constitution of India 1950*, and protect the rights of Indian children against sexual abuse.

The findings in this thesis can be used to encourage further legal research into the nature and effects of child sexual abuse as seen in Indian judicial decisions, as well as studies of sentencing trends in child sexual abuse cases in India.

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